

Profile in Black and White

**A FRANK PORTRAIT
OF SOUTH CAROLINA**

By Howard H. Quint

PUBLIC AFFAIRS PRESS, WASHINGTON, D. C.

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ABOUT THE AUTHOR

For the past eleven years Professor Howard H. Quint has been a member of the faculty of the University of South Carolina where he specialized in the teaching of American constitutional and intellectual history. Because he believed that this book should be published but did not wish to cause embarrassment to the University of South Carolina, a state-supported institution, he resigned his position prior to publication.

Professor Quint was graduated from Yale University in 1940 and was awarded an M.A. degree from Stanford University and a Ph.D. degree from The Johns Hopkins University. During World War II he was associated with the Foreign Broadcast Intelligence Service as a propaganda analyst and with the Office of Strategic Services as a political and economic analyst. In 1954 he won second place in an American Historical Association competition for the John H. Dunning Prize. In 1956 he was Smith-Mundt lecturer in United States history at the National University of Mexico.

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INTRODUCTION

Although this book deals with South Carolina, it is in effect a study of the Deep South. What is happening in the Palmetto State is fairly typical of the situation in other Southern states where segregation, bigotry and prejudice remain deeply entrenched.

To judge by what Prof. Quint points out in this highly discerning book, the situation in South Carolina hasn't improved materially since the Supreme Court of the land ruled, in its historic decision of May 17, 1954, that students in publicly supported educational institutions may not be segregated because of race, creed, or color. A worsening rather than improving racial situation is indeed reflected by the views expressed by officials, newspaper editors, voluntary organizations and individual citizens, Negro and white, as cited in this book.

Although Prof. Quint handles his material with admirable restraint, the reader, even if he is personally attached to the state,^[1] is likely to pronounce South Carolina's record a melancholy one. Is the state behaving responsibly when it denies the law of the land, busies itself with contriving means of avoidance, threatens instead of addressing itself to the manifest mandate? When it revives the plea of peculiarity does it remember its own history of nullification and secession? Is it never to reject the demagogue who proclaims exploded notions of race and distorts the Constitution of the United States? In the interval for reformation which the Supreme Court has wisely allowed must South Carolina indulge bluster and vituperation in place of summoning candor and courage? Have ignorance, poverty, and prejudice fed on each other until the white community has sunk to second-rate capacity?

Consider the spectacle of an ancient commonwealth in delirium because a black child knocks on a schoolhouse door. What are the causes of this fury? They are many, but the chief is that the applicant for equal opportunity is now in a superior legal and moral position. It is the Negro

who rests upon rights, to be claimed through orderly processes. He leaves desperate remedies to those who refuse him. In the rap on the door sound the measured tones of judges, the command of the President of the United States and the voice of the nation. Echoes too the demand of deprived peoples in many countries.

More solemn than all these is the call of conscience of South Carolina. Immemorial wrongs are at length to be redressed—gradually, painfully, surely. Some will say that the conscience of the state is dead, that to invoke it is delusion. If that is true, no solution offers except coercion, while we entertain the hope that prudent acquiescence will substitute for more valorous self-correction. If the white people of South Carolina furnish no worthy response in the crisis, then humiliation and rehabilitation by other hands is their portion.

In spite of the discouraging showing to date, one awaits a better prospect. Patience, double patience, in the cure of long-standing ills is the obvious counsel. Though South Carolina has had ample warning, public opinion reflects a state of shock. Additional time (but how long, oh Lord, how long?) for readjustment will bring the problem into truer focus. Extravagant allegations still industriously pressed will inevitably be discredited. Who can believe that the Supreme Court is Communist-controlled or that segregation in the schools is the bulwark of racial purity? As other states conform to the court decree and their experience is that the heavens do not fall, fanciful terrors will subside. New leaders will bid for support, persons not pledged to fierce intolerance.

Healthy elements deserve to be nursed. Wholesale condemnation, besides being inapplicable, will act to bring support to the violent, the confused, the cruel. A state may not be disparaged into compliance.

The truly restorative ingredients are within. That they will be roused and meet the nation's demand there can be no doubt. Prof. Quint's book makes this amply evident.

Some may feel that the author is much too critical and outspoken. I disagree. While I don't go along with everything that Prof. Quint says, I am inclined to feel that his book needed to be written; too many things have been left unsaid too long. It's time that South Carolina—that, indeed, the

entire South—face up, boldly and realistically, to their problems. I commend this book to every Southerner and to every American.

BROADUS MITCHELL

[1] Mr. Mitchell is a graduate of the University of South Carolina, of which his father, the late Samuel Chiles Mitchell, was president. His mother was born in South Carolina, his father in Mississippi of South Carolina (Richland and Abbeville districts) forbears. He is now John Hay Whitney Visiting Professor of Economic History in Hofstra College, Hempstead, Long Island.

PREFACE

This is a book about race relations in the sovereign state of South Carolina. It gives particular attention to the lengths to which white South Carolinians are willing to go to maintain a caste system of society. And it shows why South Carolina, the prototype of every Deep South state, is not likely to surrender without a catastrophic struggle to accepting the proposition that the Negro is a free individual in a free society with the same rights and privileges as every other American.

In South Carolina, the race issue has always been emphasized in its most exaggerated form and the Negro has helped to create what has become a peculiar and almost unique state of mind. In many respects the state's history has been little less than a chronicle of the white population's reactions to the problems created by the presence of a large number of Negroes—a case of the tail wagging the dog. In 1921 Professor Francis B. Simkins considered South Carolina's failure “to keep abreast of her sister states in non-partisan and classless progress” as intelligible and explainable “only in the light of the perennial fear of disturbing inter-racial harmony.” The state's “proud record in interracial harmony,” he noted, was based on a policy of “absolute white supremacy.”^[2] Similarly, the late W. W. Ball, the Charleston champion of aristocratic conservatism, believed that “socially and politically the presence of this race in majority” was perhaps the ruling factor in the state's progress or want of it.^[3] Summarizing the stand of South Carolina and the South on the decision of the Supreme Court to end racial segregation in public schools, R. Beverly Herbert, a Columbia attorney, expressed the same idea. “A deep sense of race and race preservation,” he wrote, “has influenced and in many cases controlled the South throughout her history.”^[4]

I feel compelled to state at the outset certain basic assumptions upon which this study is premised. I believe that the abolition of racial segregation in public schools and public facilities is a desirable end; that Southerners in defending such segregation in the 1950's are fighting the tide of history just as surely as their forefathers did in defending human bondage a century ago; and that the Negro's drive to end this segregation will eventually be successful. I recognize the tremendous difficulties presented by this problem due to long established mores and realize that it cannot be solved quickly and without a certain amount of social friction and resentment.

This investigation reveals a way of thinking that is in a sense foreign to most non-Southerners and I ask of the latter patience, understanding and tolerance. But I feel that constructive rather than obstructive action must be taken and that compliance with rather than defiance of the Supreme Court's verdict must be the rule. I particularly deplore the disrespect for federal law which is inherent in the official policy of the State of South Carolina. In some ways this is the most ominous development of the past few years. In all phases of this investigation I have striven for objectivity and endeavored first and foremost to allow South Carolinians, both white and Negro, to speak for themselves and thereby to express the communal psychology of the state.

Since this study leans heavily on certain South Carolina newspapers, it is appropriate to point out the following about these papers:

The *Charleston News and Courier*, the largest and probably the most influential of those studied, reflects the sentiments of the most extreme segregationists in the state. Conservative, if not downright reactionary, not only on the race issue but in all political, economic and social questions, the Charleston paper advocates resistance to the Court decisions to the point of defiance of federal authority. The editor of the paper is Thomas R. Waring.

While under the editorship of able Jack H. O'Dowd, the *Florence Morning News* was the most reasonable and constructive daily in the state with regard to the segregation problem. An advocate of "militant moderation" and an opponent of both white supremacists and the NAACP, O'Dowd became the state's most controversial editor, subject for the wrath of ardent segregationists. Finally succumbing to pressures, he resigned the

editorship in August 1956. His successor, James A. Rogers, is an "orthodox" segregationist.

Controlled by the same company that publishes the morning *Columbia State*, the *Columbia Record*, an afternoon newspaper, accepts prevailing views on the race issue, though in considerably less extreme form than the *Charleston News and Courier*. Also staunchly conservative, the *Record* leans toward the Republican Party. As of the beginning of this year, the *Record's* editor, George A. Buchanan, became Dean of the University of South Carolina School of Journalism.

Decidedly anti-integrationist, the *Anderson Independent* is less concerned with the race issue than the other papers studied. This is in part a reflection of its upcountry location. The *Independent* represents to some degree the New-Fair Deal elements in the state and is an outspoken advocate of loyalty to the national Democratic Party. Editor of the paper is L. S. Embree.

These newspapers represent a cross section of the press in South Carolina both geographically and ideologically. Moreover, a study of additional newspapers would not change appreciably, if at all, the basic patterns. (As far as I am aware, there is only one paper in South Carolina which advocates compliance with the Supreme Court's 1954 decision. This is the *Cheraw Chronicle*, edited and published by a young and courageous North Carolinian, Andrew McDowd Secrest.)

Other sources, notably periodical literature, the proceedings of the General Assembly of South Carolina, and the *Columbia State* have been used to a limited extent. For the sake of brevity the newspapers are referred to throughout the text simply as the *News and Courier*, the *Record*, the *Morning News* and the *Independent*.

The author is a native of Connecticut who has lived over a decade in South Carolina. But this book could not have been written without the assistance of a young scholar who is a Southerner. Legitimately his name should be on the title page but he desires for personal reasons to remain anonymous. Both the research for and a preliminary draft of a major portion of this study were done by him and I wish now to acknowledge this fact and also my obligation to him.

HOWARD H. QUINT

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[2] Francis B. Simkins, "Race Legislation in South Carolina since 1865," *South Atlantic Quarterly*, XX (June, 1921), 168.

[3] Anthony Harrigan (ed.), *The Editor and the Republic: Papers and Addresses of William Watts Ball* (Chapel Hill: University of North Carolina Press, 1954), p. 19.

[4] *The State* (Columbia, S. C.), Oct. 30, 1955, p. 1-B.

CONTENTS

I	
The Development of Race Relationships	1
II	
The Case from Clarendon	12
III	
The Emergence of Patterns	21
IV	
The White Folks Fight Back	38
V	
The Brotherhood of Segregated Men	55
VI	
A Place in the Shade	71
VII	
The New Nullification	92
VIII	
Politics and Segregation	128
IX	
Another War of Yankee Aggression	145
X	
Collaborators, Eggheads, Do-Gooders, and Appeasers	167
XI	

The Lost Cause Relost	181
References	187
Appendix (Text of Supreme Court decision on desegregation, May 17, 1954)	206
Index	210

CHAPTER I

THE DEVELOPMENT OF RACE RELATIONSHIPS

Emancipation, itself, would not satisfy these fanatics. That gained, the next step would be to raise the Negroes to a social and political equality with the whites.—*John C. Calhoun*

The present pattern of race relations for South Carolina was shaped in the last quarter of the nineteenth century. In 1877 at the end of the Reconstruction period the mould of segregation had yet to be rigidly defined. Only in the last decade of the century was absolute segregation established. During the Reconstruction years public schools were not integrated, although Negro students attended the state university. In personal and social relationships segregation was generally practiced but more on the basis of social custom than by force of legislation. Largely if not entirely ignored was the Civil Rights law which had been passed by the Reconstruction legislature. This law, which remained on the statute books until 1889, prohibited racial discrimination by “common carriers or by any person engaged in a business, calling or pursuit” for which a federal, state or municipal license was required.^[5]

In the political area the establishing of Jim Crowism was slower though no less effective and complete in its end result. Negroes voted until the 1890's and were influential in the local government of several counties. South Carolina sent three Negro congressmen to Washington after 1876; one served until 1896. In 1882 nine Negroes sat in the state legislature, the last Negro member of that body being defeated for reelection in 1902. Yet

these were the exception and not the rule for the Negro was in truth virtually eliminated as a factor in state politics by the end of the 1880's. With the restrictions on Negro suffrage contained in the new state constitution of 1895 and the adoption of the Democratic Party primary the following year, the Negro was prevented from voting in the state. Yet, in spite of the Negro's all but complete disfranchisement, the fear that he might be used for political purposes "prevented the whites from dividing into two parties or from breaking out of the restrictions imposed by the Democratic primary."^[6]

With the disfranchisement of the Negro, the repeal of the state Civil Rights law and the establishment of absolute and legalized segregation, a rigid system of caste based on race materialized as a means of race control.^[7] It was reflected in the segregation of schools, churches, and other public and private organizations and institutions. The two races seldom came into contact except in the relationship of employer and laborer. In no sense was the concept of racial equality accepted by the dominant whites.^[8]

The maintenance of absolute segregation frequently necessitated resort to either the threat or use of force or violence. The threat was ever present in the personal, economic, and political relationships between the races. Fear of slave insurrections was replaced by fear of a "vague and unknown thing," social equality. As the nineteenth century ground to an end, application of violence was frequently approved by "respectable" whites, especially if Negroes were suspected or charged with murder or rape. The *Charleston News and Courier*, for example, argued that the lynching of a suspected murderer was "not mob law." According to the paper's editorialist, "the brute placed himself outside the pale of the law and was dealt with accordingly."^[9]

Segregation of the races in the state has been both a manifestation of belief in racial superiority and a basic distrust of democracy. Ben Tillman interpreted his election as governor as a triumph of "white supremacy over mongrelism and anarchy." In his inaugural address he denied "without regard to color that 'all men are created equal.'" It was not true then and it was not true when Jefferson wrote it, he thundered.^[10] Carlyle McKinley, associate editor of the *News and Courier*, wrote in the 1880's that in "works of art, skill, science, invention, literature, in the whole field of human

enterprise, endeavor, design and discovery, in every respect that can be named, the Negro is far behind the lowliest families of the white race.”^[11] The late W. W. Ball, among other things editor of the *News and Courier* and Dean of the School of Journalism of the University of South Carolina, declared that “every decent white man and woman” in the state maintained and exercised the “right of treating all Negroes as inferiors.” In one of his characteristic diatribes against democracy, he wrote that “universal and unrestricted suffrage” was unthinkable. Safety demanded that South Carolina “steer away from the infatuation even of universal white democracy.”^[12]

In 1944, twenty-five years after Ball made the above statement, the state House of Representatives adopted a resolution which “indignantly and vehemently” denounced all organizations seeking “the amalgamation of the white and Negro races by co-mingling of the races on any basis of equality.” Such were deemed “hostile to the existence and preservation of the American Union of States.” Simultaneously, the legislators reaffirmed their belief in and allegiance to “established white supremacy,” and pledged “our lives and our sacred honor to maintaining it, whatever the cost.”^[13]

In no other area have South Carolinians been so sensitive to outside criticism as on the race issue. After the end of Reconstruction “outside agitation” on racial problems was infrequent. It became even less so after the Supreme Court in 1896 gave official legal blessing to racial segregation in the *Plessy v. Ferguson* decision. However in the 1930’s and during the Second World War, “agitation” was renewed for more civil rights for the Southern Negro. This agitation inspired passage of the above cited resolution by the state legislature. The latter demanded, “firmly and unequivocally,” that “henceforth the damned agitators of the North leave the South alone.”^[14]

II

Elimination of the Negro from state politics became an article of faith, a factor of transcendent importance in the preservation of white supremacy. The instrumentality through which the Negro was effectively excluded from the suffrage was the Democratic Party primary which was adopted in 1896.

Not until the late 1940's was the Democratic primary opened to Negro voters and then only by direction of the federal courts.

Up to the New Deal period the South Carolina white primary faced little real "danger" either from "outside agitators" or homegrown "radicals."^[15] Yet a disruptive force was at work. This was the National Association for the Advancement of Colored People which slowly but relentlessly was seeking to break down the restrictions placed on Negro suffrage. An initial breach, which did not directly affect South Carolina, had come with the ruling by the Supreme Court in 1915 that the "grandfather clause" was unconstitutional. South Carolina reacted to these developments by strengthening its determination to maintain and re-enforce the white primary. One venerable device in this effort was the poll tax which, of course, not only disfranchised a mass of Negro voters but many whites as well. White South Carolinians were willing to pay this price, however, to guarantee the white primary. Toward the same end other devices were resorted to as grounds for disfranchisement such as lengthy residence requirements, discretionary educational requirements, property qualifications and numerous petty crimes, supposedly common among Negroes.

Lack of organized opposition made control of the Democratic primary tantamount to control of the state government. Such control traditionally resided in the hands of politicians whose defeats resulted not in the extension of democracy but simply in the creation of a new faction to direct state politics. With great effectiveness politicians used fear of the Negro vote to forestall development of an operative two party system. They contended that a two-party system would split the white vote and thus allow the Negroes to hold the balance of political power. In opposing the repeal of the poll tax, a member of the 1944 state House of Representatives said that Negroes were "trying to vote" and if the suffrage were made too easy a two party system would surely result. To prevent both, he concluded, it was imperative to keep the Democratic Party all powerful.^[16] Nor did this feeling end with the abolition of the white primary. In 1952 Governor James F. Byrnes, taking note of the increasing registration of Negro voters, lamented that there would always be white politicians in the state "willing to enter into secret political trades" for Negro votes. Such men had to be "watched" and those who were willing to deal with Negro leaders had to be

defeated.^[17] In 1956 Governor George Bell Timmerman, Jr., said that a two party system would bring South Carolina “nothing but permanent strife and damage.” It had brought chaos to the North “where minorities are pawns and politics is played with the lives of small children for the sake of a vote,” asserted the governor. He for one was “not prepared to turn the state Democratic Party over to any radical element or other irresponsible group.”^[18]

Increased “agitation” for Negro civil rights in the New Deal and World War II periods eventuated in the end of the white primary. This disaster was the result of several federal court decisions, notably in the cases of *Smith v. Allwright* (1944), *Rice v. Elmore* (1947) and *Brown v. Baskin* (1948). The first and most important of these was a Texas case in which the Supreme Court declared all suffrage restrictions premised on race to be unconstitutional.^[19]

Reaction of the white leaders of South Carolina to the *Smith v. Allwright* decision was instantaneous. Officials, public figures, and private citizens lost no opportunity to condemn it. The late Senator Burnet R. Maybank, aware that the decision was not an isolated incident but part of the developing effort to break down white supremacy, declared that regardless of any Supreme Court decision and any laws that might be passed by Congress, South Carolinians would maintain those political and social institutions which were “in the best interest of our people.” White South Carolinians would “treat the Negro fairly,” said the Senator, but they did “not intend for him to take over our election system or attend our white schools.”^[20]

The then Governor Olin D. Johnston, not to be outdone, called a special session of the state legislature to meet the “emergency.” He recommended that the legislators repeal all state laws dealing with primary elections, thus giving the Democratic Party the status of a private club. This maneuver, he believed, would put the party outside the jurisdiction of federal courts. Should it prove inadequate, he announced, South Carolinians would “use the necessary methods to retain white supremacy in our primaries and to safeguard the homes and happiness of our people.”^[21] The legislature, following his advice, completely divorced the state from all legal connections with the Democratic Party.

The Democratic Party of South Carolina itself took action to nullify the effects of the court decision. If Negroes could not be legally barred from primary election, they would be excluded from party membership. A state Democratic convention, held shortly after the decision, adopted a rule which provided that to be eligible for membership in the party, a person had to be a “white Democrat” who subscribed to the principles of the Democratic Party of South Carolina as declared by the state convention.^[22]

In 1947 the newly enacted defenses for white supremacy in the Democratic primary were tested in federal district court and found wanting. George A. Elmore, under NAACP auspices, brought suit against the Democratic Party. He claimed that its recent actions deprived him of his right to vote. Federal District Judge J. Waties Waring^[23] agreed and ruled against the state of South Carolina and the Democratic Party. In admonishing South Carolina to “rejoin the union,” he declared racial discriminations illegal in the machinery that selected the officers and lawmakers of the United States. All citizens were entitled to cast a “free and untrammelled” vote in the election. If “the only material and realistic elections” were “clothed with the name ‘primary,’” said the judge, they were no less equally entitled to vote in them.^[24]

In the face of the decision, the harrassed and beleaguered state Democratic Party took two important steps to insure continuation of the white primary. By the first a dual system of voting qualifications was established which sought to disbar most Negro voters. Concomitantly a lengthy oath, designed to discourage Negro voters and required of all voters, was adopted. It compelled the voter to swear that he understood, believed in, and supported “the principles of the Democratic Party of South Carolina,” the “social, religious, and educational separation of the races,” and “the principles of states rights,” and was opposed to the “proposed federal so-called FEPC law.”^[25]

These restrictions were quickly brought to a court test. In a second decision, in the case of *Brown v. Baskin*, Judge Waring invalidated the white primary. In a pointed and sharply worded opinion he termed the dual system of voting qualifications “a clear and flagrant evasion of the law” as enunciated in earlier court rulings against suffrage restrictions on the basis of race. He also branded the oath required of all voters in the primary as a

“flagrant disregard of the rights of American citizens to exercise their own views and opinions.” The oath was patently unconstitutional.^[26] The United States Supreme Court refused to review either of Judge Waring’s decisions, thus in effect upholding them.^[27]

Judge Waring, a prominent Charlestonian, was condemned on all sides by white South Carolinians. His decisions were likewise criticized. After the ruling in *Brown v. Baskin*, Representative William Jennings Bryan Dorn asked Congress to investigate Judge Waring’s “conduct in office.” Under his ruling, said Dorn, “a Communist, a Negro, a Fascist, or a Republican could vote in the Democratic Party of South Carolina.”^[28]

III

Traditionally orthodoxy on the race issue has transcended all other considerations in South Carolina politics. Consequently the state has had more than its fair share of zealots willing to play the race issue for the last ounce of its political worth. Even those most outspoken on the issue have not been free of charges of racial heresy. In the 1938 senatorial election Olin D. Johnston, attempting unsuccessfully to unseat “Cotton Ed” Smith, charged that the Senator had not always been anti-Negro. “Why, Ed Smith voted for a bill that would permit a big buck nigger to sit by your wife or sister on a railroad train,” he cried. But Smith was able to use the attack on him by Roosevelt and Northern liberals with telling effect. He boasted that he had walked out of the 1936 Democratic National Convention when a Negro minister was asked to pray. The purpose of that prayer, he declared, was “not to ask divine assistance but to invoke colored votes.” “White supremacy, that time honored tradition,” bellowed the Senator in a campaign speech, could “no more be blotted out of the hearts of South Carolinians” than could the “scars which Sherman’s artillery left on the State House at Columbia.”^[29]

During the 1930’s and 1940’s under encouragement given their aspirations by the New and Fair Deals, South Carolina Negroes became Democrats in theory and in fact. Their most ambitious political undertaking was the formation in 1944 of the Progressive Democratic Party under the leadership of John McCray, a newspaperman, and James M. Hinton, a

minister and insurance salesman. The Progressive Democrats supported the national Democratic Party but opposed that of the state.^[30] The Progressive Democrats had little success. David Duncan Wallace, the historian of South Carolina, estimated that only about 3,500 Negroes voted in the presidential election of 1944 and about 5,000 in 1948. In the latter year the Progressive Democrats sent a slate of delegates to the national party convention and unsuccessfully challenged the regular state Democrats.^[31] A similar attempt in 1956 also failed.

The increasing role of the Negro in South Carolina politics has had the effect of spotlighting such issues as civil rights, FEPC, and states rights. The white majority remains as determined as ever to maintain “the Southern way of life” and every inch of ground is yielded grudgingly. The race question is applied to nearly every political issue, either openly or covertly, and all-out attempts have been—and to be sure, still are—made to discredit any proposal or policy that would alter the *status quo*. The most popular method has been that of equating unpopular measures with communism, atheism, racial “mongrelization,” etc. Sometimes the results have been ludicrous. In his unsuccessful 1950 campaign for the United States Senate, Governor J. Strom Thurmond asserted that had President Truman “not been so busy playing Negro politics,” the nation would not have been involved in the Korean situation.^[32] Favorite targets in the 1940’s were President Truman’s civil rights bill and his FEPC proposals. Thomas R. Waring, editor of the *News and Courier* and not to be confused with his cousin the judge, said the opposition to President Truman’s proposals was based on the belief that they “would be an invasion of states and individual rights” and would result in “an intermingling of races in hotels, restaurants, theaters, buses, and places of employment.” Governor Thurmond termed the FEPC proposals the closest this country had yet come to communism. They would turn the United States into “nothing more than a police state,” he warned. The proposals would force employers “to hire even Hindus.” The Grand Dragon of the Ku Klux Klan, a few hours after addressing the state legislature where he was warmly received, told a Klan rally that if the civil rights proposals passed, it would “be legal for a Negro to come up on your porch and ask for your daughter’s hand in marriage.”^[33]

Particularly dismaying to the state’s political leaders has been the growing realization that neither of the national political parties can be relied

upon to protect what South Carolina Democrats consider to be the best interests of the state and the South. At the 1936 Democratic National Convention the South lost an effective weapon when the party abolished the $\frac{2}{3}$ rule for party nominations. Though President Roosevelt had been able to hold the state party leaders in line, major revolts have developed in South Carolina against the national Democratic Party in every presidential election since 1944. Shortly before the 1952 presidential campaign was underway James F. Byrnes declared that the South had become a “stepchild” in national politics while both national parties were becoming slaves to the demands of minorities which held the balance of power in key Northern cities. He labeled the 1948 Democratic platform “more socialistic than democratic,” and the result of pressures brought by “organized minorities of northern states” on the leaders of the Democratic Party. These pressures had forced those leaders “to abandon the cardinal principle of states rights.”^[34]

This alleged “renunciation by the Democratic Party of the principles upon which the Republic was founded” led in 1948 to the most successful of the political revolts, if measured in terms of election results. In the presidential election of that year the “Dixiecrat” movement, with Governor Thurmond as its candidate, carried four Southern states. Though this movement was generally justified in terms of states rights and constitutional government, the race issue undoubtedly was of paramount importance in inspiring it.^[35] Thurmond publicly and piously objected to the “white supremacy” theme of many of his followers. He professed to be “not interested one whit in the question of white supremacy” and referred to himself as “a progressive Southerner” who was interested in bettering the conditions of the Negro. He said he would conduct his campaign solely in support of “the sovereignty of the states as against federal government interference.” In October he reiterated that he was not running “on a platform of racial discrimination.” That was “for each state to decide.”^[36]

Despite such pronouncements the race question ran prominently throughout Thurmond’s campaign speeches. Few did not contain a long attack on President Truman’s various civil rights proposals, especially FEPC. In August he said that if the “segregation program” of President Truman were enforced, “the results in civil strife” might be “horrible beyond imagination.” Lawlessness would be rampant. Chaos would prevail.

Streets would be unsafe. The President's "so called civil rights program" was written by Joseph Stalin in 1920. It was "made to order for Communist use in their designs upon national security."^[37]

In the 1952 election widespread support developed for General Eisenhower in the state because it was believed generally that the Republican Party and its candidate were more in harmony with Southern conservatism and consequently represented less of a "threat" to the South on racial and economic issues.^[38] However, slightly more than a majority of the state's voters remained loyal to the national Democratic Party; Negroes voted overwhelmingly for the Democratic candidate.

IV

The constitution of 1868 authorized the first public school system of South Carolina. Many years passed, however, before the state had a functioning public school system worthy of the name, even for the whites. Funds allocated by the state for public education increased slowly. Though largely spent on white schools such outlays brought limited advancement to Negro education through the trickle down process. Discrepancies between the white and Negro systems continued to grow. Not until the end of the nineteenth century did the total amount spent on Negro education surpass that spent in 1879-80, despite increasing enrollments. Not until 1919-20 did per capita expenditures on Negro schools exceed those of the Hampton administration.^[39]

In 1921 Professor Simkins, after making an unverified assertion to the effect that "the educational separation of races in South Carolina at present meets the approval of both races," admitted that the disproportionate share of the school funds spent for education of the whites displeased the Negro. At this time the white schools received \$11.97 per capita while the Negro pupil received only \$1.23.^[40]

Until the late 1940's when the NAACP began bringing suits for equal and/or integrated public schools, little support was given in the state for providing public education for Negroes, a situation reflected in the wide discrepancies in the funds spent for white and Negro schools. This attitude,

in its most extreme form, was expressed in the inaugural address of Governor Cole Blease in 1911. Blease, a blatant Dixie demagogue, recommended “liberal appropriations for all our state institutions of learning for white boys and girls.” He also favored the improvement of “the free school system so that every white child in South Carolina” could be given “a good common school education.” As for Negro education, the Governor declared that “when the people of this country began to try to educate the Negro they made a serious and grave mistake,” the worst results of which were yet to come. “So why continue?” he asked.^[41]

In 1941 Governor Maybank, reputedly more enlightened, appointed a committee to study the state’s education system. It found, among other things, that nineteen counties in the state had no high school for Negroes and that there were 1644 school buses for whites and eight for Negroes.^[42]

The relative status of white-Negro education in South Carolina can be illustrated, and better yet dramatized, by reference to a few statistics for the years 1940 and 1952. In 1940 statistics reflected the relative unconcern for quality Negro education. On the other hand, the 1952 figures indicated the progress that had been made by the time the Clarendon County school case was making its way through the courts. The NAACP used these statistics with devastating effect in developing its argument against separate-but-equal systems.^[43] Since 1952 substantial improvements have come in both white and Negro schools. Schools for Negroes have been rapidly approaching at least a statistical equality with those of the whites.

	1940		1952	
	White	Negro	White	Negro
Expenditure per pupil	\$50.81	\$15.16	\$159.34	\$95.65
Capital outlay per pupil	6.25	.66	24.70	11.45
Average length of school year (days)	175	147	180	178
Average annual salary of classroom teachers	\$938	\$388	\$2,644	\$1,985
Average years of college of classroom teachers			3.7	3.4
Books in school libraries per pupil	2.3	0.7	3.0	0.9

Other statistics bear investigation in connection with the state's public education program. In 1950 the per capita income of South Carolinians was \$844, 46th in the nation. In the same year the state spent 3.3 percent of its total personal income on public schools, tenth highest percentage-wise in the country. In 1952, 42.7 percent of the pupils attending public schools in the state were Negroes, a somewhat higher percentage than Negroes in the total population. Between 1940 and 1950 the white population of the state increased 19.3 percent while the Negro population increased only 1.0 percent. Yet during the period 1940-52 the Negro school population increased 12.5 percent compared to a white pupil increase of 9.9 percent. ^[44]

As late as 1918 only one public Negro high school was operating in the state! Not until 1930 did South Carolina have an accredited Negro high school. By 1950 there were 80 state accredited Negro high schools, only ten of which, however, were recognized by the Southern Association of Colleges and Secondary Schools. By comparison there were 301 state accredited white high schools, 56 of which met the accrediting standards of the Southern Association. ^[45]

The same inequality evidenced on the public school level existed in higher education. The state maintains five institutions of higher learning for whites and one for Negroes. The Negro institution was originally rather thoroughly named the Colored Normal, Industrial, Agricultural, and Mechanical College. The total state appropriation for the white colleges in 1949 was in excess of \$4,500,000 while that for the Negro college was less than \$600,000. Dr. Lewis K. McMillan, former professor of history at the Negro institution, described the college as "a glorified high school" treated as a "step child" by the state. Until after World War II the college did not have a nominal graduate or law school. However, in the light of a spate of federal court decisions admitting Negro students to white state universities when equal educational opportunities were lacking in state-supported Negro schools, the 1945 state appropriations act authorized the college to establish "graduate, Law, and Medical departments and such other departments as may be necessary to provide training in all lines of college activities for students attending this college." No money was appropriated until 1946 and then a completely inadequate \$25,000 for the graduate school. In 1947 \$60,000 was appropriated for the Law School. "Medical and

pharmaceutical training” was authorized to the extent of a paltry appropriation of \$15,000 in 1950.^[46]

While federal court cases in other states provided a general impetus to this program, the danger that a Negro might be admitted to the University of South Carolina loomed ominously on the horizon in 1946 when a Negro, Cleveland M. McQueen, applied for admission as a graduate student in the School of Education. The state answered his request with the appropriation for a graduate school at the Negro college.^[47] In the same year another Negro, John WRIGHT, applied for admission to the University Law School and was denied admittance. He then took his case to the courts which ruled that unless the state provided a law school at the Negro college “on a substantial parity with the University Law School” by September, 1947, WRIGHT had to be admitted to the latter. By the deadline a law school had been established and WRIGHT made no further appeal.^[48] Until January, 1958, no Negro made a concerted effort to gain admission to one of the white institutions of higher education. Two Negroes applied for admission to Clemson College in 1956 but did not press their applications after being refused. But in January, 1958, as will be seen in Chapter VII, Negro students were clearing the decks for a law suit to force admission to the University of South Carolina.

CHAPTER II

THE CASE FROM CLARENDON

When the social needs demand one settlement rather than another, there are times when we must bend symmetry, ignore history and sacrifice custom in the pursuit of other and larger ends. From history and philosophy and custom, we pass, therefore, to the force which in our day and generation is becoming the greatest of them all, the power of social justice which finds its outlet and expression in the method of sociology.... The final cause of law is the welfare of society.—*Justice Benjamin N. Cardozo.*

Culmination of the effort of the Negroes of South Carolina to win legal recognition of their rights to first class citizenship came in 1954 in the Clarendon County school case. This was the key case in the NAACP's nationwide campaign to break down racial segregation in public schools. Negro leaders purposely singled out Clarendon County because it presented racially segregated schools in the worst possible light. Located in the state's black belt, the county in 1951 had approximately 23,000 Negroes and 8,000 whites. Enrolled in its public schools were 6,531 Negro students as compared to 2,375 whites. Yet school expenditures totaled \$395,329 for whites as against \$282,950 for Negroes.^[49] In School District No. 22 (Summerton), the district directly involved in the suit, there were 298 white pupils and 2,259 Negro pupils.^[50] In facilities such as libraries, lighting fixtures, desks, play grounds, classroom space, lavatories, lunchrooms, auditoriums and teacher ratio to pupil, the Negro schools were decidedly inferior to those provided for whites. For example, the NAACP pointed out in the hearing of the case before the federal court that one of the Negro schools with 600 pupils had only two toilets, both outdoors. Another school

lacked drinking faucets and water had to be brought in a bucket from the home of a neighboring minister.^[51]

Clarendon is a typical South Carolina low country rural county and most of its people, especially Negroes, are agricultural workers. In 1955 the *Nation* described the county as a place where the people

talk of Citizens' Councils and the "economic squeeze," where the Ku Klux Klan met with Bryant Bowles, head of the National Association for the Advancement of White People, as a featured speaker, where integration is freely referred to as a "Communist-Catholic-Jewish plot," where a place of business displays the latest newspaper clippings showing crimes of Negro against white, where private citizens discuss the hated Ford Foundation along with the price of tobacco, where the NAACP has only a small chapter and where you hunt long and hard for a defender of the Negro.^[52]

The Clarendon case, technically known as *Harry Briggs, Jr., et al., appellants, versus R. W. Elliott, et al., appellees*, had its origins in 1948 when a group of Negro citizens brought suit in federal court to require state and county officials to provide school buses for Negro pupils. Federal District Judge J. Waties Waring dismissed this suit on the ground that the state as a governmental unit did not supply school buses for any students. The following year Negro parents in Clarendon petitioned authorities to bring Negro school facilities up to the standards of the county's white schools. The petition threatened legal action if equality were not provided. In May, 1950, citing failure of local officials to equalize school facilities, a suit was filed asking that school authorities be compelled to provide equality. In December, 1950, this suit was dropped and another, filed by forty Negro parents, attacked segregation *per se* as a violation of the Fourteenth Amendment and asked the abolition of all segregation in public schools based on race.^[53] The suit was filed under NAACP auspices.

In May, 1951, the case was heard by a special three-judge court presided over by Federal Circuit Judge John J. Parker of North Carolina and District Judges George Bell Timmerman, Sr., of Columbia and J. Waties Waring of Charleston. The suit represented the first all-out legal attack in the deep South on the system of racial segregation on the public school level. It was clearly a test case; the ruling would provide a basis for future court

decisions in similar cases. The appellants were represented by Thurgood Marshall, chief counsel for the NAACP; the appellees by attorneys Robert McC. Figg of Charleston and S. Emory Rogers of Summerton. Figg is an able Charleston corporation lawyer; Rogers, a determined defender of white supremacy at any price, was attorney for the Summerton school board.

In the arguments before the court, Marshall sought to prove first that the separate school facilities provided Negroes in District 22 were in fact physically unequal and second that segregation *per se* was discriminatory and therefore a violation of the Fourteenth Amendment. Inasmuch as school officials readily admitted that the facilities then offered Negroes in Clarendon were unequal, Marshall concentrated on sociological and psychological arguments to support his second contention. He argued that segregation invariably resulted in the development of “psychological roadblocks” which prevented Negro pupils from achieving “full absorption” of the educational process.^[54]

To buttress this position, Marshall introduced what the late Walter White, then executive secretary of the NAACP, thought “the most impressive array of authorities ever assembled to testify as experts on the unreasonableness of segregation.” Their arguments, he said, were “irrefutable.”^[55] The “experts” were half a dozen social scientists from such universities as Harvard, Columbia, Vassar and Howard. They held that segregation resulted in “discordant” education that caused “moral confusion” for both whites and Negroes. Amongst Negroes it resulted in “a lowering of self-esteem, a strengthening of resentment and hostility” and a personality development that emphasized “a desire to escape or withdraw from social participation.” Amongst white children segregation developed a feeling of guilt caused by their being taught simultaneously both the doctrine of brotherly love and the practice of unbrotherly racial segregation.^[56] Segregation was said to be building into the Negro “the very characteristics” which were then used to justify prejudice.

The counter case presented by Clarendon school officials contained three basic points. First, they maintained that segregation *per se* was not violative of the Fourteenth Amendment as it had been recognized as legal by the courts, Congress and the governments of seventeen states. The only condition that could be legally demanded was that the segregated facilities

be substantially equal. Attorney Figg readily admitted that school facilities then being offered Negroes in the county were unequal but asked that the court allow the state a “reasonable” time in which to equalize them. South Carolina, he pointed out, was in the midst of a statewide equalization program. The second argument held that school segregation statutes were “a valid exercise of legislative power,” a matter of state legislative policy rather than of constitutional right. No legal compulsion could oblige a state to accept “scientific opinion” that its school program “must be geared to personality development.” The third contention of appellees was that to disturb drastically the racial *status quo* in the deep South would produce “dangerous tensions and unrest.” Racially segregated school facilities, Figg insisted, were the “normal” result of a racial conflict heritage in the state of South Carolina.^[57]

The court ruled two to one against the appellants. Judges Parker and Timmerman held that segregation *per se* was not a violation of the Fourteenth Amendment. They said, however, that “the educational facilities and opportunities” provided both races “must be equal.” Equality had to be provided “promptly” and “in good faith.” Consequently school officials were directed to report to the court after six months as to what actions were being taken to provide equality. In rejecting Marshall’s line of argumentation the court asserted that judges had “no more right to read their ideas of sociology into the Constitution than their ideas of economics.”

Judge Waring dissented vigorously. The majority opinion, he wrote, was “unreasonable, unscientific, and based on unadulterated prejudice.” He condemned the “sadistic insistence of the ‘white supremacists’ in declaring that their will must be imposed irrespective of rights of other citizens.”^[58]

Governor James F. Byrnes hailed the majority ruling upholding school segregation as “unanswerable.” The court’s “well-reasoned opinion,” he maintained, completely vindicated the separate-but-equal doctrine.^[59]

II

Only slowly had white South Carolina awakened to the threat to legal school segregation contained in the repeated petitions and suits of

Clarendon Negroes. By the time the state legislature convened in January, 1951, the menace was fully realized. A definite fear had developed that the courts might rule in favor of the Negro petitioners. Basis for this fear was a long line of recent United States Supreme Court rulings outlawing segregation in state university graduate and professional schools even when facilities provided Negroes were in fact substantially equal to those for whites. The legislators and other state officials clearly recognized that by no criteria were white and Negro schools even remotely equal, not only in Clarendon but over the entire state. White South Carolina's only hope, they reasoned, lay in an immediate and far reaching program to provide equal facilities for each race. At the same time certain precautionary measures had to be taken against the possibility that the courts might hold segregation *per se* illegal.

Leadership in this program fell to Governor James F. Byrnes, who, after a long career in the federal government, including a short period of service on the Supreme Court, had broken with President Truman and the national Democratic Party and had returned to South Carolina to vent his frustration against the national government and the Democratic Party. Elected governor in 1950, he was inaugurated in January, 1951. Almost immediately Byrnes began a long range program which was to provide a basis for the state's defense of the racial *status quo* and the doctrine of separate-but-equal schools. The program subsequently was enacted by the 1951 state legislature. The position of Byrnes, as well as that of many of the state's other leaders, was summarized in a series of the governor's speeches in early 1951. South Carolina, he announced, would not then "nor for some years to come mix white and colored children" in public schools. To prevent this situation the state would, if necessary, "reluctantly" abandon its public school system. "A lawful way" would be found to educate all children "and at the same time provide separate schools for the races." While conceding the inferiority of Negro schools, Byrnes insisted that the educational crisis facing the state was caused by "the politicians in Washington and the Negro agitators in South Carolina" seeking to alter the "Southern way of life." But they would find that "what a Carpetbag government could not do in the Reconstruction period" was likewise impossible in 1951. The governor would protect the "innocent Colored children," the victims of those elements which sought to end segregation. With a prescience characteristic of white spokesmen for racial separation,

he insisted that “the overwhelming majority of colored people in this state” did not want integrated schools. Byrnes denied that new school policies were based on the expediency of necessity rather than on high principle. He righteously observed shortly after the district court ruling that “had there been no suit ... I would have urged this school program to help the white and colored children” of the state.^[60]

The most important undertaking in the Byrnes educational approach was the beginning of a tremendous school construction program. The cost was estimated at \$75,000,000 though the amount actually spent on the project by 1957 was more than double the original figure. To finance new school construction, Byrnes secured legislative passage of a three percent sales tax.^[61] This program, in which more than half the funds were spent for Negro schools, had the result of giving the Negroes better physical school facilities in some localities than those of the whites.

In addition to these constructive measures, the state legislature, upon Byrnes’s recommendation, enacted several “preparedness measures” for use in the event the federal courts outlawed segregation. Local school officials were given authority to sell or lease school property. Churches or other private groups thus would be enabled to maintain schools under some sort of private school plan. Another strategem provided that pupils could be transferred from one school to another only with the approval of the superintendents of both schools affected.^[62]

A measure that caused understandable hesitation on the part of many public officials and civic groups was the repeal of the constitutional provision requiring a state supported public school system. The NAACP and other Negro groups vigorously opposed repeal, but in February, 1952, the legislature approved a referendum on the proposal. In the referendum, held the following November, 68 percent of those voting favored repeal. Opponents of the measure considered the 32 percent against repeal something of a moral victory for their side.^[63]

To coordinate state policy on the segregation issue, the legislature created a special 15-member committee. This group came to be known as the Gressette Committee, after its chairman, State Senator L. Marion Gressette, a fifty-three year old Phi Beta Kappa, farmer-lawyer from the low country Calhoun County. The committee had a double function. First, it

was directed to study the conditions that would confront the state should the federal courts direct an end to segregation in public schools. Second, it was to recommend to the legislature a course of action which would “alleviate the serious condition which would result” from such an eventuality.^[64] This committee, after assisting Byrnes in developing his program in 1951, was inactive from that time until the Supreme Court ruling of May 17, 1954.

III

Following the circuit court’s ruling the Clarendon case was immediately appealed to the United States Supreme Court. By the time the highest tribunal considered the case, the six months period allowed by the circuit court for school officials to furnish *bona fide* equality for Negroes had elapsed. Consequently, on January 26, 1952, the case was remanded to the circuit court which was directed to take whatever action it deemed appropriate in view of its findings. In the meanwhile Judge Waring had retired and had been replaced on the court by Judge Armisted M. Dobie of Virginia. At the rehearing counsel for the school officials reported on the steps taken by the county and on other plans contemplated under the statewide school equalization program. These plans, when completed, would provide equality in all areas for white and Negro schools, claimed school authorities. Though equality admittedly as yet had not been attained, such would be forthcoming within a “reasonable” time. Accepting these arguments at face value, the circuit court ruled unanimously that “the defendants have complied with the decree of the court to equalize facilities as soon as humanly possible and no good could be accomplished for anyone” by ordering an end to segregation.^[65] The NAACP again immediately appealed to the Supreme Court.

Arguments before the Supreme Court took place in December, 1952, in conjunction with four similar cases. Clarendon County was represented by John W. Davis, noted constitutional lawyer and Democratic presidential candidate in 1924. Davis, a twentieth century “Northern man with Southern principles,” based his case mainly on grounds of constitutionalism and states rights. “What is the great national policy underlying this whole question?” he asked. “Is it not that the very strength and fiber of our federal

system is local self-government in those matters for which local action is competent?”^[66] Again the appellees stressed three main points. They maintained that the state was proceeding to remove “all inequalities between its white and colored schools,” as had been found by the lower court. Further, school authorities argued that the legality of school segregation had been exercised and recognized so continuously that the question was “no longer open for debate.” As for the testimony of “sundry academic persons” offered in opposition to segregation, such “opinions” presented questions of legislative policy only and formed no sufficient basis for any conclusions on the subject, least of all for a judicial finding.^[67]

Thurgood Marshall, chief counsel for appellants, presented the same arguments he had used in the lower courts.

Unable to arrive at a decision on the basis of arguments advanced at the first hearing, the Supreme Court in June, 1953, asked for further pleadings on five questions. These involved essentially two points: (1) In the light of the history of the Fourteenth Amendment, was school segregation *per se* violative of that amendment? (2) Assuming that segregation was unconstitutional, would it necessarily follow that schools should be integrated “forthwith” or could the Court in the exercise of its equity powers remit the cases to lower courts and permit a “gradual adjustment” to integration?

Answers to these questions were prepared under the supervision of T. C. Callison, South Carolina’s Attorney General. The state maintained that the “overwhelming preponderance of the evidence” demonstrated that the Fourteenth Amendment could not be construed as forbidding racial segregation. In reply to the second query, the state held that on the assumption stated, the Court could permit gradual integration to be carried out within broad policy limitations by the lower federal courts. However, in this connection, the state argued that even assuming that the courts could declare segregated schools unconstitutional, it was not within the judicial power to determine what, if any, non-segregated system should be substituted in their place.^[68]

IV

Chief Justice Earl Warren delivered the Court’s unanimous opinion, a milestone in the American Negro’s struggle for human dignity and freedom.

[69] After reviewing the background of the various cases under consideration, the Court declared that the history of the Fourteenth Amendment, as it applied to school segregation, was “inconclusive.” Furthermore, said the Chief Justice, the school segregation issue had never been definitely settled by the Supreme Court. Recent decisions concerning inequality on graduate and professional levels of schooling had not faced the basic issue—the legal status of segregation *per se*. Consequently the Court would attempt conclusively to settle the problem.

In premising its decision, the Court turned not to “tangible factors” but to the overall “effect of segregation on education.” On this basis it asked: “Does segregation of children in public schools solely on the basis of race, even though the physical facilities and other ‘tangible’ factors may be equal, deprive the children of the minority group of equal educational opportunities?” The reply was direct: “We believe that it does.” Accepting the testimony presented in the lower court by the social scientists, the Court found that segregation of Negro children “from others of similar age and qualifications solely because of their race” generated feelings of inferiority concerning their status in the community that might affect “their hearts and minds in a way unlikely ever to be undone.” In the light of such a condition the Court concluded that “in the field of public education the doctrine of ‘separate but equal’ has no place. Separate educational facilities are inherently unequal.”

The cases were not immediately disposed of since no implementing decree was included in this ruling. Recognizing the revolutionary nature of the transition being ordered, the Court, departing from established legal tradition, restored the cases to the docket and asked all affected states, the NAACP and the United States Attorney General to appear as friends of the Court and present further argument on how best to implement the decision. The state of South Carolina refused to come before the Court in this capacity. Attorney General Callison thought that such an appearance might indicate that the state was bringing itself “within the jurisdiction of the Court in this particular case.”[70] The state, as such, would do nothing that might make the Court’s decision specifically applicable to all school districts. Clarendon officials, however, did file a brief with the Court. They urged that the case be remanded to the lower federal court to permit school authorities “the opportunity of presenting their problems fully to that

tribunal and of appealing to its equitable discretion in connection with their further handling of its affairs.”^[71] Attorney Figg asked the Court to give the Clarendon authorities time to allow for “community acceptance.” But privately the less suave Attorney Rogers maintained that there was going to be no integration in South Carolina.

The Supreme Court’s implementing decree was not issued until May 31, 1955, a little over a year after its momentous decision.^[72] It recognized the existence of “varied local school problems.” Consequently federal district courts were given the responsibility within their local areas for supervising the compliance with the Court’s original decision. While giving attention to local conditions, the district courts were to require school officials to make “a prompt and reasonable start toward compliance” with the original ruling. Delays in beginning integration were justifiable only when “necessary in the public interest” and “consistent with good faith compliance.” In proceeding “with all deliberate speed,” school officials were to be allowed consideration for such factors as “physical condition of the school plant, the school transportation system, personnel, revision of school districts ... and a revision of local laws and regulations” requiring segregation. This decision was applicable in the strict sense only to those school districts immediately involved in the litigation. No allowance was made for applying its provisions to other school districts. Segregation therefore would be erased only when action voluntarily was taken by school authorities or when directed by federal courts following petition by aggrieved groups upon failure of local officials to follow the spirit of the decision.

On July 15, 1955, the Federal Circuit Court, composed of Judges Parker, Timmerman and Dobie, met in Columbia and disposed of the Clarendon case in conformity with the Supreme Court ruling. In an unanimous decision the three judges restrained Summerton school officials “from refusing on account of race to admit to any school under their supervision any child qualified to enter such school, from and after such time as they may have made the necessary arrangements for admission of children to such schools on a non-discriminatory basis with all deliberate speed.”^[73]

There the case rested in the spring of 1958. The school officials have not yet “made the necessary arrangements” to end segregation, and Negro

parents, fearing among other things that the public schools will be closed if precipitate action is taken, have not pushed the matter further.

CHAPTER III

THE EMERGENCE OF PATTERNS

So strongly drawn is the line between the two races ... and so strengthened by the form of habit and education, that ... no power on earth can overcome the difficulty.—*John C. Calhoun*.

The May 17, 1954, decision of the Supreme Court in the school segregation cases issued in a new era in race relations in the South. From this point onward the race issue centered on public school integration. Reaction to the ruling tended to vary in proportion to the percentage of Negroes in the local population. Some border areas began preparations for compliance; the deep South was defiant. South Carolina, with a high percentage of Negro population (between 35 and 40 percent) and with a strong master-servant tradition governing its race relations, was among the most intransigent of the deep South states. Few white South Carolinians were willing even to consider compliance with the decision as being among the possible solutions to the segregation problem.

The Clarendon verdict momentarily stunned the white citizenry of South Carolina. Though politicians and their allies in the “power structure” of the state quickly warmed to their traditional thespian role of championing white supremacy and competed in lambasting the Court and the decision, the general public was slow in grasping its full implications. It was this seeming state of indecision that misled those moderates who were willing to go ahead and at least try school integration. The majesty of a Supreme Court decision lent conviction that little needed to be done and in any event there was no sense in antagonizing one’s neighbors. As a consequence the moderates rested on their oars and did virtually nothing to help prepare the way for the implementation of the Court’s ruling. This was a tragic error.

But in retrospect and admittedly with the benefit of historical hindsight, it was no more an error than the Court's allowing the Clarendon County officials an unspecified length of time to achieve integration. Had the Court ordered immediate integration, compliance might well have been forthcoming since at the time there was no alternative course of action. As was, the Court allowed the Clarendon officials time to develop stalling tactics and the state to adopt a public policy which together have been successful in preventing even one Negro child from entering a white public school in South Carolina.

Official reaction to the decision was universally condemnatory. Governor James F. Byrnes was "shocked" to learn that the Court had overthrown the Plessy doctrine. The late Senator Burnet R. Maybank labeled the ruling "a shameful political edict rather than a judicial decision." The Court made the ruling, he asserted, only "under the duress" of Chief Justice Earl Warren and Attorney General Herbert Brownell. Had the Democrats been in power, the decision would never have been made. Senator Olin D. Johnston, too, saw the fine Venetian hands of Warren and Brownell in the decision which he described as "a flagrant, direct appeal for the political favor of minority groups." He deplored the Court's "radical departure from the well-reasoned" separate-but-equal doctrine as being written largely by "subversive groups."^[74]

Senator J. Strom Thurmond was, if anything, even more critical. Blaming the decision on "pressure and power politics," he termed it "one of the worst ever handed down by any court ... in this country." Most of the authorities cited by the Court, he said, "were either members of Communist-front organizations" or their loyalty was "in serious question." Broadening his attack, Thurmond declared that integration was "impractical, illogical, and unconstitutional" and undesired by white people or "good Negro people" of the South. The trouble came from "outside agitators" who were stirring up Negroes with discrimination charges.^[75]

Similarly, Attorney General T. C. Callison saw "no constitutional authority, no statutory authority, no judicial precedent, no reason and no justice in that decision." Callison, a small town lawyer, described Gunnar Myrdal, "the principal authority" used by the Court, as "a foreign Socialist, with no first hand knowledge of conditions in the South." Many of Myrdal's

“collaborators” in the writing of *An American Dilemma* were allegedly “members of Communist front organizations.”^[76]

In sharp contrast to the comments of the state’s leading political figures was the reaction of James M. Hinton, state NAACP president. Hinton believed that there was “no place in a democracy, and certainly not in the Christian church, for segregation.” Both whites and Negroes of South Carolina, he thought, would accept “any decision from the U. S. Supreme Court.”^[77]

The press was no less critical than the politicians. The *Charleston News and Courier* was especially outspoken. This paper attacked the decision on several grounds. It gave new meaning to the Constitution; “drove another nail into the coffin of states rights;” consisted of a “sociological finding, as contrasted with an affirmation of the law;” constituted an abridgement of “the freedom of white people;” repealed and outlawed laws and customs that were “older than the Republic;” and was the result of packing the Supreme Court “to represent the New-Fair Deal viewpoint” to the exclusion of the “States Rights viewpoint.” Noting the embarrassingly favorable reaction to the decision throughout the non-Southern part of the country and the world, the *News and Courier* asserted that the only ones “unhappy” with the ruling were “white Southerners ... and the rank and file of self-respecting Negroes,” who were “not interested in being compelled to associate with one another.” While Editor Thomas R. Waring’s paper urged “wisdom and tolerance,” it opposed “cowardice” on the part of Southerners.^[78]

The *Columbia Record* was more realistic. Southerners should not have been surprised by the Supreme Court’s “bouleversement on segregation,” said Editor Buchanan, because such a decision was the logical result of previous cases affecting graduate and professional levels of education. It was based “not upon law but upon sociology and psychology, so-called social sciences which true scientists agree today are not scientific.” The opinion was “a sociological interpretation of the Constitution” and segregation was “sociologically, not legally ... unconstitutional, null and void.” The Court was guilty of getting “too far ahead too fast of public opinion in the South.” The Justices might have held that segregation *per se* was inequality, suggested the *Record*, but then concluded that because of

“the cultural, health, and other differences between children of the two races and in the preponderance of Negroes in its school population” the Clarendon district had problems which would make integration “harmful, psychologically and sociologically.” The capital city paper, a strong supporter of President Eisenhower, took issue with those who blamed or credited the decision on the Republican administration. Buchanan insisted that the decision was a Democratic ruling eight to one, since Eisenhower had appointed only one justice to the Court. In seeking to absolve Chief Justice Warren of responsibility, the *Record* declared with a good deal of truth that there were “some indications” that the case had been decided before Warren’s appointment.^[79] The editor of the *Record* refused to concede that what was involved was an “American” decision rather than either a Republican or a Democratic one.

The Anderson *Independent* likewise stressed the non-legal nature of the Court’s action. Taking exactly the opposite direction from the *Record*, the upcountry paper said that the decision, which combined “a bit of law along with large doses of psychology and sociology,” was not unexpected in view of the pro-integration policies of the Republican administration. It conveniently ignored the attitude of the national Democratic Party toward the segregation issue. Decision or no decision, said the *Independent*, the races would “not be mixed in South Carolina schools today, tomorrow, next year or in the years to come.”^[80]

Only the Florence *Morning News* admitted the end of school segregation in South Carolina a probability. On the day following the decision, Editor Jack H. O’Dowd announced, prematurely to be sure, that “segregation is ended in Southern schools.” He then added, “It can be assumed that South Carolina, in the immediate future, is to have integrated schools, or no public schools.... The question is no longer whether or not segregation is proper, the present question is what the state is to do in the face of the Court’s decision.” Within a year, however, the Florence editor saw the South Carolina light, or felt the intolerably hot breath of the white population on his neck, and became more critical of the decision. In April, 1955, he chastised the Court for having “swapped law and legal tradition for ... warped ideas of sociology” which only endangered the “medium through which the Negro has made his greatest gains—public education.”^[81]

White South Carolinians generally were no less antagonistic toward the decision than their political leaders and newspapers. W. D. Workman, Jr., the *News and Courier* correspondent in Columbia, thought the Court was more concerned with the Southern Negro than his white neighbor. And this in spite of the fact that the latter had always relied upon the Declaration of Independence and the Constitution “rather than upon the changing social and political standards of a polyglot nation.” Southerners, boasted this young apostle of the old order, “have been and still are, closer by blood, by belief, and by behavior to the framers of those two documents than are persons of any other section of the country.”^[82] L. B. McCord, the Clarendon County school superintendent and former Presbyterian minister, thought the decision “one of the worst things that has happened in this century,” endangering as it did “*the splendid relation*” which had previously existed between the races “in this good old Southland.”^[83]

Stanley F. Morse, president of the Charleston Grass Roots League, a white supremacy organization, viewed the decision as “just another successful step in the Red Revolution against the United States,” marking “the attainment of one of the objectives of the Communist drive among U. S. Negroes started in 1920.” The fact that the decision was unanimous was “indicative of powerful pressure on the Court by ‘liberal’ politicians and Marxian Socialist conspirators.” In a similar manner another Charleston man, Huger Sinkler, attorney and former state legislator, considered the decision to be “but another aftermath to Appomattox.” He believed that

... the authors of this latest outrage are as deeply imbued with hatred for our Southern customs as was Thaddeus Stevens. And, unfortunately, in both periods, we find as President a man whose decisions are obviously made for him by others.

In the case of Grant, it was the man with the mulatto mistress, Thaddeus Stevens, and the small corps of abolitionists. In the instance of Eisenhower, it would appear to be Dewey, Brownell and Dulles, men whose political ambitions lead them to pose as friends of the underprivileged, and, in the case of Dewey, a man with an open hatred for the South....

Reconstruction days were harsh, but, notwithstanding the scalawags, the carpetbaggers and the federal bayonet, the basic

principles for which the South fought were not destroyed.

Today, we face a similar challenge. Perhaps, if we have the strength of character, exhibited by the generation preceding, the dawn of a new 1876 will arrive.^[84]

The reaction of the white people of Clarendon County to the decision, according to *Record* reporter Carlton Truax, a former missionary, ranged from “resignation to bitterness and violent rebellion.” A minority “fringe group” openly expressed the opinion that blood would flow if Negroes sought admission in white Clarendon schools. Truax found “much bitterness, some deep frustration and often a sense of helplessness.” At a meeting held in June, 1955, approximately 350 white residents of the Summerton school district agreed that the schools should be kept open only until the courts ordered the admission of a Negro pupil to the white school.^[85] The white Clarendon community had decided that segregation was more important than education.

Reaction to the implementing decision of May 31, 1955, was less critical than that of the earlier ruling. The Columbia *Record* considered the Court’s plan to remand the cases to lower courts a partial Southern victory even though the justices failed to change their original decision. Similarly the Florence *Morning News* saw “some small comfort” for the South in the Court’s failure to establish a deadline for compliance. In a more critical mood, the Anderson *Independent* declared that “the poison prescribed when the Supreme Court wrote new law into the Constitution last year is no less deadly offered in the small doses as now directed.” The Charleston *News and Courier* believed that the Court’s “as soon as practicable” meant “never at all.”^[86]

Attorney General T. C. Callison, speaking for the state leaders, termed the implementing decision “quite unsatisfactory.” He asserted once again that integration in South Carolina would “bring about every condition which will create a breeding bed for communism.”^[87]

An outgrowth of the Supreme Court’s invalidation of segregation in the public schools was increased criticism of the Court itself. Extremists expressed scorn for the Court as an instrument of government; others urged the Court’s powers be curbed by Congress. Senator Thurmond maintained

that the members of the Court were “not worthy to wear the robes of their high office.” James H. Hammond, former state senator and direct lineal descendant of the ante-bellum United States senator of “Cotton is King” fame, called the justices “a bunch of skunks.” At a rally at Laurens, E. L. Edwards, the Grand Dragon of the national Ku Klux Klan, referred to the “nine buzzards on the Supreme Court.” State Representative George Harrell of Florence County introduced into the state legislature a resolution which urged Congress to investigate the Court for “attempting to enact and enforce as law the sociological concepts of its members.”^[88]

According to the *News and Courier* the Court had become “an instrument to uphold the right of Big Government to slap down state and individual rights.” It was more concerned with “the rights of leftist labor officials and Communist editors” than “the rights of white Southerners.” And it had degenerated into a mere political arm of the Eisenhower administration. Indirectly accusing the President of court-packing in the appointment of John Marshall Harlan, the *News and Courier* peevishly declared that “a suitable man could have been found whose grandfather had not been the only dissenter to the basic (Plessy-Ferguson) decision in the 1896 issue.”^[89] The need of the country, said the *Record*, was “a Supreme Court in the pre-New Deal tradition, one of integrity, stability, learning and judicial outlook.” Unfortunately neither national party offered hope in this area. Warren was “a political appointment” and on the Court he had been a “political Chief Justice.”^[90] No less critical of the Court, the *Independent* suggested that the justices would be less subject to “political pressures” and “radical departures” if they were appointed not for life but for specified terms.^[91] The *Columbia State*, not to be undone, opined that the popularity of the Supreme Court among “sound thinking people seems to resemble that of measles.” It asserted on another occasion that the Court had rather “meander through Myrdalism than precedents.”^[92]

Congressman Robert J. Ashmore, a member of the House Judiciary Committee, criticized the Court for a long line of “foolish, unconstitutional and un-American” decisions. Sooner or later, he asserted, Congress would realize that the real aim of the justices was “to set up their socialistic ideas as supreme.” In like manner Representative William Jennings Bryan Dorn

accused the Court of degenerating into a mere “rubber stamp” for the Eisenhower administration.^[93]

Former Justice James F. Byrnes spoke for states righters who would curb the powers of the Court as a means of halting “creeping centralism.” Holding the desegregation decision an amendment to rather than an interpretation of the Constitution, Byrnes criticized the Court for impairing “progress and ... freedom,” undoing the South’s “steadily advancing racial amity,” and undermining the Constitution. He blamed the decision on political factors and attempted to discredit the sources cited in the Court’s opinion. The one-time New Dealer quoted Senator James O. Eastland of Mississippi as authority for the statement that the files of the House Un-American Activities Committee were “replete with citations and information” concerning Theodore Brameld and E. Franklin Frazier, whose studies were considered by the Court. Allegedly, the files contained “18 citations of Frazier’s connections with Communist causes in the United States.” Byrnes was especially critical of the use of Myrdal’s *An American Dilemma*. He branded as obviously false Myrdal’s statement that “in the South the Negro’s person and property are practically subject to the whim of any white person who wishes to take advantage of him or to punish him for any real or fancied wrongdoing or insult.” Removed from the bench and no longer the wearer of the judicial ermine, Byrnes stated flatly that the only solution to such a situation was to limit the authority of the Court. The trend toward centralization of government powers in Washington, said the ex-War Mobilizer, was bringing “joy to the Communists and their fellow travelers, for they could more easily influence one government” than forty-eight.^[94]

Illustrative of the widespread opposition to the Court and its anti-segregation decisions was a resolution signed by 52 prominent white South Carolinians and circulated throughout the state for signature by other Carolinians. All the original signers of this resolution could be included in the State’s “power structure.” The more outstanding included E. H. Agnew, Eugene S. Blease, Robert R. Coker, Rev. Edward B. Guerry, R. Beverly Herbert, Col. Wyndham M. Manning, Thomas H. Pope, Herbert Ravenel Sass, Ellison D. Smith, Jr., Farley Smith, the Rt. Rev. Albert S. Thomas, Ransome J. Williams and William D. Workman, Jr. These people, said the *News and Courier*, “are not crackpots, extremists, Klansmen, rightists or

leftists. They are largely middle-of-the-roaders. They are intelligent white men. They are leaders in law, clergy, business, farming, education, and politics of our state. In other words, they are a cross section of the better-class moderate, white people of South Carolina.”^[95]

The “Committee of 52” resolved that the Supreme Court relied “not upon the body of established American law, but upon the dubious conclusions of sociologists and psychologists whose number includes persons tainted with Communism;” that pressure from the NAACP and other “self-serving organizations” had “lowered the will of politicians and the public generally to resist encroachments upon the sovereign rights of states;” and that such pressure was endangering both “the public school system of South Carolina and the harmonious relationship between the white and Negro races.” Therefore, the resolution urged the state legislature to take such steps as “may be necessary or desirable to interpose the sovereignty of the State of South Carolina between Federal courts and local school officials.”^[96] The petitioners had some initial success and within a week 7,000 persons had reportedly signed the resolution. However, this movement soon lost its drive and produced no tangible results.

As already observed, one of the tactics most widely used by the segregationists was ridicule and disparagement of the Court’s use of sociological and psychological authority. W. D. Workman, Jr., some fifty years behind the times, spoke of the “new school of sociological jurisprudence.” If Negro children required the company of white children “to fully develop personality and education,” he wrote, then South Carolina needed help because in some areas there weren’t “enough white folks to go around.” In a heavy handed attempt at facetiousness, he suggested that the Supreme Court set up the number of white and colored children necessary to form an acceptable classroom situation. In like vein, the *Record* complained that “nobody knows what the law is today or what it will be tomorrow with a Supreme Court making its decisions on whim, fancy or pseudo sociology.”^[97]

The *News and Courier*, which shudders at all innovations, was critical of the Court’s emphasis on “psychiatry.” The injection of psychiatry into the controversy brought a letter to the editor from Dr. Norton Williams, a Charleston psychiatrist, who felt that the Supreme Court had “used unwise

judgment” and accepted “bad advice” from the psychiatrists who testified in the Clarendon case. “False interpretations” of psychiatry “in the hands of some psychiatrists with misguided motivations” would lead to “unhappy situations” such as the anti-segregation riots in Delaware and Tennessee. Many psychiatrists, according to Williams, “using good, profound psychiatric principles,” realized the need for maintaining segregation. The Negro, a member of a culturally inferior race, was not yet ready for integration. Until he had developed his own culture he would remain unready. To force integration suddenly would make the Negro feel “inferior, hostile, or defiantly competitive.”^[98]

Only on the rarest of occasions did a white South Carolinian speak out in favor of the decision of the Supreme Court. On one such occasion H. B. Clark of Charleston, in a letter to the *News and Courier*, criticized the white man’s “conception of the Negro as something slightly subhuman, a sort of beast of burden for the exploitation of the white man.” He declared that

All the restrictions upon economic and educational opportunity, all the degrading Jim Crow laws which we impose upon the Negro say, in effect, “We no longer own you as slaves, but we are determined to keep you in a subordinate position in our society, and to impress upon you in a thousand small ways every day that you are an inferior race.” Now the justices of the Supreme Court are not black-hearted villains who have sold their souls to the devil of political expediency; on the contrary, they are simply nine Americans honest enough to face inescapable conflict between these undemocratic values of the South and the principles of equality and freedom on which the Constitution is based, and courageous enough to proclaim the necessity of eliminating this paradoxical state of affairs no matter what the cost in terms of readjustment of traditional thinking.^[99]

II

White South Carolinians, regarding integration with outright disdain and horror, advance many arguments in defense of segregation. These range from temporary expediency to the fear of “mongrelization” and ultimate

extinction of the white race. Running parallel is the constant reiteration that segregation, which allegedly provides separate-but-equal facilities, is of greater advantage to the Negro than to the white. Such a view, to be sure, runs completely counter to the assertion of President Truman's committee on civil rights which said in 1948 that segregation had become "the cornerstone of an elaborate structure of discrimination." Separate-but-equal arguments, declared the committee, were the basis for "one of the outstanding myths of American history;" while facilities were indeed separate they were far from equal.^[100] In defending segregation white South Carolinians are far less concerned with the equal than with the separate.

Arguments against racial integration indicate a frank belief in the inherent superiority of the white race. In a widely read article in *Harper's* magazine, Thomas R. Waring argued against integration on the following grounds: (1) The incidence of venereal diseases was higher among Negroes. (2) The cultural home environment of Negroes was inferior. (3) Marital habits among many Southern Negroes were "to state it mildly, casual." (4) Crime was more prevalent among Negroes. (5) The intellectual development of Negro school children was generally below that of their white counterparts.^[101] The late Herbert Ravenel Sass, a well known Charleston author, got down to Freudian bedrock in stating that fear of intermarriage was the most important factor in Southern opposition to racial integration. In an article in the *Atlantic Monthly*, he asserted that "it is the deep conviction of nearly all white Southerners in the states which have large Negro populations, that the mingling or integration of white and Negro children in the South's primary schools would open the gates to miscegenation and wide-spread racial amalgamation." He claimed that there was "almost no hatred of the Negro" nor was there anything that could "accurately be called race prejudice" in South Carolina. In a skillful display of semantic gymnastics, he held the desire for segregation to be based on "race preference."^[102]

In rebuttal to Sass, Harvard historian Oscar Handlin declared that statistics indicated that the growth of equality between the races did not increase the rate of intermarriage. Historically racial "miscegenation" had been the "direct product of the inferiority of Negro women." The extent of "miscegenation" varied directly in proportion to the degree of that inferiority. The idea that Negroes were eager to marry whites, he said, was

“a delusion born of the white’s own vanity and of his ignorance of the real sentiments of his fellow Americans of another color.”^[103]

Answering criticisms such as those of Handlin the *News and Courier* replied: “The separation of races in public schools, in the circumstances that exist in South Carolina, is necessary. It is not evil or immoral. It does not deprive Negroes of their rights. It does protect the rights of white people. Arguments to the contrary usually stem from ignorance. Firm decent resistance in the end will win.” The paper branded integrationists as “Meddlesome Matties” who were interfering with a custom “older than the Republic.” Only in the last few years had “native born Americans ... learned from the NAACP and the eggheads that a traditionally American practice was un-American.”^[104]

The *Record* considered segregation a *modus vivendi* which enabled the two races to live together until a more suitable solution could be evolved. Such would result only from a long and slow process of education in which racial prejudice would be wiped out.^[105]

The attitude of *Morning News* Editor O’Dowd was highly ambivalent. Four days before the Court’s original decision he had declared that segregation traditionally had been “a social, economic and political expedient” which had no “moral justification.” Yet he believed the institution continued to be necessary. Three months later he described segregation as “a benevolent and paternal social order,” which “has not been a matter of expediency.” Under O’Dowd’s successor, James A. Rogers, the *Morning News* moved nearer the position of the *Record* and the *News and Courier*. In his first editorial comment on the problem, Rogers stated his “sincere belief” that segregation was practiced in the best interest of both races. Under such circumstances segregation was “not an evil scheme to keep the Negro in subjection but a high road” along which the Negro could “achieve maximum development in an atmosphere without tension or ill will.” A suitable solution to the problem of integration, Rogers thought, would come only after “education, education, education for a period of generations, and patience, the practice of tolerance and the willingness to wait until the alchemy of good will has done its work.”^[106] Such a proposal meant postponing integration indefinitely.

Amongst individual white South Carolinians much the same attitudes prevailed. Governor George Bell Timmerman, Jr., indignantly contended that “any statement that our law is inherently unequal is inherently untrue.” Lieutenant Governor Ernest F. Hollings, young, handsome and ambitious, told the Lions Club of Florence that he did not know anyone who believed in “any prejudice on account of race.” Segregation was based on “history, culture and economic background” rather than race prejudice. Former Governor Byrnes told the Sumter Kiwanis Club that segregation arose not from “petty prejudice” but from “an instinctive desire for the preservation of our race.”^[107]

Other South Carolinians expressed these sentiments in greater or lesser degree. Charles D. Haigh of Florence pleaded with “white American fathers” to guard their “defenseless children” against all attempts at integration. Criticizing any moderate approach, he recognized only two alternatives—“segregation or integration and eventual mongrelization of the races.” Should the latter alternative come to pass there would be “no ‘Star Spangled Banner’ as a national anthem, but more than likely some such song as, ‘Rest your li’l kinky head upon my breast, w’suns is all alike.’”^[108] Similarly, Gilbert Wilkes of the Charleston suburb of Mt. Pleasant had not taught his children “any prejudices against other races” except insofar as “racial purity” was concerned. In keeping his children free from prejudice he imparted to them “the knowledge that God chose members of the white race as his chosen people and then colored the others.”^[109]

III

The course of race relations in the state during the period following the court decision was indicative of the moves and counter moves by the proponents and opponents of integration. Segregationists were unanimous in asserting that race relations had been harmonious in the state in the days before the “agitation” began. Historically, said the *News and Courier*, “whites and Negroes have got along with a minimum of friction in the South.” Likewise, “the South was making rapid progress toward elimination of racial prejudice,” claimed the *Record*. “There was sympathy and understanding among whites for Negroes in the South.” This era of good

will allegedly had been overturned by those who would force integration on an unwilling South. For the “cold war” between the races, full responsibility rested with the “titular Negro leadership.”^[110]

During the year between the original ruling and the implementation decree there was little outward evidence that relations between the races had changed appreciably. Each side appeared to be awaiting final action by the Court before digging in and taking its stand. Abruptly in the summer of 1955 the situation changed. The implementing ruling came on the last day of May. Almost at once there followed such “overt actions as the filing of NAACP-sponsored integration petitions.” In response, the whites organized the Citizens Councils which employed or threatened to employ the economic boycott as a means of ending the attempts by Negroes to secure school integration. The most notable example of the economic boycott in action came in the city of Orangeburg in 1955-56. Orangeburg Negroes retaliated in kind and relations between the races deteriorated generally, remaining at their lowest between the summers of 1955 and 1956. The *New York Times*, in surveying race relations in early 1956, noted this retrogradation. So did the *News and Courier*’s W. D. Workman, Jr., who reported “a massive deterioration of the racial amity which had been developing and increasing between whites and Negroes.” “Distrust, suspicion and growing bitterness” had supplanted good will. By the following December, when the full implications of the boycott were felt and realized by both whites and Negroes, Workman noted that relations between the races seemed “considerably more tranquil” than a year earlier. He observed that while neither side had compromised “its adamant position,” each was attempting to soft-pedal the issue.^[111]

A few whites, by indirection, conceded that the “mutual respect and affection” which allegedly had traditionally characterized the relations between the races in South Carolina resulted from the Negro’s submission, in the face of overpowering odds, to a *modus vivendi* dictated by the white man. Dr. E. E. Colvin, pastor of the Immanuel Baptist Church of Orangeburg, thought segregation had been a success even if the South “used to have an occasional lynching. Almost invariably the Negro who was lynched had committed some terrible crime.” By contrast, “up North where they don’t have segregation they have a race riot every once in a while.” Similarly, Dr. J. G. McMaster of Kingstree wrote that “whites have

sometimes taken advantage of colored but that can be expected and on the other hand, Negroes are less honest with each other than are whites with them.”^[112]

IV

Public spokesmen offer many answers to the school integration question. The press of the state constantly urges “patience and forbearance;” “calm, careful consideration, hard thinking and studied action;” “calm, reasonable, and foresighted” actions; “cool calculation, searching forethought;” “restraint and common sense;” “planning, ... determination, perhaps ... cunning;” and “calm and wise decisions.”

Of the many proposals for circumventing the Court’s decision, voluntary segregation is the most popular. *Morning News* Editor Rogers thought it represented the “ultimate answer to the problem.” The *News and Courier* believed that “of all the approaches ... now uppermost in the minds of South Carolinians, the voluntary selection of schools by patrons according to their own race keeps recurring as the most reasonable.” Former Governor Byrnes stated that “the hope” of the South was voluntary segregation.^[113] Proposals for voluntary segregation, of course, contain no provision for Negro parents who desire integrated schools for their children.

The *News and Courier* has been a consistent advocate of voluntary segregation. In defending this approach, the Charleston paper said:

Happiness cannot be measured in worldly goods, nor social position, nor many of the things that some of us hold too dear. Contentment is necessary for true happiness....

Too many people of all races and stations in life seem dissatisfied with things as they are. While ambition and the go-getter spirit are praiseworthy, whining for “equal treatment”—which often means excuse for shortcomings—should not be a part of a person’s equipment. Merit has a way of being recognized.

Too many people—both white and Negro—are trying to bite off more of life than they can chew. Not everyone is qualified to take a place in the front rank. Instead of being angry, they would do

themselves a favor by adopting a philosophical attitude. Instead some persons dissatisfied with their own accomplishments demand a change in government, in economic laws, in the rules of society.

[114]

Another solution is the migration of the Negroes to non-Southern parts of the United States, thus relieving “the pressure of numbers” on the black belt areas of the South. This proposal represents a revival of the pre-Civil War suggestion that the free Negro should be returned to Africa. But in 1955 even the *News and Courier* conceded that “migration to Africa seems no longer feasible.” In a letter to the editor of the paper W. W. Bragg of Columbia offered concrete proposals to encourage migration. He urged that the state provide each Negro desiring to migrate with a small sum of money—\$100 to \$200—and pay his transportation expenses. The Negro would be required to “go to a State in the North,” and agree not to return to South Carolina for five years. In the long run this would be cheaper for the state, argued Bragg, because the Negro paid much less money in taxes than the value he received in state services.^[115]

The South Carolina Farm Bureau Federation and its president, E. H. Agnew of Starr, also advanced proposals for the continuation of segregation. Agnew, who strongly opposed “this dastardly thing of forced integration,” summarized what he considered to be the views of farmers in the state: “The farm people of South Carolina, both white and colored, are bitterly opposed to such a program as the Supreme Court outlines. They earnestly desire both separate schools and a continued relationship of peace and harmony but they are determined that this vile thing shall be circumvented. They want neither abolition of public schools nor do they want a shotgun solution to the problem but if worst must come they are ready for either or both.”^[116]

In a booklet entitled “Education and Race Relations” distributed to its 20,000 members, the Farm Bureau proposed the development of a “co-racial program” of separate but equal schools. By co-racial the Bureau meant “equal status, equal opportunity and self-determination.” If facilities were truly equal, contended the Bureau, there would be “more gracious acceptance” of segregation by both races and “no white or Negro child” would be “forced to attend a school of mixed races, unwillingly.” Since

segregation would, under these circumstances, be maintained voluntarily both the spirit and the letter of the court decision would be observed. The success of this program would depend on voluntary acceptance by both races. Again significantly, no provision was made to accommodate those pupils seeking integrated schools.^[117]

The *Record's* proposals merit special attention since in reality they cracked the door to school integration. It recommended a system (consequently adopted in part in North Carolina) which would allow Negroes in "a few rare instances" to attend white schools. Such a system, which would have assigned pupils to schools on factors other than race, would comply with the Court's decision and at the same time maintain segregation almost 100 percent intact. Under the system "an occasional white pupil" would have to be assigned to a Negro school. The *Record* also recommended repeal of all of South Carolina's segregation laws as a means of removing the basis for further court rulings against the state.^[118]

The *Independent*, though less concerned with the segregation issue, had its own homespun suggestions as to how to circumvent the Court. Comparing resistance to integration with opposition to the Eighteenth Amendment, it suggested that the time might come "when segregated education will be 'bootlegged' and when federal agents, slinking behind hedges, will try to follow little Johnny to the 'speakeasy' school." However, there would be plenty of old timers who could give Johnny "some valuable tips on how to confound the revenooers."^[119]

Not a few urged defiance to the point of violence in resistance to integration. Others, less extreme in their utterances, helped create a climate of disrespect for the segregation decision which made defiance easier. "Because the Supreme Court has spoken we should not submit without resistance," said Senator Thurmond. South Carolinians, he added, "must resist integration by every legal means harder than the integrationists fought to end segregation." The *News and Courier* asserted that "the will to resist goes deep into the fabric of the Southern people. They do not intend to yield their principles so long as they draw breath." Commenting on the integration violence in Clinton, Tennessee, it declared that "organized rebellion at the local level" was "a wasteful and disturbing means of dealing

with government.” But Southern states should not “give an inch in standing up to the federal government.”^[120]

Despite the intransigent opposition that had developed to integration in the state and the South generally by the summer of 1955, W. D. Workman, Jr., despaired of the “blight of submissiveness” which the Court decision had spread over the land. The “cry of surrender” by those who would accept the decision as law did not “fit well into the traditional pattern of American resistance to dictation,” he declared.^[121] A number of letters to the editor of the *News and Courier* were of the same opinion.

Occasional outbreaks of violence have come in South Carolina as a result of the integration “agitation.” These have been rare, however; the threat of violence was usually sufficient. The most prominent case of violence involved the Reverend J. A. DeLaine, an African Methodist Episcopal Church minister^[122] and leader of one of the organizations sponsoring the school case from Clarendon County, where he had a pastorate. Later he was transferred to Lake City. DeLaine’s church in Lake City was destroyed by a fire of undetermined origin; his home was pelted with rocks, fruits and other objects from passing automobiles. On one occasion DeLaine, claiming that the occupants of a passing automobile had fired gunshots into his home, shot back. Two of the men were slightly injured by metal fragments from the car. The men in the car maintained that they had not fired and were in fact unarmed. As a result of this incident DeLaine fled to New York City, seeking refuge with an AME bishop. In South Carolina he was indicted for assault with intent to kill. Federal authorities took no action to return DeLaine to South Carolina. Governor Timmerman, stating that he did not want to give the NAACP another martyr who could be used for fund raising, decided not to press for extradition. South Carolina was well rid of “this professional agitator,” commented Timmerman.

Some two years later DeLaine, interviewed at New Rochelle, N. Y., where he was serving as pastor of the Mount Carmel Church, asserted that his experiences in South Carolina had permanently scarred both him and the members of his family. However, he added: “It’s worth some suffering—it’s even worth a man’s life, if he can start something that will lead to a little more justice for people.... We helped start some things that are bringing a

revolution in education for Negroes in South Carolina, in modern schools and bus transportation.” Nor did the minister harbor any ill feelings toward the people of South Carolina. “There are too many good people there, white and colored. But they need to stand up against the hate-mongers,” he declared.^[123]

A second notable incident of violence, which took place in December, 1956, involved the flogging of a Camden High School band leader, Guy Hutchins, by six hooded men. According to Hutchins, he was attacked while changing an automobile tire on a lonely road. His assailants accused him of making remarks in favor of racial integration, a charge which Hutchins flatly denied.

Although the Kershaw County grand jury on two different occasions refused to indict six men arrested in connection with the case, many white South Carolinians publicly criticized the incident. The Rev. Stiles B. Lines, pastor of the Camden Episcopal Church of which Hutchins was a member, declared that “fear covers South Carolina like the frost.” Referring to the flogging, he told his parishioners: “Men are afraid to speak. Freedom of speech is almost extinct in South Carolina, except for those who wish to speak in favor of and in accord with the policies of the pressure groups who self-righteously assume that they, and only they, have the answers.”^[124]

Criticism of the Hutchins affair was sufficiently widespread to cause the steering committee of the Kershaw County Citizens Council to meet in special session and issue a statement declaring that “unlawful acts of violence, force or intimidation serve only to bring discredit on this community and state, and, insofar as concerns the struggle against integration, the loss of States’ Rights and loss of individual liberties, to cause diversion, dissension and dismay among those who are attempting to maintain our traditional social order and way of life.”

The comments made by South Carolina Circuit Judge G. Duncan Bellinger of Columbia on the Supreme Court’s desegregation decision were an interesting sidelight on the Hutchins incident. They were voiced in his charge to the grand jury considering the indictment of the six men accused of the flogging. Members of the Court, said the judge, had “substituted for legal principles their own personal, social, economic and political ideas, taking away the rights of states, the powers of the departments of the

federal government and the rights of individual citizens.” But in urging an indictment of the accused, Bellinger declared that violence would aid only the “scalawags and carpetbaggers” who were seeking to bring about another Reconstruction.^[125] By inference the judge considered fighting the “scalawags and carpetbaggers” as important as the rights of individual citizen Guy Hutchins.

Under circumstances and conditions such as those outlined above South Carolina developed its resistance to attempts of the Negro to win integration. The unanimity of opinion among those elements which spoke out on the subject encouraged silence among more moderate persons. Such a situation is further illustrated by a more detailed consideration of the various phases of resistance.

CHAPTER IV

THE WHITE FOLKS FIGHT BACK

We are surrounded by invisible dangers, against which nothing can protect us, but our foresight and energy.—

John C. Calhoun

In response to the Supreme Court's desegregation decision a number of organizations dedicated to the preservation of white supremacy mushroomed up in the state. Among these were the National Association for the Advancement of White People, the States Rights League, the Grass Roots League, American Educators Incorporated, the Federation for Constitutional Government, the Association for the Preservation of Southern Traditions and the Citizens Council. In addition the Ku Klux Klan again reared its ugly head. These organizations opposed racial integration with methods that varied from the "legal" opposition of the Citizens Council to the blunt threats of naked force by the Ku Klux Klan. Similarly, they experienced differing degrees of success. The Citizens Council, though last to be organized, has been the most prominent. With the exception of the Citizens Council, none of the organizations developed anything approaching a statewide following. Its appearance in the summer of 1955 virtually signaled the disappearance of the other groups. Only the Ku Klux Klan remains.

The Klan is the largest and most important of the white supremacy groups next to the Citizens Council. As it exists in the state during the period following the Supreme Court's ruling on school segregation, the Klan is a continuation of the organization that had become almost defunct by the late 1940's and early 1950's. The Court decision gave the Klan a new lease on life. However, it has not been able to achieve recognition as the state's chief defender of racial segregation. Essentially this results from the

fact that the Klan, because of its checkered history since World War I, has no appeal among “respectable” elements, in short to the state’s “power structure.” The bedsheet brigade also has the official opposition of the state government.

In general the South Carolina Ku Kluxers have found greatest following among the less economically privileged whites, workingmen and petty tradesmen. Klan rallies, replete with burning crosses and fiery oratory, have been held at various points throughout the state. Attendance, as reported by the press, usually has varied from less than a hundred to several hundred, though Klan leaders argue that these figures are much too low. At one meeting in Union, the Klan claimed an attendance of between 12,000 and 15,000.^[126]

Several independent Klan factions have been organized in the state. The national organization, with headquarters in Atlanta, recognizes the group headed by Grand Dragon J. H. Bickley, a Marion carpenter, as the “official” Klan in South Carolina. Bickley’s organization has been bothered by periodic Klan rallies which it has not sponsored and which engage in practices which, according to the Grand Dragon, tend to discredit his group and alienate its followers. Since Bickley refuses to release any information on the number of Klansmen or klaverns in the state, the numerical strength of the Klan is impossible to determine. He claims that if he had the time, he “could stage a rally each night of the week.”^[127]

The purpose of the Klan according to E. L. Edwards of Atlanta, the national Imperial Wizard, is to protect Southerners “against the NAACP, Knights of Columbus and the ADL [Anti-Defamation League].” The Klan is “a white man’s organization fighting for white supremacy” and is not made up of race discriminators but people who want to live “in a segregated group.”^[128] On the basis of stated aims and objectives, there is no discernible difference between the Klan of the 1920’s and that of the 1950’s.

Klan leaders deliver impassioned harangues at klavern rallies. Their principal foes, as evidenced by the organizations singled out by Edwards, are Negroes, Jews and to a somewhat lesser extent Catholics. Liberal use is made of the smear technique of accusing opponents of being pro-Communist. Speaking at Sumter Imperial Wizard Edwards charged that the

Supreme Court's ruling was "a Communist-Jewish-Catholic plot" aimed at "destroying and mongrelizing" the white race. Parties to this conspiracy included Franklin D. Roosevelt, Mrs. Eleanor Roosevelt, "the Jew Bernard Baruch," and President Eisenhower, whom he referred to as "Eisenberger." With characteristic disregard for historical accuracy, the Imperial Wizard branded the NAACP as an organization formed in 1906 by a "group of three people sent directly from Russia." He urged all "one hundred percent Protestant white Americans" to join the Klan and help overcome this menace.^[129]

At a Timmons ville meeting Ku Klux attitudes were well expressed by a Klan speaker identified only as a "minister of the Gospel" who would be in his pulpit the following Sunday morning. After the opening prayer, this defender of the faith announced that he hated all Jews and "niggers."

The NAACP [he continued] is a Communist front organization. We have documents in the House Un-American Activities Committee to prove this. I was supposed to have literature here tonight to prove this, but it was late in arriving....

The main issue in South Carolina is not so much Communism as it is niggerism....

Klansmen don't wear sheets, they wear robes. It is a shame that good Christian people have to hide themselves to do what our country was founded for....

That nigger-lovin' Estes Kefauver wouldn't sign the referendum (Southern Manifesto); we ought to send that nigger-lover to Africa....

The National Council of Churches is a Communist front organization. Bishop Oxnam, the former president, is under indictment by the House Un-American Activities Committee as a Communist....

I'd rather (my little boy) grow up unable to read or write than sit beside a nigger in school.

Another speaker, standing on the flat bed of a Ford truck, told a Klan rally that Henry Ford II had given \$1,500,000 to the NAACP and that he

(the speaker) would boycott all Ford products until Ford gave an equal amount to a white supremacy group.^[130]

Klan speakers invariably include a thinly veiled threat against those who seek to upset racial segregation. The Grand Dragon of South Carolina warned that “the day the Negro steps into a white South Carolina school as a student will be the day we pick up our weapons.”^[131] A “preacher” told another rally that “moderation has never been the answer to anything. It’s the extremists—you and me—who are going to solve this situation.”^[132]

The lengths to which Klan “extremists” are willing to go, or more accurately the depths to which they can descend, is illustrated by an episode which occurred at Traveler’s Rest in Greenville County which is in the upper part of the state. On the night of July 21, 1957, eleven white men broke into the home of Claude Cruell, a moderately prosperous fifty-eight year old Negro farmer and Baptist deacon. Four of them proceeded to chain him up and beat him. The others watched. During the course of the beating, according to Cruell’s wife, Fannie, who was subsequently driven away several miles from the farm and made to walk home, the invaders berated the Negro couple for “trying to mix with white people.”

Specifically, the group was referring to the Cruells’ association with Sherwood Turner and his family. Turner, a tall, illiterate thirty-four year old white man who eked out a precarious livelihood as an itinerant bean picker and handyman, lived with his wife and seven small children in a nearby house which they rented from Cruell for five dollars a month. On occasion, the Negro farmer had given Turner and his family rides in his car to nearby bean fields. On the day of the beating the Cruells were caring for Turner’s children while the latter had taken his wife, a thin, anemic woman, to the Stroud Memorial Hospital at Marietta for emergency treatment for a kidney ailment. The Turner children, consequently, witnessed the beating of Cruell.

A police investigation led directly to the independent Greenville County Ku Klux Klan. It was A. Marshall Rochester, head of the Greenville Klansmen, who led the “inquisitorial” party to the Cruell farm. They had intended to whip not only Cruell but also the pitiful Mrs. Turner. Rochester openly acknowledged his role in the affair. Eight of the other men arrested with him not only in connection with the Cruell beating but also that of another Negro, Willie Lewis Brown, on July 29th, admitted membership in

the Klan; a tenth said that he was a “probationary” member, and the eleventh identified himself as its “chaplain.”

The Cruell incident brought an indignant protest from Grand Dragon Bickley who denounced the Greenville Klansmen. He expressed “great pleasure” that the incidents of violence in Greenville had been solved by law enforcement authorities and held that such episodes resulted “only in harmful effects upon the South and our nation as a whole.” He carefully pointed out that his own organization had no acts of violence charged against it and also that it was not on the Attorney General’s subversive list. “This is due to the fact,” said Bickley, “that in all our chartered klaverns, the klansmen are taught to respect law and order.”

When the Klansmen were finally brought to trial after an indictment by a grand jury all but six were exonerated by Judge James M. Brailsford, Jr., who ordered charges against them dismissed. The trial jury found two others innocent. The remaining four, including Rochester, were found guilty of conspiracy and assault and battery and sentenced to jail terms ranging from one to six years. Rochester received the maximum six year sentence from Judge Brailsford who remarked: “I don’t see that I can accomplish any good by lecturing these men.” He was undoubtedly right.^[133]

The press of the state has universally harrassed the Klan not only in the Cruell episode but in its other activities as well. The *Morning News* referred to the organization as “this blasphemy against religion; this living curse against decency; this social cancer that pollutes everyone and every area it touches.” The *Independent* called the Klan a “latter-day bedsheet brigade” which appealed only to the “mentally immature” who had “something to hide.” The *News and Courier* believed that it was made up of “hotheads, crackpots and brutes,” who went “night riding for sport” and did more harm than good for the cause of segregation.^[134]

Not only does the Klan have to contend with a hostile press but it also faces opposition from the state government. Governor Timmerman quixotically charged that the reorganization of the Klan was the work of the Communist Party. In early 1956 the South Carolina Klan applied for a state charter. Attorney General Callison ruled against this request on the ground that Klan ritual called for the wearing of robes and hoods, which was illegal under the state’s anti-masking law.^[135] Previously Callison had joined other

Southern attorneys general in a declaration which pledged joint action to “use every legal means” to check Klan growth and expose its “secret and unlawful purposes.”^[136] The attorney general’s actions were applauded by the press.

Public support of the Klan is rare. An occasional letter to the editor has defended the order. The writer of one such letter to the *News and Courier*, for example, had “never heard of the Klu Klux Klan bothering anyone who did not need a double-dose of what they got.” Neither had he ever known of the Klan taking the law into its own hands until “the law had been notified, and had failed to take action.” Because of the nature of the Communist conspiracy, he was in “favor of America waking up” even if the Klan had to do the waking.^[137] Another letter writer to the *News and Courier*, one C. A. Rea of Hamlet, North Carolina, a town close to the South Carolina border, said that he had attended several KKK rallies and was sure that Klansmen did “not want any trouble.” Rea, who concluded his letter with “Yours for Christianity, segregation, and decency,” praised South Carolina law enforcement officers “for their fairness and cooperation” at Klan rallies. “They recognize and respect constitutional rights of peaceful assembly and of free speech,” he declared.^[138]

The other white supremacy groups, nearly all of which had short existences, were less well known than the Klan. One of these, the National Association for the Advancement of White People, apparently had only one chapter in the state. This group was located at Florence and affiliated with a national organization led by Bryant Bowles who achieved a fleeting notoriety in connection with his attempts to prevent school integration in Delaware and Washington, D.C. The NAAWP, according to its national president, represented the white man’s “last hope” against the NAACP. He pledged to fight the “trend from communism to liberalism and then to negroism in the United States.”^[139]

The Florence chapter was headed by G. L. Ivey, a restaurant owner, who fired all of his Negro employees immediately after the Supreme Court decision of May 17, 1954. The pronouncements of Ivey and Bowles were similar to those made by some of the more outspoken members of the Klan. What the Negro really wanted, Ivey told white Carolinians, was “to get into your front bedroom.” Bowles protested that he was not anti-Semitic but

added “the Jews are fast making me that way” through their support of the NAACP.^[140]

The *Morning News* condemned the NAAWP as being “at least as undesirable” as the opposition it proposed to combat—the NAACP. The *News and Courier*, professing to know little concerning the organization, was inclined “not to endorse such a movement.”^[141] Such criticism may have discouraged white supremacists elsewhere in the state from forming NAAWP chapters.

In March, 1955, apparently because of failure of the organization on both the local and national level, the Florence chapter reconstituted itself as the Florence County Chapter of the States Rights League.^[142]

The States Rights League was another abbreviated attempt to combat integration. It had a few chapters in lowcountry counties, e.g. Charleston, Darlington, Florence, but never achieved more than a tiny numerical strength. Its purposes, though couched in constitutional terms, were essentially the same as those of other white supremacy groups. The Darlington chapter of the League, in applying for a state charter, listed its objectives as follows:

To promote constitutional government, including the preservation of the independence of the legislative, executive and judicial departments; the preservation of the sovereign rights of state government and the preservation of individual liberties guaranteed by the Federal Constitution....

To oppose the adoption of socialistic platforms; to seek in every Christian and legal manner the strongest opposition to decisions of the Federal Courts and the Supreme Court, which wrongly abrogated, modified or amended the provisions of the U. S. Constitution which require a separation of power between the three great branches of government....^[143]

Spokesmen for the League were more blunt in stating their objectives. A member of the Darlington chapter declared that the League was seeking “to preserve Christianity, segregation, states rights and individual liberties.” The “sole purpose” of the League, announced G. L. Ivey, was “to maintain segregation.” He urged “every white man and woman” who believed that

segregation provided “the only stable arrangement for mutual respect and right conduct between the races” to join the League.^[144]

In promoting constitutional government, the Florence County States Rights League concerned itself with such momentous issues as passing a resolution demanding the resignation of the Reverend E. L. Byrd, a Florence Baptist minister, who had advocated “the mixing of the white and Negro races” in churches. In another equally dramatic action the League adopted and sent to officials of the Florence County Agricultural Building a resolution requesting that officials correct a situation wherein whites and Negroes had to use the same drinking fountain in the building. This move was taken following a report by a league member that he had seen a “bunch of little Negro children all around the white drinking fountain like a swarm of bees around a saucer of syrup.”^[145]

Another of the ephemeral Class B white supremacy groups was the Grass Roots League of Charleston. President of the League was the elderly Stanley F. Morse. Though highly vocal, the Grass Rooters were numerically insignificant. Their method of attack was through the issuance of “Research Bulletins.” Bulletin No. 2, for example, “proved” that the NAACP “was infiltrated by the Communist party in 1925.”^[146] Bulletin No. 3 accused the National Council of Churches of distributing “leftist propaganda” which echoed “the subtle Marxist line that the South must give up its constitutional States Rights and necessary local customs in accordance with the Supreme Court’s left-wing segregation ruling.” This Bulletin was prepared by the League’s Religious Affairs Committee whose chairman, Micah Jenkins, was later to become president of the state Citizens Council organization.^[147]

The purpose of the Grass Roots League, as stated by its president, was to combat the “threat to the continued existence of our free American Republic,” a threat which resulted from the Supreme Court’s segregation ruling. Various facets of this threat included the “Communist aim” of weakening “America’s constructive white civilization by mongrelization;” the attempt of the Supreme Court to seize legislative powers and destroy the principle of States Rights; the Supreme Court’s surrender to “political expediency” in cooperating with the Eisenhower administration’s “unscrupulous effort to win the Negro vote;” and “the cowardly reluctance

of too many Southern businessmen, newspapers, radio stations, etc.,” to support resistance to “the black phases of the Red revolution.” Almost two years later, in February, 1957, Morse further expounded his views on the integration controversy in a letter to the editor of the *News and Courier*: “In brief the racial issue is political and biological—not religious. Since it is promoted by the atheistic Reds, it is anti-Christian. If the pro-Negro drive of the Communists succeeds, our United States may be wiped out and Christianity may receive a terrible setback. It is incredible that many clergymen and other ‘intellectuals’ are so unfamiliar with the laws of God (natural laws) and the facts of history that they have been duped into participating in this pagan attack on our civilization.”^[148]

Still another transitory organization combatting racial equality was the American Educators, Incorporated, with headquarters in Hartsville. The American Educators apparently consisted of little more than their president, George W. Waring, who was connected with other similar groups, notably the States Rights League. Chartered in August, 1955, the American Educators sought to instruct the public to “the dangers of the communistic, socialistic, left wing, and modernistic trends to destroy Christianity and other religious faiths, the Constitution of the United States, individual liberties, high morals and self respect.” President Waring favored the application of economic pressures against “all members and sympathizers of the NAACP as well as any other communist-dominated organizations.”^[149]

The Federation for Constitutional Government with headquarters in New Orleans is a “national” coordinating organization for white resistance groups. It has affiliates in South Carolina, notably among the Citizens Councils. The Federation was organized in December, 1955, in Memphis, Tennessee, by representatives from twelve Southern and border states and a sprinkling of delegates (self-appointed) from other states. Among the South Carolinians attending were Micah Jenkins, who was elected to the Executive Committee of the Federation, and Congressman L. Mendel Rivers of Charleston, who offered a resolution, adopted by the Convention, supporting interposition. Present at the Memphis meeting were many persons prominent in pro-segregation organizations such as the Citizens Councils and rightist organizations such as We the People and For America. The motives which brought these elements together, according to the *News*

and Courier, were the same as those which guided “the founders of our Republic”—“the preservation of rights and freedoms built on centuries of Anglo-Saxon culture.”^[150]

In the development of organized resistance to integration efforts, the Citizens Council has emerged as the most effective opponent of the NAACP. The Council was a relatively late comer to the state, first appearing in the summer of 1955, a full year after the Court’s original ruling. The “need” for an organization which would rally “moderate” and “respectable” whites was apparent to many segregationist leaders. The Ku Klux Klan and other white supremacy groups were unable to generate anything approaching popular support and furthermore they represented not particularly desirable white elements. In May, 1955, Farley Smith, son of the late Senator “Cotton Ed” Smith, complained of the “apathy of the average white citizen” toward pro-segregation movements and urged establishment of a white counterpart of the NAACP. Smith, S. Emory Rogers, the Summerton attorney who helped argue the Clarendon school case, and others recognized the Council as the answer to the undermining of segregation by the NAACP. The *News and Courier*, too, believed that the Citizens Council might succeed in steadying the shaking “foundations of the Republic” by providing leadership of the type which was “sorely needed” in the “uncertain times” of 1955.^[151]

The Citizens Council idea originated in Indianola, Mississippi, where the first Council was formed in July, 1954. The movement spread rapidly throughout the South. In the late summer of 1955 Thomas R. Waring of the *News and Courier* wrote a series of articles on the Mississippi Councils to acquaint South Carolinians as to their nature and purpose with a view to encouraging the creation of similar groups in the state. He reported that the Councils proposed “to preserve separation of the races” against the combined assaults of the NAACP and the federal government. At the same time they allegedly were dedicated to the protection of rank and file Negroes “from the wrath of ruffian white people.” Membership in the Councils, said Waring, was recruited from “private, patriotic citizens,” who were the “pillars of the community.” Council members were citizens who “run the Chamber of Commerce and the Community Chest, serve as officers of churches and do the civic chores in every town worthy of the name.” Meeting the criticism of liberals both in the North and the South,

Waring stated that Council leaders were “in no sense the architects of an American Fascist movement.” On the contrary, they were “firm supporters of the Republic and Jeffersonian democracy.” The Councils screened all potential members carefully “for character and dependability, as well as for their determination to keep the races separate,” and accepted only those who could be trusted with “the powers of organized civic righteousness.”^[152]

The aims of the Citizens Council do not, in fact, differ particularly from those of other white supremacy groups; in its methods, however, the Council places greater emphasis on economic pressure, legal resistance and respectability. Its members wear business suits instead of bedsheets. In 1956 the State Legislature adopted a resolution commending the Citizens Councils in South Carolina as organizations designed

to preserve and maintain proper relations between all races residing in the State of South Carolina; to oppose the use of force by radicals and reactionaries; to disseminate information concerning radicals and reactionaries who may attempt to disrupt the peace and good relations among the races; to make every legal and moral effort to maintain the segregated public schools of the state; to study and develop ways and means for providing adequate education for children of all races in the State of South Carolina in the event that radical agitators should force the abandonment of the public schools; to operate segregated public schools by agreement between the races on a voluntary basis; to acquaint public officials without the State of South Carolina with the conditions in our State which make integration impossible; to acquaint such officials with the fact that the vast majority of the citizens of our State, both white and colored, favor the continuance of segregation in the public schools as now exists; to continue the present American way of life; and for other eleemosynary purposes.^[153]

The emphasis on white supremacy is more apparent in a newspaper advertisement of the Florence Council soliciting membership. After describing the organization as the “modern version of the old town meeting,” it stated that the “Council is the South’s answer to the mongrelizers. We will not be integrated! We are proud of our white blood and our white heritage of sixty centuries.” To do battle with the

“mongrelizers” the Council needed “every patriotic white Southerner, rich or poor, high or low,” who was “proud of being a white American.” All such persons were urged to join the Council for the protection of “those baby children at home.”^[154] Micah Jenkins, president of the Charleston Council, said the movement aimed “to promote better race relations, and in every way preserve for the South its own way of life.”^[155] The Reverend L. B. McCord, the Clarendon County school superintendent and one of the founders of the Clarendon Council, justified formation of the Councils on the ground that should an emergency arise such organizations would be available to give it “thoughtful and prayerful attention.”^[156]

The immediate cause for the rapid growth of the Citizens Councils in South Carolina was the appearance of the school integration petitions in the summer of 1955. These petitions served as a catalyst to crystallize the previously unorganized opposition among whites to integration. The first Council was formed at Elloree in Orangeburg County in early August, 1955, immediately following a petition by Negroes for school integration. From this beginning the Councils spread rapidly throughout the lowcountry and into several counties in the upper part of the state. During the first year’s existence, Councils were formed at the rate of better than one per week so that by July 1, 1956, South Carolina had 55 separate Councils.^[157] Only a few have been added since that date.^[158]

In October, 1955, representatives from the various Councils met in Columbia to lay the foundation for a statewide association. This was effected in December, 1955. Micah Jenkins, a Charleston nurseryman, was named state chairman and S. Emory Rogers executive secretary. Inasmuch as the local Councils were autonomous, the purpose of the state organization was to give overall coordination and direction to activities on the state level. The state association had a speakers’ bureau and a legal advisory committee composed of one member from each of the state’s judicial districts in which at least one Council was organized. The board of directors was made up of one representative from each county in which a Council had been organized. Membership totals were not maintained by the state headquarters but were variously estimated between 25,000 and 40,000 in the summer of 1956.^[159]

The South Carolina Citizens Councils are affiliated with the national Citizens Councils of America which has headquarters in Greenwood, Mississippi. The national organization published an official newspaper, *The Citizens Council*, which had a circulation in early 1957 of approximately 4,000. In 1957 *The Citizens Council* ran in serial form “A Manual for Southerners,” a segregation handbook designed for public school pupils. That portion designed for third and fourth graders read in part:

Negroes and white people do not go to the same places together. We live in different parts of town. And we are kind to each other. This is called our Southern Way of Life.

Do you know that some people in our country want the Negroes to live with the white people? These people want us to be unhappy.... They want to make our country weak....

Do you know what part of our country you live in? You live in the South.... We are called Southerners. Southerners are people who live in the South. You are a Southerner. You live in the South....

God put the white people off by themselves. He put the yellow, red and black people by themselves. God wanted the white people to live alone....

White men built America. The Negro came to our country after the white man did. The white man has always been kind to the Negro. But the white and black people do not live together in the South....

[Those who seek integration] say we are not good if we don't live together. But we know it is wrong to live together.... They want to make our country weak. Did you know our country will grow weak if we mix our races? It will.^[160]

Although this quotation requires no comment either from the standpoint of logic or historical accuracy, the reaction of Margaretta P. Childs of Charleston is noteworthy:

Such pontifical judgments [she wrote] may not edify the third grade pupil for whom they are intended, but will surely amuse a wide audience all over the country. The Mississippians' intimate

knowledge, perhaps even complicity in, the Deity's intentions will also catch the attention of the nation's Biblical scholars and theologians....

Unfortunately for the school child, if he learns any history or geography he may be more perplexed than confirmed in a fine old Saxon interpretation of divine will. If God wanted the white man 'to live alone', why did He send the white man across the ocean to trespass on the lands of the red men or to make long voyages to settle among the dark-skinned people of Africa and Asia?

The pamphlet in its 'simple, easy-to-read style' will not fool the children for long and will furnish lots of jokes to observers of the Southern scene. Too bad that H. L. Mencken, keenest critic of bigotry, false sentiment, and hypocrisy, is not around to enjoy and lampoon this latest tasteless expression of the cracker mentality. The intellectual bankruptcy of the die-hard segregationists is clearly shown for those who have eyes to see and ears to hear.^[161]

Local Councils maintain several committees, each charged with specific functions. An information and education committee is assigned to gather and disseminate information on racial problems on all levels. A committee on politics and elections has the responsibility of studying candidates for political office and presenting their qualifications to the voters. A membership and finance committee seeks to enlist "all patriotic white citizens for membership" and thus assure the organization of support. Membership fees are generally set at \$5.00. A legal advisory committee provides "legal knowledge" to the Council in its fight against integration.^[162] Some of the Councils are organized on a countywide basis while others correspond to a local school district.

The Citizens Councils have quickly endeavored to make their influence felt in the political arena. Although the state organization declares that it will "steer clear of partisan politics," it nonetheless exerts direct political pressure. Using its power "for principles, not persons; for causes, not individuals," the state Council makes sure that all candidates hold orthodox views on the race question. The aim is not so much to endorse particular candidates but to insure that all are "safe." As the *News and Courier* noted,

the Council aimed “to give support to strong officials and put backbone into weak ones.”^[163]

In the state elections of 1956 the Council submitted to the candidates a list of questions designed to detect any deviation from orthodoxy on the race issue. The most revealing of these asked: “Do you here and now promise not to seek the Negro vote directly or indirectly?”^[164] A joint statement in reply to the queries by five of the six members of the state’s delegation to the House of Representatives—L. Mendel Rivers, John J. Riley, W. J. Bryan Dorn, Robert J. Ashmore and John L. McMillan—reflected the attitudes of South Carolina politicians. Said the representatives:

We believe continued segregation to be in the best interest of South Carolina and the United States. Our country is threatened from abroad and from within by an atheistic menace which will stoop to any methods to create unrest and disunity. South Carolina’s record of tolerance, patriotism and understanding is second to that of no other state. It is far superior to that of some other states which spawn the chief critics of our way of life and harbor fugitives from justice.

There are in South Carolina many patriotic colored citizens who are not misled by outside agitation and who are working at the local level with our white citizens to solve this complex problem.

The votes of such Negroes, continued the congressmen, would and should be welcomed by all South Carolina politicians.^[165]

Political leaders, the state press and other moulders of public opinion endorse the Citizens Council in its role as spokesman for “the Southern way of life.” Indicative was the appearance of Senators Thurmond and Johnston, Representatives Rivers and Riley, former Governor Byrnes, State Representative Burnet R. Maybank, Jr., and others of less political note at a Council rally held in Columbia. Senator James O. Eastland of Mississippi, the principal speaker, told his audience that the Supreme Court decision had been “dictated by political pressure groups bent upon the destruction of the American system of government and bent upon the mongrelization of the white race.” In making the decision, the Court had “responded to a radical pro-communist political movement.” Senator Thurmond commended the

Councils for the “orderly and lawful manner” in which they had approached the “problem” created by the Supreme Court decision.^[166]

Among the state press, the *News and Courier* has become a sort of unofficial organ for the Councils. The Charleston paper presents these organizations as “moderate and sound” in approach and representative of a “deep public sentiment” against integration. To the *News and Courier* the movement is evidence that the South has “not shrunk from revolution and rebellion,” words which were “honorable” when the cause was just.^[167] The *Record* endorses the Councils but the *Independent*, reflecting upcountry distrust of lowcountry domination of the Councils, expresses little interest in the movement.

Scattered opposition has developed amongst the South Carolina white population to the Councils. Initially, the *Morning News* mildly condemned them, stating that their appearance was “tacit admission” that the NAACP occupied a position of superiority in the segregation controversy.^[168] Stronger protest has come from the South Carolina Methodist Church. In a statement adopted at its annual conference in 1955—before the Citizens Councils had consolidated their position in the state—the Methodist leaders condemned the movement. They noted that “it is properly supposed that these councils are being formed for the express purpose of exerting economic pressure upon a portion of our citizenry to prevent the exercise and development of their moral conscience and their civil rights according to the dictates of their consciences.” Such action, declared the Methodists, was a “contradiction of the basic teachings of our Lord and Master.”^[169] The national executive council of the AFL-CIO has approved a report that contained an especially strong condemnation of the Councils. The labor leaders referred to them as “this new Ku Klux Klan without hoods” whose actions bore “ominous” resemblance “to the pattern of the growth of Naziism and other totalitarian movements which have fed on hatred and defied constitutional democracy.”^[170] Expressing similar sentiments, Thurgood Marshall said that “the really vicious part about these groups” was the creation of an “atmosphere of respectability” in which other less scrupulous groups could “intimidate, threaten, beat up and kill Negroes.”^[171]

The principal method used by the Citizens Councils in opposing integration is the economic boycott. This policy, which belies professed reliance on constitutional forms of opposition, has been employed from the very beginning. Leaders of the Elloree Council declared their immediate purpose was to exert “economic pressure on all persons connected with the NAACP.” Specifically, these spokesmen were referring to the seventeen Negro parents who had signed the petition seeking the end of race discrimination in Elloree public schools. The effectiveness of the policy was indicated within two weeks following the formation of the Council. Several Negro petitioners lost their jobs or were peremptorily evicted from their farms as a consequence of which fourteen of them asked that their names be removed because they “did not fully understand the meaning of the language of the petition” at the time of their signature.^[172]

The overall object of the economic boycott has been to discourage all persons sympathetic to the idea of integration. Because of their generally inferior economic status, Negroes are especially vulnerable to such pressures. In areas where the boycott has been invoked any Negro who did not support segregation could expect to find business and personal credit withheld, home mortgages and installment loans denied, employment terminated or refused, rental quarters barred to him, and business and professional patronage withdrawn.

The city of Orangeburg provides an excellent study of the way in which the economic boycott operates. Located about fifty miles southeast of Columbia, Orangeburg had a population in 1950 of approximately 15,000. It is the county seat of Orangeburg County, a predominantly agricultural area the population of which is approximately fifty percent Negro. The white population of Orangeburg had always considered the city a model of “biracial amity, interracial cooperation, and educational progress.”^[173] This attitude prevailed until fifty-seven Negroes petitioned for public school integration in the summer of 1955. The white citizenry was stunned by this action, considering it a breach of good faith on the part of the Negro parents. Reaction was instantaneous. A Citizens Council was organized which immediately began a policy of economic pressure against the petitioners. A number of prominent businessmen joined the boycott and several Negro retail merchants among the petitioners found their supply of such basic commodities as bread and milk curtailed. White merchants

refused to extend credit to the petitioners and asked that all outstanding accounts be settled immediately. The white community terminated financial assistance that had previously been available to petitioners.

Negro leaders, realizing that economic pressure was a two-edged sword, immediately began retaliating in kind against those merchants prominent in the Citizens Council boycott. Since Negroes represented approximately fifty percent of Orangeburg's population, their counter boycott was of considerable proportion and keenly felt by many white merchants. A boycott list of twenty-three local firms was distributed among the Negro community. It included only the more outspoken of the white boycott leaders and those most dependent on Negro trade. According to *Reporter* magazine, at least one white retail merchant was put out of business.

More positive steps were also taken to aid the Negro boycott victims. A fund, eventually reaching approximately \$50,000, was deposited in the Victory Savings Bank, a Negro institution in Columbia, and was made available for small loans to Orangeburg Negroes. This fund included \$20,000 donated by the NAACP, \$5,000 deposited by an unidentified Catholic church, and \$5,000 deposited by the National Council of Churches. The Negroes cooperated among themselves in other ways to help make their counter-boycott effective.

Accompanying the two-sided economic boycott was a general breakdown in race relations. To a suggestion by Negro ministers that they hold joint prayer services to help solve the problem, the white ministerial alliance of Orangeburg replied, "This is not the time" for praying together.

Boycott and counter-boycott reached an impasse and in the spring of 1956 both sides realized the desirability for compromise. The whites made several concessions, notably the resignation of Council Chairman W. T. C. Bates who had been largely responsible for the extreme position taken by the whites. With both sides easing up on the economic boycott, there was a general lessening of tension. However, neither side would compromise the basic issue. Negro parents continue to demand an end to school segregation (the number of petitioners was reduced by the boycott from fifty-seven to twenty-six); whites continue to stand adamantly against ending school segregation.^[174]

An important incident in the Orangeburg controversy was the protest against intimidation by the student body and certain faculty members of the State Agricultural and Mechanical College for Negroes. The college is the only state supported institution of higher education for Negroes in South Carolina. Its presence in Orangeburg gives the local Negro community an unusually well educated and effective leadership. Several of the faculty members were at least sympathetic to the policies of the NAACP. The anti-segregation sentiment of these and other persons prominently connected with the college brought a request from Rep. Jerry M. Hughes, Jr. of Orangeburg for an investigation of NAACP activities among the faculty and students. Consequently in March 1956 the state legislature approved a resolution establishing a nine-member committee to determine which individuals at the college were “members of and sympathizers with” the NAACP; the extent of participation of the faculty and students in the activities of the NAACP; whether or not the faculty and students were “serving to mislead the Negro citizens and foment and nurture ill feeling and misunderstanding between the White and Negro races;” and if the activities of the faculty and students were “detrimental to the welfare of the college, its students and the State of South Carolina as a whole.” The resolution described the NAACP as an organization dedicated to the “fomenting and nurturing of a bitter feeling of unrest, unhappiness and resentment among the members of the Negro race with their status in the social and economic structure of the South.”^[175]

Following adoption of this resolution, a portion of the student body and faculty of the college framed its own resolution which condemned “pressures and attempts at intimidation” being applied to the college and expressed approval of the policies of the NAACP.^[176]

As unrest among the student body grew, Governor Timmerman directed the State Law Enforcement Division’s attention to “information that certain subversive elements” might attempt to sponsor a demonstration against the state government. He directed the law enforcement agency “to keep the situation under surveillance and to arrest immediately any law violators.”^[177]

These incidents together with the white-Negro boycott then in effect in Orangeburg led to a protest strike by the student body of the Negro college.

During the strike the students presented President Benner C. Turner with a list of grievances which protested against the investigation and the patronage by the college of certain Orangeburg business firms operated by men prominent in the economic boycott against Negroes. The strike lasted a week, achieving little for the students. Fred Moore, student body president and leader of the strike, was expelled from school. At the end of the year the contracts of several faculty members were not renewed and some twenty-five students were requested not to return.^[178]

The investigating committee met in July, organized itself and selected Rep. James H. McFaddin of Clarendon County as chairman. When the investigation began, committee members were told by the compliant President Turner that since the student strike had been ended and several faculty members dismissed, there was no longer anything to investigate. Consequently after a perfunctory one-day meeting, the committee held no further hearings.^[179]

Use of the economic boycott at Orangeburg and elsewhere has generally been approved by the press of the state. Its dangers are realized but the end is considered worth the risk. The *Record* has compared the white boycott to Gandhi's policy of "non-cooperation" (passive resistance) against the British!^[180] Not surprisingly the policy receives its most enthusiastic support from the *News and Courier*:

We would not encourage unfair retaliation against any citizen, whatever his race, for free expression of opinion. This is a truly free country and people can say or write whatever they wish.

In exercising this freedom, people must be ready to bear the consequences. If those consequences include unpopularity, public dislike or refusal to do business with them, they need not be surprised.^[181]

On another occasion the *News and Courier* declared that "Negroes wishing to engage in activities repugnant to white people are also free to earn a living elsewhere." To secure employment in the South, Negroes should be willing "to observe community customs."^[182]

The policies of the Citizens Council at least temporarily have been successful inasmuch as they have postponed an immediate showdown on

the school segregation issue. Just how long such unofficial measures will continue to be successful is problematical.

CHAPTER V

THE BROTHERHOOD OF SEGREGATED MEN

The ministers to our forefathers had the Bible, but not Socialism; and for them segregation was compatible with Christianity. Our modern ministers have the Bible and Socialism; and for them segregation is incompatible with Christianity. The only difference is Socialism. The Bible hasn't changed; and, if Socialism is omitted, segregation and Christianity are still compatible.—*S. Emory Rogers*

During the 1850's the church provided one of the bulwarks in the Southern defense of slavery. In that decade pro-slavery theologians prepared elaborate treatises "proving" slavery divinely authorized. The 1950's finds the churches of South Carolina dangerously close to taking a similar position—only this time on segregation. Religious groups of the later period, however, are less unanimous or enthusiastic in support of "traditional race patterns." In South Carolina, in fact, a small number of ministers and laymen have opened the most important crack in the solid wall of white segregationist sentiment. The importance of their protest should not be overemphasized; in many cases it is little more than academic. Protestant church organizations have given no direct endorsement to the abolition of racial segregation. The Methodist Church's condemnation of the use of economic coercion against Negroes by the Citizens Council has been to date the outstanding criticism of white supremacy efforts by any Protestant group.

On the national level the church represents perhaps the most segregated of all public institutions as Reinhold Niebuhr has so well pointed out. Only

a small fraction of church members, even in the North, is associated with integrated churches. Nonetheless, national church organizations outside the South have been making rapid progress in removing all official barriers to church integration. This is also true of most South-wide church organizations. The Southern Baptist Convention, the Southern Presbyterian Assembly, and the Southeastern Jurisdiction of the Methodist Church, for example, have all gone on record as opposed to segregation based on race. These organizations are much ahead of their South Carolina affiliates. Many leading segregationists, who have always considered themselves staunch church supporters, consequently are caught in a squeeze between church leadership and their own attitudes toward segregation. This patently unhappy situation has led some outspoken “Christian segregationists” to question the church’s taking a stand on the issue. The *News and Courier* wistfully hoped “that religion could be held above the complicated social, political and economic features of the present debate over race.” It was difficult enough “to fill churches with worshippers and to insure financial support of religious work” even when people were not being “alienated by social conflicts.” The “pressure in the churches” for an end of segregation was “only one of the symptoms of a sick world” which “plain people, guided by their own sure instincts, must resist with all their might.”^[183]

In the best tradition of the Social Gospel, the *Morning News* initially took the opposite view, holding that the church certainly “should become interested in segregation. So long as we limit ministers to talks of home, mother, God and country,” wrote Editor Jack H. O’Dowd, “we won’t have a Christian nation, but a nation that tolerates the seeds of Christian thought and influence.” More churchmen were needed who were willing “to tie the power of Christianity to the problems of living.” Yet in less than three months O’Dowd was criticizing the Reverend Edward L. Byrd of Florence for attacking segregation. He argued that while segregation could not be justified “on the basis of Christianity and absolute morality,” it was “easily defended on the grounds of public good and social expediency.” Religion was of “greatest benefit” only when its application would “enrich the people. An immediate application of the theory of segregation’s immorality would not be a blessing to our Southland.” Disparaging Byrd’s call for “courageous and Christian leadership” in facing the problem, the *Morning News* stated that leadership was neither “a matter of blowing the bugles of

war from the rear” nor “a matter of leading your people into destruction for a cause being fought the wrong way at the wrong time.”^[184]

Among the various Protestant religious denominations opponents of integration have been either strong enough to prevent any action from being taken or able to place the church on record as favoring a continuation of racial segregation. The Methodist Church provides perhaps the best example of a division of opinion. In October, 1954, the annual conference of South Carolina Methodism by a vote of 289 to 148 adopted a resolution stating that the question of racial integration in the public schools could “best be resolved on the state or local level.”

It is apparent to us [said the resolution] that an attempt to integrate the races in our public schools without regard to their relative numbers would work grave injustice to many innocent persons, and in the present instance we fear the Negro would suffer most, as he has often when those far removed from his every day problems have undertaken to speak in his name.

Consideration must also be given to the large number of Negro teachers and administrators in our public schools, lest they be denied leadership among their people.

To compel a parent, whether white or Negro, to send his child to school and at the same time to compel the child to live under conditions which the parents regard to be detrimental to the highest interest would, in our judgment, introduce problems of serious import.^[185]

The *News and Courier* applauded this statement as “a strong and fearless stand,” “a common sense approach,” and “a more truly Christian attitude than the twisting of ‘equality’ to mean forced association.”^[186]

The following year, however, the Methodist Church’s annual conference pulled the rug from under its more ardent segregationist friends. On that occasion the conference officially recorded its opposition to the Citizens Councils as organizations “formed for the express purpose of exerting economic pressure.” This statement, introduced by the Reverend A. McKay Brabham, Jr., of Aiken, and the Reverend J. B. Murray of Orangeburg County, drew only scattered negative votes.

Reaction throughout the state was almost unanimously hostile. The Methodists' resolution, declared the *News and Courier*, "is not necessarily a full reflection either of the facts or of the sentiments of most churchmen in South Carolina. It is one thing to regard our fellowmen as all God's creatures. It is quite another thing meekly to submit to pressure against customs and convictions held by our people these many centuries."^[187] L. B. McCord, a former Presbyterian minister, thought it "not unChristian to fire or not hire anyone whose conduct is not wholesome and [does not] contribute to the best interest in the home or wherever that person may work."^[188] The Kingstree Methodist Church, in an especially strong condemnation of its parent body, was still more emphatic. It charged that "too many leaders and ministers in our Methodist Church have been saturated with propaganda and even made to have a guilt complex with reference to the question of integration of the races and have used their high offices as ministers and writers, though innocently we hope, for the purpose of disseminating propaganda which we believe is inspired by Communist or Communist-front organizations."^[189]

The extent of the opposition in some areas to the resolution is well illustrated by the action of the Reverend J. B. Murray's congregation in forcing his removal from his Orangeburg County charge. In announcing Reverend Murray's transfer, Dr. Pierce E. Cook, the Orangeburg District Superintendent for the Methodist Church, stated that the Citizens Councils were "not as bad" as the resolution implied. The Councils, he said, were "trying to do something our people in this area are in sympathy with."^[190]

Another example of pressure on supporters of the resolution was the case of the Reverend E. S. Jones of St. Paul's Methodist Church of Orangeburg. Less than two weeks after adoption of the resolution, Jones, one of its prominent backers, felt constrained to declare publicly: "I have from the beginning felt that it was unwise for the races to be thrown together in the public schools, and I have not changed from that position. It is my conviction that the Church and its ministry must always be positively Christian, not only in its ends but in the ways and means adopted to attain these ends."^[191]

Only the maverick *Morning News* found any merit in the Methodist stand. The Conference's action, wrote Editor O'Dowd, "was proper and

timely ... [and] to be commended.” Segregation extremists, he thought, would have a hard time labeling this as the action of “communistic and brainwashed” outsiders.^[192]

On the local level several Methodist churches, generally in the low-country, have exhibited concern about growing integration support among church elements. The Hemingway Methodist Church adopted a statement condemning the Supreme Court ruling as “groundless and defenseless,” an “improper interpretation of the U. S. Constitution” and an “unholy invasion of State’s Rights.” To place the white and colored children together in churches and schools would be “to guarantee the loss of the sense of biological difference” between the races which would becloud “our fair land with a mongrelized, second-rate people cancelling five or more centuries of progress.” Integration was being accomplished “by propaganda and open advocacy and by the cunning of idea infiltration.” The Methodists of Hemingway graciously conceded “the Negro to be human just as the white man, to be a growing citizen and entitled to equal cultural and economic advantages.” The “mixing” of the races in church and school, however, should be “allowed to die and remain so forever.”^[193]

The Women’s Society of Christian Service of the Kingstree Methodist Church insisted that “voluntary separation” of the races was no denial of the “Fatherhood of God and the Brotherhood of Man.” The Society desired “the advancement of Colored People, but not through the agency of the National Association for the Advancement of Colored People.” In the spirit of humility and soul searching, the ladies resolved that “we desire to continue to work out our way of worshipping God and in helping our Colored Brethren to do the same for themselves. All sections of our great country are not the same, and what is best for one section may not be best for another. We believe that in the sight of God we have been working out our problems in a way acceptable to Him, even though that way be not perfect, perhaps.”

“In some areas of Brotherhood” Church elements favoring integration were “moving too fast,” continued the Kingstree ladies. “The coming of the kingdom of God is gradual. We should concentrate on some of our sins of greed, selfishness, worldliness, etc., before we attempt too great a change otherwise.”^[194]

The Manning Methodist Church adopted a resolution which affirmed belief in the divine origin of man and the principle that all men “stand on a spiritual equality.” But the Manning Methodists asserted that “certain social, economic and cultural factors exist which make it impractical and undesirable that members of the Negro race be received into and made a part of this congregation.” Should the South Carolina Methodist Church adopt a policy of racial integration in its churches, the Manning Methodists would find it “impractical” to continue connection with that body.^[195]

The closeness of the division of opinion amongst South Carolina Methodists toward the question of church integration was dramatized at their annual conference in August, 1957, when by a vote of 287-261 it was agreed to permit the denomination’s Negro churches to affiliate with white Methodists where both agreed. Presiding Bishop Nolan B. Harmon of Charlotte, North Carolina, was careful to point out that the new course of policy had nothing to do with integration so far as individuals were concerned and emphasized that no white church was obliged to take in anyone. J. C. Holler of Columbia, conference lay reader and one of the authors of the proposal, declared that “the object of the plan was to take the race issue out of church law.” It solidified local control as represented by States Rights, he asserted. But opponents of the proposal thought differently. A Methodist layman, D. D. Brown of Hemingway, warned that the plan was “a highway to integration—a sedative to keep us quiet while the integration plan is put into force.” Such proposals, he added, played into the hands of “subversives” and would hasten the “mongrelization” of the races. The Reverend B. Rhett Turnipseed, a retired clergyman from Greenville, delivered an impassioned speech against the proposal. At the time of the unification of the Northern and Southern branches of the Methodist Church, said the Reverend Turnipseed, he was assured by two bishops that the question of integration within the church would not arise. “Brethren,” he declared, “I have kept the faith. My position hasn’t changed.... It is unfortunate at this time for a denomination to register itself for a paper like this. This is my swan song.”^[196]

The Baptist Church, the state’s largest denomination, faced, or more accurately dodged, the race issue at its annual convention in November, 1954. The convention received a report from its Social Service Commission urging Baptists to “protect the public school system and seek to strengthen

it in all possible ways.” Noting that “these are the times that try men’s souls,” the Commission offered several “guideposts” for Baptists to follow “in this crisis.” “God’s will” should be “earnestly and prayerfully” sought. White Carolinians should recognize and “humbly confess” that “in spite of strenuous efforts, and because of inherited traditions ... adequate educational opportunities for all our children” had not been provided in the past. And finally, Baptist action should be based upon the recognition “of every person as an individual, precious in the eyes of God.”^[197] The Baptists, by receiving a noncommittal statement of principles rather than in adopting a formal resolution, deftly sidestepped the issue.

Individual Baptist ministers who have spoken out too strongly against racial segregation have not been immune to pressure. The most widely publicized incident involved the Reverend G. Jackson Stafford, pastor of the Batesburg Baptist Church. The Reverend Stafford’s case was particularly notable because Federal District Judge George Bell Timmerman, Sr., and his son, Governor George Bell Timmerman, Jr., were members of his congregation. Judge Timmerman, who has the hard face of a Puritan elder, was chairman of the board of deacons. Stafford’s difficulties arose from his vote in favor of a resolution adopted by the Southern Baptist Convention endorsing the Supreme Court’s desegregation decision. As a result, opposition to the minister rapidly developed within the Batesburg congregation and finally forced his resignation. With rare courage Stafford refused to renounce his convictions “regarding Christian race relations.” He charged that his resignation was made necessary by “several highly placed members of the Batesburg church playing politics” with religion.^[198]

One of the most notable and quoted addresses against integration by a minister was delivered before the state Baptist conference on evangelism in 1956 by the Reverend Dr. W. A. Criswell, president of the Southern Baptist Convention and pastor of the First Baptist Church of Dallas, Texas. Dr. Criswell told the Carolina evangelists:

That thing [integration] they are trying to ram down our throats is a thing of idiocy and foolishness. Any man who says he is altogether desegregated is soft in the head.

I’m a segregationist when it comes to whom my daughter is going to associate with. I know some white trash I don’t want my

daughter running with.

I'm a segregationist when it comes to the woman I take home at night. I pick out one, and that one is my wife. We are a segregated family. We don't invite everybody to come home with us. If we did, we would not have a home, and the same thing applies to the church....

Who is stirring up all this stuff? Is it God's people or is it somebody else? I happen to know it is somebody else....

This [resistance to desegregation] is part of the ordeal by fire. When a true minister stands up and is true to God he will have to face these pressures. But God will not let us down.

They may put your feet to the fire, they can cut off your head, but you can't quit. You might want to be dead, but you can't quit. God has called you and you must go on.

God help us to be absolutely honest and absolutely fearless in the things we believe, saying with Martin Luther, "Here I stand, I can do no other."^[199]

The day after delivering this oration, the Reverend Doctor Criswell was invited to address a joint session of the state legislature. In a speech similar in tone and content to that quoted above, he told the solons: "Sometimes you can get broad and liberal and it doesn't matter ... but there are other things that are precious to you such as whom are you going to marry and who is it that daughter of yours is going to marry."^[200]

South Carolina Baptists, of course, are affiliated with the Southern Baptist Convention. The latter was organized in pre-Civil War days in protest against abolitionist activities of Northern Baptists. Now one of the nation's largest denominational groups, the Southern Baptists have prospered and spread over most of the country. (The Convention's 1957 annual meeting, for example, was held in Chicago.) In recent years the Convention has wandered further and further away from the "traditional Southern viewpoint" on race relations, especially since the 1954 Supreme Court decision. The Convention's action in forthrightly condemning racial segregation and approving the Court decision has placed South Carolina Baptists in a quandary. Increasingly local churches and church groups have

been prone to criticize the national Convention. Shortly after the 1957 Convention's condemnation of racial segregation the congregation of the First Baptist Church of Orangeburg, one of the largest in the state, passed a resolution offered by its Laymen's Class which not only criticized the Convention's action but declared that "if such practices are continued by the Southern Baptist Convention it will be for the best interest of the Baptist Churches of the South to withdraw from the so-called Southern Baptist Convention and organize an association with churches" which favor racial segregation. Baptist churches in Olar, Denmark, Manning, Sumter, Andrews and Branchville adopted similar resolutions.^[201]

South Carolina Episcopalians, who have a central jurisdiction for both white and Negro churches, took a wavering stand on the segregation issue at their 166th annual convention in 1956. By a vote of 94 to 43 they resolved "that there is nothing morally wrong in a voluntary recognition of racial differences and that voluntary alignments can be both natural and Christian." The resolution continued that it was "the sense of this convention that the integration problem caused by the Supreme Court decision of 1954 as it applies to the Episcopal Church should not be characterized as Christian or un-Christian, by reason of the fact that it is either inter-racial or non-inter-racial. In such choices, Christians may wisely exercise personal preference."^[202] In adopting this resolution, the convention rejected "by a large majority in a voice vote" a substitute resolution that would have urged Episcopalians "to employ at diocesan and parochial levels a strong degree of calmness and mutual toleration and respect for disagreement."^[203]

The endorsement of voluntary segregation by South Carolina Episcopalians was scathingly denounced by *The Living Church*, official organ of the national Protestant Episcopal Church. Comparing the resolution to the "Aryan Paragraph" which Hitler attempted to force on all German churches, *The Living Church* declared that "Christians do not have the right to exercise personal preference to keep other people out of the church.... It is one thing to be gentle and understanding about sin; it is another thing to pass resolutions commending sin on a 'voluntary' basis ... open church membership is a first principle of Christianity. When the church door is closed to a man because of his race, a sin has been

committed. When the church says that it is all right for this to be done a heresy has been enunciated.”^[204]

The intensity of opposition of many Episcopalians to integration is illustrated by a resolution adopted by Episcopal women’s groups of Sumter, Kingstree, Summerton, Statesburg, and Hagood. In fulfillment of what they considered to be their duty “to see that those in high offices in our government are not influenced by Communist doctrines,” these women, whose mastery of dialectical materialism might legitimately be questioned, pointed out for all to know that integration was “a plan of the Communist Party,” a party which acknowledged “no God except Communism.”^[205]

The most overtly pro-segregation religious group in South Carolina is the Southern Methodist Church, made up of those Methodists who had refused to agree to the union of the Northern and Southern branches of Methodism in the 1930’s. Headed in 1955 by the Reverend Lynn Corbit of Bowman, it is relatively small numerically, comprising but three conferences in the entire state. In 1955 the Southern Methodists stated their position in the following terms: “The Southern Methodist Church stands for continued racial segregation in the schools, state and federal installations of all kinds, churches, and all ways of life where it has always been practiced. We wish further to go on record approving any law-abiding organization that has as its aims the upholding of segregation in a peaceful manner.”^[206]

In the *News and Courier*, a member of the Southern Methodists, S. J. Summers, Jr., of Cameron, described his church as being composed of “a dauntless group of congregations” which believed “ardently in the rightness of the Southern Way of Life” and “in the kinship of mankind under God but with the separations and differences He Himself instituted and established.” He noted Southern Methodism’s belief that “the Bible teaches of the decay and ultimate destruction of nations as the inevitable outcome of decadent faith and mongrelized bloods.”^[207]

Other denominations have been less outspoken in their views. Presbyterians simply have continued their policy of segregation in churches and educational institutions.^[208] In Summerton, the late Reverend Henry Rankin, Northern-born and Princeton-educated, was one of the most active members of the Citizens Council. He sought to impress Negroes “about the fallacy of trying to get their rights by going to court.” Other Presbyterian

ministers, as will be noted later, have upheld the Court's decision as being in line with the basic concepts of Christianity. An unofficial Lutheran position was presented by H. Odelle Harman, Lexington School Superintendent and delegate to the 1956 biennial convention of the national Lutheran church. In opposing a resolution commending integration, Harman told the convention:

The Lutheran Church in South Carolina will not integrate. Resolutions of the kind before us, then, can only serve to hinder the progress and mission of our great church and undo much of that which has been done in the South to promote good will and better relations between the two races.... The Christian church has done much to bring about the confusion and bitterness that we are experiencing in our racial relations in America today.... I do not believe that segregation is basically a religious question.^[209]

Among religious groups only the Catholics have given endorsement to the Court decision and to the integration efforts of Negroes. The missionary South Carolina Catholic Church has held that there is no segregation before God; therefore, there should be none in the church. The attitude was given tangible expression by the enrollment of five Negro and 29 white pupils in St. Anne's parochial school in Rock Hill in the 1954-55 term, the only example of school integration in South Carolina.^[210] The Catholics, however, did not desegregate their other schools or hospitals. The number of Catholics in the state is small and only a tiny percentage of their membership is Negro.

Individual ministers frequently address themselves to the race issue. Several condemn segregation as contrary to Christian teachings concerning the brotherhood of man, though a much larger number holds the continuation of segregation desirable. The Reverend Gaston Boyle, a Presbyterian minister from John's Island, declared that segregation was "totally dependent upon the theory of a 'superior race,'" a concept which could not "be supported by science, Scripture, or any other fact" and hence had to be upheld "by half-truths, misquotes and unjust insinuations." Dr. Carl Pritchett, pastor of the First Presbyterian Church of Anderson, considered desegregation "not a troublesome problem but a period of painful democratic growth."^[211] The Reverend Edward L. Byrd, pastor of

the First Baptist Church of Florence, was especially outspoken. The decision of the Supreme Court, he said, was “fundamentally right” and “doubtless legally correct.” Answering those who used the Bible as authority for perpetuation of segregation, he declared that “anyone who seeks shelter in the Bible for his racial prejudice or his defense of segregation is walking on thin ice and takes a position that cannot be soundly defended.” According to the Reverend Byrd “no honest scholar and no honest minister can find grounds for racial segregation in the Bible.” The Reverend Fred V. Poag, pastor of the Shandon Presbyterian Church in Columbia, expressed a similar view: “There is but one position for a Christian. I believe the Church must be open to all regardless of color.”^[212]

Clergymen endorsing segregation find it perfectly compatible with the fundamental teachings of Christianity. The Reverend J. M. Lane, pastor of the Tabernacle Baptist Church of Orangeburg, declared, “I think the Bible teaches segregation and I believe it is the best for both races. I feel that the work of the Citizens Councils, without violence and force, is the Christian method of dealing with the move by the National Association for the Advancement of Colored People to force integration in the public schools.”^[213] The Reverend L. B. McCord of Clarendon feared “mongrelization.” “Some people feel that segregation is a sin,” he declared. “That isn’t true. Integration of the races would definitely be sinful.” The Reverend J. J. Patrick, a retired Methodist minister of Ruffin, stated that the South desired segregation “because the best white and colored people believe in God and the Bible.” Writing in the *News and Courier*, he declared,

We were all living in peace and contentment until that old serpent, the devil, that beguiled Adam and Eve to disobey God and eat the forbidden fruit, led the NAACP to scatter propaganda down here and a few (big heads) were beguiled to follow their teachings....

They [the politicians] with the communists and the NAACP, with some of the socialist preachers, influenced the U. S. Supreme Court Judges to try to nullify the Constitution and force us to consolidate the schools and place our little children in classes with Negro children, contrary to God’s law.

God created the different races and set their bounds and habitation. God commanded, demanded and taught segregation from the Flood right on down until the Bible was written....^[214]

The aged and gravel-voiced Dr. Bob Jones, fundamentalist par excellence, founder of the Bob Jones University in Greenville, and one of the state's best known Baptist clergymen, objected to making segregation a Christian issue when Christianity was not involved. Like Patrick, he said that any plan for "the intermingling of the races" was the work "of the devil." The Christian educator criticized "agitators from outside the South and demagogue politicians" who were "only interested in the colored vote." Christians of both races should "tell the folks who come in with all this foreign influence to get back where they came from."^[215] In like manner, the Reverend Edward B. Guerry, Rector of the lowcountry St. James' and St. John's Episcopal Parishes, denounced the Supreme Court desegregation decision as "unrealistic," "unfortunate," and conducive to "discord, confusion, and ... sharp conflict" among the American people. Integration would simply "deepen" any "sense of inferiority" the Negro might have. The rector did not believe it was "in keeping with the mind of our Lord Jesus Christ to force the Kingdom of God on people either by judicial edict, or legislative action, or ecclesiastical pressure."^[216] Still another proponent of segregation, the Reverend E. R. Mason, a retired Columbia Methodist cleric, decried integrationist assaults on "those institutions that we must have or we perish," e.g., "God, your church, home and schools." Integration's "true motive," he declared, was "infiltrating the Black race into the White race."^[217] The Reverend M. A. Woodson of the Bethel Baptist Church of Olanta told the Lake City Citizens Council that the connection between the Communists and the NAACP had been "conclusively established." The Citizens Councils, he said, were the right hands in the fight for constitutional government and states rights. "We must strive to leave our children a constitutional form of government and a segregated society that works in harmony."^[218]

Pro-segregation clergymen have not evolved a systematic theological basis for defense of their position. Rather each minister has developed his own. Sermons and statements upholding traditional Southern race patterns abound with quotations of Biblical authority. In a sermon that might well

have been delivered in the 1850's in defense of slavery, Dr. E. E. Colvin, pastor of the Immanuel Baptist Church of Orangeburg, asserted that

... the Old Testament scriptures recognize the existence of things as they are. We find that also in the New Testament. Jesus did not attempt to change or reform society in his day by the use of force. There was slavery in his day. There were many other civil and social ills in his day but never did Jesus attempt to use force or advocate force. In the centuries that have passed since then the teachings of Jesus have brought to pass tremendous changes.

Paul sent Onesimus, the slave, back to his former owner, Philemon. Paul didn't write to Philemon and say, "You have no right to own this man." Not at all. Paul respected the law and the right to private property back in that day.

In the New Testament we find instructions given to slaves and to masters telling them what to do. "Servants, be obedient unto them that according to the flesh are your Masters, and ye masters do the same things unto them, and forbear threatening; knowing that He who is both their Master and yours is in heaven, and there is no respect of persons with Him." Ephesians 6:5,9.

We find no attempt whatever to overthrow slavery suddenly and by force. "Let each man abide in that calling wherein he was called. Wast thou called being a bondservant? Care not for it: nay, even if thou canst become free, use it rather. For he that was called in the Lord being a bondservant, is the Lord's freeman: likewise, he that was called being free, is Christ's bondservant. Ye were brought with a price; abide with God." I Corinthians 7:20-24. The light of the Scriptures shows that we know by experience, that social changes take time.

The solution offered by the Doctor was for "our Negro friends" to "listen to reason and continue the practice of segregation on a voluntary basis" so that "peace and harmony" might prevail. Should "the spirit of hatred" induce them to seek integration, they would create a condition which would "do as much damage in the long run as the War Between the States did a hundred years ago."^[219]

Similar opinions are frequently expressed by others—from both the clergy and laity. In a letter to the editor of the *Independent*, James B. Davis of Anderson found scriptural sanction for opposition to integration in Leviticus 19:19: “Ye shall keep my statutes, Thou shalt not let thy cattle gender with a diverse kind, thou shalt not sow thy field with a mingled seed.” Citing this authority he wrote: “Oh yes, we are careful about our pure cattle, poultry, dogs, etc., but we have advocates in our government who would crossbreed the people, whom God has put definite marks of color, build and features into, for their own glory. I have seen a few half breed Negro and white, that is mingled seed, and God pity an unfortunate child that must face the world a bastard, with a mingled color in his skin and hair. And he is a bastard because God has designated nations and languages, and directed us to go to our father’s people for a husband or wife.” Davis felt that the Fourteenth Amendment to the Constitution was a “malignant growth on a righteous document.” The Constitution should never have been amended. “Like our Holy Bible, it was good enough” in its original form. [220]

Another letter writer, Margaret L. Bostwick of Charleston, believed that a cardinal message of the Bible was “that Israel—ALL Israel, not just Judah” had been punished and was still being punished “for having disobeyed the many severe injunctions against the mixing of races.” [221] Similarly Lawrence Neff of Atlanta noted in the *Morning News* that “even the very elect may sometimes be deceived, or deceive themselves.” According to Neff, “Jesus was the most consistent and the most inflexible segregationist the world has ever known.” As “proof” he asserted that Jesus, “in commissioning the 12,” had said to them, “Go not to the Gentiles and into any city of the Samaritans enter not...” [222]

Similar statements, indeed, have been legion. An unsigned article in the *News and Courier* editorial page reminded readers that Jesus “advised all Christians to seek contentment, rather than advancement, no matter where Providence had placed them.” Such advice, intimated the article, might well be followed by Negroes seeking integration. [223] Echoing these sentiments and adding a few twists of his own, E. Robert Rowell, a “Lay Reader” of the Trio Methodist Church, declared that it was “against God’s divine will for the races to be destroyed by intermarriage and the bearing of offspring by such marriages.” In the segregation fight, thought Rowell, the end

justified the means because God's will was at issue. For this reason he gave unqualified endorsement to such practices as economic boycotts and pressures not only "against the Negroes who sign desegregation petitions or who are members of the NAACP," but also against "those who are in sympathy with such people." He favored refusal by his church "to receive or support any minister who believes in the false doctrine of mixing the races."^[224]

Others, too, were concerned with showing God's approval of segregation. A close study of the Bible, declared the Right Reverend A. S. Thomas, a retired Episcopal Bishop of Wadmalaw, revealed a "plain implication" that segregation was not only consistent with brotherly love but had been ordained by the "appointment of God." Anyone who attempted to "facilitate and expedite the amalgamation of the Negro race with other races" might well be "frustrating a great purpose of God." Racial segregation *per se* was in no wise unChristian. Its unChristian aspects were due to "man's fallen nature, not to segregation itself." Integration would please only unnamed leaders of the nation who wished "to appease atheistic Communism."^[225]

If God approved segregation, then logically integration was the work of the devil. Mrs. Edna M. Smith of Charleston blamed the integration drive with its "fear, confusion and despair" on "Satan" who was "using all these weapons to gain more power, because he knows his power is coming to an end and he wants to take all that he can with him when he goes down into destruction and death." The Reverend Paul M. Pridgen, pastor of the First Baptist Church of North Charleston, announced that "there is no room in Heaven for the NAACP or any other organization that stirs up race hatred." The *News and Courier* took issue with Dr. Norman Vincent Peale's statement that heaven was "completely unsegregated." No one knew "for sure" what heaven would be like, declared the *News and Courier*, since "no eye-witness" had returned "to give us the direct word." However whites were reassured: "Surely in Heaven there will be no compulsory sharing by incompatible elements."^[226] Apparently *someone* had returned and had imparted this information to the *News and Courier*.

On occasion, a voice of protest has been raised against the use of religion as a justification for segregation. The *Morning News* attacked the

statement by a candidate for the State House of Representatives who had said that if God had intended for the races to be mixed he would have made all people the same color. "Using the same syllogism," said the paper, "it could be argued that if God had intended for people to wear clothes, people would be born clothed; or if God intended for people to ride, they would be born with wheels rather than feet."^[227] A similar protest came from a Charleston non-conformist. How long, asked H. B. Clark, would the South fail to see "that any denial of a fellow human's rights" constituted "a violation of Christ's supreme commandment that we love our neighbor as ourselves?"^[228]

The *News and Courier* has leveled some of its most bitter editorial blasts at those church leaders and groups who have taken a stand against segregation.^[229] The attitude of this paper is a clear indication that leading segregation spokesmen recognize in the church a potential and powerful defaulter from the solid front against desegregation. In seeking to counteract clerical criticism of segregation, the *News and Courier* editorials constantly have advised church leaders to steer clear of such a controversial issue as race segregation. According to these strictures, segregation is right and desirable, and something for which no Southerner has to be apologetic. "To upset time-honored balances that keep the peace" would be both wrong and scandalous. Attempting to dispose of the moral and psychological implications of racism, the *News and Courier* insists that Southern whites should entertain no sense of guilt in connection with segregation policies. "It was God who created people with different physical characteristics. Who is to say that the races He created separate and distinct should now be scrambled?" If separation on the basis of race were sinful, so was separation by faiths and creeds. The trouble was that "well-meaning reformers" were confusing "religious principles with individual social customs." "Just as morals are not meant to be observed only on Sunday, social customs also operate seven days a week."

The mounting criticism of segregation from non-Southern religious sources, particularly from the National Council of Churches, is especially resented in South Carolina. Such ill based criticism, asserted the *News and Courier*, constituted a part of the general assault on "the three bulwarks of American decency ... the church, the school and the home." Those who engaged in such criticism might themselves be guilty of religious bigotry.

“No church” had “sole possession of the last word either in religious faith or moral rectitude.” God had not yet revealed His “precise purpose” in creating people with different racial characteristics. In more ominous tones, the *News and Courier* declared “well-meaning” but “misguided” religious leaders were treading “on dangerous ground in pointing critical fingers at an entire region’s social structure.” Southerners would “fight and die” for the freedom “to pick their own associates.”

The *News and Courier* has suggested a complete renunciation by the church of all interest in the race issue. “Those of the white clergy who have been busily promoting the mixture of the races,” it asserted, could better serve their congregations by returning “to the religious and moral aspects of their high calling and leave sociological and psychological politics to the politicians.” Concurrently, if the Negro clergy “would devote more time to inspiring their flocks to improve their morals, and less to inciting them to get in with the white folks, they would be performing a better service for their people.”

That these attitudes are popular among South Carolinians of all stations is illustrated by the fact that on frequent occasions they have been heartily endorsed in letters to the editor. As a case in point Archibald Rutledge, poet laureate of South Carolina, viewed “with misgiving the church’s stupid attitude toward segregation.” He regarded the *News and Courier*’s policy as “so fair, so calm, so profound,” a policy notable for its “clarity” and “justice.” Rutledge was especially happy with the paper’s “distinction between religion and ancient and salutary social customs.” “I KNOW you are right,” he concluded, “and it is high time that religious leaders realize how wrong, even how wicked, they are.”^[230]

Concerning the race issue then, South Carolina churches generally give at least indirect endorsement to a continuation of segregation. In large part both church organizations and individual ministers attempt to steer clear of the issue, preferring to concentrate on less controversial sins.

CHAPTER VI

A PLACE IN THE SHADE

We've always had a place in the sun down South.
Now I reckon some of us would like a little of the
shade too.—*An Unidentified Negro*

Throughout the segregation-integration controversy white leaders have rarely attempted to discover what the Negro thinks on the matter. Instead they have arbitrarily declared that the overwhelming majority of South Carolina Negroes have no desire for integrated schools. This claim is made almost without exception. A writer in the *Morning News* noted that while Southern governors and attorneys general had held conferences to consider the objectives of Negroes, they had never called a biracial meeting at which the latter could voice their aims. On no occasion had white leaders asked Negroes to state their position; the aspirations of Negroes were always specified by white men. Such a situation, it was observed, might well result in “brash action” by “sincere white people, who, alarmed by white men’s statements of Negro aims,” were girding for war without waiting to hear the Negroes themselves.^[231] A perusal of public pronouncements by Negro leaders and groups reveals that a misconception in regard to Negro aims and desires exists among the white people of South Carolina.

The goal sought by the overwhelming majority of South Carolina Negro leaders is an immediate end to legal segregation. They recognize that for many years to come *de facto* segregation will continue to exist. But on the point of legally enforced segregation, there is no compromise. Dr. Benjamin E. Mays, a native South Carolinian and president of Morehouse College in Atlanta, told a meeting of the Florence County NAACP that the immediate concern of the Negro was not for integration but desegregation. Desegregation, he said, meant “to destroy segregation based on law.”

Likewise A. J. Clement, Jr., president of the Charleston County NAACP chapter, said South Carolina Negroes wished an opportunity to make their “best contribution” to the development of the state, an objective that could be realized only by ending segregation.^[232]

At this point a more complete picture of the aims and aspirations of South Carolina Negroes is in order. As already has been noted, white political leaders constantly have stated that the majority of the state’s Negroes oppose desegregation. Only on occasion is it acknowledged that the Negro might, after all, want desegregation. The *News and Courier* believed that “the average Southern Negro” would accept as much mingling “as the white man would allow.” It did not think, though, that the Negro was “willing to risk a great deal to attain it.” This “moderate attitude” by Negroes was in keeping with “good citizenship as well as good race relations.” The recognition of “conditions as they exist,” according to the Charleston paper, should be neither “humiliating nor degrading for Negroes.” Writing in *Harper’s* in early 1956, Thomas R. Waring, editor of the *News and Courier*, admitted that “it would not be hard to believe that, given a choice, a Negro naturally would prefer all restrictions to be removed.” But “a firm and positive stand by people everywhere,” he held, would put an end to “the race agitation that has plagued our country these last several years.”^[233]

A more positive statement of this attitude was made by W. D. Workman, Jr., the *News and Courier* correspondent. Writing in late 1955, he observed that too many white South Carolinians were laboring “under the dangerous delusion that Negroes of the state do not want integration.” In truth, he maintained, “a large percentage” of Negroes “and an even greater percentage of their leaders very definitely do want integration of the races, and as soon as possible.” The failure of the state’s leadership to recognize this situation involved “the tactical error—which could prove disastrous—of underestimating the enemy.” Assessing the extent to which Negroes desired integration, Workman noted that educational, religious and civic leaders seemed overwhelmingly “determined to press for integration.” He reported a division amongst Negroes with “some genuinely and sincerely” opposing any integration and others who doubted the practicability of the “current rate” of integration. But among Negro leaders he found “increasingly open and avowed agitation for integration.”^[234] In substantial

agreement, the *Record* termed the belief that a majority of Negroes favored segregation a “head-in-the-sand theory.”^[235]

It is hardly possible to evaluate with exactness, of course, the attitude of the rank and file of South Carolina Negroes toward segregation. In early 1956 the Gallup Poll asked people throughout the country their opinion on the Supreme Court decision. No results on a statewide basis were announced; however, the poll indicated that 53 percent of Southern Negroes (13 states) approved the decision while 36 percent opposed it and 11 percent were undecided. For comparison only 16 percent of Southern whites approved the decision, 80 percent disapproved, and four percent were undecided.^[236] The vehement opposition of Southern whites to integration, reported the Gallup organization, caused many Negroes “to view with misgivings the possible repercussions” of race mixing. However, the report noted “a common desire” on the part of Southern Negroes “to give their children the best possible education and obtain for their race the treatment which they consider to be in keeping with the ‘American way of life.’” In a survey of the status of race relations in South Carolina in early 1956, the *New York Times* noted that, while Negroes were “more cautious” in expressing views than whites, nonetheless, there was “little or no question that literate, articulate Negroes generally” desired an end of legal segregation. These groups, reported the *Times*, resented being “officially classed” as “an inferior race and as second class citizens.”^[237]

Despite an understandable reluctance of Negroes to express themselves on segregation, news reporters on occasion have been able to obtain revealing statements. In the summer of 1956 an Associated Press writer, interviewing Negroes in Clarendon County, sought the opinions of the family of William Hilton, a tenant farmer. Several of Hilton’s 13 children spoke out forthrightly:

I’d like to go to school with white children, said Henrietta Hilton, 13. I just don’t like to segregate myself because of my color or hair. I’d like to be able to pick friends on another basis. I think I’d enjoy being friends with some white girls. Maybe they’d enjoy being friends with me.

I never wished I was white, said Morgan Hilton, 16. I just wished many times I was treated like the whites.

In the movies, said Leroy Hilton, 19, we got to go up to “Buzzards Roost” (the Jim Crow Balcony). When there’s a good picture, we’ll be standing up there even though there’s empty seats downstairs. My feeling is we pay as much, we ought to be able to sit anywhere. Every time I go, I get mad, but I don’t say anything.

I feel insulted every time I got to sit in the back of a Jim Crow bus, said Henrietta. I feel insulted every time I go into the drugstore for ice cream or a soda. All the booths are for whites. We got to have our ice cream out on the hot street. I just wonder what makes them think they’re superior. Sometimes, you walk down the street and white people just look at you scornful. You can feel it.^[238]

Statements made by individual Negro leaders and resolutions adopted by various Negro groups reveal a willingness of Negroes generally to follow anti-segregationist leaders. The Progressive Democratic Party, the state’s leading Negro political group, stated that the question was no longer segregation or integration but rather “how best” to accomplish desegregation. The party proposed creation of an inter-racial commission to handle such problems as would arise during the period of integration. The Palmetto Education Association, representing approximately 7,000 Negro public school teachers, adopted a resolution in 1955 hailing the Supreme Court decision of May 17, 1954, as “consistent with the Association’s belief” in democracy. The Association offered to cooperate in “discussing, outlining, and implementing plans for universal public education” in the state “within the framework of the recent ruling of the United States Supreme Court.”^[239] The Association’s stand is particularly noteworthy since there is general agreement that many Negro teachers would be eased out of their jobs should integrated schools become an accomplished fact.

The Richland County Chapter of the South Carolina Citizens Committee (Negro), in an unusually strong statement, declared that it stood “solidly for the respect and observance of all laws.” The chapter wished it “clearly understood” that this included the Supreme Court decision of May 17, 1954. “To circumvent or to defy the law is rebellion and to join others in so doing is criminal conspiracy which could lead to anarchy.” The chapter concluded that the Negro’s struggle was “neither temporary nor futile” since its ultimate objective was “the proper evaluation of each individual and the proper regard for human dignity.” The Clarendon County Civic

League, which backed the school suit, attacked segregation as “un-Christian, undemocratic, unscientific, and asinine.” Statements to the effect that Negroes favored segregation, according to the League, revealed “a deep-seated racial prejudice that has warped the intellect, the sensibilities and the wills” of white people. According to State NAACP president James M. Hinton, “Negro parents only want their children taught by competent teachers and in integrated schools, where children of both races can learn to study and learn to live as citizens.”^[240]

Opposition to school integration has arisen from isolated Negro individuals and groups. More than 100 “patrons” of a Negro school in Mullins signed a petition urging continuation of segregation and “opposing integration of the Caucasian and Negro schools.” A similar petition was signed by Negro parents in North Augusta. This group feared integration “might disrupt progress now being made” in the Negro school program. A Negro school principal in Ehrhardt, in Bamberg County, thought integration would result in Negro teachers and pupils being “thrust into a most peculiar situation” which would be beset “with many perplexing problems and grave consequences.” Educational opportunities of Negro children under integration, he feared, would “suffer for the next 50 years.”^[241] A Negro delegate to the Horry County Democratic Convention said that he wanted his children “to go to as good a school as any man’s children,” but “to the same school they go to now.” Dr. Ben J. Armstrong, prominent Mullins Negro, believed it would take “a thousand years” for the races to get ready for desegregation. The Reverend Webster McClary, a “preacher” from Kingstree, praised the Citizens Councils as being composed of “smart steady men” who “mean business” and declared that Negroes did not desire mixed schools any more than whites.

I can say this to any Negro who has it sticking in his craw that he can’t be happy without trying mixed schools [said McClary]. All you have to do to get your heart’s desire is buy a ticket to Philly or other points North where they are already mixed. Nobody has to tell you that colored children don’t learn books as fast as whites. But see for yourself how pitiful your big colored children will look in the same grades with smaller white children. Have you got enough money to dress your brood in clothes they won’t be ashamed of? Go ahead and try it if you must. But don’t be fool enough to slam the

door in your white friends' faces before you go. You might want to come back like I did after I lived up there awhile. How if you came home and find the door locked?—Will the NAACP give you a handout? Laugh, folks, laugh.^[242]

The *News and Courier* considered McClary's statement to be "moderate in tone and sensible in approach." The *Independent* thought it "timely advice" for Negroes. A letter to the editor of the *News and Courier* nominated McClary for the Pulitzer Prize "for the most enlightening and constructive" comment on the race problem "made to date." The same writer opined that McClary and eight other men "equally as intelligent" should be appointed to the United States Supreme Court.^[243]

Pro-segregation statements by Negro leaders have become less frequently heard as attitudes toward the problem have hardened on both sides. Pressure for conformity has worked within both the Negro and white communities, though probably less effectively so among Negroes.

The attitude of Negro church groups is of especial significance in light of the church's undeniably great influence within the Negro community. The number of ministers and prominent laymen among Negro improvement and advancement groups is unusually high. Statewide Negro church associations almost without exception have endorsed the Court decision and have called for the ending of racial segregation. The Progressive Democratic Party claimed that as early as 1951 "religious denominations and groups administering to more than 600,000 of the state's 850,000 colored citizens" made voluntary statements and declarations which urged the removal of racial segregation in public places. The South Carolina conference of the Central (Negro) Jurisdiction of the Methodist Church, in endorsing the struggle of the Negro for equality of treatment, approved all organizations which sought "the full participation of all American citizens in the responsibilities and privileges of this nation." Bishop Frank Madison Reid expressed the attitude of the state's African Methodist Episcopal Church in late 1955. In suspending the Reverend James Vanwright for opposing integration and the court decision, Bishop Reid asserted: "No minister in our church can openly declare or write anything that attacks the scriptural belief in the equality of all men."^[244] Dr. G. G. Daniels, president of the Negro Baptist State Convention, in supporting efforts to end all legal

racial discriminations, stated that the Negro was seeking only those human rights guaranteed by the Constitution.^[245] A manifesto of the Columbia Interdenominational Ministerial Alliance, a Negro group, declared that there could be “no first-class citizenship in a segregated society.” Full participation of the Negro in the life of South Carolina would come only after the removal of such barriers as “racial segregation, discrimination, Jim Crowism and economic pressure.” The Alliance recognized the difficulties involved in the process of desegregation. “Things cannot be changed overnight,” the Reverend J. Arthur Holmes, Alliance president, told this organization in 1956.^[246]

The attitude of individual Negro ministers conforms to the same general pattern. The Reverend William L. Wilson, pastor of a Spartanburg Baptist Church, told a newspaper reporter that he was sometimes “ashamed” of his white colleagues. “They tell me privately,” he said, “that segregation is wrong, but they will say nothing publicly.” The Reverend Giles G. Brown, a Methodist Minister of Charleston, referring to proposals for church integration, said that there was only “one human family.” The brotherhood of that family was ordained by God. Any movement that furthered this brotherhood would eventually succeed but in some areas this would come only after a “long, long time.”^[247]

Negro leaders were restrained in commenting on the Court decision. James M. Hinton said that “Negroes, though happy,” were “most mindful of the seriousness of the decision” and would cooperate fully with state leaders in its implementation. “There is no place in a democracy for segregation,” he declared. Bishop Reid called for “a special day of thanksgiving at this hour when the Supreme Court has answered the challenge and call of democracy.”^[248]

A small minority of Negro religious spokesmen opposed the decision. The Reverend Hydrick Strobel of St. George, a black-belt town, urged his congregation to “be well pleased and thank God for equal but separate schools for our colored children, where they can learn to take pride in their own race, instead of being ashamed of it.”^[249]

A staff writer for the *Record*, analyzing the reaction of Clarendon County Negroes to the decision, stated that “there is not much rejoicing, even among the colored people of this district, over the way their case has

turned out. They hold their heads a little higher and they seem to have a little more confidence in themselves, but they are concerned about the future of the schools.”^[250] In like manner an Associated Press writer noted the difficulty of determining the opinion of the majority of Clarendon Negroes. “Some say that they want segregation to continue as long as facilities are equal,” he reported. “Some are against it. Many won’t say either way.”^[251]

White South Carolinians in maintaining that Negroes desire segregation, customarily quote Negro “hands,” domestic servants or others who had said they favored segregation. In evaluating these pro-segregation statements by Negroes, the whites rarely distinguish between the uneducated, economically dependent Negro and recognized Negro leadership. Such a mistake results naturally from the Booker T. Washington tradition that the Southern white man is the only true friend of the Negro and has always stood ready to give him assistance and advice in meeting the challenges of the white man’s civilization. Whereas Yankees might mouth pious platitudes about all men being created equal and having equal rights, the Southerner is the true benefactor of the Negro on the individual level.

Indications are that in some quarters this attitude is changing as a result of the segregation controversy. James M. Hinton spoke of the rise of a “new Negro” in the South, one whom “traditional” Southerners had difficulty in understanding. A few white spokesmen have admitted that the “new Negro” was difficult to comprehend. W. D. Workman, Jr., spoke of the “incapacity of the white man to fathom the thinking of the Negro.” In a similar vein the *Record* editorially observed that “no white person can know what the Negroes are thinking. For ordinarily a Negro tells a white man in the South what he thinks that white person wishes to hear. It may not be and frequently is not what the Negro actually thinks.”^[252]

Despite such evidence the state’s political leaders continue to assert that Negroes favor the *status quo*. They possess, in short, a superabundance of William James’s “will to believe.” In his inaugural address, Governor Timmerman asserted that “most Negro parents” did not want their children “to mix with large groups of white children.” Lieutenant Governor E. F. Hollings, characterizing segregation as a “natural thing,” maintained that “a majority of Negroes” were no more enthusiastic about mixed schools than

white persons. Senator Marion Gressette told a Bamberg audience that “thousands of Negroes” were fighting with the whites to preserve segregation.^[253]

Newspaper editorialists also generally agree that the majority of Negroes oppose integration. The *News and Courier* thought that “except for the NAACP and a few other zealots,” Negroes were not willing “to disrupt harmonious race relations for a goal that many of them view with indifference.” The *Independent* believed public school integration was opposed “not only by white people but by thinking Negro leaders and the patrons of Negro schools.” The *Morning News*, after James A. Rogers replaced Jack H. O’Dowd as editor in August, 1956, felt that the majority of Negroes did not regard “with sympathy the efforts of some of their contemporaries to force an unnatural mixing of the races which would create unbearable tensions and inequalities.”^[254]

White spokesmen only rarely can see any reason for the Negro’s “agitation” for the abolition of segregation. Under segregation, said the *Morning News*, the Negro had “opportunities for racial development unparalleled anywhere else in this country.” Segregation was “not an evil scheme” to keep the Negro in subjection but a high road along which he could achieve “maximum development in an atmosphere without tension or ill-will.” An excellent example of the “separate-but-equal” argument appears in the following editorial statement from the *Morning News*:

We believe that an integrated school system would deepen the Negro’s inferiority complex, that it would magnify his sense of being a second class citizen, that he would not develop normally under the tensions and inequalities of integration. We believe that his finest opportunities are with equal segregated facilities. We believe that he is entitled to equal facilities, that he, like his white brother, is entitled to all the benefits of being an American citizen, but for the sake of his race, its potential, its integrity, its development, he should demand segregation in the public schools as offering the only normal, natural atmosphere in which to work for maximum racial development. Furthermore, we believe that the majority of Negroes themselves who view the problem objectively are of the same opinion.^[255]

Segregation by such reasoning is less a benefit for the white than for the Negro.

Segregationists seem totally unable to understand the failure of Negro leaders to support the *status quo*. “The finest thing that could happen to the Negro race,” declared the *Morning News*, “would be the emergence of leadership that would crusade for voluntary segregation with the same vigor and persistence that the NAACP has crusaded for integration.”^[256] That such leadership has not been forthcoming allegedly has been due to the “reign of terror” which the NAACP has instigated against Negro moderates. Lowcountry Negroes, like lowcountry whites, noted the *News and Courier*, were “largely conservative,” an attitude expressed in their “reluctance to agitate for racial change.” These moderates were loath to speak out because they would be “penalized by the extremists.” Although such moderates had “strong support” among Negroes in the state, they were largely “silent.” Negroes who spoke out in favor of segregation, concluded the *News and Courier*, were the “truly heroic” element in the segregation controversy. “It would be well,” Senator Gressette said, “for us to encourage the members of the Negro race with these [pro-segregation] views,” so that they in turn could “discourage the few whites and colored, from within and without the state,” who were advocating integration. State Senator Marshall Williams would extend such encouragement to all Negroes. “We should talk with the colored people we employ, and can influence,” he said, “give them the benefit of what we know, explain how they are being duped by the NAACP and other outsiders and convince them that it would be better to live at peace among their white neighbors in a segregated society.” White advice, then, is for the Negro to return to the “sound counsel” of Booker T. Washington.^[257]

White leaders are certain that they and not the Negroes themselves best realize the latter’s true needs. “Unless the Negroes come to their senses and cast out the false leaders,” warned the *News and Courier*, they might find that they had been led “down a primrose path to misery and disaster.” “Respectable Southern white people” are the Negro’s best friends.^[258] Running concurrently with this refrain is the frequently stated belief that nowhere on earth have Negroes been so fortunate as in the South. “Segregation has been a success,” especially from the standpoint of the Negro, proclaimed Dr. E. E. Colvin, a white Baptist minister of

Orangeburg.^[259] The South had “none of the ‘isms’ and tensions of the Northern cities,” asserted Gilbert Wilkes of Mt. Pleasant in a letter to the *News and Courier*, echoing the century old philosophy of George Fitzhugh and John C. Calhoun. “As far as race relations go,” the Negro lived “a much freer and happier life” in the South. Another letter writer, Alford W. Atkins of Charleston, stated that in the North in contrast to the South, one did not see among Negroes “the smiling or solemn dark faces ... filled with content or at least joy in living and the happiness that comes from it.” Negroes in the North “looked strained and dissatisfied with life.” The *News and Courier* said that “apparently” integration was not bringing happiness to Northern Negroes. Instead “contentment, freedom from worry and a pleasant disposition” which have been the “prize possessions” of Southern Negroes disappeared with the end of segregation.^[260]

As will be shown subsequently in greater detail, the segregation controversy has played a major role in state politics in the period following the May 17, 1954, ruling by the Supreme Court. The constant political concern with the subject explains in part the inability of the two sides to get together and calmly work out a mutually agreeable *modus vivendi*. Negro leaders see politicians using the issue as a political football for personal benefit. Contributing to this situation has been the failure of the Negroes to register and vote in sufficiently large numbers to cause politicians to fear their influence at the polls. Absence of an effective political pressure action group has not helped the Negroes. The Progressive Democratic Party, the only real Negro political organization in the state, has been practically moribund from 1948 to 1958. Efforts of Negro political spokesmen have been hampered because a large majority of the state’s Negroes are ideologically Democrats in the national sense while Negro leaders receive no consideration from state Democratic leaders.^[261]

Negroes have attempted to make the pressure of their votes felt in the state and not without some success in presidential elections. On the state and local levels, however, they are completely frustrated. They can not, for example, find candidates who will campaign on even a “moderate” platform with regard to the race issue. Consequently the Negro has only the choice of the lesser of several evils. The Negro vote, moreover, is most ineffective in areas where it is potentially the strongest, that is in heavily Negro populated

low country counties. In such counties the number of Negro voters was less than in those where the Negro population was lower percentagewise.

Leading Negro political spokesmen have been John H. McCray, chairman of the Progressive Democratic Party, and the Reverend James M. Hinton, president of the state NAACP. McCray's party sent a delegation to the national Democratic convention in 1956 to challenge the regular slate headed by Governor Timmerman. One of its purposes was to secure official recognition by the convention in the event the regular delegation walked out over the civil rights issue.^[262] The presence of the Negro group probably had little if any influence on the decision of the regulars to remain in the convention.

The actual influence of the Negro vote in the state is difficult to assess. Until 1958 voter registration has omitted any mention of race and ballots by whites and Negroes have not been cast separately. Also various groups, white and Negro, have made claims and counterclaims for political purposes. McCray maintained his party delivered 85,000 to 95,000 votes to the Democratic Party nominee in 1952 and was thus responsible for the Democratic victory. A similar claim was made for 1956. Anti-Negro politicians, especially among the Independents of 1956, agreed with these claims. They hoped thereby to stigmatize the Democratic Party.^[263]

In late 1954 the Palmetto State Voters Association was formed to organize Negro voters for the purpose of electing to public office candidates sympathetic to the Negro. It has had little, if any, success, in part because many of the leaders of other groups, including the NAACP, oppose isolating Negro voters in a separate group. Such action, it is argued, is inconsistent with the professed aim of the Negro for full integration into the state's political activities. "Racial bloc voting," said A. J. Clement, Jr., was "out of order, out of style" and did not provide the advantage of a system that was interested in the whole as against a particular part.^[264]

The organization primarily responsible for the giant steps taken by Negroes toward the goal of full participation in the responsibilities and benefits of American citizenship is the National Association for the Advancement of Colored People. The South Carolina conference has chapters scattered throughout the state with headquarters in Columbia. The state organization, headed by the Reverend James M. Hinton, claimed

22,000 members in South Carolina in early 1956.^[265] Though membership rolls are not made public, it would appear that the major portion of NAACP spokesmen are from middle class and professional groups. A disproportionate number of the organization's leaders are ministers. The NAACP generally represents the best in the state's Negro leadership. The state conference, though virtually autonomous, works closely with the national headquarters in seeking to end all racial discriminations based on law. According to the official Civil Rights Handbook published by the national headquarters, the NAACP is "not a legal aid society" for supplying assistance to every needy colored person. Its intervention in legal suits is limited to three categories: (1) Legal defense of innocent colored persons who are victims of injustice solely because of race, (2) Assistance in legal cases involving colored persons where fundamental civil or constitutional rights are involved, and (3) Affirmative legal action to establish principles of law of benefit to colored persons generally.^[266]

Working within these boundaries and in conjunction with the national headquarters, the state conference has secured several notable victories, the most spectacular being the Clarendon County school case. The NAACP also assisted in the cases which resulted in pay equalization for white and Negro school teachers and in the destruction of the white primary in South Carolina. In other less publicized cases assistance has also been given. "The litigious NAACP," the *Record* complained, "has been behind every one of the suits to mix the races in the public schools, the colleges and universities, in transportation and in state parks and other recreation areas."^[267]

The degree to which South Carolina Negroes agree with the NAACP and its aims and objectives is evidenced by the widespread support given the drive to end segregation by church, professional and other groups. Many organizations have gone on record as supporting an end to segregation without giving a specific endorsement to the NAACP. But the general public directly associates the NAACP with leadership in this fight. Typical of the expressions of support given the NAACP was the resolution adopted by a portion of the student body and faculty of the Negro college at Orangeburg when the state legislators were planning an investigation of NAACP activities at the institution. The NAACP was regarded "as simply one organization" which gave "vitality" to the furtherance of the constitutional rights of the Negro. The students and teachers disavowed

“any knowledge of information that that organization represents any more than the maintenance of law and order in the determination of and in the protection of the constitutional rights involved.”^[268]

The NAACP is not without Negro opponents in the state. One of the most outspoken is P. B. Mdoana, a school principal at McBee. Mdoana, a native of South Africa, has spent most of his life in the United States. He charged that Negroes were “losing their Constitutional rights to a loud-speaking, scheming minority” which did not hesitate to employ coercion to achieve its “scheming and radical demands.” No exponent of logical consistency, Mdoana praised passage of a state law which forbade employment by state or local governments to members of the NAACP. Another NAACP opponent is George A. Elmore, whose lawsuits resulted in the ending of the white primary in the state. Significantly Elmore had broken with the NAACP after his failure to secure an office with the organization. He maintained that the NAACP was “interested in the little man only when the little man could be used to serve the organization’s interest.” On other occasions, said the frustrated Elmore, the association was concerned “only with college people and ‘big shots.’”^[269]

Following the Supreme Court decision in the Clarendon case, the NAACP was obliged to consider formulation of a program that would not compromise the Negro’s legal position and yet take cognizance of the intransigence of white Southerners. No concrete policy could be set forth until the Supreme Court handed down its implementing decree and the district court subsequently applied it to the Clarendon case. These actions were taken in May and July, 1955. Consequently not until late summer of that year did the NAACP begin sponsoring such “overt acts” as petitions for the ending of school segregation.

Shortly after the original Court ruling, Hinton announced that the NAACP would exhaust “local remedies” before again resorting to the courts.^[270] Petitions filed with school officials at the time of the original ruling would be held in abeyance until announcement of the Court’s implementation policy. Meantime the NAACP concentrated on a program, notable for its utter and complete failure, of inducing state political leaders voluntarily to accept both the letter and spirit of the decision. National NAACP Chairman Dr. Channing H. Tobias called on Governor Byrnes to

accept his “responsibility of influencing implementation” of the decision “in the light of the present international situation, rather than in the light of local prejudice or political expediency.” “The pioneer role of our Association in South Carolina,” he continued, had “focused world attention upon this state.”^[271] The plea of Dr. Tobias fell on stone deaf ears.

Following the district court ruling in July, 1955, enjoining Clarendon and Summerton school officials from refusing admission of any pupil to a school solely on the basis of race, the NAACP and Negro parents were faced with a difficult decision. A meeting of Negroes, attended by Thurgood Marshall, was held in Clarendon. Though not indicating his future course of action, Marshall was given a rousing vote of confidence by “virtually 100 percent” of those present. With the district court ruling on their side, the next move was up to the Negro leaders. Clarendon school authorities bluntly stated that under no conditions would the schools be kept open if a single Negro pupil were admitted to white classrooms. In light of this threat, Negro leaders and parents decided to postpone further action. Negro students would be the biggest losers should the schools be closed.^[272]

In the summer of 1955 the NAACP began sponsoring a number of petitions asking local school boards to “reorganize the public schools” on a “non-discriminatory basis.” The petitions were scattered throughout the state. Most were similarly worded, indicating that the movement had statewide direction. White South Carolinians reacted to these petitions by the organization of Citizens Councils.

The petition presented the Florence County Board of Education was typical. Signed by twenty-four Negro parents, it reminded school authorities of the Court rulings of May 17, 1954, and May 31, 1955, and asked that Florence school officials “take immediate steps to reorganize the public schools” on a “non-discriminatory basis.” Pupils could no longer be “denied admission to any school solely because of race and color,” asserted the petitioners. “The time for delay, evasion or procrastination” was past. School officials were “duty bound to take immediate concrete steps leading to early elimination of segregation in the public schools.” They were assured of the willingness of Negro parents “to serve in any way ... to aid ... in dealing with this question.”^[273]

These petitions invoked the displeasure of many moderate whites and the wrath of extremists. The *Morning News*, one of the few South Carolina papers then not unsympathetic to the Negro, thought the petitions “most unfortunate” following as they did “so closely on the heels of the Supreme Court’s integration decree.” Their presentation was a “shock” to South Carolina. The *News and Courier* asked:

Who are these people [who signed the petition]? How many of them have children in the public schools? Who persuaded them to sign? (Some people can be persuaded to sign a petition for almost anything.) Do they realize what they are signing? Do they understand that they may be helping to break down the public school system and even friendly race relations?

White citizens should study carefully the list of names in the newspapers. If they are acquainted with any of the Negro signers, they might ask them some of the questions propounded here and others of their own. These are legitimate questions. Anyone seeking to upset conditions as they are should be willing to explain his reasons....

White people have been educating Negroes for centuries. They now need to undertake a new educational program in race relations. The right of petition belongs to Negroes as to any citizens. So does the right to question the wisdom of the petitioners. If enough white people take it on themselves to talk with Negroes about these matters, the result may be better understanding on the part of both races.^[274]

As a consequence of economic pressures brought to bear against the petitioners by the Citizens Councils, many of the former asked that their names be withdrawn. They frequently maintained that their signatures had been obtained through misrepresentation. Usually they claimed they did not realize that the petitions were asking for integration. Some said they had understood the petitions as simply requesting interracial talks on the subject of integration. The number of those asking their names be withdrawn was large, in some cases more than half the number of signers. In one case, Ellore, fourteen of the original seventeen signers asked that their names be struck from the list.^[275]

The NAACP recognized this problem and also the fact that for the time being little could be done about it. "Names being struck from petitions" was understandable, said Roy Wilkins, executive secretary of the NAACP. He did not believe, however, that the signers failed to realize what their signatures meant. He blamed withdrawals on "pressures" operating on the Negro. The Sumter chapter of the NAACP gave a similar explanation for the withdrawal of several signers of a local petition. The signers "knew very well the content and intent of these petitions," said a statement issued by the chapter. No "coercion, persuasion or pressure" had been used to secure signatures.^[276]

As of the early spring of 1958 no school board has acted favorably on a petition for school integration and no Negro petitioner has resorted to the courts to secure affirmative action.

The NAACP has born the brunt of the opposition to the desegregation drive. Until white South Carolina recognized the extent of the "threat" represented by the NAACP, its opposition to the organization had not been particularly bitter. The hardening of attitudes was the result of the NAACP's increased pressure for racial integration and occurred relatively late. For instance, when the NAACP was holding its annual conference at Charleston in 1953, J. Walker Evans, executive vice-president of the Charleston Chamber of Commerce, was "happy to extend a cordial and sincere welcome" to the organization and hoped that its deliberations would be "fruitful," "pleasant," and "most profitable."^[277] But after the segregation decision all this changed. Even white "moderates" felt obliged to deprecate the NAACP. Editor O'Dowd of the *Morning News*, who had frequently defended the association against irresponsible charges such as communist-front action, stated that the organization was doing nothing more than "paying lipservice to the idea of Negro advancement."^[278]

The attack on the NAACP has taken many different forms but basically the association is pictured as a radical organization responsible for the "climate of recalcitrance" in the South by insisting on its "pound of flesh" and refusing to adopt a "moderate" attitude. The NAACP refused to "barter or compromise," complained the *Morning News*, and instead had adopted a program of "absolutism" which only made the problem more difficult. New assaults by the NAACP against "the traditional citadels of Southern

society,” the Florence paper asserted, were “lacking in good sense and good taste.” According to the *Independent*, “responsible Negroes” knew that NAACP’s “radical agitators” had done “far more harm than good” in the school crisis. The *Record* argued that the NAACP was acting “neither wisely nor tolerantly, preferring neither understanding nor cooperation.”^[279] The same papers choose to overlook the fact that the dominant white community has offered no basis for compromise or conciliation within terms of the Supreme Court decision.

As a result of the NAACP’s “radical” stand, i.e., its refusal to accept segregation indefinitely, an attack has been made on all fronts to discredit the organization in the eyes of both whites and Negroes. The goal is to create an atmosphere in which any program, policy or pronouncement by the association will be condemned automatically, without regard to its merit. “If there’s one thing against our way of life in the South,” announced Lieutenant Governor Hollings, “it’s the NAACP. And if the U. S. Supreme Court can declare certain organizations as subversive, I believe South Carolina can declare the NAACP both subversive and illegal.” In the Lieutenant Governor’s home town the *News and Courier* proclaimed that the NAACP was “not genuinely devoted to the advancement of the colored people,” but rather ignored the real need of the Negro in its “search for headlines and racial martyrs.” The *News and Courier* believed that the association was not interested in Negro “rights” but “that whites be forced to associate with Negroes.”^[280] The paper regretted that so many Negroes would swallow the “unwholesome and impractical poisons” of the NAACP. The *Record* declared the Association was interested in cases of violence against Southern Negroes solely for their fund raising value. “The NAACP would have been disappointed” if the slayers of Emmett Till had been brought to justice because the case provided the occasion for the raising of vast funds. The Reverend E. R. Mason, a retired officer and minister of the white South Carolina Methodist Church, termed the NAACP a “militant” and “vicious” minority group interested only in the “prominence of the front page and money.”^[281]

A favorite tactic in this campaign of vilification is to equate the NAACP’s desegregation aims with the communist conspiracy against the United States. Attorney General T. C. Callison told the Columbia Rotary Club that the NAACP was led by “meddlers” who were “playing directly

into the hands of Communism.”^[282] The leadership of the Citizens Councils has given especially strong emphasis to this phase of the attack. Henry E. Davis, a Florence attorney, speaking at the organizational meeting of the Lake City Citizens Council, announced that “the NAACP is financed by Russia.” On another occasion he indulged in anti-Semitism, a tendency which has become increasingly open in the Citizens Council movement. Davis referred to the NAACP as “a communist-front organ,” which was “in reality a Jewish organization with financial backing from the Communists” purporting “to aid the advancement of the Negro while stirring up disorder.” G. L. Ivey, a leader of several white supremacy groups in Florence, including the Citizens Council, described the NAACP as “the radical Negro organization dominated by communist-front leaders.”^[283] Stanley F. Morse, one of Ivey’s many Charleston counterparts, noted that the objectives of the NAACP coincided “strangely with the aims of the American communist party.” He declared that the policies of the NAACP were “dictated by white radicals rather than Negro patriots.” In 1954 the bellwether *News and Courier* did not believe the “aggressive race movement among Negroes” was communist-dominated. But a year later, the same paper intimated to its readers: “We believe the NAACP represents only a small but belligerent group of people. (In Russia only a small number of Russians belong to the Communist Party yet they rule the rest.) We aren’t saying the NAACP is Communistic. We are only pointing out how much power can be wielded by a noisy and energetic minority.”^[284]

The charges of communism are accepted by the state NAACP as merely one of many “brainwashing” devices used by the whites. President Hinton answered with the following statement: “The NAACP is an American and legitimate organization, and not once has it been even thought of by right thinking people as a subversive organization. It has never done more than go into the courts, and fight the issues out before white judges using white men’s laws.”^[285]

The NAACP, of course, has defended itself against such attacks. It claims, with much truth, that instead of being a communist-front organization it is in reality responsible for the fact that the communists have been unable to make any headway among American Negroes. The *Record*, however, has taken issue. The real reason why communists were so unsuccessful in winning over American Negroes, said a *Record* editorial,

was the fact that most of them lived in the South “and were, like their friends among the Southern whites, conservatives.” They were not members of the Negro “intelligentsia” where, according to the capital city paper, communism had made its only headway among Negroes, and were by every sign “generally content [and] a happy race” and therefore “anything but a fertile ground for communist wiles.”^[286]

A new device against the NAACP became popular in 1957, one which can be used against both the NAACP and labor unions. This is the so-called “permit system” under which counties and municipalities might require “any organization, union or society of any sort” that charged membership fees to obtain permits to sign up new members. Applications can be denied in the interest of “peace and good order.” Florence and Abbeville counties have led in requiring the permits. Several other localities have followed suit.^[287]

The attacks on the NAACP contain many other phases. Among these are the following:

(1) The NAACP is pictured as the Negro counterpart of the white Ku Klux Klan. Such an association would discredit the NAACP, for the attempts to revive the Klan are decried by all except the most radical fringe of white supremacists. White conservatives are determined not to allow the opposition to the Negro to be taken up by radicals who would not only endanger their own dominant position but also completely discredit the white South in the eyes of the nation. A good example of associating the Klan and the NAACP was a statement issued by Federal District Judge Ashton H. Williams when the Edisto Beach case was pending before his court. The two organizations, he said, were “the real enemies to any progress” in the segregation controversy. No progress could be made by South Carolina until both were “wholly eliminated” from the picture. In a severe condemnation of the NAACP, interesting because he might be called upon in the future to hear civil rights cases sponsored by the NAACP, the Judge said:

It must be kept in mind that the rights given to Negroes by the Supreme Court are personal, and no one has a right to persuade them by unlawful threats or otherwise to exercise the rights given them by the Supreme Court. If the Negroes wish to accept

segregated schools, or segregated beaches, parks and so forth, it is legally wrong for anyone, by misrepresentation, undue influence, or threats, to force them to seek personal rights given under the Supreme Court decision.^[288]

(2) Personal and abusive attacks are made on NAACP leaders. In addition to questioning the sincerity and honesty of purpose of persons prominent in the association, a vicious racism has crept into many of the most extreme attacks. G. L. Ivey referred to Thurgood Marshall as the “mulatto chief counsel for the NAACP.” The writer of a letter to the editor of the *Morning News* advised the South to “get rid of the NAACP and the ‘halfbreeds.’” “History tells us,” he wrote, “that ‘halfbreeds’ have always been trouble makers. The Bible says that a bastard cannot enter the kingdom of heaven, even unto the tenth generation.”^[289]

(3) Blame for originating the state’s race problem is placed solely on the NAACP. W. D. Workman, Jr., stated that responsibility for beginning a “cold war” between the races in the state rested “with the titular Negro leadership, national and state,” by which he meant the NAACP. The *Record* said the NAACP’s “appeal to the force of the courts to compel the elimination of segregation” created a climate in which “racial cooperation” could not exist.^[290]

(4) The NAACP is presented as an enemy of the Negro, existing only on its ability to coerce. The purpose here is to alienate the Negro from the NAACP. Eldridge Thompson, a *News and Courier* writer, insisted that the Association’s progress was based on “the weapon of fear.” The Negro who did not subscribe to the NAACP was “afraid to be identified,” he claimed. The grip of the Association over the Negro community was so great that opposition could not be organized successfully against it. The reporter concluded that the rank and file Negro had more to fear from the NAACP than the white man. S. Emory Rogers told a Lake City Citizens Council that “our fight is not with the Negroes, they’re our hope, but we’ve got to get them under the correct leadership.... The NAACP is our chief enemy.” State Representative Charles G. Garrett of Greenville County, in supporting the bill to bar NAACP members from state employment, declared that “the NAACP should no longer be allowed to prey upon the Negro people of South Carolina” who are paid by the taxpayers.^[291]

(5) The NAACP is pictured as an organization alien to Southern traditions. According to the *Record*, it was “not a local or indigenous organization.” It was “foreign to every one of the Southern states” and therefore owed no loyalty to them. Governor Timmerman stated that the NAACP was “largely sponsored and financed by white people who are professional Southern haters and alien to the South.” Therefore it was the “duty of every responsible Negro to repudiate the false leadership of the NAACP.”^[292]

The NAACP has been the victim, not only of a propaganda campaign, but also of a program of action designed to harass and intimidate its leaders to the point of discouragement and thus stop the pressure for the end of segregation. The most effective portions of this effort have been those undertaken by the state government (discussed in Chapter VII) and the economic boycott popularized by the Citizens Councils. The remainder of the “ranting and panting and wringing and twisting of the South Carolina white professional rabble rousers”^[293] has a nuisance value only for the whites and merely postpones the inevitable question facing the state: education or segregation?

In view of the many pronouncements by Southern whites to the effect that the NAACP is a “radical” organization, a brief examination of the association along these lines is necessary. In the last analysis, the labeling of any organization as “radical” depends upon the light in which it is considered. If the premise is accepted that segregation of the races in the public schools is a positive good and that the abolition of this policy would result in disaster, then the NAACP is “radical.”

However, there are many indications that the organization was and is not radical when viewed with detachment. Neither the leadership nor the membership of the association, noted Myrdal, were “recruited from the ranks of radicals.” Both its program and tactics were “well within the bounds of respectability” and its policy was based on the “acceptance of the fundamentals of the ‘American way’ of life.” An examination of the specific objectives of the NAACP upon which this observation was made reveals such “radical” aims as anti-lynching legislation, enfranchisement of the Southern Negro, abolition of all legal injustices based on race or color, equitable distribution of funds for public education, abolition of inequalities in employment opportunities based on race or color and the general

abolition of “segregation, discrimination, insult and humiliation” in other areas based on color or race. In only one important respect, the abolition of public school segregation, had the NAACP altered its objectives between 1940, when the above goals were outlined, and 1954, when the Supreme Court ordered an end to school segregation. One of the main sources of strength of the NAACP in pursuit of its goals has been a willingness to work within the framework of constitutional legality. Still another has been a policy of compromise or opportunism—adapting its tactics to meet local situations. National NAACP headquarters directed local offices to “secure at least equal rights and accommodations for colored citizens” in cases where race discriminations were “too strongly entrenched to be attacked” directly.^[294] In the post-World War II period there has been a hardening of this attitude and greater emphasis has been placed on securing integrated facilities.

The policy of the NAACP has been essentially one of moderation in areas where progress is being made toward its goals. The more extreme demands have been necessitated by absolute refusal of white leaders to allow any “advancement” in such areas as school integration. In opposing various proposals for “gradualism,” which appear to be little more than an indefinite maintenance of the *status quo*, Roy Wilkins has driven to the heart of the matter. He pointed out that the Negro was the only American who was being advised “to take his citizenship on the installment plan.” Two weeks later, however, he stated that “a plea for understanding [by white Southerners] based on consideration of timing is understandable. A plea for understanding based on defiance of constitutional government is a plea for anarchy and secession.” A. J. Clement, Jr., a prominent Charleston NAACP leader, was in substantial agreement. “No one concerned with this problem,” said Clement, “likes to be identified as being a ‘gradualist’ but, we who are ‘realists,’ have got to understand that long established customs and habits, no matter how erroneous or abhorrent, will not suddenly be cast aside. Some individuals are able to adjust themselves to change much quicker than others. My chief concern is that there be no ‘backward steps,’ no ‘marking time.’”^[295]

That the NAACP’s policy is essentially moderate has been demonstrated by its willingness to compromise its position in the face of threats to close public schools. The *Record* reported that Marshall and other attorneys for

the appellants in the Clarendon case agreed orally to forego a showdown in the face of a “blunt” warning by school authorities that segregation was more important to them than education and that schools would be closed if one Negro applied for admission to a white school. Marshall, of course, denied this report but it is significant that, although given virtually a free hand in the case, he chose not to force the issue.^[296] State authorities, however, have no guarantee as to how long Negro leaders will be willing to compromise their legal position in face of the irreconcilable attitude taken by whites.

Throughout the entire controversy on the school issue neither Governor Timmerman nor any other responsible political official in South Carolina has ever offered to sit down at a conference table with Negro leaders and to discuss the question. They have blandly taken the position that there is nothing to discuss. The lines of communication between the white and Negro populations of the state have completely broken down. But in point of truth, as North Carolina pundit Harry Golden has sagely observed, what these same politicians fear is that the Negro leadership might be so reasonable in its requests that such could hardly be refused without making the official policy of South Carolina seem even more ridiculous than it already is. Governor Timmerman and his advisers know only too well that the Negro leadership would accede to the most gradual of gradualist programs provided it was proposed in good faith. But to yield an inch on “principle,” a word historically dear to South Carolinians, has literally become an impossibility even for the best intentioned of the state’s political leaders. They are the prisoners of the morally bankrupt policy of “massive resistance.”

CHAPTER VII

THE NEW NULLIFICATION

In cases of deliberate, dangerous and palpable infractions of the Constitution, affecting the sovereignty of a state and the liberties of the people, it is not only the right but the duty of such state to interpose its authority for their protection.—*Hartford Convention (1814)*

In the final analysis, the sound and fury of professional hate groups, white supremacy organizations, “legal” resistance movements, and “voluntary” segregation advocates would signify nothing without active leadership and cooperation from the state government. Consequently, organizations and individuals supporting segregation have made doubly sure that there is no wavering on the part of public officials. Toward this end, for example, the Lamar Citizens Council resolved that “the powers of legislative decision and administrative responsibility must remain in the exclusive control” of men who supported “constitutional government, states rights ... individual liberty,” and “the separation of races in the schools and colleges and social institutions of this state.”^[297] Segregationists have had no difficulty whatsoever in achieving this objective if for no other than the simple reason that political leaders are of one and the same opinion. Amongst the politicians there has not been a single instance of deviation from accepted attitudes of complete racial segregation. With such unanimity of opinion, extremists inevitably would be able to set the pace in the state legislature. That is precisely what has happened.

Immediately following the Court decision, much advice, largely unsolicited, was given to state policy makers. The *News and Courier* called “for moderation, for calm and wise decisions” in meeting the crisis. It

offered no specific policies for immediate consideration by state officials but it did suggest for the time being a delaying action, “a masterly retreat, in the Robert Edward Lee tradition of rear-guard actions, including flank attacks.” Lest there be any doubt, the Charleston paper reaffirmed its opposition to “de-segregation, or integration, or amalgamation or any other tricky method of mixing the races in public schools.”^[298] The *Florence Morning News*, too, called for “calm, reasonable and foresighted” leadership by “statesmen” not “politicians.” Statesmen, it declared, “are not people who can shout ‘nigger’ and they are not people who can prove—with words—that the Negro is an inferior animal.” Solution of the problem would result not from speeches that “inflame groups and excite the passions of extremists,” but rather from “good sense, calm action and kind reason.”^[299]

W. D. Workman, Jr., the *News and Courier* correspondent in Columbia, thought South Carolina could take any one of five actions: acceptance of the Court decision; “nullification” of the decision; abolition of public schools; “evasive action,” such as the establishment of a private school system to circumvent the Court decision; or “passive resistance” which he deftly defined as “non-compliance rather than open defiance.”^[300]

The legislature was not in session at the time of the original ruling. Therefore immediate policy decisions had to be made by Governor James F. Byrnes. The latter decided that since the Supreme Court had failed to implement its decree, it was unnecessary to call a special session of the legislature. On May 20, 1954, however, he ordered a halt to all school construction under the state’s equalization program. In July the Gressette Committee recommended resumption of construction and the ban was lifted on August 31.^[301]

The new school building program represents the state’s one real constructive reaction to Negro integration efforts. The purpose may have been less an altruistic desire to improve Negro education than to furnish the state with another arguing point in the preservation of segregation. Whatever the motive, an immediate result has been to provide Negroes with greatly improved, though still segregated, educational facilities.

Early in 1956 Dr. E. Ryan Crow, the able director of the “equalization” program, announced that despite “a fatal indifference to equalizing facilities

for Negroes” in some areas, the program had been approximately 85 percent completed. The program’s magnitude demonstrates that South Carolina whites, when pushed far enough, will make efforts to equalize the Negro schools—at least from a physical standpoint. Expenditures in Clarendon County are indicative: between 1951 and 1956 the state spent \$770,576 on white school construction as against \$2,166,895 on Negro school construction. In the Summerton school district which was directly involved in the case, \$102,596 was spent on white school construction as compared to \$892,114 for Negro school construction.^[302]

In the gubernatorial election of 1954, George Bell Timmerman, Jr., who had been lieutenant governor for eight years, was chosen to succeed Governor Byrnes. Taking office in January, 1955, Governor Timmerman, son of the Federal District Judge who had ruled against the Negro plaintiffs in the Clarendon County case, became the key figure in the state’s official opposition to any and all desegregation. For this reason his public statements are of special significance. The new Governor, a forty-five year old lawyer from Lexington County, is a humorless and fanatical segregationist. On one occasion he told a national television audience that segregation in the state would not end “in a thousand years.”^[303] Considering the problem in its more immediate implications, he said on another occasion: “If you let one [Negro] child come in ... you’ve opened the door. There can’t be any compromise—you can’t compromise right with wrong.” In still another instance he declared: “With the knowledge that right, justice and truth are our allies, we shall not fail. There shall be no compulsory racial mixing in our state.”^[304]

Timmerman insisted that segregation did not involve discrimination. Equality went “hand in hand” with separation. In developing this theme the Governor added:

The two terms [discrimination and segregation] are not interchangeable. I am opposed to discrimination on any grounds, racial or otherwise, but it does not necessarily follow that racial discrimination results from racial separation. If anything separation makes for less discrimination, for it does not provide a basis for the inevitable discrimination which will follow if white and Negro children are mingled in the same schools and the same classrooms.

... The “separate-but-equal” policy provides a fair and practicable basis for race relations in South Carolina. If the administration of the law in years past has been faulty, the need is for improved administration such as we are now giving, not abandonment of the principle itself.^[305]

Timmerman asserted that the positive “benefits” of segregation were realized by the state’s Negro population. He claimed that “many Negro parents living in Washington and other cities to the North of us are leaving their children with relatives in our State so that their children can enjoy the benefit of a Southern climate in segregated public schools.”^[306] The Governor did not say whether he was referring to climate in its physical aspects or in the realm of opinion and mores.

In his inaugural address, Timmerman criticized even the suggestion of a moderate consideration of the segregation issue. “The cowardly approach of gradualism,” he described as “the essence of discrimination,” “a creeping evil” that had no place in “the government of a free people.”^[307] Constantly reiterating that “white parents” and “most Negro parents” opposed integration, he applauded “the calm attitude” in which white South Carolinians had approached the issue. Since the latter were determined to resist integration, “the sensible choice of the Negro” was to accept and support separate but equal schools. “Our common task is one of patience, understanding and unyielding determination,” said the Governor. “In this way we can minimize some of the tragedy which the Supreme Court would impose upon us all. There will be no compulsory racial mixing in our state.”^[308]

Also indicative was Timmerman’s criticism of President Eisenhower’s appeal that every American be “judged and measured by what he is, rather than by his color, race or religion.” He complained that “never before has a national administration proclaimed as unimportant a person’s race and religion.” How better, he asked, could a person be “judged and measured” as to what he is? “A man’s most priceless possession is his heritage. A man’s most priceless achievement is his religious faith.”^[309]

Whatever one may think of it, Timmerman’s attitude is in no sense hypocritical; it is in complete consonance with his political credo. He is a conservative in the peculiarly Southern sense of the word, a racist, a states

righter, an advocate of decentralized government. In referring to federal aid to education, he declared: "As far as I am concerned, if I must be taxed and controlled, I would rather be taxed by laws enacted sensibly by local representatives of my own state in whose election I have some choice, than to be taxed ill-advisedly by representatives of the other states, in whose selection I have no choice."^[310] The full measure of his political conservatism is reflected in a speech delivered before the Southern regional conference of the Association of State Governments at Charleston in the spring of 1956. George Washington, he said, gave "to posterity prophetic advice of strikingly current significance" when he cautioned against a "spirit of innovation" upon the principles embodied in the Constitution. Such a "spirit," warned the Governor, was "prevalent and growing."^[311]

The state legislature and the special school segregation committee, headed by Senator L. Marion Gressette of Calhoun County, also have played leading roles in the official opposition to integration. The Gressette Committee, consisting of 15 members appointed by the Governor, Lieutenant Governor E. F. Hollings and Speaker of the State House of Representatives Solomon Blatt, one of that rare variety of Jewish segregationists, had been formed in 1951 as a result of the Clarendon County school case. Shortly after the 1954 ruling, the committee embarked in earnest on its task of determining the best course to be followed in circumventing the integration drive. Beginning in July the committee held a series of closed hearings which sounded out the attitudes of leading individuals and groups. It heard from such diverse individuals as the presidents of all state supported colleges, including Dr. Benner C. Turner of the state Negro college; former Governor Byrnes; E. H. Agnew, president of the state Farm Bureau Federation; G. L. Ivey, president of the Florence National Association for the Advancement of White People; representatives from the Charleston NAACP and the Negro teachers association.

The initial efforts of the committee were generally applauded. The *News and Courier* praised its "statesmanlike and cautious approach."^[312] The *Morning News* was somewhat more reserved. In addition to criticizing the closed hearings, Editor O'Dowd suggested that the scope of the committee's responsibility be widened to include a study of the price South Carolina was willing to pay for segregated schools. The same paper made the ingenious proposal that a "devil's advocate," an "open and declared

advocate of integration,” be placed on the committee. Such a person, it was pointed out, could expose the flaws in the various plans for continuing segregation.^[313]

In justifying the closed hearings, the committee’s first interim report explained that this was done “to avoid hasty action and public misunderstanding, which could cause inflammation and friction.”^[314] In at least one instance what transpired behind committee doors was revealed to the press. In a letter to the *News and Courier*, A. J. Clement, Jr., the Charleston NAACP president, stated that when appearing before the committee, he had urged “that South Carolina accept the Supreme Court decision” and begin steps toward desegregation “forthwith.” Clement acknowledged the magnitude of the problem involved. “Molds and patterns of living, customs and habits in daily activities” could not be altered overnight. The state of New Jersey provided an example of gradual desegregation such as Clement envisaged for South Carolina. In New Jersey the Negro had “all of the educational, civic, political opportunities” he was fighting for in South Carolina. Yet “the mark, the impression, the influence, the stunting effects of former discriminatory practices and racial segregations” were still present. He appealed to the Gressette Committee to take the initial step toward desegregation in South Carolina.^[315]

The attitude of the Gressette Committee has been revealed in its reports to the state legislature and in speeches by its chairman. The latter, like the Governor, holds that a majority of Negroes desire segregation. On one occasion he asserted that 98 percent of the state’s Negroes were uninterested in forcibly integrating the races. (Significantly, he neglected to say whether these same Negroes would be opposed to integration if the question of force was not involved.) To buttress his opinion, Gressette cited the NAACP’s “failure to obtain more petitions” for integration in the public schools, despite its alleged use of “fraud, deceit and misrepresentation.” Similar ideas have been expressed in committee reports. In January, 1955, the committee found no reason to alter its view “that the consensus of public opinion in the State favors better educational opportunity for children—in separate schools.” Such a view is in all probability substantially true but the matter is academic since the Supreme Court has ruled otherwise. The following December, the committee revealed there were “many indications, and few if any to the contrary, that sentiment in

favor of separate schools and against integrated schools” had crystallized during 1956. It further expressed agreement “with those who maintain that the decision of the United States Supreme Court was improper,” representing a usurpation of executive and legislative functions by the Supreme Court. And it proposed “to employ every legal means” to maintain a segregated school system which it “in good conscience” believed to be “in the best interests” of the children of both races. With some real basis in fact the Committee held that events were proving “that the Court did not intend to force integration on an unwilling people.”^[316]

The public school system is, of course, the key factor in the segregation-integration controversy. The one great trump card, though a miserable joker for the children of the state, is the threat to close down the public school system if integration is ordered. It has been spelled out to leave no doubts. If a Negro pupil is admitted to a white school by court order, both the white and Negro schools which are involved are to be closed. This threat takes in not only primary and secondary public schools but also state supported institutions of higher education, including graduate and professional schools.

Reactions have varied to the possibility of closing the public schools. Lieutenant Governor E. F. Hollings, opposing such action, asserted that “it’s foolish to even consider for a moment that abolishing public education is the solution.” On another occasion he insisted: “We can never abandon our public school system.”^[317] Yet he reassured the people that schools were “intended for education and not integration.”^[318] And since segregation was a “natural thing,” it followed that “a majority of Negroes” was no more enthusiastic about integration than whites. The Lieutenant Governor took the realistic position that any private school plan “might be tossed out by the court as a ‘trick’ designed to circumvent the decree.”^[319] He advocated a system that would be premised on local control. Pupils would be assigned to schools by the local superintendent or trustees on a basis other than race —“sex, aptitude, proximity of school to home and available classroom space.” Such a plan, he thought, would meet the requirements of the court.^[320]

W. D. Workman, Jr., in evaluating public opinion on the abolition of the public schools, considered it “extremely doubtful” that a majority of South

Carolínians was prepared to do away with the system altogether. None the less he reported that “in some parts of the state,” white parents considered segregation more important than education. The *News and Courier* editorially agreed. “Compulsory mingling of the races in public schools,” it announced, would be “a worse thing than closing them.” The Charleston paper attacked the public school system *per se*:

Many thoughtful citizens of South Carolina long have been dissatisfied with the educational performance of our public schools. We say this not in criticism of public school teachers or officials, because it has been the system—rather than the participants in the system—which is at fault.

The public schools have suffered because of political pressures, complacency due to lack of competition and a trend to gear lessons to the dullest of the pupils. Social promotions, progressive education and over-emphasis on athletics and such nonsense as drum majorettes and beauty contests have lowered the educational standards of public schools....

In the future, South Carolínians who do not wish to send their children to public schools should be encouraged to send them to private schools. This encouragement should be in the form of an allotment of money by the state toward the private school tuition of any child who does not attend public schools....

We believe that private schools which offered a poor education soon would go out of business, and that private schools which offered a good education would thrive and multiply. There would be competition among private schools to do a good educational job. At present there is no competition among public schools....^[321]

Others expressed like sentiments. Henry E. Davis, a Florence attorney, told the local Citizens Council: “Close your schools if it comes to that.... Closing public schools is not such a calamity and private schools get the best results anyway.” Another Citizens Council speaker, state representative O. L. Warr of Lamar, advised a Beaufort rally that rather than accept integration, public schools should be abandoned “reluctantly but inflexibly without flinch or falter.”^[322] The letter of T. H. McFaddin of Gable to the *News and Courier* is revealing:

Any court that does not consider what is best for the white child, in my opinion is a kangaroo court. No one can read into the Constitution, that any child should be found guilty for being born a white child and be sentenced to over three quarters of every year during its school term to be mixed with children of another race. For there is no commandment that reads, Thou shalt not keep thy race pure....

Books are cheap. Education can be gotten by mail to a great extent ... the only way to beat this school mixture of the races is to advertise all school property for sale.^[323]

A few outspoken champions of the public school system have come forward to be heard. *Morning News* Editor O'Dowd declared that "our educational system is of more importance than mores, political opposition, state-wide resentment or mass disappointment."^[324] Likewise Mrs. C. B. Busbee, head of the education department of the South Carolina Federation of Women's Clubs, said that "the abandonment of a system of public schools would set back the cause of education for all our people 100 years."^[325]

In view of the role of the schoolhouse in the segregation controversy, the attitude of education groups is significant. The Council of Delegates of the South Carolina Education Association, an organization of white classroom teachers and administrators, in October, 1954, approved a resolution which held segregated schools "the best form of organization for meeting the needs of children of both races," and urged "an adequate system of free public schools in South Carolina be maintained."^[326] Other education groups have been more hesitant to state their positions. Not until August, 1955, more than a year after the court decision, did the Association of School Administrators and the School Boards Association, an organization of school trustees, take their stand. The School Administrators pledged themselves "to the preservation, continuation, and improvement of the public school system of South Carolina." The school trustees adopted a resolution which observed that "as long as the State of South Carolina, through its legislative authority, continues its policy of withholding funds for the operation of integrated schools, our schools must continue to be segregated if they are to remain open." The trustees pledged themselves to

keep the public schools open “so that responsibility for closing them must be assumed by other authorities.”^[327] A sad commentary is that no one administratively connected with any state supported institution of higher learning publicly has opposed the state’s threat to close those institutions if a Negro were admitted. To summarize, the threatened abolition of the public school system would indicate lack of appreciation by white South Carolinians of the fundamental role of a system of free education in a democratic society.

The question of federal aid to education naturally has intruded itself into the school integration controversy. So intense is the feeling on this subject that it has become another of the articles of faith upon which orthodoxy is demanded of all public spokesmen. Without doubt a large majority of white South Carolinians agreed with the *News and Courier* when it referred to federal aid to education as “bribery” to be used by integrationists. Governor Timmerman characterized federal aid as “sugar-coated federal taxation.” He told the 1956 General Assembly that propaganda for federal aid to education fostered upon the people “a big political hoax, the claim of an acute shortage of school buildings.” That contention, said the Governor, was “simply untrue.”^[328] Some South Carolina school administrators might have been disposed to disagree were it discreet to do so.

Public officials and other leaders in the state have spoken out against federal aid, especially if it suggests any inkling of federal control. That South Carolina’s schools are already receiving hundreds of thousands of dollars of federal money for educational purposes has been conveniently overlooked. Most spokesmen oppose federal aid *per se*. Occasionally, however, proposals have been made which are designed to give the states federal money with no strings attached. For example, University of South Carolina President Donald Russell who resigned in October, 1957, to run for governor, suggested that the federal government return to the states on a per capita basis ten percent of all federal income taxes collected. This plan, declared Russell, would involve no federal control and thus would test the sincerity of “those who would pervert the matter of federal aid into a coercive weapon to promote some alien or sociological goal.”^[329]

The state legislature expressed itself on the subject in March, 1957. The House of Representatives adopted a resolution, introduced by Rep. P.

Eugene Brabham of Bamberg, which noted that South Carolinians “are now, always have been and shall always be unequivocally, incontrovertibly and unalterably opposed to any federal invasion, encroachment or infringement of the fundamental right, obligation and duty of the people and their local authority to provide, supervise and control the education of the children of this state or the educational processes concomitant thereon.”^[330]

A central theme of the opponents of federal aid to education is the contention that South Carolina does not need any more money for operation of its schools. They point with pride to the large scale school building program which the state has undertaken in response to the demands by Negroes for racial integration. The South Carolina Conference of Education, a group appointed by Governor Byrnes to study education in the state, reported in late 1955 that in regard to federal aid to education “no funds are sought or desired, except in those areas like North Charleston or Aiken where federal installations have caused increases in school population out of all proportion to normal growth and development.”^[331]

Opponents of federal aid usually overlook all factors in the school program except classroom construction. They disregard the pitifully low salaries of classroom teachers and the resultant insufficient training of many teachers. They also tend to ignore the results of tests conducted by the American Council of Education. South Carolina students, according to results announced early in 1956, ranked nationally as follows:

- 34th in English correctness and effectiveness of expression
- 36th in general mathematical ability
- 42nd in interpretation of literary material
- 46th in interpretation of reading material on the natural sciences
- 47th in interpretation of reading material in social studies

According to a 1958 report of the National Education Association, South Carolina ranks at the very bottom of the nation in its record of public school education. Among the states it is 48th in the number of median school years completed by persons 25 years of age and older. It is 47th in the per cent of adult (25 years and older) population with less than five years of schooling (27.4 per cent of its adults have less than five years of formal education)

and it is 48th in the percentage of its adult population who have completed four years of high school. It occupies 47th position in the percentage of selective service registrants disqualified by mental tests. In the percentage of its eighth grade enrollment going on to finish high school the Palmetto State is 46th. With regard to teacher pay, South Carolina ranks 45th; the average salary of its classroom teachers is \$3,250.

Statistics such as these hardly give credence to Rep. Ashmore's statement that "what South Carolina has done with its schools is evidence in itself any state in the union can take care of its own school needs."^[332]

The press of the state generally denounces federal aid for education. The *News and Courier* went so far as to condemn federally subsidized school lunches. If school children should get such lunches, it argued, they should also receive suppers and breakfasts. "The difference between government-sponsored school lunches and the welfare state is only a matter of degree." Similarly, the *Record* thought that federal aid could destroy "freedom and inventiveness in the schools" while the *Morning News* suggested it would in reality make less funds available for education because of the bureaucratic costs of collecting the taxes and sending the money back to the states.^[333]

On occasion, however, a newspaper editorialist has questioned the arguments used against federal aid. The *Independent*, rarely missing a chance to lash out against former Governor Byrnes, wondered how the Palmetto State's elder statesman could oppose federal taxation of South Carolinians for building schools in other states and not oppose taxation of citizens of other states to build defense and military installations in South Carolina. Driving this point home, the Anderson newspaper then stated that in the past both South Carolina and Byrnes had received far more money through federal channels than they had paid out in federal taxes. Likewise the *Morning News* objected to arguments that federal aid was socialism. Socialism, said the Florence newspaper, depended on whether South Carolina got anything from it. "Our politicians say they will not accept federal aid to education because it is socialistic.... The truth is that they do not need this particular aid, so they can refuse it with indignation."^[334]

A concrete instance of the federal aid to education question came to light in mid-August of 1957 when Clemson College, the state's agricultural and engineering school for whites, rejected a grant of \$350,000 from the Atomic

Energy Commission. According to the provisions of the grant, of which the college's board of trustees had accepted an initial payment of \$99,050, "the grantee agrees that no person shall be barred from participation in the educational and training program involved or be the subject of other unfavorable discrimination on the basis of race, color, creed, or religion." Inasmuch as racial discrimination undeniably existed at Clemson, the trustees belatedly decided to withdraw from the agreement with the AEC and to return to it the \$99,050. Clemson president R. E. Poole stressed, however, that the college's nuclear testing and experimental program would continue.

Governor Timmerman, choosing to ignore the obvious racial discrimination at Clemson, defended the college's action on the far less realistic grounds that the inclusion of the word "creed" in the conditions of the grant would prohibit Clemson authorities from denying participation in the atomic energy program to a Communist. This lawyer's trick in semantics was applauded by the *Columbia State* which ironically at this very time was leading a last-ditch fight to prevent the closing of nearby Fort Jackson, a federal military installation on which not a small part of Columbia's economic well being directly depends. "This affair," pontificated the *State*, "is an affirmation of the principle that federal aid means federal control." The *News and Courier* also praised Clemson's action, though recognizing that its atomic energy program would have to be reduced in scope to the detriment of the state. "So far as we know," said the Charleston paper, "Clemson is the first Southern college to make such a forthright choice between freedom and government handouts. Other colleges sooner or later will have to make the same decision. We hope they will be guided by the example of the Clemson trustees. We do not know how many federal dollars the choice of freedom will cost Southern colleges. Freedom is an expensive commodity. It is worth every cent."^[335]

Though the state legislature did not reach the zenith of its anti-integration zeal until 1956, its 1955 session provided an informative prelude. Legislators in 1955 were more hesitant than a year later, perhaps because the Supreme Court had not yet implemented the original decision. Nevertheless a number of important measures were adopted. The Gressette committee recommended and the legislature adopted proposals that repealed the state's compulsory attendance law, gave local school trustees

authority to sell or lease school property, and prohibited automatic renewal of teacher contracts.^[336]

school to which he was assigned before the issuance of such court order.”[[]

officers the power to transfer pupils from one school to another to avoid “civil commotion;

constitutional amendment. The theory resolved itself into a basic question: Is the federal government or are the state governments the final

own doctrine to adopt integration.^[348] Such an eventuality would test the sincerity of the constitutional objections to

all the Southern states to adopt a “resolution of

1956, which would have declared “that

“victims of small pressure groups ... in some of the larger cities and states of the North and East.”^[358]

The full implications of the doctrine of interposition emerged in stark reality early in September when Governor Orval Faubus of Arkansas called out the state’s national guard to prevent implementation of a federal court decree ordering the integration of a Little Rock high school. Though Faubus made no reference to interposition and claimed that he had called out the troops solely to maintain order and to prevent bloodshed, many South Carolinians insisted, and with some reason, that the Governor’s defiance of federal authority constituted interposition in effect if not in name. “Use of state troops to prevent Little Rock’s school board from carrying out integration orders of a federal judge is a direct act of interposition,” said a *News and Courier* editorial. “The doctrine of interposition,” it added, “has been hazy in the minds of many persons, even in the South. Now it has taken shape in the form of state troops on school patrol.” The following morning the *State* followed the lead of the Charleston paper: “We have in Arkansas a first-class example of interposition—a state putting itself between the federal government and the people.” A few days later the same paper leveled an editorial blast against United States District Judge Ronald N. Davies who issued the integration decree. “In the first place a North Dakota judge, no matter how learned he may be in law or how sternly he can throw around his bantamweight, should never have been put in the position of making the integration ruling in Little Rock,” said Editor Samuel Latimer. “He couldn’t possibly have any deep understanding of the relationship between the whites and Negroes in the South and because of this shallow knowledge he has created a most unpleasant situation.” Mr. Latimer’s analysis was a bit ironic since the *State*’s editorials had constantly demanded that judicial decisions be premised on law and not the sociological opinions of the judges.^[359]

Measures taken against the NAACP are another important phase in the state’s efforts to preserve segregation unimpaired. These have given official direction to the drive to eradicate the NAACP in South Carolina. In February, 1956, the state legislature unanimously adopted a resolution urging the attorney general of the United States to classify the NAACP “as a subversive organization so that it may be kept under the proper surveillance and that all citizens of the United States may have ample

warning of the danger to our way of life which lurks in such an organization.” By way of justification the legislators maintained that the files of the Un-American Activities Committee of the national House of Representatives contained records “of affiliation with ... subversive organizations or activities” of 53 leading officials of the NAACP. Among the individuals so listed were A. Philip Randolph, Mary McLeod Bethune, Oscar Hammerstein II, Channing H. Tobias, William H. Hastie, Benjamin E. Mays, Arthur B. Spingarn, Ralph Bunche, Allen Knight Chalmers, Norman Cousins, and James Hinton.^[360]

In March the legislators approved a law barring all members of the NAACP from employment by state, county or local governments. It declared that the NAACP exerted “constant pressure on its members contrary to the principles upon which the economic and social life of our state rests.” Membership in the organization was held to be “wholly incompatible with the peace, tranquility and progress that all citizens have a right to enjoy.” This legislation required prospective teachers to fill out a long questionnaire designed to uncover the slightest deviation from complete racial orthodoxy. The questions asked included:

Do you belong to the NAACP? Does any member of your immediate family belong to the NAACP? Do you support the NAACP in any way (money or attendance at meetings)?

Do you favor integration of races in schools? Are you satisfied with your work and the schools as they are now maintained? If yes, comment on back.

Do you feel that you would be happy in an integrated school system, knowing that the parents and students do not favor this system? (Give reasons for your answer)

Do you feel that an integrated school system would better fit the colored race for their life's work? (Give reasons for your answer)

Do you feel that the parents of your school know that no public schools will be operated if they are integrated? Do you believe in the aims of the NAACP?^[361]

The 1956 legislature also authorized the investigation of NAACP activities at Orangeburg state college.

Several other anti-NAACP measures were introduced but failed of passage. These followed the pernicious tactic of linking the NAACP with the Klan. Included was a proposal to deny tax exempt status to “any building of public worship” used as a meeting place by the Communist party or the NAACP. Another would have required all state officials and employees to declare by oath that they belonged neither to the NAACP nor the Ku Klux Klan. Declared the latter proposal: “The dangerous policies and doctrines of these despicable organizations constitute a danger to the health, morals, safety and general welfare of citizens in the state.”^[362]

The legislature’s preoccupation with such measures was generally criticized by the press of the state. The *Morning News* questioned the reasonableness, fairness and justness of the anti-NAACP bills and compared them to the pattern of “McCarthyism.” “Bills of this kind,” wrote O’Dowd, “are seldom given a chance of passage—even by the authors. They are written and introduced as a grandstand play for the folks back home. They may serve to make the author look like the champion of white Protestantism to some of the more rabid of his supporters; but the bills also make the legislature look pretty silly and immature.” On another occasion the same paper declared that “speeches and resolutions against the Supreme Court and the NAACP” had replaced “home, mother, God and country in South Carolina political circles.” The 1956 session of the legislature, chided O’Dowd, would possibly be renowned for “turning its back on positive progress and dedicating its efforts to blind blows against the Supreme Court and the NAACP.”^[363] In agreement the *Independent* stated that the 1956 legislature showed “signs of turning into a mad scramble” to see who could introduce the most “‘segregation’ bills.” The low-country *Walterboro Press and Standard* believed that “some politicians are more interested in ‘cashing in’ politically on the [segregation] issue and prolonging it than in establishing a steady, determined course of action that will in fact preserve both segregation and the fundamental freedoms in South Carolina.”^[364] The *Record* also questioned the wisdom of anti-NAACP measures which might serve only to drive the organization underground or to replace it with “some other apparently less sinister group.”^[365]

The *News and Courier* was more sympathetic especially in the light of the purpose for which the measures were designed. It noted that

Georgia is taking steps to combat race bias among its public school teachers. By banning membership in the National Association for the Advancement of Colored People, Atty. Gen. [Eugene] Cook has incurred the wrath of NAACP and other race spokesmen.

The same kind of fuss was made over attempts to root communists and subversives out of government jobs. "Interference with individual freedom" is the battle cry.

The *News and Courier* is a firm believer in individual freedom. For that reason we do not believe that teachers should belong to the NAACP or any other militant group. Such membership destroys freedom to teach the unbiased truth.

The Charleston paper, however, would not achieve its objectives by a law barring NAACP members from state employment. It suggested instead that the matter be handled on the local level. Local school boards knew best which teachers were "spreading the NAACP line. Such teachers should be discharged, firmly but with as little fuss as possible. Membership in the NAACP or any similar organization dedicated to upsetting customs and laws of our state should be grounds for dismissal."^[366]

In the contest to see who could introduce the most segregation bills, Representative John Calhoun Hart of Union County won handily. This rumple-haired legislative fire-brand introduced separately or in conjunction with others the bill to remove tax exemptions from churches used as meeting places for the Communist party or the NAACP (not passed); the bill to require all public officials and employees to take an anti-NAACP and anti-Ku Klux Klan oath (not passed); a resolution asking that the legislature condemn Vice-President Richard M. Nixon "in the strongest manner possible" for the Vice-President's resort "to the vilest and lowest politics imaginable" in "arousing and causing dissension among the races" (not passed); a resolution asking President Eisenhower to restore segregation in the armed forces (passed); a bill to prohibit Union County schools from belonging to any educational association approving of racially integrated schools (passed); a bill to prohibit state agencies and institutions from buying from firms which sponsored interracial television or radio programs (not passed); the resolution asking that the NAACP be declared a

subversive organization by the federal government (passed); and a resolution urging the state's delegation to the 1956 Democratic national convention to seek restoration of the ⅔ rule for nomination of candidates (passed).^[367]

Representative Hart became positively splenetic upon learning that Clarence Mitchell, the Washington NAACP official, had used the white waiting room at the Florence train station. Mitchell was arrested for his action but Florence authorities prudently did not press the case. For such seeming pusillanimity Representative Hart blasted Florence officials. He deplored "the jelly fish manner in which they handled Clarence Mitchell's flagrant violation of South Carolina segregation customs." The teacher-legislator then indicated how he would educate Mitchell:

Bashing Mitchell's head would have had a highly salutary effect on integration psychology in the Florence area....

We must have a showdown sooner or later and it is doubtful that a better opportunity will ever present itself. A few cracked heads here and there could easily avert bloodshed on a large scale later on.... There's more law and order in a South Carolina night-stick than in sociological U. S. Supreme Court opinion.^[368]

One of the least laudable and most farcical of the legislature's actions was its lapse into book censorship. It arose from discovery that a novel, *The Swimming Hole*,^[369] written for eight to twelve year olds, was being circulated throughout South Carolina by the State Library Board. The following summary from the *Morning News* indicates the extent of the book's threat to the South Carolina segregation customs:

The story opens with three little white boys and a Negro boy calling at the home of Larry, another Negro child, to ask him to go swimming with them. Larry's mother invites the boys in, gives them each an apple and warns them not to go in the water for a while after eating.

The boys troop off toward the swimming hole with one of the Negroes leading the way in what apparently is a game of "Follow the leader."

Upon reaching the swimming hole, the children disrobe together and the next page shows one of the Negro boys first in the swim as another Negro child holds one of the white boys off the diving board. In the background, several other Negroes are mingled among the white boys.

After several hours of swimming, they dress together and start home. Larry spots a new white boy in the neighborhood, and the next day they invite the new boy to join them in the swimming hole.

Steve, the new boy, isn't a very good swimmer so he sits all day in his trunks in the sun and acquires a bright red sunburn. When the boys are dressing to go home, Larry finds his clothing tied in knots. Bob, the other Negro boy, makes a similar discovery.

Steve admits the prank, because "I don't want to play with anyone who's colored." Whereupon Steve turns his glowing red back on them all and starts home.

Larry suggests they all tell Steve the next day they "don't want to play with anyone the color you are." The others agree "that's a good idea."

The plan is carried out the next day and the boys leave Steve contemplating his sunburned reflection in a store window. Apparently after some soul searching, Steve goes to the swimming hole and tells Larry, "I won't tie your clothes again" because "it doesn't matter what color people are."

"Of course it doesn't," Larry tells him. "Come on in the water. I'll teach you to swim."

The last page concludes, "They all had a wonderful time together."

Discovery of the book in a state library evoked immediate and outspoken criticism.^[370] The head of the State Library Board argued that the book was not aimed at integration, but designed to point out that "human values are not to be judged by physical differences." Nevertheless, a resolution was introduced in the state legislature by Representatives J. Henry Stuckey of Williamsburg County and Albert W. Watson of Richland

County to secure removal of the book and to prevent recurrence of similar situations in the future. Books like *The Swimming Hole*, according to the resolution, were “antagonistic and inimical to the traditions and customs of our state,” and “serve no constructive educational purpose but rather tend to confuse and warp the thinking of our young children.”

Though calmer heads opposed the resolution, it was approved. Charges of “book burning” and “Hitler tactics” were heard on the floor of the legislature. Representative William H. Grimball, Jr., of Charleston urged the House to “let reason combat whatever thoughts are in books ... in any free democracy you ought to be able to expound anything you want.” To another lowcountry representative, Edward Huguenin of Jasper, the resolution represented a “ridiculous extreme.” Supporting the measure, Representative John M. Horlbeck of Charleston and Representative John T. Gentry of Pickens declared that the question was not one of “literary freedom” but of asserting the “attitude of the General Assembly.”

Press reaction was generally unfavorable to this censorship. The *Record* said that it was “dangerous business when government gets into the field of censorship of literature, business ‘antagonistic and inimical’ to the traditions and customs of South Carolina.” Americans had always thought that bad ideas could be controverted by good ideas. The *Record* urged South Carolina “to leave censorship to Russia and to Boston.” But the *News and Courier* was sympathetic. While conceding that “books expressing all viewpoints should be available for adults,” the Charleston paper declared,

But on the children’s shelves, it seems to us, propaganda should be confined to such wholesome generalities as “good is better than evil,” “crime doesn’t pay,” “be kind to people and animals,” and “an industrious child gets more done than a lazy one.”

... And there is no need to stand up for a book that tries by subtle propaganda to make the South’s racial customs appear to be hateful and wicked.

Although a cursory perusal of the anti-integration bills adopted by the 1955 and 1956 sessions of the general assembly might infer that the legislators had exhausted the possibilities along this line, such was by no means the case. The 1957 session was only slightly less productive than that of 1956. In attempting to plug by legislative fiat every possible hole in the

segregation like the solons in 1957 ranged from the petty and silly to the dangerous and ridiculous.

Falling into the first category were the attempt to ban the movie *Island in the Sun* and the proposal to require all blood banks to label blood White or Colored. The movie is an adaptation of Alec Waugh's novel *Island in the Sun* involving love affairs between interracial couples. Though the cinema version of the story soft-pedals its amatory aspects to the point that not a single interracial kiss takes place on the screen, Representative John Calhoun Hart described it as "a sickening, repulsive, indecent spectacle to which no one in this state should be exposed or subjected." The Union County lawmaker introduced a bill which declared that the movie "openly" advocated "breaking the miscegenation section of the state constitution" and charged the movie industry with "attempting to foster moral depravity by condoning the mixing of the races." The bill would have fined any theater showing the film \$5,000. Hart's effort to save "the young people of the world" came to naught. Even the *News and Courier* condemned it as censorship.^[371]

Of a similar nature was the bill offered by Rep. George Sam Harrell of Florence County which would have required that blood banks label all stored blood "White" or "Colored." Rep. Harrell decried the fact that since 1951 blood had not been labeled by race. He said Negro and white blood was now put on a desk and "you come along and they will shoot" Negro "blood in your veins." To his colleagues in the House, he declared, "I don't want any ... [Negro] blood in me and I don't intend to have any." The bill, which passed the House but not the Senate, carried provisions for \$100 fine or 30 days in jail or both for violators.^[372]

Potentially the most dangerous of the many pro-segregation measures was a recommendation by the Gressette Committee, subsequently enacted by the legislature, that the governor be given almost dictatorial injunctive police and military power "to prevent violence or threats of violence." Under provisions of the bill the governor can "by proclamation declare that a danger exists." Then to "cope with such danger" he may enjoin any acts or planned acts by individuals, associations or corporations, call in all state, county and local law officers and call out the state militia "to maintain peace and good order." There was surprisingly little reaction to this proposal. Said the *News and Courier*: "If they are used with discretion, such

police powers ... may be an effective method of combatting federal discrimination against South Carolina.”^[373]

The 1957 general assembly also considered many other pro-segregation measures: a resolution creating a group similar to the State Sovereignty Commission of Mississippi to acquaint non-Southerners with the South Carolina position on racial segregation (not passed); a resolution by Rep. Hart to impeach six of the nine justices of the Supreme Court (not passed); an anti-barratry law aimed at the NAACP (passed); and a bill repealing the 1956 statute which forbade public employment to NAACP members and the enacting of a new requirement that merely provided that all prospective employees list those organizations to which they belong (passed).^[374] This last law was the result of a suit brought by a group of Elloree Negro teachers who refused to answer a questionnaire under the 1956 law. As a result of the new law the federal courts refused to hear the suit brought by the teachers.

In addition to these measures Rep. Hart introduced still another to strengthen the position of South Carolina in its fight for states rights. Reaching a new nadir, this proposal, which was not adopted, declared that: “No executive order or directive of the President, and no act or resolution of the Congress, and no judicial decision or construction of the Supreme or any inferior Court, and no treaty with any foreign power or international agreement of the United States in conflict with, or diminishment of, or derogatory to the powers not delegated to the United States and reserved to the States respectively or the people, shall become effective as law in this State, except through enactment only by the General Assembly pursuant to the Constitution of the State of South Carolina, and otherwise the same shall be null and void and of no effect in this state.”^[375]

Use of official authority to coerce public school officials in maintaining the segregation line intact has been a comparatively easy matter. To move against private educational institutions which served as focal points of disaffection or threatened to lower the segregation barrier is more difficult. One such recent effort by Governor Timmerman and a compliant State Board of Education bared a vicious form of official infighting.

During the summer of 1957 rumor bruited around the campus of Allen University, an African Methodist Episcopal Church school in Columbia,

that the Governor's office had warned the institution's recently inaugurated president, the Reverend Frank Veal, that he would have to dismiss three professors from the faculty or face the consequences. The men proscribed were Professors John G. Rideout, chairman of the division of humanities; Edwin Hoffman, chairman of the division of education; and Forrest O. Wiggins of the department of philosophy. All were holders of doctorates from leading American universities and Rideout had been a Rhodes scholar. Rideout and Hoffman are white and Wiggins a Negro. While no specific charges were made against the men insofar as their professional competency was concerned—it is generally agreed by the Allen students that they are among the most effective teachers on the faculty—much was made of the fact that the names of Wiggins and Rideout were in the files of the United States House of Representatives Un-American Activities Committee.

President Veal, betraying an unprofessional sensitivity to academic procedures, wilted under the pressure and without consulting the members of Allen's board of trustees wrote letters to the three men in question demanding their resignations "for the good of the University." But Rideout, Hoffman and Wiggins would not resign and to confuse matters further, the board of trustees not only refused to back Veal but also announced that the three professors would continue on as members of the faculty. A few days later, however, Veal reportedly declared that his demand for the resignations of the three men still stood and that they were in effect being given a year's dismissal notice. Although the Columbia press gave prominent headlines to Veal's statement, there was no indication that the board of trustees agreed with it. But just on the eve of the new academic year Veal replaced Hoffman as chairman of the division of education with Dr. Sylvia Swinton, a former Negro field supervisor for the State Department of Education.^[376]

A few weeks later Allen again bounced back into the news headlines with the announcement that five Hungarian refugees would be enrolled at the University. Their admission would constitute the first modern breakthrough in South Carolina's segregation wall. And, as State Attorney General T. C. Callison was obliged to acknowledge, the worst part of the situation was that although it was "against public policy" to integrate Negroes and whites in educational institutions, there was "no law in South Carolina to reach" Allen, a private and church school. Actually, only one of

the five Hungarian “freedom fighters,” Andre Toth, enrolled at Allen when its fall term opened.^[377]

But the Governor and his advisors on the State Board of Education still held a trump card to play. If Allen could not be dealt with directly, it could be struck a low blow punch through withdrawal of official approval of the University for teacher training. Accordingly, the State Board of Education, on which the Governor sits as an ex officio member, on September 9th sent notice to Allen that its graduates would have teacher certification withheld “until such time as the Board may determine that it is in the public interest to grant approval.” The Board did not specify what if anything was wrong with the education courses offered at Allen, courses that hitherto had had its approval.

President Veal was conveniently out of Columbia, but Allen board of trustees president, Bishop I. H. Bonner, cautiously took up the gauntlet. To the consternation of several administrative officials at the University of South Carolina, the Bishop opined that Allen’s students requiring teacher certification would undoubtedly seek admission to the University and other white state-supported institutions of higher learning.^[378] Should such applicants be admitted to these schools by Federal court order, resort to which would, of course, be imperative, state law would oblige the schools to close.

The nadir of official hypocrisy came with the announcement of the State Board of Education following its September 20th meeting, that it was seeking to help Allen solve its internal problems. At the same meeting a “bi-racial” committee consisting of six white members and one Negro, B. C. Turner, president of the State college for Negroes at Orangeburg, was appointed to review applications for teacher training courses in South Carolina’s private and public universities and colleges.

Crocodile tears were copiously shed by “some state officials” over “the plight of Dr. Veal” in light of his failure to rid his faculty of three objectionable professors. These same persons allegedly asked how, for instance, the State Board of Education could approve a teacher training course at an institution whose academic head desired to dismiss members of his faculty but could not do so because of the opposition of his board of trustees. The logic of the state officials was that if the president of an

approved teacher training institution didn't want certain instructors because of lack of faith in them, then the state could not accept a student who received certification for his work under such a professor.^[379]

So utterly gross were the actions of the Governor and the State Board of Education that there was embarrassingly little discussion of the affair in the editorial columns of the state's press. Those few papers that discussed the Allen situation either printed without comment the decision of the Board of Education to withdraw accreditation or looked askance upon it. The *Florence Morning News*, for example, found the "handling of the Allen case unfortunate" particularly in the light of the secrecy involved, the shortage of qualified Negro teachers, the encouragement that it would give to Negroes to apply to the University of South Carolina and the lack of data supplied to Allen officials as to the reasons for the Board's actions.^[380]

The Allen situation stood at a standstill until mid-December with neither the University officials nor the State Board of Education changing their positions. But on December 17th, Bishop Bonner met with the Governor in the latter's office, at his own request so he said, for a "cordial" talk and the fat was again in the fire. According to Bonner, Timmerman maintained that the controversy over the three professors was "non-political" and "non-racial" and then proceeded to tell him "what was wrong." Just what was wrong the Bishop did not reveal.^[381]

Two days later Bishop Bonner notified Hoffman, Rideout, and Wiggins that he would recommend their dismissal when the trustees' board of control would be called for a special meeting on January 10, 1958. He further informed them that they would receive their salaries for the remainder of the year if they resigned and departed quietly but that if they fought their dismissals, they would get nothing. The professors declined to take any action pending the meeting of the trustees on January 10th.

Meanwhile the American Association of University Professors entered into the picture. General Secretary of the Association Dr. Robert K. Carr wired Governor Timmerman requesting that he provide the AAUP with information regarding the grounds on which the State Board of Education had voted to withhold teacher accreditation approval of Allen graduates. Carr at the same time told reporters that his organization viewed with alarm the apparent relationship of the question of academic tenure at Allen with

that of political interference “with the internal operations of private institutions.” “We are concerned,” he said, “lest there be direct connection between the two matters—the dismissal of the faculty members and the withholding of teacher certificates.” The AAUP, he added, would support the professors to the hilt. Carr was satisfied that the presence of the Hungarian white student on the Allen campus was in no way related to the certification question.

Timmerman’s response to Carr’s request was completely in character. He told the AAUP that the Allen affair was none of its business. “Our state is concerned with protecting all of its people,” the governor wired Carr, “and your authority to question its official actions is without recognition. The resolution [of the State Board of Education] speaks for itself.”

Carr expressed dismay at the brusque tone of the governor’s telegram. “Governor Timmerman’s reaction is most unfortunate,” he declared. “Our queries are usually received by state officials and institutions respectfully and answered if possible.” For his part Timmerman, clearly annoyed, replied that Carr’s “political whimpering” confirmed his suspicion as to the motive behind the former’s telegram. Timmerman said that Carr should “seek the answer to his questions from his own files” thus implying that prejudicial information against the three professors was at the disposal of the AAUP.^[382]

The show-down on the Allen affair came at the board of trustees meeting on January 10th and the results gratified all persons who still believe in academic freedom. Bishop Bonner, who probably hoped to dominate the meeting, found the spotlight taken away from him by Dr. R. A. Mance, a former Columbia physician who lives in Washington, D.C. Mance, a member of the Allen Board of Trustees, is also treasurer of the national African Methodist Episcopal Church. When Mance spoke out in defense of the three professors, those present at the meeting which was open to the public were very much aware that he was voicing the sentiments of the national church organization on which Allen heavily depends.

Bishop Bonner tried to defend his demand for the ouster of Wiggins, Rideout and Hoffman in the face of an audience which booed him when he said that Governor Timmerman impressed him as being “a very fine man.” According to Bonner, who was demonstrably angry at the hostile audience,

Timmerman had told him that the State Board of Education believed “that the three men could not possibly exert a good influence on the university in view of their refusal to resign at the request of the president following the recommendation by the dean of the faculty.” The Bishop, disregarding all questions of intimidation and of civil rights, based his position squarely on the ground that the most important thing for Allen to consider was the certification of its graduates by the state.

In the face of needling questions by Dr. Mance and other trustees, the Bishop turned to President Veal for support. It was on Veal’s request, according to Bonner, that the meeting had been called. But here the Bishop was in for a rude awakening as Veal, not unmindful that an investigation committee from the national AME church was present at the meeting, suddenly announced that he would definitely not recommend dismissal of the three professors “at this time.” Veal, who could hardly deny that he had asked for the resignations of Rideout, Wiggins, and Hoffman, said that any decision either to retain or to dismiss them would be arrived at according to academic procedures. Bonner, left out on a limb, accused Veal of having “backed out” on him. The meeting broke up without any action being taken and with the parting comment of Bishop Bonner that failure to dismiss the three controversial professors “could mean death to Allen University.” But Allen’s student body clearly did not share Bonner’s pessimism. A few hours after the meeting had adjourned nearly three hundred students gathered in front of Veal’s home and serenaded him. For the first time in months the harassed president found himself genuinely popular amongst the students.

In the Allen battle, which as the trustee Reverend F. C. James of Sumter pointed out “affects every private institution in America” as well as the issues of “civil liberties and civil rights,” the old “Uncle Tom” leadership, as personified in Bishop Bonner and his supporters, went down to defeat before the new generation of American Negroes. Whether the defeat will be thorough and permanent, only the future will tell. But administrators of private colleges throughout America owe a debt of gratitude to the courageous stand taken by the African Methodist Episcopal Church in the face of political intimidation.^[383]

On January 15 Governor Timmerman officially spelled out to the people of South Carolina why the State Board of Education had withdrawn its approval of Allen for teacher training. In his annual message to the state

legislature he warned of the “communist menace” in South Carolina [as of 1951 the Federal Bureau of Investigation could count only seventeen alleged Communists in the State!] and pointed his finger directly at Allen as a center of possible subversion. Borrowing a trick from the late senator from Wisconsin, the chief executive proceeded to read to the members of the legislature the “party-line” records of the three Allen professors; he mentioned none of them by name. The records, he said, had been procured from administration officials at Allen and from “other” sources of information [the files of the Un-American Activities Committee supplied through the office of Congressman John Riley]. According to the Governor, the chairman of the board of trustees at Allen, Bishop Bonner, was anxious to protect the University’s student body from the noxious influences of “atheism” and “communism” and it was for this reason that he had requested the resignations of the three professors. The State Board of Education was seeking to cooperate with Allen officials toward this end.

Having raised the spectre of communism and its threat to the Palmetto State, Timmerman then suggested a means of coping with the problem, one not very original, to be sure. He recommended establishment of a “permanent legislative committee to investigate communist activities in our state.” In addition, the Governor urged that “consideration be given to the establishment of more realistic requirements for admission to teach in state-supported institutions.” Applicants should be screened more closely before they were employed. Concluding on the following note Timmerman declared: “When academic freedom supersedes loyalty to one’s country, to one’s state and to our trust in God, it becomes an instrumentality of treason and profanes the faith of our nation.”^[384]

Senator Gressette of the state’s committee to preserve educational segregation lauded the Governor’s recommendation for a new minor league Un-American Activities Committee. So did other members of the legislature. But the three Allen professors in a statement to the radio and press services blasted the Governor. “The fact of the matter is—and Governor Timmerman knows it well—the real need here in South Carolina is the achievement of American democracy for all the state’s citizens rather than a committee to investigate so-called communistic activities.” The three professors, all church members, also struck back at the Chief Executive’s atheist innuendo. “It comes with ill grace,” they asserted, “for the Governor

to question the religious faith of others when he himself so openly repudiates the fundamental teaching of Him who died that all men might dwell together as brothers.” Nor did they think that Timmerman could pose as the shield and defender of the Constitution. “It ill becomes a Governor who spends so much of his time repudiating the Constitution of our country and endeavoring to undermine the highest court of the land to pass upon the patriotism of other Americans. If belief in racial segregation is to be made the definition of loyalty, the vast majority of Americans become disloyal in the eyes of Governor Timmerman.”^[385]

On the same day that the Governor was reaffirming his determination to maintain segregation in South Carolina, eleven Allen students appeared on the campus of the University of South Carolina seeking application blanks to permit them to take the University’s entrance examinations. They were turned away by the director of the University’s examination and counseling service who explained that his hands were tied by state law. “According to the orders under which we operate,” he told the students, “I cannot examine you and there is no purpose in supplying you with applications.” Six days later a group of four students from Benedict College, another Negro institution in Columbia, also applied for examination application blanks and were similarly rebuffed.^[386]

No effort was made to molest the Negroes when they were on the University of South Carolina campus, though one USC student is said to have leaned out a window and shouted, “Here come the niggers.” During the evening, however, a cross was burned on the University’s athletic field and an effigy of a Negro was hung up on the campus. Telephone calls were received at Allen threatening the University with bombings unless the Negro students desisted in their efforts to enter the University of South Carolina.^[387]

Governor Timmerman’s ill-tempered and ill-conceived pressure on Allen opened the door for the very type of law suit that officials of white state-supported universities have been dreading since 1954. The Allen applicants, four of them ministers, indicated that they would resort to “legal steps” to gain admission. “We plan to see this thing through,” said one of their spokesmen. “We all feel that Negroes have been ostracized by being kept out of the University and our cups are just about to run over.”^[388]

Only the future can tell, of course, what Governor Timmerman triggered off in his effort to rid Rideout, Wiggins and Hoffman from the Allen faculty. The question of admission of Negroes to white state-supported universities had to be faced sooner or later, but officials of the latter would have preferred to face it later. But to explain Timmerman's attitude toward the three professors is something else again. The "communist" issue was convenient, if a bit dated, but those who have closely followed the segregation question in South Carolina since the Supreme Court decision of 1954 are inclined to believe that the reason is less ideological than local.

Since the purge of the state Negro college at Orangeburg—the institution is on probation with accreditation agencies because it does not have a sufficient number of holders of the Ph.D. degree on its faculty—Allen has been the chief center for Negro militancy in South Carolina. The three professors who have been the target of official attack have been prominent amongst those on the campus who have urged the University's students to assert their rights, including the right to sit where they please on city buses. In all of the newspaper accounts of the Allen affair, these facts have not been mentioned, but it is suggested here that they have been governing. Also in the new administration of President Veal and in the person of Bishop Bonner, state authorities were quick to detect a lack of militancy present in their predecessors. It would appear that they have sought to exploit this "softness" and to repeat their disgraceful performance at Orangeburg. But the Allen trustees were made of sterner stuff than the Governor and the State Board of Education had supposed.

The Governor's frustration was compounded by temporary failure to bring about the dismissal of three white faculty members from Benedict College, a Negro Baptist institution located directly across the street from Allen. In a special message to the General Assembly on January 29, Timmerman cited from the files of the House Un-American Activities Committee the records of three Benedict professors. He also told the legislators that Dr. J. A. Bacoats, president of Benedict and highly respected by both whites and Negroes throughout the state, had delivered a speech in 1941 at a "Protestantism Answers Hate" dinner-forum allegedly sponsored by a "communist-front publication."^[389]

Bacoats and two of the three professors cited, Dr. Lewis Smith and Dr. J. Spencer Kennard, answered the Governor in statements to the press. The

former declared: "I have never been a communist nor held membership in the Communist Party. And as I see it from where I now stand, I shall never be a member of the Communist Party." Smith, a professor of English, said he had no intention of resigning and that he was being attacked "by the same forces that would keep the Negro people from achieving full equality." Kennard, a Baptist minister and a member of the Benedict history department, asserted that the Governor had "set out deliberately to smear the character of a man who devoted his entire life to serving the Master."^[390]

The governor's attack on Benedict was successful only in uniting the Negro community in defense of the College (far more so than had been true of the Allen affair) and in alarming white conservatives. The Inter-Denominational Ministerial Alliance of Columbia (Negro), criticizing the Governor's proposal for a state Un-American Activities committee, held that such a group would be a "fascist gestapo" and threaten Negro academic freedom. It also questioned the very legality of such a committee in the light of recent Supreme Court decisions. Likewise, John H. McCray, chairman of the South Carolina Progressive Democrats, said: "Negro leadership in South Carolina has maintained an eternal and vigorous alert against influence of communism among its people...." And from R. Beverley Herbert, a conservative white attorney of Columbia, came the warning against assuming that men were communists because of past association with left-wing organizations. But the crowning blow came when Benedict's board of trustees, which includes several white men, among them Dr. Paul Wheeler, a well known clergyman; Dr. R. Archie Ellis, pastor of the Columbia First Baptist Church and B. M. Edwards, a prominent South Carolina banker, issued a public statement completely exonerating President Bacoats and the three faculty members.^[391]

White South Carolinians undoubtedly consider public education to be the key issue in the Negroes' drive for racial equality. Consequently other aspects of the question have received less consideration in discussions relating to the pros and cons of integration. Important developments, however, have been occurring in other areas where attempts at integration are being made, e.g. the armed forces, city buses, and state operated recreation parks.

South Carolina officials can do little more than decry integration in the nation's armed forces. By the time the Supreme Court gave its initial school desegregation ruling, integration in the armed services had progressed to a point where it had become an accepted fact to all except the most extreme die-hards. Nevertheless Governor Timmerman lodged a futile protest with the National Security Council in late 1955. Referring to statements by military leaders expressing concern over low reenlistment rates among military personnel, the Governor wrote: "So long as our basic training installations are used as sociological camps for compulsory racial mixing, it is reasonable to expect a continued lack of voluntary enlistments, and a continued lessening of morale and *esprit de corps* in our armed forces. The officials of no other country in the world are so naive as to employ racial integration among military personnel." Commenting on the Governor's letter the *News and Courier* asked editorially: "Is it simply a coincidence that, at about the same time the government mixed the races in the armed forces, enlistments started to sag?" Without answering its question, the Charleston paper continued: "If integration has hurt enlistments and morale, then it follows that integration has harmed national defense.... Gov. Timmerman has courageously brought the matter out into the open."^[392]

In 1956 the general assembly in its onslaught on all phases of integration passed a resolution urging President Eisenhower to "restore segregation of the races in the armed forces of this country which would result in a return of the high morale, efficiency and *esprit de corps* which our armed forces have always heretofore enjoyed."^[393] The resolution evoked no response in Washington.

Once the assault on armed forces integration had begun, others joined in. From The Citadel, the military college of South Carolina, came a booming verbal salvo from President Mark Clark, former United Nations Commander in the Far East. "I did not feel that we should integrate then [in 1950 when the Army order was placed in effect] and I do not think so now," said the transplanted general from the North. "I looked at integration strictly as a military problem, not from the sociological standpoint.... I wanted the best fighting unit possible ... politics or no politics."^[394]

South Carolina Negroes, following the lead set in Montgomery, Alabama, have endeavored to bring about invalidation of both state and

local Jim Crow laws in the field of bus segregation. In this connection Sarah Mae Flemming of Columbia instituted suit against the South Carolina Electric and Gas Company, operators of the city bus system of Columbia, asking \$25,000 for alleged violations of her civil rights. She charged that a bus driver had forcibly required her to go to the rear of a city bus in conformity with the South Carolina law. In the federal district court Judge Timmerman dismissed Miss Flemming's suit on the ground that the 1896 decision upholding separate but equal facilities in transportation was still in effect and had not been overruled by the school cases of 1954. (There was a curious lack of logic in Judge Timmerman's position since for years Southerners had defended segregation in the public school on the basis of the *Plessy v. Ferguson* ruling which upheld the separate but equal doctrine in transportation.) This decision was appealed and reversed by the federal circuit court presided over by Judge John J. Parker. In an action which the *Record* considered "brusque arrogance," the Supreme Court refused to hear the appeal of the South Carolina Electric and Gas Company thus in effect upholding the circuit court decision.^[395]

The practical effect of this decision on South Carolina bus segregation has been nil. Nowhere have traditional patterns of segregation ended. Attorney General T. C. Callison considered the Supreme Court's action in this case "another unwarranted invasion of state and municipal rights." In early 1956 the state legislature resolved that it was "unalterably opposed to the mixing of the races on common carriers" and would "tolerate no violation of the laws of this State relating to the separation of the races on common carriers." The *News and Courier*, strangely enough, foresaw no drastic results if bus segregation were ended. However, it believed that "as a practical matter, they [Negroes] suffer no hardship by observing regulations that reflect prevailing customs of the community. Even if the laws were removed from the books, good manners call for respect of fellow passengers' preferences."^[396] Editor Waring's paper made no comment on the obligation of whites to respect the preference of their Negro fellow passengers.

In its own enveloping attack on the segregation front South Carolina's Negro leadership has struck at the state operated recreation parks. In 1955 the State of South Carolina maintained twenty-one recreation parks, one of which was operated exclusively for Negroes. Of the other twenty, four had

separate areas reserved for Negroes. In view of such obvious discrimination, Negroes brought suit to have Edisto Beach State Park opened for all South Carolinians without regard to race or color. In answering this suit the state attorney general's office presented a brief before the federal district court which declared that "due to the natural inclination of each race at this time to associate and engage in recreation and social activities with members of its own race, and to the present natural, historical, cultural and deep-rooted mental attitudes and feelings of each race against the social and sexual mixing of the races, there exists potential and definite dangers of unpleasantness, social friction, breaches of the peace and other events leading to riot and bloodshed, which will surely result from an enforced mixing of the races at such a park."^[397]

In the light of recent federal court decisions, state officials realized that such arguments would carry little weight in federal courts. Therefore in 1956, precluding a federal court order on the case, the state legislature passed a resolution closing Edisto Beach State Park to both white and colored. The park remains closed, "a monument," said the *Columbia State*, to the "vindictiveness" of race agitators.^[398]

With actions such as these the sovereign state of South Carolina has combatted the "alien ideas" of racial equality and equal rights for all men.

CHAPTER VIII

POLITICS AND SEGREGATION

In all parts of the Republic, thoughtful people are talking about realignment of political parties. On many issues, including appeal to bloc-voting Negroes in the big cities, the Republicans and the Democrats have grown too much alike. The South can split them by voting against both and setting up a climate for new political alliances.—*News and Courier*

Following the Supreme Court's desegregation decision, politics have reflected South Carolina's intense preoccupation with the integration issue. The Negro, of course, has always been an important factor in the state's politics. However since the New Deal period the national political parties and the federal government have no longer been content to allow the white South to handle the race issue without "interference." Reflecting the sentiment of Northern liberal elements, they have been insistent on the extension of civil rights to Negroes in the South. This fact, increasingly important since World War II, has been the principal cause for the reaction against the national Democratic Party in South Carolina in the presidential elections of 1948, 1952 and 1956. Political factions were unable to solve their differences within one party and, at least on the level of presidential elections, rival groups emerged to challenge the supremacy of the regular Democratic Party. They did not contest that party's hold on other levels.

In state wide elections of 1954-1956 the race issue transcended all others with but one important exception, the J. Strom Thurmond-Edgar Brown senatorial election of 1954. Both rabid segregationists and "liberals" criticized this concentration on race. The *News and Courier* believed the constant political agitation of "the race issue" since the Supreme Court

decision had upset “an era of good will, harmony and progress” in race relations in the South. “Tension ... and danger of civil disturbance” had replaced the previous racial harmony. It blamed “a small militant group of white and Negro radicals” who had revived an issue which Southern politicians had “for years” kept out of the political arena. On the other hand David D. Carroll of Bennettsville, risking his “freedom from ‘assault and arson,’” accused “inter-state lynch-leaders” of stirring up the issue for private political gain. “Thus a truth-starved South,” he said, “tragically believes that today’s issue is a spontaneous racial crisis, never suspecting its partial origin in sinister politics.”^[399]

Appeals to keep the segregation issue out of politics have gone unheeded. Its political worth is too great to be ignored. Segregation was “as surefire as political fuel as home, church, mother, and Wade Hampton,” stated the *Independent*. As a consequence, the state suffered from “crack pot oratory and poorly considered prosecutions and impractical laws” at a time when “imponderable, quiet, reserved, never relenting, never compromising resistance” was needed.^[400]

While the full import of the segregation decisions of the Supreme Court was not fully realized in state politics until the presidential campaign of 1956, the gubernatorial election of 1954 provided a good example of the use to which South Carolina politicians put the race issue. In that election Lieutenant Governor George Bell Timmerman Jr. opposed Lester Bates, a Columbia businessman and a novice whose political experience was limited to service on the Columbia City Council. Timmerman, the successful candidate, developed two campaign themes—the race issue and Bates’ alleged business malpractices. In a series of unproven charges, the Lieutenant Governor made good use of smear techniques. On May 26, a few days after the Supreme Court’s original decision, Timmerman charged Bates with “sleeping in the same political bed” with South Carolina NAACP officials. He declared that the school segregation problem could not be solved “under leadership of the NAACP’s candidate [Bates].” The following day the *Independent* carried a political advertisement by “friends” of Timmerman which asked South Carolinians if they wanted as governor “a man who would owe a political debt to Mojeska Simkins [then secretary of the state NAACP], the *Lighthouse and Informer* [a Columbia Negro newspaper now defunct], James M. Hinton or the NAACP?” The

advertisement also wondered whether Bates was “ashamed to admit NAACP support or afraid to deny it.”^[401]

By way of degrading Bates further for his alleged connections with the NAACP, Timmerman, even before the Court decision, declared that the “NAACP has degenerated into a subversive organization in South Carolina” and “lives and breathes the ‘big lie.’” (To this James M. Hinton replied that the charges were and would remain “political demagoguery” unless Timmerman offered substantiating evidence. He urged Timmerman to make available to Attorney General Brownell “any and all information” in his possession which indicated subversion in the NAACP.)^[402]

Bates was not above these same tactics. He criticized Timmerman’s proposal that the state establish three school systems—one white, one Negro, and one integrated—and dismissed it as a “hastily devised plan which would include mixed schools in South Carolina.” Bates favored segregated schools “for the peace, happiness and contentment” of both the white and Negro races. Offering no specific proposals to the voters, he advocated establishment of a special committee of distinguished South Carolinians to consider ways of meeting the problem. Action should be based on the recommendations of that committee. Characteristically, Timmerman replied with the allegation that Bates’ plan was “proposed” by James M. Hinton.^[403]

The campaign was not without its irony. In a statement that must have been galling to Timmerman, the Columbia *Lighthouse and Informer*, in reference to Timmerman’s triple school system proposal, said: “It was more than astounding and gratifying that the younger Timmerman should show the liberality to come out openly for the mixing of the races in a segment of the South Carolina schools. We believe he is the first candidate for high public office to take such a stand in South Carolina. The *Lighthouse and Informer* congratulates Mr. Timmerman upon the advancement he has shown in this respect.” In the same vein the Marion *Star* asked if the triple school proposal had been made by Timmerman in a bid for NAACP support.^[404]

In 1954-55, while attitudes were hardening on the race issue, there was increasing criticism of the national political parties and the traditional role of the South in national politics. Many like the late Senator Burnet R.

Maybank, felt that both national parties had sold the South down the river. Segregationists frequently blamed the South itself. For too long, they cried, the solid South had forfeited its right to political consideration by remaining “in the bag” of the Democrats.^[405]

In establishing the mood of political rebellion in 1956, segregationist bitter enders intensified their criticism of the national parties. “Political forces at the national level,” declared the *News and Courier*, were “lined up against the Southern way of dealing with the race question.” This Southern way had enabled the Negro, “a late-comer in western civilization,” to meet the challenges of the white man’s culture. The steady progress which the Negro had made in the past was now in danger of being destroyed by these “misguided agitators” from outside the South. Only through unity could the white South meet this threat. Along the same line, the *News and Courier* criticized the national Democratic Party for seeking Negro votes in key Northern cities and states. “How long will bribery of minority blocs” in the name of “welfare” control national politics, it asked. “Ever since F. D. Roosevelt lured the Negroes away from the Republicans with bigger and better promises, the weak rather than the strong have been shaping the course of the Republic.” The *News and Courier* observed that “of all the racial and nationality groups” subjected to such bribery, the Negro was “most easily manageable.” He had always been “managed” by whites.^[406]

Wails of woe came from other quarters. Anyone selecting his national party on the basis of its position on the racial problem “really has no place to go today,” declared the *Record*. Yet the paper found itself in a dilemma. Only lukewarm toward the idea of a third party, it eventually endorsed Eisenhower in the 1956 campaign.^[407] More outspoken was Charleston’s Representative L. Mendel Rivers. He thought it “tragic” to see President Eisenhower and leaders of both parties “supinely bowed to the demands of an association which follows the Communist line of lying, of vilification and untruth aided and abetted by an iron curtain of a Northern press which is ceaseless and relentless in its vilification of our people.” This “capitulation” the Charleston solon thought to be “the most fraudulent and hypocritical surrender of principle in the history of this republic,” which if carried to its logical conclusion would “bring a flow of blood unequalled since the tragic times of the War Between the States.”^[408] Thomas R. Miller of Florence expressed another extreme viewpoint when he wondered

how any loyal, intelligent Southerner, or any other white American for that matter, can vote for a man that openly tells the South that the Supreme Court decision was right, is the law of the land, and should be obeyed, is more than we can see. Stevenson is the spiritual successor to Roosevelt, who sowed the seeds of racial hatred and started this country down the road to Communism, and to Truman, the happy little piano-banger, who cultivated and nurtured both—who administered the *coup de grace* to Southern white civilization, who consigned unborn children to racial mongrelization and slavery under the Black Race, which is what the Communist has in store for the South, and which will be the lot of our children if our people don't wake up! If the people don't believe it, let them take a little time off from pleasure-seeking, money-making, starting new organizations and clubs every day, and study it out for themselves. If this country isn't going straight down the line of the Communist pattern, then "there ain't a dog in Georgia."^[409]

The political course that extremists would follow in 1956 depended on the action of the state Democratic Party. They themselves, nominally Democrats, entertained the hope that they would be strong enough to control the party as the Dixiecrats had done in 1948. In South Carolina the state Democratic convention is held much earlier than in other states. Consequently, it was in early March when the county conventions met as preliminaries to the state convention. In many of the county conventions, generally in the lowcountry, extremists were in control. This was illustrated by the actions of the Florence County Democratic convention which adopted resolutions urging restoration of the ⅔ rule in the national party nominations; reaffirming the delegates' firm support of states rights; praising the Citizens Councils and urging Democrats to give them "whole-hearted support;" commending the *News and Courier* "for its constancy and unflinching zeal" in fighting racial integration; and rendering the "heartfelt thanks" of the convention to Editor Thomas R. Waring "for his courage, his fearlessness and his devotion to duty."^[410] Other conventions adopted similar resolutions.

The state Democratic convention met in Columbia on March 21. Approximately 525 delegates attended, of whom two—one from Richland County and another from Beaufort County—were Negroes.^[411] Governor

Timmerman reflected the mood of the delegates in his address to the convention:

We meet today at a time when our freedom is imperiled—our freedom to choose our associates and the associates of our children—our freedom to make and enforce our own local laws in accordance with the wishes of our electorate—our freedom to establish and maintain our own local institutions without interference or intimidation—these freedoms and many more are threatened by the deliberate attempt to destroy constitutional government and to invade rights of the states and their people....

When we think in terms of racial mixing, remember that it was first advocated in the United States by the Communist Party. It was then and still is a part of the Communist program to create dissension and discord. It is a tactic in the Communist plan to divide and conquer. Racial mixing in the South is a very real and very meaningful part of the Communist conspiracy.^[412]

The Democratic Party of South Carolina, while recognizing a nominal affiliation with the national Democratic Party, considers itself autonomous in state political affairs. In contemplating their course of action in 1956, party leaders weighed the advantages of continued amicable relations with the national party against the disadvantages of a potential revolt against their leadership in the state. Elements loyal to the national party dominated the state convention. They were strongly anti-integrationist as was evidenced by a resolution adopted on the second day of the convention. The delegates resolved that the Fourteenth Amendment in no way applied to education; that the Supreme Court's decision was an "illegal and unconstitutional" verdict based on "sociological and psychological works of comparatively unknown authors, some of whom were foreigners;" and that the federal government was guilty of encroachment on the rights of the states. The strength of party loyalty was shown by the fact that the convention agreed that "the remedies for the ills which beset us arising from usurpations, encroachments, unprecedented actions without legal justification and unreasonable centralization of government" could best be resolved within the Democratic Party.

While professing complete loyalty to the party, the convention urged “the States of the South and all others believing in constitutional government” to counsel together, adopt a program of joint action and present a united front at the national convention. The Palmetto State Democrats also urged other states to follow the South Carolina example of adjourning their state conventions to reconvene after the national convention.^[413]

In directing the efforts of South Carolina Democrats to achieve an all-Southern pre-convention unity, the party convention appointed a steering committee headed by Governor Timmerman. A second purpose of the committee was to acquaint other Southern states with the efforts and intentions of the South Carolina Democracy. As committee chairman, the Governor wrote letters to all Southern senators, congressmen, governors and Democratic national committeemen. All of the letters, prefaced with the statement “South Carolina Democrats want to remain in the National Democratic Party,” said substantially the same thing: The South could expect an anti-Southern platform and nominees unless pre-convention unity could be achieved and a united front presented at the convention.

Response to the appeal was generally disappointing. Southern senators and congressmen considered it a “sugarcoated” Dixiecrat movement. However, the Governor was able to secure the calling of a convention of state party chairmen at Atlanta in July. This meeting adopted a resolution which urged unity but within the Democratic Party. Toward this end, another conference was recommended, this time to be attended by Southern governors, convention delegation chairmen and vice-chairmen, and members of the convention platform and resolutions committee.^[414]

This second parley was also held at Atlanta in early August. Four governors and three United States senators attended along with approximately thirty other political officials. Again advocates of “Southern independence” were in a minority and the convention adopted a declaration which urged unity but again within the Democratic Party.^[415] For all their efforts, Southern Democrats achieved only a minimum of unity.

The *Morning News* and *Independent* were skeptical of these maneuvers, viewing them as posing the threat of a potential third party movement. The *Morning News*, furthermore, pointed out the inconsistency of Southern

Democrats damning the national party for its attention to minority groups and at the same time demanding special treatment because of minority standing.^[416] But the *News and Courier*, not forgetful of Strom Thurmond's leadership of the Dixiecrat movement in 1948, thought South Carolinians should take pride in Governor Timmerman's emergence as leader of "Southern Independence" at a time when other Southern politicians were shielding their timidity "with the time worn cloak of party loyalty."^[417] Others were no less critical of the emphasis on unity within the party. The *Record* considered the declaration by the second Atlanta conference "quite docile," "timid in tone," and "disappointing."^[418]

At the Democratic National Convention in August the South Carolina delegation was primarily concerned with securing an acceptable platform. Governor Timmerman spoke for the delegation before the platform committee. He warned that a civil rights plank infringing upon the constitutional rights of the states, a pro-integration plank, or an approval of the school desegregation decision would insure a Democratic defeat in November. The basic issue was not "sectionalism, race *per se*, or special privilege," he maintained. It was whether "this great Democratic party of individual freedom and states rights shall survive or 'rot with radicalism.'"^[419]

The pleadings of the Southerners were not without success for the civil rights plank adopted by the Democrats was much milder than it might have been. In regard to the Supreme Court decision it was nearer the Southern position than that of the Republicans. No direct endorsement was given the decision, and force was rejected as a method of accomplishing compliance. However the Democrats recognized Supreme Court decisions in general as "part of the law of the land." Contrary to Southern wishes, the platform also endorsed previous Democratic accomplishments in the field of civil rights, e.g., armed forces integration, and urged the curbing of the filibuster in Senate debates.^[420] In the latter respects the Democratic platform was further from the Southern position than was that of the Republicans.

Reaction to the platform varied with the more moderate elements generally considering it a compromise or a Southern victory. However, the *News and Courier* thought that despite "some weasel words," the platform represented "a complete victory for Northern viewpoint and complete

defeat of the South.” To the Charleston paper the platform added up to “FEPC, mixed schools, Federal investigation of white Southerners and enthusiastic endorsement of integration in the armed forces.” The trouble was that people had their terms confused, declared the *News and Courier*. A “compromise” on the civil rights issue would have been no civil rights plank at all. A Southern victory on the issue would have been a platform expressing opposition to the court decision, invasion of states rights, FEPC and integration in the armed forces.^[421] The *Record* characterized the platform as “an effort at straddling, not actually the fence but an area just left of the fence.”^[422]

Concerning nominees, the South was also not without success in that Adlai E. Stevenson, the least objectionable of the leading contenders to the South, won the nomination for President. However, the Tennessee liberal, Estes Kefauver, loathed by Southern extremists as a traitor to his section, was selected for Vice-President. The general strategy of the South Carolina delegation was to vote for Governor Timmerman as a favorite son in the hope that a candidate less enthusiastic about the Supreme Court decision than Stevenson would be nominated.

The *News and Courier*, as was to be expected, blasted the Democratic ticket. It described Kefauver as “an unprincipled opportunist, a Southerner who sold out the South for a mess of NAACP votes.” As for Stevenson, he was “another Franklin Roosevelt.” The rasping voice of Charleston warned that the United States would be unable to survive “another scholar-gentleman-socialist in the White House.” In general agreement, the *Record* thought Stevenson would be “under virtual compulsion from the NAACP, CIO and other integrationist groups to act federally against the South.”^[423]

The upcountry *Independent*, on the other hand, heartily endorsed the Democratic ticket. Stevenson was characterized as “a man of decision, wisdom and an understanding of the basic problems confronting the American people.” The addition of Kefauver gave the Democrats “an exceptionally strong ticket.”^[424] The *Morning News*, under Editor Rogers, was noncommittal.

The reconvening of the state party convention was the next act in the political drama. The delegates were about equally split as to whether to support the national party nominees or to back an independent movement.

When one state party official after another endorsed party loyalty, the convention, by a narrow vote of 167 to 152½, officially agreed to stand by Stevenson and Kefauver.^[425] The *News and Courier* pictured the party crawling back “‘into the bag’ of the socialistic integrators.” Governor Timmerman, who had urged party loyalty, received a special share of *News and Courier* wrath. Once “one of the South’s most lucid supporters of States Rights,” he had descended to using “unworthy demagoguery” in supporting “his retreat from the spirit of Southern independence.”^[426]

Endorsement of the national party platform and nominees by the state convention set the stage for another political revolt against the Democratic Party. Such a movement, the origins of which will be noted subsequently in greater detail, developed immediately following the state Democratic convention. A considerable division of opinion existed within the state over the desirability of an independent movement. In general terms it was one of lowcountry versus upcountry. Speaking for the latter the *Independent* opposed “the will-o-wisp of a ‘third party,’” which would harm rather than aid Southern efforts to preserve segregation. It found fallacious the argument of the independents, namely, that the Southern states, by combining forces, could throw the election into the House of Representatives. Past political movements had shown that the South would not unite. Moreover, even if the election were tossed into the House, either the Democratic or Republican candidate would be elected; the South would gain nothing. Questioning the motives of those leading the movement, the *Independent* suggested that the opposition to the Democrats was based “less on the segregation issue” than on other considerations. These, it said pointedly, were economic—special interests arraigned against the welfare of the working public.^[427]

The *Morning News* was also outspoken in opposing the revolt. Editor O’Dowd thought it “politic, advantageous and wise” for South Carolina to preserve its ties with the national Democratic Party. He chided those South Carolina Democrats who kept themselves “in a state of permanent rebellion against the National Party.” Such persons served only the cause of disunity. According to O’Dowd, criticism of the national party’s liberalism was pointless. The secret of the party’s strength traditionally was “the presence of liberal forces” and the balance these struck with the conservatives. He noted that Thomas Jefferson, who was “almost sacred” to Southern

Democrats, was “further ‘left’ for his day than [Michigan Governor G. Mennen] ‘Soapy’ Williams.” Picturing the Democratic Party as the political bailiwick of “Harriman-Williams-Kefauver and the ADA” was simply waving the red flag. The Democratic Party, O’Dowd noted, was also the party of “Walter George, Sam Rayburn, Lyndon Johnson, Olin Johnston and the Southland.” Under the new editor, James A. Rogers, the *Morning News* changed its political line. While not unsympathetic to the revolt, Rogers took the common sense position that the most effective protest against the Democratic Party was a vote for the Republican candidates.^[428]

The *News and Courier*, the state’s leading press advocate of “independence,” did not understate its editorial theme. The Democratic Party had become infested with “goons, eggheads, radicals, and NAACP agitators.” The Republicans were almost as bad. There was, in reality, no place for “conservative white voters” to go. The South was not bolting the Democratic Party; rather the party had long ago bolted the South. The real third party was not that of the Southern Independents but the Democratic Party gone Socialist. This situation had created problems, not only in regard to public school integration, but also “business interference and high cost government.” The South’s duty was to redeem “the rest of the Republic from Negro politics” and restore “honor, decency and liberty” to the political arena of the nation. But the *News and Courier* sadly acknowledged that the South’s minority status left it in a position of such “helpless ignominy” that its protest would probably be ineffective. Yet by voting against both national parties Southerners could at least “preserve their self respect.”^[429]

Following refusal of the state Democratic convention to endorse “independence,” the *News and Courier* printed a lengthy series of “letters to the editor” commenting on the political situation in South Carolina. A majority of these advocated Southern independent political action and held that the state’s delegates should have bolted the national Democratic convention. Most urged formation of a new Dixiecrat Party or presentation of a slate of independent electors as a protest against both national parties. Various names were suggested as nominees, most prominently Senator Harry F. Byrd of Virginia and General Mark Clark. Another suggestion called for the formation of a third national party which would appeal to

“constitutionalists” and conservatives like Governor J. Bracken Lee of Utah. It would oppose the “socialism” of the other national parties.

A few of these letters were written by persons prominent in white supremacy groups, including Micah Jenkins, state Citizens Council president and chairman for South Carolina of the Federation for Constitutional Government, and Stanley F. Morse, president of the Grass Roots League of Charleston.^[430] But most came from persons of no particular significance in political circles. A sampling of quotations taken from these letters reflects the state of mind of the writers:

Another John C. Calhoun is the crying need of this hour, for whom we could all vote in full confidence to represent us in Congress for constitutional government.

We don't have any leaders in the nation today—we have drivers. Southerners are being driven like cattle to the slaughter.

If it ever was a time for a Ben Tillman it is now.

I am a Democrat, a follower of Jefferson, Cleveland, Wilson, and Robert Taft. [!] I have nothing in common with the present National Democratic Party whose name and organization have been captured by the Radical Socialists and semi-communists of the Northern city slums, assisted by the crackpots, egg heads and pseudo-intellectuals of the Northern colleges.

What the AFL-CIO is planning on doing to us is not just “plain” brainwashing. We are in for a THOROUGH brain-sudsing and scrubbing until every trace of our Southern ways and traditions is gone and we come out “integration bright.”

The complete subservience of a lot of our politicians to a master such as party instead of principle is a deplorable state of affairs for this nation.

Our timid and seduced politicians and their cohorts endeavor to shield themselves by “working within the party.”

Among the letter writers the Democrats were not without their racist supporters. One warned: “Vote Republican ... and you won't have as many rights as the Negro has ... the word ‘segregation’ will become extinct.... If

he [Eisenhower] is reelected you can expect worse. Should he die, it will be 'NIX-on' whites and probably a desegregated Supreme Court.”^[431]

Efforts to organize an independent political movement in the state began even before the decision of the state Democratic party to support the national party nominees. In early June Micah Jenkins began distributing petitions seeking the necessary 10,000 signatures to place an independent slate of electors on the general election ballot. He charged that the Democratic Party, made up of “radical, minority and labor groups,” would be unable to protect the interests of the South without alienating “the Negro, labor and the Americans for Democratic Action radical elements.”^[432] This early effort achieved negligible success.

Following refusal of the state Democratic convention to endorse a separate slate of independent electors, the dissident extremists held a meeting in Columbia and organized the “South Carolinians for Independent Electors.” Their immediate concern was to get 10,000 petition signatures which had to be in the office of the Secretary of State not later than September 6; the organizational meeting was held August 27. Chairman of the group was Farley Smith, son of the late Senator “Cotton Ed” Smith. Prominent among those attending were Micah Jenkins and S. Emory Rogers, leaders of the Citizens Council movement. The organizational meeting issued a manifesto which declared that the Independents were seeking to give voters of the state “an opportunity to protest” against both national parties.^[433] More than three times the number of signatures needed were secured before the deadline, a not inconsiderable achievement.

The Independent revolt, like that of the Dixiecrats of eight years before, stemmed directly out of the segregation conflict. Editor Rogers of the *Morning News* stated flatly that the Supreme Court’s decision was “the underlying cause” of the movement. Though there may have been much truth to the Anderson *Independent*’s statement that the real reasons for the movement were economic, there was no gainsaying that the Independents presented themselves as the champions *ne plus ultra* of white supremacy. Such was admirably illustrated in a pamphlet which they distributed. A brief summary is informative: A vote for Stevenson was a vote for integration according to “the warning uttered by the South Carolina Citizens Councils,” which were “representative of the states rights thinking of thousands of

South Carolinians.” The civil rights platform of the Democratic Party was a “complete defeat” for the South, adding up to “FEPC, mixed schools, Federal investigation of white Southerners and enthusiastic endorsement of integration in the armed forces.” (A verbatim quotation from a *News and Courier* editorial of August 16, 1956, p. 16-A.) The regular Democratic Party in South Carolina was a “scalawag” party, “to which most Negroes belong.” The national Democratic Party was the mouthpiece for “Rep. Adam Clayton Powell of Harlem, Walter Reuther of the AFL-CIO, Mrs. Eleanor Roosevelt, Harry S. Truman, Adlai Stevenson and the turncoat Southerner, Estes Kefauver,” all enemies of the South.^[434]

On other occasions the Independents were prone to emphasize non-racial issues and decry “the trend toward government centralized and socialized, in Washington.”^[435] Thomas P. Stoney, former mayor of Charleston who was to become one of the Independent electors, declared that “the time has come to serve notice on the left-wingers and crystal-ball gazers of both national parties that we’ve gone just as far as we’re going” toward “100 percent socialism.”^[436] Harold Booker, a Camden newspaper man, told an Independent rally: “In fighting for the election, you are fighting for your homes, families and Southland.”^[437]

Originally the Independent electors endorsed no candidate but in October they decided to back Senator Harry F. Byrd of Virginia and Representative John Bell Williams of Mississippi for President and Vice-President respectively. That Byrd announced he was not a candidate did not faze the Independents. The *News and Courier* commented that it “would rather have Harry Byrd president than any other man in public life.” It described Representative Williams, whose claim to fame included popularizing the term “Black Monday,” as a “distinguished Southerner,” the type of man “whom South Carolinians respect.”^[438]

The Independents announced their position in several political advertisements in newspapers throughout the state. Typical was the following, which, it might be observed, directly attacked Adlai Stevenson but did not mention President Eisenhower:

Do you want mixing of the races in schools, factories, shops, offices, restaurants—at the point of a bayonet if necessary? If so vote for Stevenson and Kefauver.

Do you want to do away with unlimited debate (filibuster) which is the only protection the South has against laws that big cities of the North will force upon us? If so, vote for Stevenson and Kefauver who unalterably oppose freedom of debate.

Do you want the Right-to-work law in South Carolina repealed? If so, vote for Stevenson and Kefauver who are dedicated to repeal of the Taft-Hartley law.

Do you want a President who would stop tests of H-bombs and enable Russia to dominate the world? Then Stevenson is your man. He and Bulganin want to stop these tests in America.

Do you want Socialism to replace the free and independent form of government under which America has become the greatest nation in the world? Then vote for either national party. Both are dedicated to Socialism.

Do you want to live under the domination of political machines? Then vote for and with the politicians who place party label above principle.

The prominence given economic issues is significant. Independent leaders had two goals: to sound the tocsin for reactionaries and to show to the country that their movement was premised on grounds other than racial. Economic policies advocated by Stevenson and the national Democrats were smeared as “a new America built on Socialistic and Communistic theories.” In view of the wide use of the term “socialism,” the *News and Courier*’s definition is interesting. Socialism, it said, “would give bigger ‘benefits’ to farmers, old people, veterans, little business men, workers, unemployed persons, the disabled and children.” This would mean “more handouts for everyone, except the big corporations—and the government would run them.” Inflation, controls and higher taxes accompanied such a program. The Independents also criticized Kefauver’s advocacy of “World Government under which the United States of America would become a satellite nation under Communist control.”^[439]

The Independents never attracted the active support of prominent Democrats in the state. An important exception was James F. Byrnes. In an address which the *News and Courier* considered “the speech of a

statesman,” the former governor, senator, war mobilizer, secretary of state and Supreme Court justice, urged South Carolinians to desert both national parties and to back the Independents. He criticized Eisenhower’s support of integration in the District of Columbia and pictured the Democratic Party, whose nomination for the vice-presidency he had once coveted, as being “dominated by the bosses of the big cities, the Americans for Democratic Action, the CIO and the NAACP.” The *Independent* received Byrnes’ speech less sympathetically. The up-country paper declared that “the spectacle of this aging and embittered politician trying to explain unsuccessfully how he arrived at this dead-end would merit sympathetic pity were it not part of a calculated effort, based upon hatred for the Democratic Party that fed and clothed him for over 50 years, to reelect a Republican president.”^[440]

During the course of the election campaign, the *Morning News*, *Record*, *News and Courier* and *Independent* each took a different position on the question of political revolt. With the exception of the *Morning News*, which changed editors, the papers continued the positions which they had taken in the pre-campaign period. The *Morning News*, under Editor Rogers, was sympathetic to the Independents but refrained from advising its readers as to how to vote. Rogers’ proposal for an independent movement to support the Republican candidate went unheeded. The *Record*, too, was sympathetic to the Independents but ultimately endorsed the Republicans. It considered a vote for the Independents as a less effective protest than one for the G.O.P. The *News and Courier*, which luxuriated in its own world of perpetual political frustration, gave unqualified endorsement to the Independents as “a grass roots protest without professional leadership.” It represented “the people of South Carolina standing up for their rights, in a spontaneous movement which could overthrow the forces controlling the State Democratic Party.” Out of it might “come a force to redeem the Republic and reshape United States history.”^[441]

The Anderson *Independent* attacked the movement, its leaders and its motives. The “agitation” was described as “another effort to give aid and comfort to the Republican Party and its millions of Negro adherents.” The Independents included “an unusually high proportion of rejected office-holders and worn-out political hacks,” “tub-thumpers” who were using the race issue as a screen for other issues, mainly economic. When the

Independents issued a statement decrying “the perversion of taxation to a tool of social reform for the redistribution of wealth,” the Anderson paper concluded that they opposed “such laws as social security, old age pensions, federal wage and hour laws to protect workers, federal funds for school lunches, and numerous other activities designed to benefit the vast majority of citizens who are not blessed with the status of the independently wealthy.”^[442] This statement was not without irony in view of the *Independent’s* violent opposition to labor unions and to the repeal of the state’s right-to-work law.

The same paper was no less critical of the Republicans. A vote for either the Republicans or the Independents was “a vote for sending South Carolina school trustees to jail.” Its editorials contained such loaded and politically indelicate phrases as “‘Put’em in Jail’ Eisenhower,” “‘jailing judges,’” “Richard M. (for Mixer) Nixon,” “naming Negroes to the South Carolina federal bench,” and “a vote for Ike is a vote for integration.”^[443]

In the campaign the Democrats made only slightly less use of the race issue than did the Independents. Democratic strategy was to present the latter as Republicans in disguise and then to attack the racial policies of the Republicans. Democrats called Eisenhower “the greatest integrator since Abraham Lincoln” for his endorsement of the Court decision; his appointment of Chief Justice Earl Warren; his elimination of segregation in the armed forces (“Except for this, it might not be necessary to continue the draft.”); his abolition of separate recruitments for Navy stewards; his abolition of segregation in the Charleston Naval Yard; his abolition of segregation in all veterans hospitals (“The helpless sick are denied any choice.”); and his abolition of segregation in Washington. Indicative of the Democrats’ attitude was the use of a quotation from an NAACP report stating: “When freedom, equality, and justice shall have been fully realized for every citizen, historians of tomorrow may well look back to the year of 1953 as the beginning of the end of social discrimination and segregation in the United States.”^[444]

The Democrats made wide use of state officials in reassuring voters that the South’s best hope lay with its traditional party. Congressman William Jennings Bryan Dorn declared that the support of the national Democratic Party by Senator Richard B. Russell and Herman Talmadge of Georgia was

sufficient proof for him. The Democrats also emphasized such issues as Democratic control of Congress and the appointment of federal judges. State executive committeeman E. P. Riley of Greenville asked, “Do you want judges selected by our senators, who believe in our way of life, or do you want them selected by Negro Congressman Adam Clayton Powell ... [and] Dewey and Brownell, whose only thought of the South is hatred?”^[445]

The Republicans soft-pedalled the race issue and even made some efforts to attract Negro votes. An undated open letter from State Republican Chairman Oscar W. Pitts urged all South Carolinians, “regardless of creed or color,” to support Eisenhower.^[446] Barrington Parker, a Washington attorney sponsored by the Republican National Committee, told the Palmetto State Voters Association that “no thinking Negro can go to the polls to vote the Democratic ticket.”^[447] Political advertisements of the only Republican candidate in the election, Leon P. Crawford, the mayor of Clemson and the opponent of Senator Olin D. Johnston, made no reference to the race issue. They noted, however, Crawford’s belief in “firm aggressive pursuit of States Rights measures.... Constitutional government of the people, for the people and by the people ... [and] less Federal meddling in State and local schools and other affairs.”^[448] Henry Gaud, a Charleston County Republican leader, told Carolinians that segregation was not the issue in the election. Segregation had been used by the Independents to get “prejudices aroused.” The real issue was “whether or not this government is going to become totalitarian. Stevenson believes in socialization.” He agreed with the Independents that “leftwingers and racketeers” ruled the Democratic Party.^[449]

Election results showed approximately 138,000 votes for the Democrats, 75,000 for the Republicans and 88,000 for the Independents. Generally the upcountry counties voted strongly Democratic while the lowcountry voted Independent. Eisenhower carried two counties, Aiken and Beaufort in the lowcountry. The *News and Courier*, still frustrated, expressed disappointment and indignation over the vote for Stevenson. According to the voice of “independence,” white South Carolinians again had betrayed themselves to the “compulsory race mixers, Northern busybodies and professional South-baiters.” They were disloyal “to their forefathers—such

men as Wade Hampton and John Calhoun.”^[450] Some consolation was derived from the fact that for the first time since Reconstruction, the Democratic Party in the state received less than an absolute majority of the votes cast. Yet it should also be noted that slightly more than 70 percent of the voters were against the Independents.

The Negro vote cannot be evaluated accurately but indications are that it was split fairly evenly between the Democrats and Republicans. For example Columbia’s Ward Nine, a traditional bellwether precinct for the Negro vote in the state, gave 551 votes to the Democrats, 504 to the Republicans, 56 to the Independents. Many Negro dominated precincts throughout the state went Republican, reversing the 1952 results.^[451] Then the Negroes had voted overwhelmingly Democratic.

Although most of the drive behind the Independents petered out with the election returns, leaders of the movement endeavored to keep the organization alive. In January 1957 a meeting was held in Columbia, attended by 75 persons. Talk centered on plans for taking over control of the state Democratic Party organization. Since this could not be immediately achieved, the 75 had to be content with the establishment of a permanent organization outside the party. Farley Smith was reelected chairman of the Independents.^[452]

Because of the large anti-Democratic vote in South Carolina in 1952 and 1956, many consider the state at last ready for a bona fide two-party system. The more conservative, however, favor continuation of a one-party system. M. H. Sass, in a revealing newspaper article, thought that “the very last thing that would be desirable for South Carolina in the foreseeable future” was the two-party system. Such, he declared, would “result in the political fragmentation of the South along social and economic lines.” Southern conservatives would be aligned with non-Southern conservatives while “Southern workers and smaller farmers would be in alliance with their national counterparts.” Such an arrangement would not only be “a severe blow to the South’s maintenance of its separate identity, culturally speaking,” but would also give “the balance of political power ... to the Negro.” Under these circumstances “questions of economic policy, labor relations, etc., would become paramount issues.” The presence in South

Carolina of “an abundance of raw scalawag material,” said Sass, would insure chaos if a two-party system were established.^[453]

In the political arena, then, the Supreme Court’s desegregation decision and the increasing Negro efforts to achieve integration have resulted in a continuation and intensification of the use by South Carolina politicians of the race issue. In 1958 indications are that this situation will not end until the Negro vote becomes important enough to be vied for by politicians.

CHAPTER IX

ANOTHER WAR OF YANKEE AGGRESSION

Though secession did not survive the Confederate War, peaceful secession is by no means inconceivable at some future date.—*News and Courier*

A featured part of the white South Carolina defense of the racial *status quo* is the allegation that the entire integration drive constitutes a gigantic conspiracy of jealous Yankees against Dixie. “South-baiting is currently a fad north of the Mason-Dixon line,” said the embittered *News and Courier*. Along with other pro-South spokesmen, the Charleston paper considers the integration crusade a continuation of the spirit of abolitionism and the “waving of the bloody shirt.” The South Carolina segregationist state of mind includes the assumption that a “cold war” exists between the “beleaguered” South and the rest of the nation. But the struggle of the 1950’s, as contrasted with that of the 1860’s, is basically one of ideas. Hence the success of Southern efforts depends upon effective presentation of the pro-segregation story to the nation. But alas, in this respect, segregationists face insurmountable handicaps. The South has to stand alone in the fight to save segregation and such related principles as “constitutional government, states rights, geographical spread of governmental powers, unlimited debate in the U. S. Senate, harmonious relations between the races, (and) separate and excellent school systems.” Because of the importance of these principles, the *News and Courier* would have its readers remember that “a little integration” is like “a little adultery.”^[454] Southern opposition must be total.

In defending South Carolina against outside criticism, the press of the state, led by the *News and Courier*, has sought to point out the absolute superiority of the “Southern way of life.” Referring to the South in

Jeffersonian terms the *Morning News* said: “An agrarian society helps encourage fundamental decency and proper thinking. People cannot be closely associated with nature and God’s bounty without absorbing some appreciation for the proper order of things and the love of God.”^[455] The *News and Courier* decried the fact that “movies, popular novels, the Northern press, Northern colleges—and not a few teachers in Southern educational institutions” hammered at the theme that the South was “hopelessly out-of-date” and “ignorant and backward.” To combat this point of view, parents of college students were advised to “help their youngsters understand their traditions. Traditions have to be taught. They aren’t automatically implanted in the brains of 18 and 19 year-olds.”^[456]

On another occasion the *News and Courier*, after “reluctantly” concluding that “the organized campaign of vilification of the Southern way-of-life and traditions has been partially inspired by malice,” declared, not inaccurately, that the Southern resistance was the result of “a unique and imperishable nationalism in the South.” This nationalism was not aggressive, it asserted. “It was cradled in the intense desire to be left alone.” It was rooted in the pride that Southerners had in their unique way of life.^[457]

The South as the defender of traditional American values was the theme of a speech by Representative William Jennings Bryan Dorn. Employing terminology reminiscent of his famous namesake, he referred to his region as “the last frontier of Americanism.” It was the duty and challenge of the South to sell its “political, industrial and educational philosophy” to the rest of the country. “I’m proud I represent people who live in the Bible Belt,” said Dorn. “I had much rather represent the Bible Belt than some of the slums and confusion that exist in many of our larger cities.”^[458]

Just as the South’s efforts to preserve segregation are warmly applauded, so are the North’s essays at integration roundly condemned. Here, again, the *News and Courier* is the leading though by no means the only spokesman. Comparing the segregated South with the integrated North, it stated:

Segregation in the South at least has prevented terrorism in cities. Crime exists, of course, but nothing like these reports from Northern cities. Undisciplined packs roam their streets. In the South we have no packs of savages. Though Negroes are more numerous,

they are better behaved. Yes, and more CIVILIZED! They stay to themselves. They recognize and accept the limits set up for themselves and for white people.

Released from social restrictions of the segregation code, Negroes are running wild in the North. That is what the North would inflict on a far greater scale on the people of the South.^[459]

On another occasion, the same paper indicated that its ideas on racial superiority extended not only to Negroes but to many whites as well: “Are these so-called Northern spokesmen actually Northern Americans? Are they from good old New England Yankee stock? Are they solid inland families, descended from pioneers who crossed the plains? Or are they first-generation mal-contents, full of alien notions? Are they recent immigrants from who knows where—Russia, perhaps?” Then in a not too subtle type of innuendo the *News and Courier* wondered “what kind of schism are they trying to drive through the Federal Union of States? Why, other than for Communist reasons, would they wish to split that union?”^[460]

Many white South Carolinians accuse the North of hypocrisy. Governor Timmerman, for example, declared that “Northern propagandists are as loud, obnoxious and untruthful today as the Abolitionists were a century ago.” Integrationists, like the abolitionists, he asserted, are hypocrites. Editor Waring of the *News and Courier* stated that while the South had always been “open and above-board” in its treatment of Negroes, the North had been “sly and underhanded.”^[461] Since the North had preserved segregation practically intact despite absence of legal sanction and non-discrimination laws, several spokesmen, including James F. Byrnes, urged the Gressette School Segregation Committee to go above the Mason-Dixon line to study Northern methods.

White South Carolinians are especially critical of Northern news media—newspapers, periodicals, radio and television. Blithely ignoring the pressure for conformity within the South, the *News and Courier* criticized Northern leaders who allegedly parroted words which they thought the public wanted to hear. The courage to tell the truth outside the South, complained the lowcountry newspaper, was at one of its lowest points in history.^[462]

Alleged reluctance of national news media to present sympathetically the pro-segregation cause has given rise to such terms as the “Paper Curtain” and the “Integration Curtain” and the charge that the South is being “brainwashed” into acceptance of the alien notion of integration. In no other aspect of the desegregation controversy is the cornered and minority status of the South more apparent. With ever increasing frequency, complaints have arisen against pro-integration statements and incidents appearing on national television and radio networks, in national periodicals and in the Northern metropolitan press. Newspapers such as the *New York Times*, the *New York Herald Tribune*, and the *Washington Post and Times-Herald* are subjected to constant attack. Mass circulation periodicals such as *Saturday Evening Post*, *Look*, *Time* and *Life* likewise receive special criticism. Among nationally circulated periodicals only the *U. S. News and World Report*, whose editor David Lawrence appeals to the most reactionary elements in the South, has won South Carolina approval. The *Columbia State*, for example, had the following to say of *Time*:

Through stupidity or malice *Time* has repeatedly followed, with the rest of the blackguard Northern press, this tone of false witness, either directly or by innuendo, against the South. *Time* has consistently paraded the idea that it is too stupid or malicious to recognize the fact that the South is a part of the United States. Refusing to accept the sword of Robert Lee tendered at Appomattox, it continues by snide inference, malicious innuendo and biased implication to fight the Confederate War against this section, blind to the fact that *Time* and the rest of the inflammatory press is following the same line of wild-eyed chatter that led to Secession in 1860—with grim determination arraying section against section, gracelessly exaggerating the faults of one, while cravenly covering up those of the other.

Time has double-crossed the American people on so many important issues, through stupidity or malice, that a better name for the weekly would be “Two-Time.”^[463]

Instances of racial violence and incidents of discrimination against Negroes in the North and West quite naturally, and rightly, afford grist for the mill to editorial writers on South Carolina newspapers. Statements such as “clean up the mess in your own back yard before criticizing us” and “in

the South there is frankness; in the North hypocrisy” are interspersed with “you don’t see any race riots in the South” or “the Northern states are finding that Southerners are not the only ones concerned with maintaining racial barriers.” The racial disturbances at Calumet Park in Chicago and the bigotry displayed by some of the residents of Levittown, Pennsylvania in the summer of 1957 were eagerly seized upon by counter-attacking South Carolina editors. That the great majority of people in the North deplored such incidents—as was true of most Southerners in the Little Rock affair—was carefully masked by editorial legerdemain and the views of the rabidly intolerant minority presented as typical. News of racial tension outside the South and in it—insofar as opposition to any and all forms of integration was concerned—is featured by blazing front page headlines that can only further incite South Carolina extremists. Some South Carolina editors, like Thomas Waring of the *News and Courier*, deplore the fact that similar editorial tactics are not utilized in the Northern press. In a particularly biting editorial Waring declared:

It is too bad no seismograph records the range of press hypocrisy in the North. The handling of the Chicago race riots would have registered severe shocks in some big cities.

Editions of the *New York Herald-Tribune* for Monday and Tuesday ... contained not a line about a serious racial clash in the country’s second largest city.

The *New York Times* on Monday printed an Associated Press dispatch seven inches long on page 10. The *Times*, with unrivaled facilities of its own for gathering news all over the world, did not see fit to print the full AP account. Tuesday’s issue ... contained no story on all further disorders occurring in Chicago on Monday.

The handling of the local story by the *Chicago Daily News* is also interesting. It was printed on page 3 under a headline saying “Man Fined \$50 in Race Flareup.” The *Daily News* devoted its entire back page to pictures of the earthquake damage in Mexico City. No pictures showed the race riots in the city where the *Daily News* is published. The riots were called “racial disturbances” throughout.

Does any reader wonder how these newspapers would have displayed “racial disturbances” had they occurred in South Carolina, Mississippi, or elsewhere this side of the Paper Curtain? Race riots aren’t news in the North.^[464]

Of all the Northern newspapers, the *New York Times* is the chief *bête noire* of the South Carolina press in general and the *News and Courier* in particular. The Charleston paper’s plaint is that the *Times* is a “liberal” paper which writes its own views into news stories. As to the *Times*’ liberalism the *News and Courier* summed it up by saying that the New York paper “places its faith in government and laws for rapid improvement of mankind. It is a concept much like the totalitarian ideology.” The *News and Courier*, which professes admiration for Cuba’s Batista and the Dominican Republic’s Trujillo, proceeded to develop this idea further: “The history of the world does not indicate that laws improve the breed. The best that can be hoped from laws, as we see it, is to maintain law and order so that people can live out their lives in some degree of safety and comfort. By tampering with the laws and customs about race in the United States, the ‘liberals’ have created disorder and discomfort both in the South and in the North.... Today, as it has been doing for years, the *Times* is pamphleteering for its cause—the intermingling of the races.”^[465]

The summer of 1957 was a particularly fecund one for attacks on conditions in the North by South Carolina newspapers. Revelations in the Syracuse, New York press of filthy and abominable conditions in migrant labor camps in the Empire State coupled with NAACP charges of peonage and the ordering by Governor Averill Harriman of a sweeping investigation by state authorities occasioned the *State* to send staff writer Bob Pierce northward on a “muckraking” expedition. Pierce, who received full cooperation from the Syracuse *Post-Standard* which threw open its files to him, sent back to Columbia a series of stories that were picked up by other papers of the state. They were like heady wine for the embattled defenders of the Southern way of life. Enjoying for the moment the luxury of having still another tangible social abuse in the North to attack, the *State* combined in several editorials a mixture of Southern chauvinism, eloquence, and what it evidently considered to be irony. Said editor Latimer on one occasion: “Now we read a complaint that New York migrant camps are a twentieth century slave racket. Well, the people up North should know how to operate

such a place. Their forbears were primarily responsible for the introduction of slavery in this country.... Conditions up North must be getting bad for the NAACP to admit that anything but racial harmony and fair treatment to Negroes is to be found above Mr. Mason and Mr. Dixon's line."^[466]

That the national news media have been at least partially effective in shaping public opinion in the segregation controversy is evidenced by the repeated criticisms of their policies. The *News and Courier* declared that freedom of the press as it related to "truth about race matters" had already vanished "from a large segment of American daily newspapers." Race news was rarely reported outside the South without a pro-NAACP bias. Also radio and television and Hollywood film producers were "under the black curtain of race censorship." "The other day, in a Charleston theater, we saw a movie short in which John C. Calhoun was pictured as a scheming, treasonous troublemaker," the *News and Courier* indignantly exclaimed. In a letter to the same paper Fred Grossman noted "a palpable spirit of antipathy" between the North and South, a feeling which he blamed on the NAACP "and affiliated organizations of equally dubious allegiance." Southerners on national television shows, he asserted, were "inevitably browbeaten, ridiculed, outwitted by well-rehearsed MC's." In the movies, Southerners were always villains. As a result of this slyly conducted campaign of propaganda and insinuation, the mere mention of the word South automatically brought to mind such "evil connotations as bigot, demagogue, Simon Legree and the like."^[467]

The *News and Courier*, insisting that it does "not especially admire a policy of pandering to popular views to please the subscribers," and summarizing its presentation of the race controversy as "the truth as we see it," proclaims itself as far more objective than its Northern counterparts. In presenting "the truth as we see it," the *News and Courier* commented in the following fashion on the segregation riots of Clinton, Tennessee:

Truly, this is a tragic time in American history.... Who would have thought that tyranny would come so quickly to America, or that the federal government would seek to restore all the brutality and oppression of Reconstruction days? And yet the day of infamy has arrived....

Today the North approves the methods of Hitler in attempting to force racial mixing upon a people who will not mix. If Nazi techniques are upheld by the higher courts and by public opinion in the North, one day the people of the North themselves will feel the sting of tyranny.^[468]

The newspaper chose to overlook the fact that “the brutality and oppression” in Tennessee was being enforced by the National Guard of the state, called out by the governor and not the federal government. Ignored too was the parallel of “racial superiority” both in Nazi Germany and in Tennessee.

That some white South Carolinians accept the Charleston paper at face value as the fountainhead of truth is indicated by a letter to the editor by C. H. Ruppert of Charleston. Ruppert wrote: “Each time I pick up an issue of your paper, I thank God I live in a state where the truth is printed regardless of personal views and I also know that both sides are presented in any issue that may arise. If the truth could be presented in the Northern papers, maybe the honest and worth while people who live there could understand Southern people for what they really are.”^[469]

Frequently blame for the whole integration fight is placed on “Negro politics.” “Afro-Americans,” said the *News and Courier*, “brought in chains to the New World, are about to seek their revenge. They are forging now the handcuffs whereby 10 percent of the population would dominate 90 percent through the fluke of concentration.” This observation concluded: “More than ever the Southern States seem destined to play a role in eventual redemption of the rest of the Republic from Negro politics.”^[470]

South Carolina newspapers throughout the entire segregation-integration controversy of the past four years have shown a peculiar insensitivity in regard to the effort of the United States to win the support of the nations of Asia and Africa. They have refused to see any connection with the propaganda efforts of the nation’s diplomacy in behalf of the democratic ideology and their espousal of racial supremacy doctrines at home. A naked statement demonstrating lack of concern with this particular problem came not surprisingly from the *News and Courier* which entertains no special regard for the democratic credo: “We are tired of manufactured nonsense about ‘propaganda’ overseas. The suggestion that American laws and

customs are subject to foreign veto makes us sick. Our government should not look over its shoulder to see whether it wins applause or boos from the peanut galleries of the world.”^[471]

Such an internationally myopic viewpoint could be expected from the embattled *News and Courier* but one could hardly anticipate it being broadcast in a more sophisticated form by Donald S. Russell who when he expressed it was president of the University of South Carolina, a position which he resigned a few weeks later. Addressing the Bamberg Lions Club, Russell lashed out against “the ill-advised efforts of many heedless busybodies to inject the issue of school integration in the South into American foreign policy.”^[472] Conceivably Russell was speaking strictly for home consumption as he was in the process of preparing the ground for his announcement as a gubernatorial candidate. Yet this outlook was hardly befitting a man who fancies himself to be well informed in the realm of international diplomacy and who has served as Assistant Secretary of State.

In recognition of the influence of mass communication, various proposals have been advanced to overcome the absence in the South of a single pro-segregation newspaper or periodical of nationwide standing. The South, lamented the *News and Courier*, had lost its voice in an age of miraculous means of communication. Consequently the Southern arguments were not heard in the North. The “primary need” of the South, then, was “a non-profit and non-political organization to present the Southern viewpoint.” Financed by voluntary contributions by Southerners, such an organization would employ lawyers to argue segregation cases before the courts, issue press releases on the position of segregationists, and furnish speakers to present the Southern argument to the nation.^[473] Ironically, it is largely on these very grounds that South Carolinians have condemned the NAACP!

The *News and Courier* has taken other steps to bolster the Southern ramparts against the integrationists. It plugs W. E. Debnam’s “handbooks for Southerners,” *Then My Old Kentucky Home Good Night* and *Weep No More My Lady*. These would intellectually fortify those Southerners who were “being brain-washed by experts” from the North. Southerners who bought the books, furthermore, could send them to Northern acquaintances. On another occasion the *News and Courier* presented itself as covering the

race controversy “more than any other newspaper in the country.” In one of its own advertisements it suggested three ways to pierce the “Paper Curtain”: (1) Southerners could correspond with relatives, friends and business acquaintances in the North and “tell the truth as they know it;” (2) better yet they could “send pamphlets, clippings and other printed arguments through the mail;” (3) “most effective of all would be to send *The News and Courier*.” A gift subscription was at their command. In 1956 the paper issued a twenty-five cent pamphlet, entitled “We Take Our Stand,” containing thirty-two of its editorials on the race issue. Such methods as these caused the *Independent* to comment sourly: “The Charleston *News and Courier* ... constantly stirs the [race] issue with one hand while reaching out with the other to cash in on the agitation by advertising itself as a ‘Southern spokesman’ without peer, urging ‘buy me, buy me.’ The theory seems to be: more strife, more profit.”^[474]

W. D. Workman Jr. suggested establishment of a “Southern Foundation” to foster “recognition of Southern achievements (and attitudes) in the fields of industry, agriculture, politics and government, education and sociology.” The foundation could “aid in breaking down the obvious and discriminatory refusal of Northern publishers to print anything out of the South which does not conform with their preconceived ideas of ‘liberality in the New South.’” Finally it “could offset some of the mealy-mouthed preachments of ‘dogooder’ organizations within and without the South which seek to develop a guilt complex among Southerners for simply being Southerners.”^[475]

The “Bookworm,” writing in the *News and Courier*, suggested a boycott against publications attacking segregation. He proposed that (1) all Southern organizations “secede from their national affiliations,” thereby taking large numbers of members and dues from national groups which were attempting to “influence Southern thought and action”; (2) Southerners discontinue subscriptions to national publications unfriendly to the South; and (3) Southerners notify advertisers in these publications that their products are no longer being used.^[476]

Scion of an old Charleston family, Arthur Ravenel, Jr., a member of the state House of Representatives, proposed to the Columbia Rotary Club the creation of a fund to be used for the purpose of buying up Northern

newspapers and magazines and other media of information. The fund would be financed by non-interest paying bonds subscribed to by loyal South Carolinians. Through these captive magazines “the Southern and conservative story” could be told to America. “You cannot win a defensive battle or a defensive war,” said Ravenel. “South Carolina, as we know her and love her, cannot survive another decade unless we take the offensive quickly and maintain it vigorously. We alone among the forty-eight states can do it. We have the wherewithal. Our assets include a singleness of purpose among our people; geographical unity; an illustrious history; a social system free of racial strife; two societies complete and separate, living in mutual respect for one another; and a community of real Americans.” South Carolina, continued this young legislator, had “no ‘pinks,’ no reds, no ‘isms.’ We have the type of people who form the backbone of the nation. We have a story that can be told.” The battle to win men’s minds could be won, Ravenel maintained. “That real American, David Lawrence, had proven with the *U. S. News and World Report* that America avidly seeks the truth.”^[477]

Suggestions of this nature also reached into the state legislature. In the 1957 session, Representative F. Mitchell Ott of Orangeburg County introduced a resolution calling for the creation of a nine-member commission which would interest other Southern states in sending delegations to visit Northern and Western state legislatures. The purpose of such visits would be to arouse these states to the threat of “continuing and accelerating invasion of states rights by the federal government.”^[478]

The successfully waged battle for passage of a federal civil rights act revealed the extent of the South’s isolation from the rest of the country. It was looked upon in South Carolina and the other deep South states as but another campaign in the insidious war of Yankee aggression. The first skirmishes occurred in the spring of 1956 when the Eisenhower administration asked Congress to enact a civil rights law which would include creation of a bipartisan commission to investigate individual grievances and creation of a new civil rights division in the Department of Justice. The proposals also provided that any citizen who felt that his constitutional rights had been infringed might go directly to a federal court with his complaint, bypassing the state courts.^[479]

Reaction to these proposals ranged from indignation to outright defiance. Senator Olin D. Johnston considered them “a brazen attempt to abolish all states rights and to establish a form of dictatorship government.” Never before had the nation come “as close to creating a Hitler or Stalin type dictatorship.” The *Independent* compared them to the “‘force bills’ Black Republicans put into effect” during Reconstruction. Their purpose was to “create more strife” and to “capitalize on such strife to create more Negro votes for the Republican Party.” The *News and Courier* also considered the proposals “force bills aimed at the South.” The purpose was “political reconstruction, in an all-out attempt to capture the Negro vote.” They meant “invasion of liberties guaranteed under the Constitution.”^[480]

The 1956 Civil Rights Bill died in the Senate; consequently, in 1957 a new and stronger bill was introduced into Congress. Again state leaders bellowed their opposition. Representative L. Mendel Rivers charged that the 1957 proposals were based on “a contemptible, malicious, dastardly lie” about conditions in the South. Such a law “is not only not needed but violates every guarantee the Constitution gives us.” Passage of the bill would drench the nation with more “blood than ever a mutinied ship.” All Americans, not only Southerners, would lose their rights with passage of the bill. Senator Thurmond warned the House Judiciary Committee that adoption of the “so-called civil rights” proposals would “turn neighbor against neighbor,” deprive citizens of their rights to trial by jury and “keep our people in a constant state of apprehension and harassment.”^[481]

An organized campaign of resistance developed in the state to the 1957 civil rights proposals. Appearing for South Carolina before the Judiciary Committee of the national House of Representatives were Senator Thurmond; Representative Dorn; state Representative Robert E. McNair of Allendale, chairman of the South Carolina House Judiciary Committee; Thomas A. Pope of Newberry, former state House Speaker, currently chairman of the South Carolina Bar Association Executive Committee; state Representative James A. Spruill from Cheraw, member of the House Education Committee; and Columbia attorney Clint T. Graydon. Each in turn made impassioned pleas that the bill not be passed and that the South be left alone to deal with the race problem as it saw fit. Their arguments were generally based on legalistic and constitutional grounds.^[482] They gave increased significance to a statement by *Morning News* editor

O'Dowd that in the South democracy and states rights had come to mean that all men were equal but some less equal than others.

Commenting on the testimony of the state's representatives the *News and Courier* said that South Carolina could "be proud" of its legislators and private citizens who spoke before the committee. "Clarity, honesty, dignity and understanding" characterized their addresses. "South-haters picture Southerners as Stone Age men, roughnecks and demagogues. They must have been bitterly disappointed when our spokesmen, in cool, intelligent tones, warned of perils threatening freedom in all 48 states."^[483]

South Carolina's delegation in Congress opposed the civil rights bill *in toto* but they were unhappily aware they could not prevent passage of an act in 1957. Senate majority leader Lyndon Johnson, it is rumored, had told Southern Senators in January that a bill was going to be enacted and that they had better forget about their usual "corn and pot liquor" arguments and consider the legislation on its own merits.^[484] Under such circumstances the strategy of Southerners in Congress was to take a last ditch stand against the most vulnerable of the bill's provisions, namely that violators of Federal court orders be subject to punishment by a judge of the court without benefit of jury trial. By insisting on a jury trial amendment to the bill, the Southerners could present themselves as the real defenders of civil rights.

Yet the spectacle of the Southerners in Congress presenting themselves as champions of jury trials was ironic in light of the fact that jury trials were not guaranteed those similarly accused in state courts. South Carolina law, for example, provided that disobedience of a court order "may be punished by a judge as for a contempt." Also, circuit courts might punish "by fine or imprisonment, at the discretion of the court, all contempts of authority in any cause or hearing before the same."^[485]

Both in the House of Representatives and the Senate South Carolina's delegation fought a last ditch battle for total rejection of the civil rights bill. Speaking for his fellow House members from South Carolina, Representative Dorn argued that the bill was not needed and that it would further centralize power in Washington and pave the way for a "federal dictatorship." Nor would South Carolina representatives accept any part of the jury trial compromise, said Dorn. An identical opinion came from Senator Thurmond who believed it "entirely wrong to make any concession

on the jury trial amendment or any part of the bill.” The Constitution, he said, “specifically provides for jury trials in all criminal cases and the Constitution cannot be compromised.” Senator Johnston was equally adamant. He complained of not having been consulted on the compromise measure and accused the leadership in both the House and the Senate of high-handed and illegal procedures. In the closing debate on the bill Johnston declared: “The cornerstone of human liberty is being shattered.... This is the most backward looking, retrogressive compromise that has ever issued from any self-appointed committee within my knowledge, memory, or understanding.”^[486]

Both South Carolina representatives and other Southern members of the Congress were engaged in a fruitless struggle. The civil rights bill, largely rewritten by Democratic senators and their advisers, was accepted by the House of Representatives which previously had approved a more stringent Administration measure. With this hurdle surmounted, only Senate approval remained. Since Reconstruction days, however, the Senate had been the graveyard for civil rights bills.

South Carolina political leaders continued to hope that the Senate would perform its traditional role and that Southern senators in general and their own in particular would resort to the filibuster, the ultimate weapon of beleaguered minorities. They clung to this hope in face of the fact that the Democratic leadership in the Senate had exacted an agreement from a caucus of Southern senators against use of such a tactic. Yet South Carolinians knew that a filibuster at best would merely delay passage of the bill and at worst invoke a move for cloture and result in the adoption of a more drastic act.^[487]

True to form, Governor Timmerman called on “American citizens ... to demand that their representatives stand up and fight for what is right or step aside and let there be elected men with political courage who will.” The bill, he charged, was a “sell-out of principle for the evil of political expediency.” Should Southern senators “at this late hour falter or fail to filibuster,” they would be held accountable for “compromising the inalienable rights of the American people.” Similarly, Representative Mendel Rivers of Charleston stated that “if I were a senator, I’d talk until hell freezes over before I’d accept this bill.... I’d filibuster whether Lyndon B. Johnson is elected President or not.” Representative Robert Hemphill

hoped that the Senate would “filibuster til Christmas if necessary.” Other South Carolina representatives expressed like sentiments.^[488]

Senator Johnston did not heed the pleas of those urging resort to the filibuster; he had left Washington temporarily to attend the marriage of his daughter in Columbia. But the state’s junior senator responded nobly. Obtaining the floor of the Senate at 8:45 p.m. on August 28th, J. Strom Thurmond began a record-breaking filibuster that finally terminated twenty-four hours and eighteen minutes later. It was a prodigious effort and brought congratulations from Senator Wayne Morse of Oregon, the previous record holder.^[489] But it only delayed passage of the compromise civil rights bill; more important, it brought an avalanche of adverse criticism on Thurmond’s balding head, particularly from infuriated fellow Southern senators who charged him not only with violating the caucus agreement, but also of making a grandstand play for personal political advantage.^[490]

Back home, reaction to Thurmond’s filibuster was on the whole favorable though hardly enthusiastic. Many persons privately acknowledged that he had made a complete fool of himself. Particularly was this true in Columbia where local leaders were making a strenuous effort to retain Fort Jackson. It was feared that Thurmond’s action might ultimately hurt the city’s cause. Governor Timmerman, fighting mad, was the Senator’s principal defender. He was “shocked” to learn that Thurmond had received no help in his heroic battle. “When the going got rough,” he growled to a press conference, the Southern senators had “fallen down on the job.” He resented for Thurmond “the effort to belittle what he did.” The Senator, he said, “hasn’t broken faith with anyone; he’s the only one who didn’t break faith.... I’m commending, not condemning, what Strom Thurmond did.” Timmerman was sure that the people of the Palmetto State “didn’t send Senator Thurmond to Washington to be a political flunky for Johnson, Knowland or Eisenhower.” In what could be interpreted only as a rebuke to Senator Johnston, the irate Governor asserted that when the next election time came, he “would take a second look at the man who turned his back on his constituents” before he would support him. Finally, lashing out in another direction, Timmerman called President Eisenhower “a disgrace to the office he holds.”^[491]

Timmerman's remarks were resounded in *News and Courier* editorials which observed that while Thurmond had made himself unpopular with many Americans and his fellow Senators, he spoke for the overwhelming majority of South Carolinians. "An occasional sneer that Senator Thurmond was putting on a personal play to the grandstands merits no attention," said the Charleston paper. "When personal conviction tallies with the demands of the people, why shouldn't a senator stand up and say so even though he stands alone?" The *News and Courier*, like the *Morning News*, hesitated to say that the other Southern senators had compromised with principle, as had Governor Timmerman. But it did not believe that "others should blame Thurmond for acting alone." The *State's* editor, Samuel Latimer, seemingly caught with his editorial directive down, could muster only a brief nine line comment on Thurmond's filibuster, the gist of which was that it was a futile but creditable performance.^[492]

From Anderson, however, came a bitter blast against Thurmond from the *Independent*: "The very junior senator from South Carolina, Mr. 'Stand-On-Head' Thurmond was all steamed up this week in opposition to the Ike, Nixon, Brownell civil rights bill. All his 'oratory' in the Senate will not erase the fact that Thurmond helped put the present anti-South Republican Party in power. He can change his colors—and his speeches—but the folks back home will always remember that he is one of the forces that have plunged a dagger into the heart of the South. South Carolina voters will be waiting—and ready—when 'Stand-On-Head' comes up for reelection. Any good Democrat can trim him and he knows it. That's why all the smoke at the moment. Something is urgently needed by the little man to divert attention from his support of the Republicans...."^[493]

Passage of the civil rights bill did not mean its acceptance in any way, manner or means by South Carolina leaders. Governor Timmerman immediately let it be known that he would not co-operate with any civil rights investigation commission that might come to South Carolina.^[494]

The worst crisis in the current "war of Yankee aggression" on the South came, of course, in the early autumn of 1957 with the Little Rock affair. South Carolina resounded with praise for Governor Orval Faubus and condemnation of President Eisenhower. As in all of the deep South states, white South Carolinians were aghast at the President's use of troops to

enforce the integration decree of the “northern judge,” Justice Ronald N. Davies. The state’s press, its politicians, and its self-appointed spokesmen joined in a crescendo of verbal abuse on President Eisenhower, Attorney-General Herbert Brownell, Mayor Woodrow Wilson Mann of Little Rock, Vice-President Richard Nixon, Presidential aide Sherman Adams, and Adlai Stevenson—the last named for supporting the President.^[495] Governor Timmerman made the state’s outstanding gesture of protest by resigning his commission as an officer in the United States Naval Reserve, a gesture which apparently did not disturb the Navy in the least.^[496] Someone scrawled “Ike is a nigger-lover” on the door of the children’s entrance to the Richland County library in Columbia. In university classrooms, students who only a year before had “liked Ike” were asking professors how they “could get rid of him.” If Little Rock had been in South Carolina, white South Carolinians could hardly have been more concerned.

In placing the hero’s laurels upon the brow of Governor Faubus, his admirers rarely if ever were willing to face up to the fact that the Arkansas chief executive, by calling out the state’s national guard to prevent Negro children from enrolling at Central High School, was preventing the execution of the law of the United States. Nor was it acknowledged that his utterly reckless statements had anything to do with creating the atmosphere of tension that nourished the violence which engulfed Central High School on the first day of the new term. South Carolina post-mortem editorial comment criticized resort to violence but, with a curious twist of logic, those guilty of violence were less condemned than those who allegedly had created it. The thugs who kicked and beat Negroes and newsmen and the sideburned adolescents whose faces reflected their hatred as they jeered or struck at the Negro students were never really denounced outright. Instead the villains of the piece were declared to be the leaders of the NAACP and the “Northern agitators” who were accused of inciting the violence. South Carolina editorialists in deploring use of violence, as they invariably did, always left an escape door for those who resorted to it. Illustrative are the following editorial comments:

The *News and Courier* deplores terror tactics in any cause. Yet men have used them to promote all kinds of efforts both worthy and unworthy—including religion. People of good will do not want violence and bloodshed over integrating the schools of the South.

Yet many of those people would rather be dead than integrated. Shall white people be exterminated to make room for colored? They outnumber the colored and they will not give up easily. (Sept. 19, 1957, p. 8-A.)

Efforts to enforce the court's integration edict already are resulting in violent acts by hoodlums, bedsheet gangsterism and vandalism. This is deplored by the vast majority of Southerners as injurious to the cause of the South.... Yet it does not seem to have gotten through the thick heads in Washington and elsewhere in the North and West that Southerners will not quail in the face of bloodshed, if bayonets are directed against them by hogwild racist South-baiters. (Anderson *Independent*, Sept. 21, 1957, p. 4).

Decent citizens everywhere abhor violence; [the] South is not lawless.... The South has a right to try to maintain its way of life by any and all lawful means. It has done so for a hundred years despite the outcome of the war that prevented them [sic] from seceding from the Union, when that seemed to many of them the only way to uphold it. (Florence *Morning News*, Sept. 19, 1957, p. 4).

The State cannot condone violence. It never has, and never will. Neither can it condone the actions of agitators and others who bring about violence.... There was no disorder until the judge caused the Arkansas Guard to be removed. The disorder came after the judge and Mayor Mann of Little Rock took charge.... We want to keep the record straight as to under whose auspices the rioting occurred. (Sept. 26, 1957, p. 4-A).

No thinking citizen of the South will condone the violence that erupted in Little Rock when federal, city, and school authorities and the National Association for the Advancement of Colored People disregarded Governor Faubus' advice to allow for a cooling-off period before attempting the integration of nine Negroes into Little Rock's Central High School. Mob violence is not the answer to anything anywhere, except as an instrument of revolution. It solves nothing. (*Record*, Sept. 25, 1957, p. 4-A).

In none of the above editorial excerpts was a word of sympathy extended to the victims of violence or an express denunciation made against those

engaged in the particular acts. One is reminded of the old condemnations of lynching. No one “approved” the practice in principle, but.... On the other hand, when an Arkansas segregationist, C. E. Blake, was struck on the head with the butt of a rifle which he was trying to wrest away from a federal soldier standing guard, there was more admiration for than censure of his action. Senator Johnston suggested to Governor Faubus that “warrants be issued for the arrest of federal soldiers responsible for unnecessary bludgeoning of Arkansas citizens and unlawful invasion of their homes.”^[497]

In fact, the state’s senior senator had considerable gratuitous advice for Governor Faubus. “If I were governor of Arkansas,” said Johnston, “I would ignore the President and call out the National Guard in the name of the State of Arkansas to defend life and property and to defend the state against all alien influences and forces especially the NAACP and troublemakers who wish to force a division upon the country.” From his Washington office the Senator told the press that it was “a known fact that subversive elements in this country support the NAACP in inflaming the issue of integration and their ultimate goal is to conquer us through division. If the President were tolerant of the tolerant South’s position and less tolerant of the intolerant NAACP the grave situation at Little Rock would never have occurred.”^[498]

Other South Carolina political leaders expressed themselves with varying degrees of vigor on the Arkansas situation. In a prepared speech at Bennettsville, elder South Carolina politician James F. Byrnes voiced complete confidence in the President’s integrity but maintained that he was being “misled” by Attorney General Brownell. He believed that Governor Faubus had been vindicated by events and called the assignment of Judge Davies to the case highly “unwise.” Byrnes declared that the Arkansas affair was staged purely for political reasons as a means of outbidding the Democrats for the Negro vote. That South Carolina had avoided such difficulties resulted from the high quality of Negro schools in the state—better than those provided for whites—and the sensible attitude of the “real” Negro leaders. The former governor called on the Southern states to desert their allegiance to the Democratic Party and to unite for southern independent action.^[499]

Byrnes's call for southern political independence echoed the plea made earlier by Farley Smith, leader of the South Carolina Independent Democrats. By sending troops into Arkansas, said Smith, the President had "succumbed to integration extremists" and "silenced the voice of moderation and understanding." Smith declared further: "We are now fair game for every Negro baiter and South hater and wild-eyed fanatic on both sides of this momentous question. God only knows where this will all end. But one thing should be crystal clear by now—the South has had enough." With this last statement James P. Richards, former South Carolina Congressman and Chairman of the House Foreign Affairs Committee, agreed. "It's about time they realize that an issue like this can't be handled by the federal government," he asserted. Richards, whose job it then was as President Eisenhower's roving ambassador to make friends for the United States amongst the dark-skinned peoples of the Middle East, observed that "the Russian provinces ... have a form of segregation between the Russians and the others. When you ask why, they say because the people prefer it that way."^[500]

Governor Timmerman, who had sent a telegram of encouragement to Governor Faubus, pointed out that the Little Rock incident could never have occurred in South Carolina because of the state's educational segregation laws.^[501] The same position was taken by State Senator Marion Gressette who heads the state committee entrusted with the preservation of racial segregation in the schools. The law of South Carolina, Gressette pointed out, would automatically shut off state funds to any school ordered by a court to accept a Negro and also the school from which the latter came. "Our law ... would permit a cooling off period in South Carolina," Gressette observed. "Where we would go from there would depend upon the circumstances and no one can predict what the circumstances would be." He divulged that his committee had a plan for such a contingency but refused to reveal its contents. He did give notice, though, that the federal government "would be absolutely helpless in trying to force a person or persons into South Carolina schools. The federal government has no power to compel the General Assembly of South Carolina to appropriate funds for the operation of schools."^[502]

Not all of Senator Gressette's colleagues shared his opinion that Little Rock couldn't happen in South Carolina. On October 6th, Senator John D.

Long announced that the legislative delegation of Union County had arranged the purchase of nine new Browning sub-machine guns with 1000 rounds of ammunition to beat back “any invasion of federal troops” such as took place at Little Rock. “Anyone violating our laws,” said Long, “will be arrested, jailed and treated the same as any other accused persons.” Senator Long was confident that Union County Sheriff J. Harold Lamb and his eight deputies could handle any situation that might arise.^[503]

Of the many causes for which South Carolinians blamed the renewal and intensification of the integration efforts of the 1950’s, few have been more prominent than the economic. The integration drive of the post-World War II period coincided, of course, with the unprecedented industrial growth of the South. At the same time, national labor organizations, which previously had made discouragingly little progress in South Carolina, began increased “agitation” to unionize the labor force of the state. Since essentially the same forces are opposed to both integration and unionization, it is natural that these two aspects of the new Yankee aggression should be presented to the public as different phases of the same thing.

South Carolina’s principal industry is cotton textiles. Only a small percentage of textile workers in the state are unionized and nowhere does there exist equality of employment opportunities for Negroes in South Carolina textiles. In fact state law on labor and employment contains the following provisions:

It shall be unlawful for any person engaged in the business of cotton textile manufacturing in this state to allow or permit operatives, help and labor of different races

- (a) to labor and work together within the same room,
- (b) to use the same doors of entrance and exit at the same time,
- (c) to use and occupy the same pay ticket windows or doors for paying off its operatives and laborers at the same time,
- (d) to use the same stairway and windows at the same time, or,
- (e) to use at any time the same lavatories, toilets, drinking water buckets, pails, cups, dippers or glasses.^[504]

In blaming integration and unionization efforts on Northern jealousy and resentment of Southern economic progress, the Anderson *Independent* has been the leading voice in the state. The paper presents itself as the friend and champion of the working man and, in truth, is prepared to go much further than most South Carolinians in supporting minimum wage laws, social security benefits, and other benefits for the working classes. However, labor unions have no more implacable an enemy. In stating its position on the connection between Republican politics, organized labor and integration, the upcountry newspaper declared:

We said then [1952], and repeat the opinion now, that the forces behind the integration campaign are the true lineal descendants of Black Republicanism that forced the South into secession and war in the 1860's and for the same reasons—money and industry.

In the 1850's there were the Abolitionists. In the 1950's there is the NAACP. In the 1850's the South's economy was becoming too strong to suit New England interests. In the 1950's the migration of industry poses the same challenge to the North and East.

The Republican party was founded upon Abolitionist agitation and the same party today is staking its hopes of retaining power on the modern-day Abolitionists who also are in unholy alliance with the big labor unions.^[505]

Shortly after making this statement, which exhibited lack of concern for historical accuracy, the same newspaper further spelled out its stand on organized labor:

This time the issue is not the abolition of slavery. Rather, it is the demand that industrial slavery in the form of labor unions be allowed to dictate the allocation of industry and jobs.

The South's position today in relation to the rest of the U. S. in its constitutional resistance to integration may be strengthened by placing heavier emphasis upon the fact that, unlike the 1850's the South is on the side of liberty in a battle against a peculiarly insidious type of slavery.^[506]

The *Independent* is by no means alone in speaking of the “conspiracy” between the integrationists and organized labor. Lieutenant Governor E. F.

Hollings warned against the combined efforts of CIO labor unions and New England politicians in collusion with the NAACP to “cut the flow of industry” into South Carolina and the South. Likewise, Attorney General T. C. Callison hinted at “some unholy alliance between the NAACP and enemies of ours who would be rejoiced to bring about the condition of confusion, which would interfere with the migration of industry to our state.”^[507] Shortly after Congress’ passage of the Civil Rights Act the *News and Courier* ran the following editorial note under the title of “Know Your Enemy”: “Every South Carolinian who is employed in a textile mill should know that William Pollock, president of the Textile Workers Union of America, AFL-CIO, has petitioned President Eisenhower to appoint immediately civil rights commissioners for the South. The man who wants to collect the dues of textile workers in South Carolina can’t wait for the New Reconstruction to begin.”^[508]

National labor unions have been, of course, among the most consistent and militant supporters of full civil rights for Negroes. This fact, together with such actions by the national unions as condemning the activities of the Citizens Councils, have been used against the cause of organized labor. The *News and Courier* commented with much validity that the “traditional viewpoint” of Southerners on separation of the races accounted for the resistance to labor organization in the state. South Carolina’s industrial workers, it maintained, would have to choose between heeding “the orders of union officials who are brainwashed with the popular creed of mixing the races” and declaring “their independence as free citizens.” Noting that the South was traditionally “pro-segregation and anti-union,” it declared that to the “union member who has already parted with one tradition the question is whether he can part with the second, and still be accepted in the community.” In a not very subtle attempt to alienate the South Carolina worker from the labor union, the *News and Courier* declared that “the white man who wishes to preserve his culture, his civilization, as he and his fathers knew it, is in the minority as the national union labor leaders count noses.”^[509]

Anti-union elements have been not unsuccessful in using for their own ends the pro-integration stand of national labor unions and their leaders. In some areas union members support Citizens Councils or other white supremacy groups. And the implication of statements by a number of labor

leaders in the state, notably among those of the Textile Workers Union of America, is that these members put loyalty to the Citizens Councils above that of their labor unions. Oversimplifying the case, Representative John Calhoun Hart of Union, one of the leaders of a weak and unsuccessful effort to repeal the state's right-to-work law, told George Meany, president of the AFL-CIO: "Organized labor will never make any substantial progress in the South until national labor leaders stop uttering such rot and drivel on racial matters in the South. Any Southerner who would go along with you on such things is not worth his salt and could not be elected dogcatcher."^[510]

One of the most curious developments in the integration controversy has been the creation of the United Southern Employes Association, a pro-segregation labor organization imported from North Carolina. Leaders of the new labor group acknowledged that they were reacting against the pro-integration tendencies of the old unions and against "the trend toward concentration of too much power in the hands of 'a few big-shots.'" Applicants for membership were required to sign a promise to attempt "in a legal manner, to maintain and support the Southern tradition of segregation in education and society of the white and Negro races without discriminating against or violating the civil rights of any other person or persons." The movement also aimed at the establishment of a member-controlled labor movement and the bringing about of "good friendship" and good relations between workers and industries. The United Southern Employes Association supported amendments to the state's right-to-work law which would require the approval by secret ballot of union members before any strike could be called by a local union, thus preventing "wildcat strikes by unions without the approval of their members"; prohibit national or international unions from levying more than a seventy cents per month tax on members without membership approval by secret ballot; ban a national or international union from controlling local funds or property; require membership approval, by secret ballot, of all contracts and work agreements before such become binding; allow any union member to withdraw his membership upon ten days notice to the local union; and require that union members be notified ten days in advance of any union elections; investigate labor disputes; and in general serve as a state labor board. Though the dedication of such an organization to the real welfare of the working class might be questioned, the United Southern Employes Association presented itself as labor's hope in the South. By early 1957 the

group had only one office in the state, at Rock Hill, but it had grandiose plans for establishment of others.^[511]

The close association of the United Southern Employees Association with conservative elements in the state came to light in January, 1957, when W. A. Somerset, one of its organizers, was asked to address the meeting in Columbia of the South Carolina Independent political movement. Somerset presented the Association as being dedicated to the preservation of racial segregation. He condemned the national Democratic party as being “socialist” and listening overmuch “to persons such as Walter Reuther.”^[512]

Somerset descended a few steps down the South Carolina social ladder when he addressed a meeting of the Fort Mill Klan Klavern. According to a report by the American Civil Liberties Union, he asserted that any klansman was automatically considered a member of the USEA and could be sent across an AFL-CIO picket line. This statement, it is said, was greeted by a chorus of boos and a walkout of most of the klansmen who were themselves textile operators.^[513]

Thus the segregationist elements of the state reacted to the diverse phases of the renewed war of Yankee aggression. It is a war in which the South appears doomed to lose again, although at a much slower pace than the struggle of the 1860's. The growing disagreements between North and South spotlight the ever increasing isolation of the latter, not only in the nation but in the free world. It is evident, by 1958, that the time has come for Southerners to undergo an “agonizing reappraisal” of their traditional concepts of the relationships between the races. It is also evident, however, that South Carolina's white spokesmen are not yet prepared to do this. On the face of things it appears that white South Carolinians would settle down to a long and slow process of chopping off the dog's tail a bit at a time: The end result will not change but the process will be much more painful.

CHAPTER X

COLLABORATORS, EGGHEADS, DO-GOODERS, AND APPEASERS

As for the local liberal—there are not too many among us. Either they are idealistic, good hearted people who have been led astray; or they are exhibitionists with the warped idea that to be “progressive” is to destroy all experience and teaching the centuries have given us.—“The Bookworm” in the *News and Courier*

Only a small proportion of South Carolina’s white population, it would appear, has accepted the Supreme Court’s desegregation decision in good faith. In any event few whites have been willing to face “the venom of extremism and give expression to right and reality.” At most “some ministers, fewer newspapers, an occasional public figure, and some proper public organizations” have spoken out affirmatively with respect to the Court ruling.^[514] The effectiveness of their efforts has been even more limited than their number. Two of the most important individuals who advocated compliance with the decision, Dean Chester C. Travelstead of the University of South Carolina School of Education and *Morning News* Editor Jack H. O’Dowd, were both forced out of their positions. Similarly, those clergymen who have accepted and have been vocally articulate regarding the Court ruling have been subjected in some instances to strong pressures. Several have been obliged to give up their pastorates.

Extreme segregationists recognize that those Southerners who urge acceptance of the decision are a greater potential threat than “outside agitators.” Consequently they direct some of their sharpest attacks against these Southern moderates. (The term moderate is used here to designate those South Carolinians who accept the Court decision as the law of the

land and urge its implementation with varying degrees of speed. They range from those who would begin the process of integration at once to those who simply accept the decision but would delay implementation.) James F. Byrnes, the state's "elder statesman," disparaged the moderates as "'appeasers' comparable to the 'scalawags' of Reconstruction." He fumed against those white Southerners who were "so anxious for unity of a political party" that they would surrender in the fight for continued segregation.^[515]

The *News and Courier*, the principal newspaper critic of the moderates, believed too many Southerners were inclined to "swallow unwholesome and impractical poisons" dispensed by Northern liberals. Editor Thomas R. Waring castigated those elements of the Southern press which were lending "solace to the do-gooders." Such "scalarags" (*sic*), according to Waring, did "not represent the sentiments of the vast majority of the Southern people" and their editors might "live to regret their betrayal." The *News and Courier*, indeed, did not contend that "all editors should think" as it thought; nevertheless, it said, there came "a time to be counted." "Timid newspapers, showing signs of brainwashing by do-gooders and eggheads," were causing the North to misjudge the temper of the South on the segregation question, thus doing a disservice to the South as well as the North. In a none too oblique attack on the moderates, the *News and Courier* pointed out that "in certain European countries during World War II, some natives 'collaborated' with the enemy. They got better food rations. Others resisted. Some of these were imprisoned. Some were tortured or shot."^[516]

The sentiments of the *News and Courier* were repeated throughout the state. Dorothy Moore Guess of White Hall, a biology, history and Sunday school teacher, had this advice for the moderates:

To all those who do not like American free enterprise and dependence on the individual, I say go back to socialistic England, Sweden, or to lands dominated by Russian communism. To all those who do not like life in South Carolina as native South Carolinians have shaped it, I say, leave immediately for New York, Michigan, California, Oregon or any other state that you believe to be an improvement on South Carolina.

The Garden of Eden was a wonderful place as long as Adam and Eve accepted it as it was. South Carolinians, and Americans in general, should think well before they destroy forever their own gardens of freedom.^[517]

According to the *News and Courier* the appeal of the moderates stemmed from a misunderstanding and faulty definition of the term “moderate” and the consequent gulf which existed between Northern and Southern moderates. It recognized the existence of a “group of Southerners who call themselves moderates.” This group believed that the decision was the law of the land and that integration was inevitable and hence ought to be accepted in good grace. Such persons were “mere echoes of the Northern moderates” and represented only a small minority of “white Southern opinion.” According to the Charleston paper’s understanding of the term, a Southern moderate was one who believed that there was no “valid law requiring states to mix the races in their schools” and who thought the Supreme Court had exceeded its authority in declaring segregation unconstitutional. The Southern moderate maintained that integration wasn’t legal and that the South wouldn’t attempt it. “So why don’t you meddling Yankees be reasonable men of good will and let us alone,” he would ask. The *News and Courier* included in the category of Southern moderates not only itself but also “Southern Legislatures which have passed interposition resolutions, ... senators and representatives who recently signed the historic [anti-integration] manifesto in Washington” and most members of the Citizens Councils. To surrender to the integrationists was not moderation; it was “acceptance of racial suicide” for the Southern white people.^[518]

The organization in the state which concerns itself most prominently with interracial understanding is the South Carolina Council on Human Relations. It was affiliated with the Southern Regional Council, an association dedicated to “equal opportunity for all peoples of the South,” and has been financed in part by the Fund for the Republic. The South Carolina Council has no specific solution to the segregation issue but has expressed the conviction that the answer would “demand the best thought and action from responsible leaders of both races.” It maintains, however, that “the state must move in the direction of compliance with the Supreme Court decision.” Sparkplug of the organization is Mrs. Alice N. Spearman

of Columbia, formerly executive director of the South Carolina Federation of Women's Clubs. The Rev. J. Claude Evans, editor of the South Carolina Methodist *Christian Advocate*, was the Council's president until 1957 when he was succeeded by Courtney Siceloff of Frogmore. The Council has fewer than a half dozen local chapters throughout the state. The most active is at Sumter. The Rock Hill chapter has been "stimulated" by a strongly anti-segregationist Catholic priest, the Very Rev. Maurice Shean. In Rock Hill the Council enjoyed a degree of official recognition since former Mayor Emmette Jerome, now a member of the state House of Representatives, was a member of the state board and appointed a Mayor's Committee on Human Relations.^[519]

South Carolina had a few other similar but short-lived organizations. In Anderson a Christian Council of Human Relations was established in July, 1954. An interracial association, it adopted a declaration of principles which asserted that the Supreme Court decision was "in keeping with the highest traditions of American justice and freedom.... [and was] consistent with the spirit and teaching of Jesus of Nazareth." The practical question confronting the state, according to the Council, was "not whether the Court was socially wise or legally correct in their judgment." Rather the problem was how best to adjust to the decision in such a way "that the majesty and force of the law may be upheld and good will among men may be advanced." Good faith in implementing the decision would "relieve the conscience of many white Christians who have long been uneasy and troubled by conflict between the teaching of Jesus and the inequalities of our racial situation."^[520]

Another such group is the South Carolina chapter of United Church Women. This organization, which, in truth, has little influence, is composed of women from most Protestant denominations. Mrs. James M. Dabbs of Maysville is state president. In a letter to Governor Byrnes shortly after the original desegregation decision, Mrs. Dabbs declared that "enforced segregation had no place in Christian activity and constituted a very real threat to our Democracy."^[521]

The position which these organizations have held in the state has not been particularly enviable. Commented the Rev. J. Claude Evans: "I think the solution is a long term process of human relations down the moderate road. At the moment, the moderates are not very popular and walk a razor's

edge.” The moderates, he observed, would have “to bide their time” until “the legal aspects” of segregation were clarified and “the social attitudes of the people jell.”^[522]

The plight of those who urge moderation was further illustrated in the summer of 1957 when five Protestant ministers from the Pee Dee section of the state organized themselves into a group called “Concerned South Carolinians.”^[523] They were the Reverends John Lyles, Presbyterian of Marion; John Morris, Episcopalian of Dillon; Joseph Horn, Episcopalian of Florence; Larry Jackson, Methodist of Florence; and Ralph Cousins, Episcopalian of Marion. The Concerned South Carolinians issued a prospectus of their aims and objectives. They urged publication of a booklet of articles written by prominent Carolinians pleading for moderation in the race controversy—“a course between the excesses of certain Citizens Councils, on the one hand, and extreme actions of the NAACP [*sic*] on the other hand.”

We feel [declared the prospectus] that extreme positions have dominated the picture in our state. Organized groups are feeding the flames of racial hate. We believe, however, that a large group of South Carolinians disagree with these positions on the racial problem. We desperately need the leadership of men and women who will debate the issues rationally, who will counter the voices of extremism with words of moderation, and who will have the humility and courage to see a goal in the future toward which we in South Carolina must be working gradually.

... It is imperative that persons in South Carolina who are honored and respected in their several communities speak words of calmness and moderation. This is the conviction which has drawn us together as ministers of Christ and as concerned citizens of South Carolina. We also believe that you are such a leader as is now needed and that you may share some of this concern.

The ministers continued by stating their basic beliefs and assumptions:

1. That God created all men in His own image and therefore all races are equal in His sight.

2. That although there is no “superior” race certain differences are to be recognized because of environment, but these differences are not due to an inherent inferiority.

3. That the public school system must be maintained for all the people.

4. That any solution to the present dilemma must be sought within the framework of Supreme Court decisions, which are legally binding and morally valid.

5. That, nevertheless, cultural patterns cannot be changed quickly and the reality of this cannot wisely be ignored in seeking solutions.

6. That neither of the extreme pressures of the NAACP nor the Citizens Councils offers the best direction for the South.

7. That personal freedom of choice and association in social relations must be maintained within the bounds of a democratic society, even if desegregation becomes the accepted procedure for tax supported institutions.

8. That all Southerners should explore the situation thoughtfully in the light of Christian love and our democratic heritage, believing that we can go forward together even though slowly.

Sentiments such as these, of course, had little chance of winning friends and influencing segregationists in South Carolina. Among those receiving the prospectus was Governor Timmerman. Although specifically asked not to make the contents of the prospectus public, the Governor handed his copy to the press. He explained his action in the following manner: “In the belief that it is of interest generally to the public, I am making it [the prospectus] available for publication. All South Carolinians, not just these self-appointed few, are ‘Concerned’ South Carolinians.”

The Florence Citizens Council wasted little time in replying to the “Concerned South Carolinians.” In a press release, it accused the clergymen of organizing “under a cloak of secrecy” and boasted by way of comparison that it was an “open” association. The Florence Council maintained that the ministers misrepresented the facts in classifying it as an “extremist” organization along with the NAACP. It challenged the “Concerned South

Carolinians” or any other group “to prove when and where the Citizens Councils have acted contrary to law or in extreme.”^[524]

When the publication of the “Concerned South Carolinians” finally came out in October, it had a brisk sale.^[525] The very fact that it appeared on newsstands throughout the state was in itself a victory for its sponsors. Former Congressman James P. Richards praised publication of the booklet as a “real contribution to freedom of expression.”^[526] Few South Carolina whites, however, saw fit to endorse the pamphlet and from public officials, aside from Richards, there was a wall of dead silence.

The booklet contained a dozen essays or statements ranging from the old fashioned segregationist arguments of Columbia attorney, R. Beverley Herbert, to the hard hitting integrationist editorials of Arthur Locke King, another attorney, from Georgetown, and Andrew McDowd Secrest, the outspoken editor and publisher of the weekly *Cheraw Chronicle*. Anthony Harrigan, reviewing the booklet for the *News and Courier*, found little of value in the collection of opinions save in the case of Mr. Herbert’s essay. The other authors, he maintained, did not represent the views of South Carolinians as were expressed at elections.^[527]

Among the contributors to the little volume was Mrs. Claudia Thomas Sanders, wife of a Gaffney physician. Mrs. Sanders suggested that desegregation could be accomplished in the public schools of the state by starting with the first grades. “Children are not born with prejudice,” wrote Mrs. Sanders. “If adults could only learn from children their ability to judge character and worth without regard for externals,” she continued, the desegregation process “would be immeasurably lighter.”^[528]

No one could accuse Mrs. Sanders of being one of those Northerners who could never understand the “Southern way of life.” Born in Charleston, the state’s “Holy City,” she can trace her ancestry back to the early colonial period. Moreover, she is a leading Episcopal churchwoman and is engaged in such eminently socially acceptable activities as the American Association of University Women, the Home and Garden Club, the Gaffney Hospital Auxiliary and the Cherokee County Public Library Board.^[529]

But Mrs. Sanders had not counted on possible retaliatory action on the part of white supremacy bedsheet brigadiers who haunt the upper part of the

state. On the night of November 19th an explosion rocked the Sanders house tearing a gaping hole near the chimney, breaking six windows, and cracking a wall in the living room. Dr. and Mrs. Sanders and their house guests, Mr. and Mrs. Carl B. McLaughlin of Louisville, Kentucky, were in another part of the house at the time of the explosion and escaped injury. [530]

Police officials investigating the explosion discovered that this was the third attempt to dynamite the Sanders home, two other efforts having failed because of the bungling of the perpetrators. Moreover, within three weeks the State Law Enforcement Division had arrested five men in connection with the bombing. With all due respect to the extremely efficient SLED, it required neither a Sherlock Holmes nor a Dick Tracy to track down the culprits, for the trail led directly to a Ku Klux Klan group operating in the area. The five men arrested were factory workers and mill hands. Their ages ranged from twenty-four to thirty-five. [531]

“Respectable” South Carolinians were appropriately shocked by the Gaffney episode and newspaper editorials uniformly called for the arrest of the culprits and later expressed satisfaction when they were apprehended. Yet few if any of the public officials in the state, who were so vocal on the Little Rock “oppression,” saw fit to comment on the bombing, a fact that did not go unnoticed by the Reverend John B. Morris of Dillon, one of the clergymen who helped prepare the “Concerned South Carolinians” booklet. In a letter to papers throughout the state the Reverend Morris, who opposes immediate integration in the public schools of the deep South, wrote: “When big men in public office have hitherto talked loosely on the race issue, very little men have been incited to plan acts of violence. The big men deplore the violence and realize it only hurts their cause, but until they use their influence before the violence occurs, they bear some responsibility for it. When the emotions of simple folk are stirred by emotional talk from public figures, they come to feel that they must take the law into their own hands. Let segregationist politicians realize they can maintain their position calmly and with reason. Otherwise incendiary talk will prompt incendiary action.” [532]

The arrest of the five men in no sense chastened them or made them realize the enormity of their act. Nor did the Klan seek to cover its tracks in

the affair. On the contrary, the local Klansmen held a rally at Blacksburg to collect funds to defray the cost of the legal defense of the accused, two of whom, Luther E. Boyette and Robert P. Martin, openly boasted of their affiliation with the nightshirt brigade. Present at the rally, attended by 20 robed Klansmen and approximately 250 onlookers, was the grand dragon of the South Carolina Independent Knights of the Ku Klux Klan. "We do not wish Mrs. James H. Sanders any harm," he told the crowd. "If we could, we would send her back [sic] to Africa so she would be with her Negro friends." The Independent Klan would back the accused "all the way," he asserted. "They have already proved their innocence so far as I am concerned, and of course the first consideration was in proving it to the Klan."^[533]

James McBride Dabbs, whose wife is president of the state United Church Women, has also been prominent in the activities of interracial groups. He is president of the Southern Regional Council. Immediately after the original decision, Dabbs, a one time college professor, urged South Carolinians to "proceed now to implement this ruling with whatever skill and wisdom we have." He considered segregation "nonsense" and believed that under desegregation "Negroes would still associate almost entirely with Negroes, white people with white people." The row over desegregation, he maintained, was a tempest in a teapot. It is time "for the white man to realize that he is just a human being; he's been playing God so long," declared this modern Old Testament prophet. "The majority of white South Carolinians today are waging a fight which they will lose as surely as the sun will rise tomorrow, and about which, when they have lost it, they will wonder why they fought so hard to stave off so small a change."^[534]

The Rev. G. Jackson Stafford, who was pastor of the First Baptist Church of Batesburg until his resignation was forced, typifies in a very real sense those clergymen who opposed segregation. He believed that the Court decision was "in keeping with the constitutional guarantee of equal freedom to all citizens, and ... in harmony with the Christian principles of equal justice and love for all men." But he also realized that "the people of the South need time to become adjusted to the changing social and political climate with regard to race relations." Racial tensions, he believed, would be greatly reduced if the politicians would cease their efforts to make a

political football out of the problems involved in improving race relations.
[535]

Occasionally other South Carolinians publicly expressed support for integration. John Bolt Culbertson, a Greenville attorney who had “been interested in liberal causes and in the labor movement” since his student days at the University of South Carolina, was a strong supporter of the NAACP. He considered the denial of “the fundamentals of democratic government” to Negroes a “mockery” of democracy. In a similar vein D. M. Harrelson of Gresham protested “as a Southern white man” against the “Nazi-Ku Klux Klan climate” fostered in the South by “demagogic politicians, citizens committees, [and] a Metropolitan press.” This agitation, he felt, appealed “to the ignorant, unthinking, whose minds are filled with native prejudice.” E. M. Martin of Charleston, too, was critical of segregation. “Any institution supported by public funds ought to be for all citizens excluding none,” he thought. Segregated school systems were “contrary to the Constitution of the United States.” Another Charlestonian, W. Ernest Douglas, believed that “most white people have such a terrific mental block concerning segregation that, in this matter at least, they forfeit their right to be called rational animals. They become simple animals moving in whatever direction their herders prod them.”[536]

The influence of the segregation issue on freedom of thought in South Carolina was illustrated by the nationally publicized Travelstead affair.^[537] Dr. Chester C. Travelstead, a native of Kentucky, was appointed Dean of the School of Education of the University of South Carolina in 1953. According to Dr. Travelstead, he made known to University President Donald S. Russell his views on segregation before his appointment. With the developing resistance to integration in the period following the Supreme Court’s ruling, Travelstead became “distressed to observe that only one side of this whole issue was being presented to the public.” He believed that segregation deprived the Negro of his “right to first class citizenship.” Even more important, he felt that South Carolina was “fast developing an autocratic police state.” In the late spring of 1955, he decided to speak his piece.

In April Governor George Bell Timmerman Jr. had addressed the South Carolina Education Association and strongly condemned attempts at

integration. Shortly thereafter Travelstead wrote a long and, on the face of it, imprudent letter to the Governor:

You said in your speech, Governor, that “the opinion of the Supreme Court of the United States in the school-segregation cases upholds for the first time in judicial history that equality of treatment is discriminatory.” It is my considered opinion, Governor, that it was not the intent of the Court to say that “equality of treatment is discriminatory.” Rather did it say in effect that segregation is in and of itself discriminatory....

You have said, Governor, that the recommendation [to the General Assembly of South Carolina] to abolish the [state’s] Compulsory Attendance Law “has not weakened ourselves in this respect.” Apparently, Governor, it is the firm belief of most educators and leaders in state and national government that compulsory school attendance at public or private schools has been the backbone of our democracy.

You have attacked, Governor, the integrationist and have said that he is “seeking to abolish parental rights in education....” It is without evidence to say that those who in 1955, for moral, civic, and legal reasons believed that segregation is outmoded and should therefore be abolished are men of “little character” attempting, as you say, “to lynch the character of a fourth of our nation.” It is my opinion, Governor, that many men of great stature are sincerely convinced that the Supreme Court’s ruling was both timely and sound....

You have said: “No precedent, no parallel, can be found for compulsory integration. It is new. It is novel. It is contrary to the divine order of things. Only an evil mind can conceive it. Only a foolish mind can accept it.”

It seems to me that there are many parallels and precedents....

... Thirty-one states and the District of Columbia do have school systems in which the races are integrated. The other 17 states, now practicing segregation of the races in their schools, still practice compulsory integration within each race by requiring that boys and

girls of widely different socio-economic and cultural backgrounds go to the same schools in spite of these differences.

It is my opinion, therefore, that the phrases, “evil mind” and “foolish mind,” quoted above, have been ill used and are without foundation.

On May 31 President Russell, while not advising Travelstead to desist from writing such letters, cautioned him that “such controversial matters make politicians mad.” Despite the argumentative letter to the Governor, Travelstead was notified on July 28 of his reappointment as education dean for the 1955-56 school year with a substantial salary increase.

On August 2 Travelstead again attacked segregation. In a speech before the student body of the summer school, he declared:

As I study the Judaic-Christian concept prevalent in Western Civilization; as I examine the bases of our own government—the Bill of Rights and all other pronouncements of our forefathers—I find nothing which requires, justifies, or even allows a notion of second class citizenship for any group. I find no conclusive evidence that one group of men is foreordained to be superior or inferior to other groups of men. I find that this notion of race and national superiority came to ruinous end in Nazi Germany. For races or nations of men to think and act upon the assumption that all other groups are inferior is to invite disaster and downfall.... The fact that we have practiced segregation on the assumption that it was right and just, does not **make** it right and just.

Three days later President Russell told Travelstead that he had received complaints concerning the speech. (It is generally presumed that these came from the Governor’s office). Two weeks later, August 19, Travelstead received notification of his dismissal as Dean. “The executive committee of the board of trustees,” it said, “is of the opinion that it is not in the best interest of the university to renew your appointment as Dean of the School of Education.” At a hearing before the executive committee which Travelstead requested, the committee allegedly told him that persons employed by the university should not engage in discussion of controversial issues. In response to Travelstead’s request that the committee issue a statement with respect to its policy concerning academic freedom and free

discussion by university employees, the committee refused. According to Travelstead, the committee replied that “a person should have enough common sense to know what he should and should not discuss—without any clear-cut policy about such matters.” Following his dismissal as Dean, Travelstead received an appointment as Education Dean at the University of New Mexico.

Reaction of the student body of the university to Travelstead’s dismissal was varied.^[538] The *Gamecock*, the student newspaper, and most of its columnists strongly condemned the action. So did a majority of those students who expressed their opinion in letters to the *Gamecock* editor. However at least one columnist and a number of the letters to the editor supported the dismissal. Editor Carolyn McClung considered the dismissal “a hard and definite blow to the University.” If University officials took upon themselves to squelch persons with unpopular ideas, it was “no place for students with intellectual curiosity.” Similarly, columnist Herbert Bryant believed that “the University’s escutcheon” bore a deep scar as a result of the trustees’ apparent “ban on freedom of academic thought and expression at the University.” Jack Bass, another columnist, considered the action “rash and shortsighted.” He believed that “at least 90 percent” of the University faculty agreed with the sentiments expressed by Dr. Travelstead; hence, the Dean was fired not for having an opinion but for expressing it openly.

On the other hand, columnist Billy Mellette supported the removal of Travelstead: “People who work for any university or college know they must be careful, or they should know it. You say the policy is not written, and how then are you expected to know what to say?—You use your damned head, that’s how you know. The school doesn’t go around sneaking up on people and trying to find people to fire.... If he [Travelstead] did not know to be quiet—as head of the education department of all positions—then he has now learned.... The University did not invade the castle of free thought. It was challenged and forced to commit itself.”

In a similar vein Fred LeClerq respected Travelstead’s “right as an individual to believe in integration,” but he did not think that he should “occupy a position through which he could mold the opinions of prospective teachers of a state where race purity and segregation are essential to the well-being of its citizens.” LeClerq believed “integration to be as diametrically opposed to the welfare of this state as communism is to

the welfare of the nation.” For this reason he thought the ouster both “justifiable and commendable.”

Supporters of segregation generally upheld the board of trustees. The *News and Courier* pointed out that the issue of academic freedom had two sides—“the freedom of a professor to speak his mind” and “the freedom of a university to choose the lines of education it wishes to follow.” Since Travelstead was out of line with both university policy and the desires of the people of South Carolina, his usefulness as a teacher was over. “He easily can exercise his academic freedom elsewhere,” concluded the Charleston paper.^[539]

On the other hand, the *Morning News* was critical. Editor O’Dowd stated that if the university were “to teach conformity in all schools of thought” it would no longer be a university. It would then be “a machine for making mimeographed mentalities.... If the University of South Carolina rejects a valuable educator because he has one unpopular idea, then our university is not a place for hungry minds.”^[540]

A second notable example of this urge to conformity was the case of Jack H. O’Dowd himself. The nephew of *Morning News* publisher John M. O’Dowd, he almost alone amongst South Carolina news editors had attempted to steer a middle course in the segregation controversy. His difficulties were testimony to the fate of an honest and courageous dissenter. A native of Florence and a graduate of the Citadel, O’Dowd termed himself not a pro-integrationist but an anti-pro-segregationist.

Under O’Dowd’s editorship the *Morning News*, as already has been noted, opposed all attempts to destroy the “social necessity” of segregation by court order. If segregation were to be eliminated, it had to be done “by the consent of the people and as a result of an evolutionary process.” Segregation was incorrectly defended on the grounds of states rights and constitutionalism. Such arguments indicated to the rest of the world that American democracy meant that “all men are equal but some are less equal than others.”

The Florence editor accepted the decision as the law of the land and urged his readers to do likewise. Since segregation was illegal, it was only a matter of time before it would be a thing of the past. Public schools would have to be desegregated. Those who were thinking in terms of continued

segregation under a system of voluntary separation were engaging in “self-delusion and false hope.” “Within too short a period of time,” segregation would be “a legal memory” in the South. Desegregation was not a problem to be considered “in some hazy tomorrow”; it had to be confronted immediately. A policy of adopting expedients, which could at best provide only temporary segregation, would not change the final picture but it would make it more painful and expensive. There had to be a maximum price beyond which the South would be unwilling to go to preserve segregation temporarily.

During the period of adjustment to changes wrought by the Court decision, the greatest danger confronting South Carolina, warned O’Dowd, was “the growth of a new era of demagoguery.” Such would allow “the great racial issue to get out of perspective and past the point of sane solution.” Too many segregationists were already “advocating something akin to secession.” O’Dowd insisted that there was a difference between “honest opposition to the Court’s decree and demagogic reaction that borders on sedition and violates the respect and honor implicit in the theories of our national government.”^[541]

In early 1956 O’Dowd made what were to be his last clarion calls to common sense and level-headed thinking on the segregation issue. On February 26 he appealed for a policy of “militant moderation” to counter the extremists. The latter were carrying the day. Extremists, crying “traitor,” “coward” or “brainwashed,” discredited all attempts at moderation. Casting a plague on the houses of both white supremacists and the NAACP, O’Dowd believed that most South Carolinians must know “that truth and proper action lies between the sentiments” of these groups. The only true solution was for the moderates to step forth and lead the way.^[542]

O’Dowd’s plea went unheeded. Instead, the *Morning News* became more and more the object of extremist wrath. The young editor received a threatening telephone call from a man who identified himself as “the Klan.” Attempts were made to force off the road both his car and that of assistant sports editor L. B. Ballard. The latter, who was also a Baptist minister, had the rear tires of his car slashed. City editor Charles Moore was “punched” and chased from a Klan meeting which he was covering for the paper. In February 1956 the *Morning News*, for the first time in several years, experienced a drop in circulation. Reader complaints mounted. The

Florence County Democratic convention denounced the *Morning News* as a “carpetbagger press.” O’Dowd, nominated as a candidate for delegate to the state Democratic convention, ran 45th in a field of 45.^[543]

On March 11 in a lengthy editorial, O’Dowd announced his “retreat from reason.” Because of pressure from white supremacists and silence from the moderates, the *Morning News* would no longer discuss segregation in its editorial columns:

In order for a newspaper to maintain its proper position of influence for good, its editorial policy must meet with good will and its position must be accepted as expressions of good faith.

Such has not been the case with this newspaper’s expressions of opinion in the field of segregation. It is now possible that the lack of support gained for this position could lessen the paper’s effectiveness in other fields of thought and action.

To avoid this possibility, the *Morning News* must make a retreat from reason. It has become obvious that to maintain effectiveness in other important areas of thought, this newspaper must abdicate its position in the segregation controversy....

Our editorials have never advocated integration. Our editorials have opposed NAACP extremism as militantly as they have opposed absolutism on the other side of the equation....

Men seeking the fair solution have not, in two years, come forward. They do not exist or they have been unwilling to face the scorn and abuse of those in the extreme fringes of both groups.

Only the few extremists have spoken; and their voice has been accepted as that of the majority. Moderation has been intimidated by hatred, and men of calm, good will have decided that the fight is not their concern. ... Today’s South is becoming dominated by those unable or unwilling to accept the good sense or even good faith of a conflicting or modifying idea.

... By and large, our appeal to reason has brought expressions of hatred, bigotry, unreason and filth. Our plea for moderation has been greeted with threats, lies, rumor and lack of good will. Our honest

efforts to present the news—as it happens—have met with charges of distortion and collusion and with words of malice. Those who know better have not seen fit to consider this fight their concern....

Most of those who would be heard in this matter are evidently unwilling to hear thoughts of hope and peace. Editorials that do not speak sedition, bigotry, white supremacy and incitation to legislative folly and physical violence are not accepted as “honest” or “courageous.”^[544]

Reaction varied to O’Dowd’s “retreat,” or more accurately his admission of defeat. A number of letters to the editor expressed sympathy with his moderation policy; others were highly critical. *Time* magazine, in an article favorable to O’Dowd, brought to national attention the plight of the *Morning News* and its editor. Praise by a magazine such as *Time*, of course, merely increased the condemnation of white supremacists. Joe B. Powell of Florence, for example, said he “sure would hate to be on the side of TIME or any other lousy YANKEE magazine or newspaper” while living in the South among his “southern white friends.” Florentines, he said, were “sick and fed up” with O’Dowd’s ideas on segregation. In line with the advice of Dorothy Moore Guess to unhappy Southerners, he suggested that O’Dowd “move to the North” where he would feel at home.^[545] The *News and Courier* considered the whole affair “a grandstand play” to enable O’Dowd to reap “publicity as an integrationist advocate.”^[546]

O’Dowd remained as editor of the *Morning News* until August 3 when he accepted a position on the news and editorial staff of the *Chicago Sun-Times*. The announcement of his resignation contained no mention of the segregation controversy. In the summer of 1957 he was appointed Dean of Students of the University of Chicago’s university college.

In incidents such as these white South Carolina demonstrated its opposition to those few white dissenters who would accept integration or who would admit that there is an element of right on the side of those who oppose the racial *status quo*.

CHAPTER XI

THE LOST CAUSE RELOST

The racially pure ... Teuton on the American Continent
has arisen to be its master; he will remain master so
long as he too does not succumb to blood defilement.
—Adolf Hitler, *Mein Kampf*

In 1954 historian Francis B. Simkins told the Southern Historical Association: “There is a reality about the South which historians with egalitarian standards find hard to understand or appreciate.” The South, said this native South Carolinian, should be judged by its own standards, not those of a liberal, equalitarian, democratic America.^[547] Professor Simkins’ advice has **not** been followed in this study.

In contemplating the arguments advanced by white South Carolinians against integrating the races on any level, one is struck by the prominence given to expressions of fear that integration will inevitably lead to wholesale “amalgamation” and/or “miscegenation” which will result in turn in the destruction of Southern civilization. An excellent example of this reasoning is contained in the late Herbert Ravenel Sass’s article “Mixed Schools and Mixed Blood,” which appeared in the November 1956 issue of the *Atlantic Monthly*. “It is the deep conviction of nearly all white Southerners,” Sass wrote, “that the mingling or integration of white and Negro children in the South’s primary schools would open the gates to miscegenation and widespread racial amalgamation.” To guard against this “danger,” he declared, Southerners would maintain segregation in public schools at all costs. “The South must do this because, although it is a nearly universal instinct, race preference is not active in the very young. Race preference (which the propagandists miscall race prejudice or hate) is one of those instincts which develop gradually as the mind develops and which,

if taken in hand early enough, can be prevented from developing at all.” If the South allowed its small children to attend integrated schools in which white and colored would be “brought together intimately and constantly” there would be many “in whom race preference would not develop.” This would be the ultimate tragedy for the South and for civilization. For “a very few years of thoroughly integrated schools would produce large numbers of indoctrinated young Southerners free from all ‘prejudice’ against mixed matings.” Negro leaders, he concluded, desired racial amalgamation; “they not only want the right to amalgamate through legal intermarriage but they want that right to be exercised widely and frequently.”^[548]

The concern of South Carolinians with the “threat” of intermarriage is evidenced by the frequency with which this subject is mentioned in letters to newspapers in the state. Though the logic and factual accuracy of many of these letters leave something to be desired, they none the less are illustrative of a state of mind. For example, W. A. Morris of Charleston, referring to the mulattoes in the NAACP, said: “In the animal kingdom the mongrel is despised and outlawed, the good farmer uses only purebred stock and dog and cat fanciers insist on pedigreed pets. Should we expect less of man, made in the image of God, or attempt to improve on God’s work?”^[549] Mr. Morris did not make it exactly clear how both whites and blacks but not mulattoes could be made in God’s image. Nor did he concern himself with how mulattoes got to be what they are.

Sentiments similar to those of Morris were expressed by Mrs. S. L. Blackman of Darlington: “Cross-bred animals lose the higher qualities of the parent stock,” she asserted, “and the low qualities always come to the fore. That’s a law of nature you can’t get away from.... If segregation is broken down everywhere, this world will be peopled by a mongrel race, eventually fit for nothing, not worth the air they would breathe, just scum of the earth.”^[550] Mrs. Blackman’s dogmatic assertions are in direct contrast to the findings of the late Professor Franz Boas, America’s greatest cultural anthropologist. Concerning attitudes such as those expressed by Mrs. Blackman, Boas wrote: “The claim has been made ... that mixed races ... are inferior in physical and mental qualities, that they inherit all the unfavorable traits of the parental races. So far as I can see, this bold proposition is not based on adequate evidence.” Going even further, he declared, “The few cases in which it has been possible to gather strictly scientific data on the

physical characteristics of the half-bloods have rather shown that there may be a certain amount of physical improvement in the mixed race.”^[551]

Stanley F. Morse, a chronic letter-to-the-editor writer and prominent in white supremacy circles, told the *News and Courier* that the progeny of “uncontrolled [interracial] crossings are mongrels which are more apt to be inferior than superior.” “The fall of the Egyptian, Roman and other great civilizations,” he continued, “was largely due to the development of a mongrel race caused by interbreeding with slaves and ‘barbarians.’” Furthermore, “planned mongrelization of a race in 740 B.C. produced the despised Samaritans.” Those who would condone such mongrelization were “breaking the Divine Laws.” Other writers also considered intermarriage a violation of the will of God. Mrs. E. R. Mansfield of Mt. Pleasant, for example, wrote the *News and Courier* editor that “naturally this process of maintaining racial purity and integrity at the same time that we make possible equality of opportunity, is going to impose a hardship and some personal tragedies, on some individuals. But this will not be the first hard thing that God in His infinite goodness has demanded for us.”^[552]

Three principal conclusions result from this study: (1) South Carolina has not yet embraced democracy as the term is generally defined by Americans outside the South. (2) Many white South Carolinians still accept a racism which in its most extreme forms approaches that of Hitler and the Nazis. (3) Not a few of the arguments and defenses advanced by segregationists against the Court decision are so illogical and so riddled with inconsistencies that sometimes one is obliged to question not only the sincerity but also the intelligence of the spokesmen. These conclusions have been illustrated in the body of the study but a short summary is in order.

The denial of equality of access or opportunity in any public area, function or facility by a “superior” group to an “inferior” group constitutes the antithesis of democracy. In this respect South Carolina, like all of the Southern states, is undemocratic, a condition which persons concerned with promoting integration have not failed to note. Clarence Mitchell, the Washington NAACP official, referred to South Carolina as “the frontier of democracy,” a place where “the real meaning of America” had not penetrated.^[553]

The attitude of leading segregation spokesmen regarding democracy is more revealing than that of critics of the South. The *News and Courier* is the state's most articulate expert on the "phony spiels about democracy." The American people had gone "hog-wild in worshipping 'democracy,'" complained this paper. Democracy with its "unrestricted franchise" did not guarantee good government. Indeed there was "ample precedent for requiring that those who vote on public issues be able to understand" what they were doing. Property, too, was a relevant qualification. George Washington himself had warned against the "'dangerous multitudes without property and without principle.'" "Some persons" would object to the use of property as a qualification for voting but property was "still a gauge of competence.... Paupers are and should be excluded from deciding how other people's money is to be spent." Editor Thomas R. Waring's editorials also argued that majority rule might be the essence of democracy but the United States was not a democracy. It was a republic. A mob might be a majority at certain times. "The condemnation of Jesus Christ had the approval of a majority. Throughout the history of the church there have been martyrs of majorities."^[554]

A democracy, according to the *News and Courier*, did not guarantee protection of sectional or local interests. But the United States—"a federal republic"—was especially designed for this end. Under the American constitutional system the parts were supposed to be equal to the whole. In this sense then it was not "the democratic way to force the majority of the people of a REGION to live in a manner that is repugnant to them. The democratic way should take into consideration the local as well as the national feelings of citizens."^[555] John C. Calhoun never better expressed these sentiments.

The *Record*, too, abhorred "absolute democracy." The United States was never intended to be such. It was "a limited representative democracy." The *Record* deplored constitutional flexibility. It maintained that the presumption on which the Supreme Court based its decision outlawing school segregation, namely, that the Constitution was "a growing document," eliminated, "for all practical purposes," the Constitution as "a safeguard of the people's purposes," as "a safeguard of the people's rights and as a limitation upon government." The *Record* maintained that the integration problem arose from the fact that "so many of the minority

groups, who have been urging the abolition of segregation and other such ‘reforms’” were “not inheritors of the British tradition out of which the American Constitution grew.” These groups saw nothing to be feared in constitutional amendments by the Supreme Court. It was all “democracy” to them and by democracy they meant what the United States Constitution did not mean—absolute democracy.^[556]

On this subject the *State* was equally vociferous. Referring to the term human rights as “meaningless,” the Columbia newspaper in 1957 declared: “The only right with which man is endowed at birth is the right to survive if he can. The right to vote, think freely and speak freely” and the right of representative government “are created by government and society.” Social Darwinism in its rawest form is not yet dead in South Carolina.

Not only do the segregationists deny the validity of many of the basic concepts of democracy but they also dispute the authority of the federal government to assure equal treatment under the laws of the United States to all Americans. They uphold what they consider to be the constitutional rights of the states above human rights as applied to the Negro. Democracy is denied to Negroes in the name of democratic government. Harking back to the conservative nature of the Constitution as originally written, the *News and Courier* thought it “ridiculous that a document which recognized slavery” was now being “brandished as a guarantee of all sorts of supposed rights. Did the framers of the Constitution, who approved of slavery, sit down and write a document guaranteeing to Negroes the right to send their children to mixed schools?” The question of the Charleston paper reveals more of its fetish for constitutionalism than does the answer: “The framers didn’t guarantee Negroes anything—not even protection from the whip!” The *Record*, at least recognizing that the Court based its decision on the Fourteenth Amendment and not the original Constitution, declared that “every student of the Constitution” knew that the amendment “was never constitutionally submitted to the states or constitutionally ratified” and was therefore “not today constitutionally a part of the Constitution.”^[557] The *Record*’s arguments concerning the ratification of the Fourteenth Amendment contain, of course, an element of historical truth, but only a warped approach to the problem of constitutionalism can hold that the Amendment is not part of the fundamental law of the land.

Not only is there a considerable body of anti-democratic opinion in the state but it is also safe to say that most white South Carolinians consider the Negro a member of an inferior race. Dr. E. Ryan Crow, chairman of the South Carolina education finance commission, observed, for example, that “the white man feels he belongs to a superior race.” To support this belief in racial superiority segregationists often resort to science or pseudo-science. The *News and Courier* thought it “curious” that many Americans had “abandoned the scientific approach to study of the human species.” “Leaders of public opinion,” it complained, had thrown overboard “the scientists’ cold appraisal” and had fallen back on “sentiment, on propaganda, on political catchwords.” Anything that tended to confirm “inherent differences among races,” was “frowned on as ‘racism.’ Yet a large body of scientific evidence indicates that important differences DO exist” between the races.^[558]

These comments by the *News and Courier* brought a letter of agreement from Francis Fielding-Reid, M.D., of Charleston who warned South Carolinians against accepting “a certain type of pseudo-scientific balderdash.” Said the doctor:

Some years ago a so-called “prominent scientist” made a statement to the effect that the brains of people of various races had been examined anatomically and found essentially identical, and that this indicated that there were no essential intellectual nor emotional racial characteristics other than those caused by environment. Such statements are puerile or are made with intent to deceive....

This writer has heard pseudo-scientific sophistry to the effect that, since most deservedly prominent colored people have some white ancestry, mixing the races is desirable in order to produce more of these individuals. Such statements, too, are puerile and fraudulent.^[559]

Other South Carolinians expressed similar opinions. Flora Bell Surles of Mt. Pleasant reported that ethnologists, whom she failed to name, had “shown” that the Negro race was “as yet ‘a childlike race.’” Gilbert Wilkes, also of Mt. Pleasant, described Negroes as belonging to a race which had “no history, or culture, or background of training in either social behavior or

custom.” They were “only four generations removed from the trackless jungle” where they had lived “for countless thousands of years, without any development and in many cases without even having devised a language.”^[560] Harold A. Petit of Charleston, vice-president and regional manager for the South Carolina Electric and Gas Company and past national president of Exchange Clubs, declared: “The Negro is irresponsible in every degree. I think it is a basic trait, although other conditions—environment, economics and education—contribute to his so-called lethargy.”^[561]

A “Dirt Farmer” from “Rural South Carolina” expressed in the *News and Courier* the sentiments of the state’s most extreme racists. Conceding that segregation could not be “theoretically defended upon the basis of any code of ethics,” he nonetheless favored it because “like Hitler,” he believed “that the Aryan people are superior to any other who have yet trod the face of this earth during the period of recorded history, that they have the inherent ability to contribute more to the future well-being of mankind than any other.” What were the Aryan’s points of superiority, according to the “Dirt Farmer?” Their “curiosity: the desire to know for the sake of knowledge itself;” their “urge to reshape the world more to their own liking;” and their “seeking and finding newer and truer answers” to the problems of civilization. In the interest of impartiality he searched for points of superiority in the Negro. He could find only one—“a more highly developed sense of rhythm.” If the attributes of the Aryans were ever merged “with those of their inferiors, that fatal error can never be redeemed,” he concluded. Mankind’s slow progress would end “and the wave of the future” would push him “inexorably back into darkness and oblivion.”^[562]

Logical inconsistency is the most striking characteristic of the many statements made in defense of racial segregation. The foregoing pages have made this manifestly clear. But then who is logical when it comes to the question of racial superiority? Adolf Hitler, Joseph Goebbels and their like were living proof that logic really didn’t matter.

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CHAPTER I

[5] George B. Tindall, *South Carolina Negroes 1877-1900*, (Columbia: University of South Carolina Press, 1952), pp. 291-293.

[6] *Ibid.*, pp. 54, 59, 73, 89, and 91. See also Tindall, "The Campaign for the Disfranchisement of Negroes in South Carolina," *Journal of Southern History*, XV (May 1949), 212-34.

[7] Tindall, *South Carolina Negroes 1877-1900*, p. 303. See also Tindall, "The Question of Race in the South Carolina Constitutional Convention in 1895," *Journal of Negro History*, XXXVII (July 1952), 277-303.

[8] In 1905 the *Charleston News and Courier* was sued by a white man whom the *News and Courier* had referred to in a news story as a Negro. In awarding damages to the plaintiff the court held that "when we think of the radical distinction subsisting between the white man and the black man, it must be apparent that to impute the condition of the Negro to a white man would affect his (the white man's) social status, and, in case anyone publish a white man to be a Negro, it would not only be galling to his pride, but would tend to interfere seriously with the social relation of the white man with his fellow white men." Gilbert T. Stephenson, *Race Distinctions in American Law*, (New York: Association Press, 1911), p. 28.

[9] Quoted in Tindall, *South Carolina Negroes 1877-1900*, p. 238.

[10] Full inaugural address quoted in Lewis K. McMillan, *Negro Higher Education in the State of South Carolina*, (Privately published, 1952), pp. 249-251.

[11] Gustavus M. Pinckney (ed.), Carlyle McKinley, *An Appeal to Pharaoh: The Negro Problem and its Radical Solution*, (Columbia: The State Co., 1907), p. 107.

[12] Anthony Harrigan (ed.), *The Editor and the Republic: Papers and Addresses of William Watts Ball* (Chapel Hill: University of North Carolina Press, 1954), pp. 30, 72.

[13] *New York Times*, Mar. 1, 1944, p. 13. The Negro Citizens Committee of South Carolina condemned this resolution as "astonishing to the Negroes of South Carolina."

[14] *Ibid.*, Mar. 1, 1944, p. 13. Senator "Cotton Ed" Smith congratulated the House for its passage of this resolution, saying, "We are damned tired of these butterfly preachers who do not know conditions in the South." *Ibid.*, Mar. 2, 1944, p. 34.

[15] In 1932 the Chairman of the Columbia Board of Election Commissioners ruled that Negroes were excluded from voting in primary elections unless they had voted for Wade Hampton for governor in 1876 and presented ten witnesses to substantiate it. *Ibid.*, Apr. 21, 1932, p. 24.

[16] "Why South Carolina Keeps the Poll Tax," *Christian Century*, LXIII (Feb. 6, 1946), 166. The author of this article considered the above quote evidence that "the real issue is not race," but that race was only a "smoke screen" which "a little oligarchy" used to maintain control of the state through the one-party system. However, it is the opinion of informed observers that although the "little oligarchy" does exercise more effective control through a one-party system, the real issue is race. The one party system is simply the most effective method of political control by whites.

[17] *New York Times*, Dec. 5, 1952, p. 14.

[18] *Independent*, Aug. 28, 1956, p. 2.

[19] See George S. Parthemos, *The Supreme Court and the Rights of Negroes Under the Reconstruction Amendments*, (Unpublished Master's thesis, Department of Political Science, University of South Carolina, 1949), Chapter VII.

[20] *New York Times*, Apr. 14, 1944, p. 1.

[21] Quoted in *To Secure These Rights*, Report of the President's Committee on Civil Rights, (New York: Simon and Schuster, 1947), p. 36.

[22] Parthemos, *op. cit.*, p. 191.

[23] Judge Waring is one of the most interesting personalities encountered in the study of the race issue in South Carolina. Senator "Cotton Ed" Smith's campaign manager in 1938, he was representative of the most "respectable" elements of Charleston society, was "a descendant of Confederates," and had the support of the most orthodox of white supremacists when he was made a federal judge by President Roosevelt. After his decisions outlawing the white primary (and also after his divorce and remarriage to an "outsider" with "radical" views on the race question) he was completely ostracized by white Charleston and South Carolina society. He and his wife became complete integrationists. "The Southern advocates of white supremacy," he said, "are mentally sick." "We don't have a Negro problem in the South, we have a white problem." *New York Times*, Feb. 27, 1950, p. 17. See also "Judge Waring on the Civil Rights Issue," *Nation*, CLXXIV (June 7, 1952), 540-541. For Mrs. Waring's views see "Mrs. Waring Meets the Press," *American Mercury*, LXX (May 1950), 562-569.

[24] *To Secure These Rights*, p. 36.

[25] Parthemos, *op. cit.*, pp. 192-195.

[26] *Ibid.*, pp. 194-195.

[27] *New York Times*, Apr. 20, 1948, p. 1.

[28] *Ibid.*, July 28, 1948, p. 5.

[29] *Ibid.*, Aug. 23, 1938, p. 5.

[30] Cassandra M. Birnie, "Race and Politics in Georgia and South Carolina," *Phylon*, XIII (Sept., 1952), 241.

[31] David D. Wallace, *South Carolina: A Short History*, (Chapel Hill: University of North Carolina Press, 1951), p. 679.

[32] *New York Times*, July 8, 1950, p. 14.

[33] *Ibid.*, Feb. 29, 1948, p. 9; July 17, 1948, p. 3; Oct. 3, 1948, p. 40; Feb. 24, 1949, p. 15.

[34] *Ibid.*, Feb. 7, 1952, p. 21.

[35] Other considerations, of course, entered into the revolt. Economic factors were important, for example, in the opposition of Southern financial and industrial interests to Truman's proposal for repeal of the Taft-Hartley Act, which contained provisions for state right-to-work laws. Other economic interests, e.g. oil interests, also supported the movement. Nevertheless the revolt was sold to the rank and file white South Carolinians on the grounds of race and they undoubtedly thought, this was the main consideration.

[36] *New York Times*, July 20, 1948, p. 1; Oct. 3, 1948, p. 40.

[37] *Ibid.*, Aug. 1, 1948, p. 44; Aug. 12, 1948, p. 44.

[38] *Ibid.*, Dec. 5, 1952, p. 14.

[39] Tindall, *South Carolina Negroes 1877-1900*, p. 222.

[40] Simkins, "Race Legislation in South Carolina since 1865," *South Atlantic Quarterly*, XX (June 1921), 170.

[41] Quoted in McMillan, *op. cit.*, pp. 257-58. Gov. Blease also wanted to secure as texts for the public schools "books, especially histories [written] by Southern authors for Southern children."

[42] Grace Graham, "Negro Education Progresses in South Carolina," *Social Forces*, XXX (May 1952), 431-432.

[43] Figures quoted below were taken from Harry S. Ashmore, *The Negro and the Schools*, (Chapel Hill: University of North Carolina Press, 1954), pp. 152-53, 156-59.

[44] *Ibid.*, pp. 115, 147, 160, 166.

[45] McMillan, *op. cit.*, p. 219.

[46] *Ibid.*, pp. 268, 199, 207, 211.

[47] *Ibid.*, pp. 211-212.

[48] Parthemos, *op. cit.*, pp. 94-96.

CHAPTER II

[49] *New York Times*, June 3, 1951, Section IV, p. 7.

[50] Julian Scheer, "The White Folks Fight Back," *Nation*, CLXXXI (Oct. 31, 1955), 10.

[51] *New York Times*, June 3, 1951, Section IV, p. 7.

[52] Scheer, *loc. cit.*, p. 10. For a competent account of the Clarendon situation see John Bartlow Martin, *The Deep South Says Never* (New York: Ballantine Books, 1957), pp. 43-77.

[53] *News and Courier*, May 18, 1954, p. 11.

[54] *New York Times*, May 29, 1951, p. 27; May 30, 1951, p. 12.

[55] Walter White, *How Far the Promised Land*, (New York: Viking Press, 1952), p. 47.

[56] *New York Times*, May 29, 1951, p. 27.

[57] *Ibid.*, May 30, 1951, p. 12; *News and Courier*, May 18, 1954, p. 11.

[58] "Human Rights are Now," *Nation*, CLXXIII (July 14, 1951), 24; *New York Times*, June 24, 1951, p. 72.

[59] *New York Times*, June 26, 1951, p. 40.

[60] *Ibid.*, Mar. 19, 1951, p. 18; June 25, 1951, p. 19; July 10, 1951, p. 21; also Ashmore, *op. cit.*, p. 96.

[61] *New York Times*, Dec. 11, 1952, p. 44.

[62] *Ibid.*, May 27, 1951, p. 40.

[63] Howard G. McClain and Henry G. Ruark, "Education or Segregation?" *Christian Century*, LXX (Apr. 1, 1953), 378.

[64] First interim report of the Gressette Committee, July 28, 1954, quoted in S. C. Senate *Journal* (1955), p. 14; also *News and Courier*, June 16, 1954, p. 1.

[65] McClain and Ruark, *loc. cit.*, p. 377; also *New York Times*, Mar. 14, 1952, p. 16.

[66] *New York Times*, Dec. 11, 1952, p. 44.

[67] Supreme Court of the United States, "Brief of Appellees on Reargument," Case of Harry Briggs, Jr., *et al.*, Appellants, against R. W. Elliott, *el al.*, Appellees, October Term 1953, pp. 1-2.

[68] For full reply of the state to the question see *ibid.*, pp. 8-83; see also p. 84.

[69] Full text of the Court's opinion is quoted in Appendix I.

[70] *News and Courier*, Sept. 16, 1954, p. 1.

[71] *Record*, Nov. 15, 1954, p. 1.

[72] Full text of the implementing decision is quoted in *New York Times*, June 1, 1955, p. 26.

[73] *Morning News*, July 16, 1955, p. 1.

CHAPTER III

[74] *Morning News*, May 18, 1954, p. 1; May 20, 1954, p. 5-A; Mar. 2, 1956, p. 10-A.

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- [78] *News and Courier*, May 18, 1954, p. 1; May 19, 1954, p. 4; May 21, 1954, p. 4-A; May 26, 1954, p. 4-A; Nov. 23, 1954, p. 14-A.
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- [80] *Independent*, May 18, 1954, p. 4; May 25, 1954, p. 4; Dec. 1, 1954, p. 4.
- [81] *Morning News*, May 18, 1954, p. 4; May 19, 1954, p. 4; Apr. 16, 1955, p. 4.
- [82] *News and Courier*, May 28, 1954, p. 8-A.
- [83] *Independent*, June 9, 1954, p. 8A [Italics mine].
- [84] *News and Courier*, May 21, 1954, p. 10-A; May 24, 1954, p. 2.
- [85] *Record*, June 20, 1955, p. 1; *Independent*, June 28, 1955, p. 1.
- [86] *Record*, June 1, 1955, p. 4-A; *Morning News*, June 1, 1955, p. 4; *Independent*, June 2, 1955, p. 4; *News and Courier*, June 4, 1955, p. 6-A.
- [87] *Morning News*, June 1, 1955, p. 1.
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- [89] *News and Courier*, May 24, 1956, p. 12-A; May 25, 1955, p. 10-A; Nov. 25, 1954, p. 8-A; Nov. 13, 1954, p. 4-A; Dec. 5, 1954, p. 14-A.
- [90] *Record*, Oct. 28, 1955, p. 4-A; Apr. 27, 1955, p. 4-A.
- [91] *Independent*, Dec. 1, 1955, p. 4.
- [92] *State*, June 27, 1957, p. 4; July 5, 1957, p. 4.
- [93] *Record*, June 26, 1957; *State*, July 16, 1957, p. 4.
- [94] James F. Byrnes, "The Supreme Court Must be Curbed," *U.S. News and World Report*, XL (May 18, 1956), 50-58.
- [95] *News and Courier*, Aug. 19, 1955, p. 10-A.
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- [97] *News and Courier*, July 17, 1955, p. 9-A; Oct. 30, 1955, p. 1-E; *Record*, May 29, 1956, p. 4-A.
- [98] *News and Courier*, Oct. 7, 1954, p. 4-A.
- [99] *Ibid.*, Aug. 1, 1955, p. 7-A.
- [100] *To Secure these Rights*, Report of the President's Committee on Civil Rights pp. 81-82.
- [101] Thomas R. Waring, "The Southern Case against Desegregation," *Harper's*, CCXII (Jan. 1956), 39-45.

- [102] Herbert R. Sass, "Mixed Schools and Mixed Blood," *Atlantic Monthly*, CXCVIII, (Nov. 1956), 45-49.
- [103] Oscar Handlin, "Where Equality Leads," *ibid.*, pp. 50-54.
- [104] *News and Courier*, Sept. 14, 1956, p. 12-A; Apr. 28, 1955, p. 16-A; Nov. 17, 1954, p. 10-A.
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- [113] *Morning News*, Sept. 23, 1956, p. 4-A; also James F. Byrnes, "The Supreme Court Must be Curbed," *U.S. News and World Report*, XL (May 18, 1956), 58; *News and Courier*, June 6, 1954, p. 4-A.
- [114] *News and Courier*, Aug. 28, 1955, p. 10-A.
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- [116] *Ibid.*, Dec. 3, 1954, p. 10-A.
- [117] *Record*, Nov. 26, 1954, p. 1.
- [118] *Ibid.*, May 31, 1954, p. 4-A; June 17, 1955, p. 4-A; July 11, 1955, p. 4-A; Oct. 12, 1956, p. 4-A.
- [119] *Independent*, Dec. 1, 1954, p. 4.
- [120] *Morning News*, Aug. 5, 1955, p. 1; *News and Courier*, Aug. 24, 1955, p. 10-A; Aug. 31, 1956, p. 18-A.
- [121] *News and Courier*, July 19, 1955, p. 1-B.
- [122] *Record*, Dec. 29, 1955, p. 3-B.
- [123] *Ibid.*, Oct. 17, 1957, p. 10-A; *State*, Oct. 18, 1957, p. 2-B.
- [124] *News and Courier*, Jan. 15, 1957, p. 1.
- [125] *State*, June 25, 1957, p. 1.

CHAPTER IV

- [126] *News and Courier*, Sept. 21, 1956, p. 1-B.

[127] According to a *News and Courier* reporter, Eldridge Thompson, Klan membership rocketed during 1956 and 1957. In addition to Bickley's organization the other principal Klan groups are the Association of South Carolina Klans with headquarters in West Columbia and the National Ku Klux Klan of South Carolina which operates out of Greenville. *Ibid.*, Oct. 27, 1957, p. 12-A.

[128] *Morning News*, Aug. 21, 1955, p. 1

[129] *Ibid.*, June 12, 1955, p. 1.

[130] *Ibid.*, Mar. 25, 1956, p. 1; July 29, 1956, p. 1.

[131] *News and Courier*, Aug. 20, 1956, p. 2.

[132] *Morning News*, July 29, 1956, p. 1.

[133] *State*, July 26, 1957, p. 2-D; Aug. 5, 1957, p. 5-A; Aug. 10, 1957, p. 1-B; Jan. 15, 1958, p. 1-B; Jan. 21, 1958, p. 1-B; Jan. 22, 1958, p. 1; *Record*, Aug. 3, 1957, p. 1; Aug. 9, 1957, p. 1; Jan. 15, 1958, p. 8-A; Jan. 22, 1958, p. 1; Jan. 23, 1958, p. 1.

[134] *Morning News*, July 1, 1956, p. 4-A; *Independent*, Jan. 27, 1956, p. 4; *News and Courier*, June 11, 1954, p. 4-A; June 17, 1954, p. 12-A.

[135] *Independent*, Feb. 3, 1956, p. 4.

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[144] *Morning News*, Mar. 22, 1955, p. 4; June 11, 1955, p. 1; Aug. 19, 1955, p. 4-A.

[145] *Ibid.*, Aug. 12, 1955, p. 9-A; June 17, 1955, p. 1.

[146] *News and Courier*, July 8, 1955, p. 10-A.

[147] *Ibid.*, Aug. 13, 1955, p. 8-A.

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[149] *Ibid.*, Sept. 9, 1955, p. 14-A.

[150] *Record*, Dec. 29, 1955, p. 1; *News and Courier*, Dec. 31, 1955, p. 6-A.

[151] *News and Courier*, May 26, 1955, p. 14-A; Mar. 18, 1956, p. 2-C; Oct. 4, 1955, p. 8-A.

[152] *Ibid.*, Sept. 15, 1955, p. 1; Sept. 16, 1955, p. 1; Sept. 17, 1955, p. 1.

[153] *S. C. Senate Journal* (1956), pp. 248-249.

[154] *Morning News*, Feb. 11, 1956, p. 7.

[155] *News and Courier*, Sept. 23, 1955, p. 10-A.

[156] *Record*, Sept. 6, 1955, p. 1.

[157] *News and Courier*, July 1, 1956, p. 14-C. By this date there were councils in the counties of Aiken, Allendale, Bamberg, Beaufort, Calhoun (2), Charleston (6), Clarendon (3), Darlington (4), Dorchester (2), Fairfield, Florence (7), Georgetown, Jasper, Kershaw, Lee (2), Lexington, Orangeburg (9), Richland (2), Spartanburg, Sumter and Williamsburg (7).

[158] By February 1957 there were 58 local councils in South Carolina. By this time leadership in the state organization had changed. Thomas D. Keels of Sumter was state chairman, Dr. W. M. Croswell of Timmonsville, vice-chairman and H. L. Bowling of Elloree, treasurer. *News and Courier*, Jan. 18, 1957, p. 1-B; Feb. 15, 1957, p. 10-A.

[159] *Ibid.*, July 1, 1956, p. 14-C.

[160] *Ibid.*, Feb. 24, 1957, p. 2-A.

[161] *Ibid.*, Mar. 4, 1957, p. 12.

[162] *Morning News*, Aug. 30, 1955, p. 1.

[163] *News and Courier*, July 1, 1956, p. 14-C; Jan. 9, 1956, p. 12.

[164] *Ibid.*, May 6, 1956, p. 1.

[165] *Ibid.*, May 27, 1956, p. 14-A.

[166] *Record*, Jan. 27, 1956, p. 1. Another indication of the support given the Council was the resolution unanimously adopted by the state legislature commending the formation of the Councils and offering the legislators' "approval and encouragement" to the movement.

[167] *News and Courier*, Aug. 31, 1955, p. 10-A; Oct. 6, 1955, p. 6-A.

[168] *Morning News*, Aug. 16, 1955, p. 12.

[169] *Ibid.*, Aug. 28, 1955, p. 1.

[170] *Record*, Feb. 11, 1956, p. 1.

[171] *News and Courier*, Oct. 10, 1955, p. 1.

[172] *Morning News*, Aug. 17, 1955, p. 12; Aug. 21, 1955, p. 3-A.

[173] This summary of the Orangeburg boycott was taken largely from Edward Gamarekian, "The Ugly Battle of Orangeburg," *Reporter*, XVI (Jan. 24, 1957), 32-34, and an article written by W. D. Workman, Jr., in the *News and Courier*, Dec. 3, 1955, p. 1-E; see also *Record*, Apr. 13, 1956, p. 2-A.

[174] Gamarekian, *loc. cit.*, pp. 32-34.

[175] *Morning News*, Jan. 25, 1956, p. 7; S. C. House *Journal* (1956), p. 101.

[176] *Record*, Mar. 26, 1956, p. 1.

[177] *Ibid.*, Apr. 7, 1956, p. 1.

[178] *Morning News*, July 18, 1956, p. 6.

- [179] Gamarekian, *loc. cit.*, pp. 32-34.
- [180] *Record*, Aug. 25, 1955, p. 4-A.
- [181] *News and Courier*, Aug. 31, 1955, p. 10-A.
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- [183] *News and Courier*, May 6, 1956, p. 16-A; July 1, 1956, p. 14-A.
- [184] *Morning News*, Mar. 6, 1955, p. 4-A; May 19, 1955, p. 4-A.
- [185] *Independent*, Oct. 22, 1954, p. 1.
- [186] *News and Courier*, Oct. 24, 1954, p. 4-A.
- [187] *Ibid.*, Aug. 31, 1955, p. 10-A.
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- [189] *Morning News*, Oct. 3, 1955, p. 1.
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- [192] *Morning News*, Aug. 29, 1955, p. 4.
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- [194] *Morning News*, Dec. 23, 1955, p. 5.
- [195] *News and Courier*, Aug. 27, 1954, p. 1.
- [196] *Record*, Aug. 15, 1957, p. 1; *News and Courier*, Aug. 16, 1957, p. 1.
- [197] *Morning News*, Nov. 10, 1954, p. 5.
- [197] *Independent*, Feb. 5, 1956, p. 1.
- [199] *Record*, Feb. 21, 1956, p. 7-A.
- [200] *Ibid.*, Feb. 22, 1956, p. 10-A.
- [201] *State*, June 27, 1957, p. 1; Sept 10, 1957, p. 7-A; Sept. 27, 1957, p. 3-A;
News and Courier, Oct. 17, 1957, p. 1-B.
- [202] *News and Courier*, May 8, 1956, p. 7-A.
- [203] *Independent*, Apr. 19, 1956, p. 1.
- [204] *News and Courier*, May 8, 1956, p. 7-A.
- [205] *Ibid.*, Oct. 7, 1955, p. 1-B.
- [206] *Morning News*, Nov. 7, 1955, p. 1.
- [207] *News and Courier*, July 15, 1955, p. 12-A.
- [208] *Morning News*, Sept. 2, 1954, p. 1.
- [209] *News and Courier*, Oct. 14, 1956, p. 14-A.
- [210] *Ibid.*, Sept. 19, 1954, p. 14-D; Sept. 8, 1954, p. 1.

- [211] *Ibid.*, Aug. 16, 1955, p. 8-A; *Independent*, Oct. 26, 1954, p. 14.
- [212] *Morning News*, May 27, 1954, p. 4; May 29, 1954, p. 2.
- [213] *Record*, Sept. 8, 1955, p. 1.
- [214] *News and Courier*, July 18, 1956, p. 1-B; Aug. 28, 1955, p. 10-A.
- [215] *Morning News*, Mar. 5, 1956, p. 5.
- [216] *News and Courier*, May 30, 1954, p. 3-B.
- [217] *State*, July 20, 1956, p. 10-B; *News and Courier*, Dec. 18, 1956, p. 10-B.
- [218] *News and Courier*, Feb. 16, 1957, p. 9-A.
- [219] *Morning News*, Sept. 2, 1954, p. 3-A.
- [220] *Independent*, May 25, 1954, p. 6; June 1, 1954, p. 14.
- [221] *News and Courier*, July 19, 1954, p. 4.
- [222] *Ibid.*, Feb. 5, 1956, p. 4-A.
- [223] *Ibid.*, Sept. 12, 1954, p. 4.
- [224] *Ibid.*, Sept. 11, 1955, p. 2-C.
- [225] *Ibid.*, Oct. 24, 1954, p. 12-A.
- [226] *Ibid.*, Sept. 4, 1955, p. 8-A; Feb. 13, 1956, p. 8-A; Aug. 31, 1954, p. 4-A.
- [227] *Morning News*, May 13, 1954, p. 4.
- [228] *News and Courier*, Feb. 28, 1956, p. 8-A.
- [229] In this summary the following *News and Courier* editorials were considered: June 3, 1954, p. 4-A; Aug. 8, 1954, p. 4-A; Aug. 26, 1954, p. 4-A; Feb. 8, 1955, p. 8-A; June 12, 1955, p. 14-A; June 5, 1955, p. 14-A; Aug. 14, 1955, p. 12-A; Feb. 19, 1956, p. 12-A; May 6, 1956, p. 16-A; July 1, 1956, p. 14-A.
- [230] *Ibid.*, Aug. 31, 1954, p. 4-A.

CHAPTER VI

- [231] *Morning News*, Sept. 4, 1955, p. 4-A.
- [232] *Ibid.*, Feb. 28, 1955, p. 1; *News and Courier*, June 29, 1954, p. 4-A.
- [233] *News and Courier*, Dec. 7, 1955, p. 12-A; Aug. 26, 1955, p. 12-A; also Thomas R. Waring, "The Southern Case Against Desegregation," *Harper's*, CCXII (Jan., 1956), 43.
- [234] *News and Courier*, Dec. 5, 1955, p. 3.
- [235] *Record*, Aug. 5, 1954, p. 4-A.
- [236] *Independent*, Feb. 27, 1956, p. 13-A. For comparison, 71 percent of the people outside the South (35 states) approved the decision, 24 percent

disapproved it and five percent were undecided.

[237] *News and Courier*, Mar. 1, 1956, p. 13-A; Mar. 15, 1956, p. 2-B.

[238] *Independent*, June 13, 1956, p. 37.

[239] *News and Courier*, Mar. 16, 1956, p. 1-B; Nov. 24, 1955, p. 1-B.

[240] *Record*, Nov. 10, 1955, p. 1-B; *Morning News*, June 15, 1954, p. 10-B; *Record*, Jan. 14, 1955, p. 1.

[241] *News and Courier*, June 1, 1954, p. 6; May 26, 1954, p. 1; May 21, 1954, p. 10-A.

[242] *Morning News*, Mar. 7, 1956, p. 2; June 24, 1955, p. 6-B; Sept. 19, 1955, p. 8-A.

[243] *News and Courier*, Sept. 20, 1955, p. 8-A; Sept. 22, 1955, p. 14-A; *Independent*, Sept. 29, 1955, p. 4.

[244] *News and Courier*, Mar. 16, 1956, p. 1-B; Oct. 22, 1955, p. 1-B; Oct. 19, 1955, p. 12-A.

[245] *Independent*, May 6, 1954, p. 16.

[246] *News and Courier*, Dec. 5, 1955, p. 3; *Record*, Apr. 26, 1956, p. 2-B.

[247] *News and Courier*, Sept. 19, 1954, p. 14-D; May 4, 1956, p. 16-A.

[248] *Independent*, May 18, 1954, p. 1; *News and Courier*, May 20, 1954, p. 15-B.

[249] *News and Courier*, Oct. 7, 1955, p. 1-B.

[250] *Record*, June 22, 1955, p. 1.

[251] *Independent*, June 13, 1956, p. 37.

[252] *Morning News*, Feb. 26, 1956, p. 1; *News and Courier*, Dec. 5, 1955, p. 3; *Record*, Aug. 5, 1954, p. 4-A.

[253] *News and Courier*, Jan. 20, 1955, p. 11-A; Sept. 6, 1955, p. 1-B; *Independent*, July 5, 1954, p. 4.

[254] *News and Courier*, Sept. 4, 1955, p. 8-A; *Independent*, Nov. 14, 1956, p. 4; *Morning News*, Aug. 5, 1956, p. 4-A.

[255] *Morning News*, Aug. 5, 1956, p. 4-A; Aug. 30, 1956, p. 4-A.

[256] *Ibid.*, Sept. 23, 1956, p. 4-A.

[257] *News and Courier*, May 28, 1956, p. 6-A; Sept. 8, 1955, p. 1-B; Aug. 30, 1955, p. 1-B; July 15, 1955, p. 12-A.

[258] *Ibid.*, Nov. 21, 1955, p. 10.

[259] *Morning News*, Sept. 2, 1954, p. 3-A.

[260] *News and Courier*, Feb. 19, 1955, p. 8-A; Jan. 12, 1955, p. 8-A.

[261] For example there were only two Negro delegates to the state Democratic convention in 1956. *Morning News*, Mar. 22, 1956, p. 1.

[262] *Independent*, Aug. 2, 1956, p. 11.

[263] *Morning News*, Aug. 11, 1956, p. 1; *News and Courier*, May 4, 1956, p. 1-B.

[264] *News and Courier*, Dec. 30, 1954, p. 12-A.

[265] *Independent*, Mar. 18, 1956, p. 1.

[266] *NAACP Civil Rights Handbook* (New York, Apr., 1953), p. 5.

[267] *Record*, Mar. 29, 1956, p. 4-A.

[268] *Ibid.*, Mar. 26, 1956, p. 1.

[269] *News and Courier*, Mar. 29, 1956, p. 1-B; Nov. 7, 1954, p. 8-A.

[270] *Independent*, May 25, 1954, p. 5.

[271] *News and Courier*, Oct. 16, 1954, p. 7-A.

[272] *Record*, Sept. 12, 1955, p. 1.

[273] *Morning News*, June 30, 1955, p. 1.

[274] *Ibid.*, July 1, 1955, p. 4-A; *News and Courier*, Aug. 11, 1955, p. 14-A.

[275] *Morning News*, Aug. 21, 1955, p. 3-A.

[276] *Record*, Sept. 1, 1955, p. 1; Sept. 14, 1955, p. 5-A.

[277] Evans to A. J. Clement, Jr., printed in program of 13th annual session of the state NAACP (1953).

[278] *Morning News*, Aug. 20, 1955, p. 4-A.

[279] *Ibid.*, Aug. 20, 1954, p. 4-A; May 25, 1954, p. 4; *Independent*, Nov. 18, 1955, p. 4; *Record*, May 26, 1954, p. 8-A.

[280] *Record*, Oct. 11, 1955, p. 3-A; *News and Courier*, Apr. 2, 1956, p. 6-A; Feb. 15, 1956, p. 10-A.

[281] *Record*, June 30, 1956, p. 4-A; *State*, July 20, 1956, p. 5-A.

[282] *Record*, Dec. 12, 1955, p. 1. In a paper delivered at the annual meeting of the American Sociological Society in Washington, D. C. on August 29, 1957, Professor Wilson Record of Sacramento State College showed the wide divergences between the NAACP and the Communist Party in structure, methods, and basic ideology.

[283] *Morning News*, Aug. 30, 1955, p. 1; Apr. 28, 1956, p. 1; Aug. 19, 1955, p. 4-A.

[284] *News and Courier*, Oct. 14, 1954, p. 15-A; May 30, 1954, p. 4-A; July 17, 1955, p. 6-A.

[285] *Ibid.*, Aug. 25, 1955, p. 1-B.

[286] *Record*, Mar. 29, 1956, p. 4-A.

[287] In connection with the use of this system against labor organizers, Rep. Gary Brown of Abbeville County said, "As for unions we don't have any trouble in the county.... We are expecting to get some new industry and I would pass 50 bills to protect it." *News and Courier*, Apr. 22, 1957, p. 8.

[288] *Independent*, Aug. 24, 1955, p. 6.

- [289] *Morning News*, Aug. 19, 1955, p. 4-A; Mar. 12, 1956, p. 4.
- [290] *News and Courier*, July 20, 1955, p. 1-B; *Record*, Nov. 22, 1955, p. 4-A.
- [291] *News and Courier*, Nov. 22, 1955, p. 1-B; *Morning News*, Aug. 30, 1955, p. 1; S. C. House *Journal* (1956), p. 450.
- [292] *Record*, Aug. 11, 1955, p. 4-A; Nov. 4, 1955, p. 7-A.
- [293] *Morning News*, Sept. 22, 1955, p. 4-A.
- [294] Myrdal, *An American Dilemma*, pp. 831, 820, 830.
- [295] *Record*, Feb. 13, 1956, p. 1; *News and Courier*, Feb. 25, 1956, p. 10-A; Dec. 19, 1954, p. 14-A.
- [296] *Record*, Aug. 30, 1955, p. 1; Sept. 12, 1955, p. 1.

CHAPTER VII

- [297] *Morning News*, Aug. 7, 1956, p. 5.
- [298] *News and Courier*, May 19, 1954, p. 4; May 20, 1954, p. 4.
- [299] *Morning News*, May 22, 1954, p. 4.
- [300] *News and Courier*, May 30, 1954, p. 8-A.
- [301] *Morning News*, May 21, 1954, p. 1; July 16, 1954, p. 3-A; Sept. 1, 1954, p. 1.
- [302] *Record*, Jan. 4, 1956, p. 1; *Morning News*, Jan. 15, 1956, p. 3-B.
- [303] *News and Courier*, July 30, 1956, p. 1.
- [304] *Independent*, July 29, 1955, p. 1; Nov. 4, 1955, p. 28.
- [305] *News and Courier*, Oct. 20, 1954, p. 8-A.
- [306] S. C. Senate *Journal* (1956), p. 55.
- [307] *News and Courier*, Jan. 20, 1955, p. 11-A.
- [308] *Record*, Nov. 4, 1955, p. 7-A.
- [309] South Carolina Senate *Journal* (1955), p. 15.
- [310] *Independent*, June 26, 1956, p. 7.
- [311] *Morning News*, Apr. 27, 1956, p. 10-A.
- [312] *News and Courier*, Jan. 13, 1955, p. 14-A.
- [313] *Morning News*, July 9, 1954, p. 4-A; Aug. 4, 1954, p. 4.
- [314] South Carolina Senate *Journal* (1955), p. 15.
- [315] *News and Courier*, May 21, 1955, p. 6-A.
- [316] *Ibid.*, Nov. 29, 1955, p. 1-B; Sept. 8, 1955, p. 1-B; also South Carolina Senate *Journal* (1955), pp. 14-27; South Carolina Senate *Journal* (1956), pp. 38-44.

- [317] *Independent*, May 26, 1954, p. 3.
- [318] *News and Courier*, Aug. 9, 1954, p. 4.
- [319] *Independent*, July 25, 1954, p. 4.
- [320] *News and Courier*, Aug. 7, 1954, p. 16.
- [321] *Ibid.*, May 30, 1954, p. 8-A; Oct. 29, 1955, p. 8-A; May 25, 1956, p. 4.
- [322] *Morning News*, Apr. 28, 1956, p. 1; Aug. 7, 1956, p. 5.
- [323] *News and Courier*, Aug. 1, 1955, p. 7-A.
- [324] *Morning News*, May 28, 1954, p. 4.
- [325] *News and Courier*, May 25, 1954, p. 6.
- [326] *Ibid.*, Oct. 10, 1954, p. 2-A.
- [327] *Morning News*, Aug. 12, 1955, p. 1; Aug. 7, 1955, p. 1.
- [328] *News and Courier*, June 30, 1955, p. 10-A; *S. C. Senate Journal* (1956), pp. 52-53.
- [329] *Independent*, Jan. 9, 1956, p. 1.
- [330] *News and Courier*, Mar. 29, 1957, p. 1.
- [331] *Independent*, Oct. 26, 1955, p. 14.
- [332] *Ibid.*, Jan. 7, 1956, p. 5. According to the annual report of the state Superintendent of Education for 1953-54 South Carolina received \$8,216,840 from the federal government for education in 1952-53 and \$5,946,597 for 1953-54. These figures represented 8.88 percent and 4.38 percent respectively of the total school budget.
- [333] *News and Courier*, Feb. 26, 1956, p. 8-A; *Record*, May 24, 1954, p. 4-A; *Morning News*, Aug. 26, 1955, p. 4-A.
- [334] *Independent*, Dec. 17, 1955, p. 4; *Morning News*, July 15, 1956, p. 4-A.
- [335] *Record*, Aug. 15, 1957, p. 1; *State*, Aug. 19, 1957, p. 4-A; *News and Courier*, Aug. 17, 1957, p. 6-A.
- [336] *News and Courier*, Nov. 29, 1955, p. 1-B; *South Carolina Senate Journal* (1955), pp. 19-27.
- [337] *Morning News*, Feb. 9, 1955, p. 1; Mar. 2, 1955, p. 1; *Independent*, Feb. 23, 1955, p. 1.
- [338] *Independent*, Feb. 11, 1955, p. 4.
- [339] *News and Courier*, Mar. 12, 1955, p. 6-A.
- [340] *Ibid.*, May 28, 1955, p. 1.
- [341] *South Carolina Senate Journal* (1955), pp. 134, 652.
- [342] *Morning News*, May 26, 1956, p. 10. A further example of the frame of mind of the legislature was the passage of a resolution which declared that the Confederate Battle Flag symbolized “the divine cause of human freedom for which our forefathers fought and for which the men, women and children of the

South displayed a courage and devotion to duty unparalleled in the history of the world.” South Carolina Senate *Journal* (1956), p. 1185.

[343] *News and Courier*, Dec. 18, 1955, p. 1.

[344] *Morning News*, Dec. 29, 1955, p. 1; Feb. 15, 1956, p. 6.

[345] *News and Courier*, Feb. 7, 1956, p. 1-B.

[346] *Record*, May 1, 1956, p. 4-A.

[347] *Ibid.*, Jan. 10, 1956, p. 4-A.

[348] *Morning News*, Dec. 30, 1955, p. 4.

[349] *Independent*, Feb. 1, 1956, p. 4; Feb. 5, 1956, p. 4.

[350] *News and Courier*, Feb. 3, 1956, p. 16-A; Dec. 17, 1955, p. 6-A; Apr. 26, 1956, p. 16-A.

[351] South Carolina Senate *Journal* (1956), p. 164.

[352] *Ibid.*, pp. 150-155.

[353] *Morning News*, Jan. 11, 1956, p. 1.

[354] South Carolina House *Journal* (1956), p. 322.

[355] *News and Courier*, Feb. 3, 1956, p. 1.

[356] *Independent*, Feb. 9, 1956, p. 4.

[357] *Record*, Feb. 3, 1956, p. 4-A.

[358] *Morning News*, Feb. 3, 1956, p. 1.

[359] *News and Courier*, Sept. 4, 1957, p. 10-A; *State*, Sept. 5, 1957, p. 4-A; Sept. 7, 1957, p. 4-A.

[360] South Carolina Senate *Journal* (1956), pp. 387-388.

[361] *News and Courier*, Jan. 24, 1957, p. 12-A. Most, though not all of South Carolina’s Negro teachers apparently answered these questions satisfactorily. Those who did not lost their jobs. However, when considering this fact one should also bear in mind that the Palmetto Education Association, which represents the state’s approximately 7,000 Negro teachers, adopted a resolution in 1955 stating its approval of the Supreme Court’s desegregation decision and offering its assistance to white school authorities in “discussing, outlining, and implementing plans for universal public education” in South Carolina “within the framework of the recent ruling of the United States Supreme Court.”

[362] *Morning News*, Jan. 18, 1956, p. 1.

[363] *Ibid.*, Feb. 10, 1956, p. 4-A; Jan. 20, 1956, p. 4-A.

[364] *Independent*, Feb. 21, 1956, p. 1. The quotation from the *Walterboro Press and Standard* appears in this article.

[365] *Record*, Feb. 16, 1956, p. 4-A.

[366] *News and Courier*, July 15, 1955, p. 12-A; Jan. 21, 1956, p. 6-A.

[367] *Morning News*, Jan. 18, 1956, p. 1; Feb. 18, 1956, p. 7.

[368] *Ibid.*, Mar. 1, 1956, p. 2.

[369] Jerrold Beim, *The Swimming Hole*, (New York: Morrow and Co., 1950).

[370] This summary of the *Swimming Hole* affair was taken from *Morning News*, Mar. 2, 1956, p. 1; Mar. 7, 1956, p. 1; and Mar. 9, 1956, p. 1; *South Carolina House Journal* (1956), pp. 936-937; *Record*, Mar. 10, 1956, p. 4-A; and *News and Courier*, Mar. 8, 1956, p. 16-A.

[371] *News and Courier*, Apr. 24, 1957, p. 1-B; Apr. 27, 1957, p. 8-A; *State*, Apr. 17, 1957; Apr. 24, 1957.

[372] *State*, Apr. 17, 1957; Apr. 24, 1957.

[373] *News and Courier*, Mar. 1, 1957, p. 1; Mar. 2, 1957, p. 8-A.

[374] *Ibid.*, Feb. 10, 1957, p. 3-A; Apr. 25, 1957, p. 1; Apr. 8, 1957, p. 12; Jan. 17, 1957, p. 14-A; Mar. 8, 1957, p. 1-B.

[375] *Record*, May 2, 1957.

[376] *State*, Aug. 6, 1957, p. 1; Sept. 10, 1957, p. 1; *Record*, Aug. 6, 1957, p. 1.

[377] *Record*, Sept. 21, 1957, p. 10-A.

[378] Radio WIS broadcast, Sept. 14, 1957.

[379] *State*, Sept. 21, 1957, p. 3-B.

[380] *Morning News*, Sept. 24, 1957, p. 4.

[381] *Record*, Jan. 10, 1958, p. 1; *State*, Jan. 11, 1958, p. 1; *Baltimore Afro-American*, Jan. 11, 1958, p. 2.

[382] *State*, Jan. 1, 1958, p. 1; Jan. 3, 1958, p. 1; *Record*, Jan. 2, 1958, p. 1; *New York Times*, Jan. 3, 1958, p. 14.

[383] *Record*, Jan. 10, 1958, p. 1; *State*, Jan. 11, 1958, p. 1; *News and Courier*, Jan. 11, 1958, p. 1-B.

[384] *Record*, Jan. 15, 1958, p. 8-B. On April 9 the South Carolina general assembly provided for a 6 man committee, 3 members from the Senate and 3 from the House, to probe Communism and Communist activities in the state. *Ibid.*, April 9, 1958.

[385] U.P. Wire, Jan. 16, 1958.

[386] *State*, Jan. 16, 1958, p. 1; *ibid.*, Jan. 17, 1958, p. 1-B; *ibid.*, Jan. 23, 1958, p. 8-A; *Record*, Jan. 17, 1958, p. 3-A.

[387] *State*, Jan. 16, 1958, p. 1; *Record*, Jan. 17, 1958, p. 3-A.

[388] *State*, Jan. 17, 1958, p. 1-B.

[389] *Record*, Jan. 29, 1958, pp. 1, 6-A.

[390] *State*, Feb. 5, 1958, p. 8-B; Feb. 8, 1958, p. 1-B; Feb. 4, 1958, p. 9-B; *Record*, Feb. 1, 1958, p. 10-A.

[391] *Record*, Feb. 14, 1958, p. 6-A; Feb. 20, 1958, p. 1; *State*, Feb. 25, 1958, p. 9-A.

[392] *News and Courier*, Dec. 1, 1955, p. 1-B; Dec. 2, 1955, p. 8-A.

- [393] S. C. Senate *Journal* (1956), pp. 226-227.
- [394] *News and Courier*, Apr. 28, 1956, p. 1.
- [395] *Record*, Apr. 23, 1956, p. 1; Apr. 26, 1956, p. 4-A; *Morning News*, Apr. 24, 1956, p. 1.
- [396] *Morning News*, Apr. 24, 1956, p. 3; *News and Courier*, Dec. 8, 1955, p. 8-A; S. C. House *Journal* (1956), p. 15.
- [397] *Independent*, July 24, 1955, p. 1; July 25, 1955, p. 3; Aug. 18, 1955, p. 1.
- [398] *State*, June 26, 1957, p. 4-A.

CHAPTER VIII

- [399] *News and Courier*, Feb. 14, 1956, p. 8-A; Sept. 15, 1956, p. 9-A.
- [400] *Independent*, Mar. 11, 1956, p. 2.
- [401] *Ibid.*, May 26, 1954, p. 3; May 27, 1954, p. 22.
- [402] *Morning News*, May 2, 1954, p. 1.
- [403] *Independent*, May 9, 1954, p. 28; May 16, 1955, p. 22; May 19, 1954, p. 2; *Morning News*, May 2, 1954, p. 1.
- [404] Quoted in *Independent*, June 3, 1954, p. 18.
- [405] *Record*, May 22, 1954, p. 4-A.
- [406] *News and Courier*, Jan. 9, 1956, p. 12; July 31, 1956, p. 8-A.
- [407] *Record*, Apr. 23, 1955, p. 4-A.
- [408] *News and Courier*, Mar. 10, 1956, p. 1-B.
- [409] *Morning News*, Oct. 11, 1956, p. 4-A.
- [410] *Ibid.*, Mar. 6, 1956, p. 1.
- [411] *Ibid.*, Mar. 27, 1956, p. 1.
- [412] S. C. House *Journal* (1956), pp. 1303-1304.
- [413] *Record*, Mar. 22, 1956, p. 11-C.
- [414] *Ibid.*, June 20, 1956, p. 1; July 16, 1956, p. 10-A.
- [415] *Ibid.*, Aug. 2, 1956, p. 1; Aug. 3, 1956, p. 4-A.
- [416] *Morning News*, July 13, 1956, p. 4-A.
- [417] *News and Courier*, June 26, 1956, p. 8-A.
- [418] *Record*, Aug. 3, 1956, p. 4-A.
- [419] *Independent*, Aug. 11, 1956, pp. 1, 3.
- [420] *Morning News*, Aug. 16, 1956, p. 2-A.
- [421] *News and Courier*, Aug. 16, 1956, p. 16-A; Aug. 21, 1956, p. 8-A.

- [422] *Record*, Aug. 17, 1956, p. 4-A.
- [423] *News and Courier*, Aug. 19, 1956, p. 14-A; *Record*, Oct. 31, 1956, p. 4.
- [424] *Independent*, Aug. 17, 1956, p. 4; Aug. 18, 1956, p. 4.
- [425] *Morning News*, Aug. 28, 1956, p. 1.
- [426] *News and Courier*, Aug. 28, 1956, pp. 1, 8-A.
- [427] *Independent*, Feb. 10, 1956, p. 4; Mar. 7, 1956, p. 4.
- [428] *Morning News*, Mar. 21, 1956, p. 4; June 26, 1956, p. 4; Aug. 22, 1956, p. 4.
- [429] *News and Courier*, Mar. 11, 1956, p. 14-A; May 23, 1956, p. 12-A; June 25, 1956, p. 6-A; Aug. 2, 1956, p. 14-A; Aug. 9, 1956, p. 14-A; Aug. 24, 1956, p. 12-A.
- [430] *Ibid.*, Aug. 23, 1956, p. 8-A.
- [431] Quotations in order are from *News and Courier*, Aug. 26, 1956, p. 15-A; Aug. 30, 1956, p. 17-A; Sept. 1, 1956, p. 6-A; Sept. 9, 1956, p. 12-A; Sept. 14, 1956, p. 12-A; Aug. 27, 1956 p. 7-A; Aug. 28, 1956, p. 10-A; Sept. 2, 1956, p. 11-A.
- [432] *Independent*, June 6, 1956, p. 8.
- [433] *Morning News*, Aug. 28, 1956, p. 1; *News and Courier*, Aug. 28, 1956, p. 1.
- [434] *News and Courier*, Oct. 2, 1956, p. 8-A.
- [435] *Ibid.*, Oct. 4, 1956, p. 1; Sept. 21, 1956, p. 1.
- [436] *Record*, Oct. 25, 1956, p. 2-B.
- [437] *Morning News*, Sept. 28, 1956, p. 6-B.
- [438] *News and Courier*, Oct. 17, 1956, p. 10-A; Oct. 22, 1956, p. 6-A.
- [439] *Independent*, Nov. 4, 1956, p. 28; Oct. 31, 1956, p. 11; *News and Courier*, Oct. 28, 1956, p. 4-C; Nov. 4, 1956, p. 12-A.
- [440] *Morning News*, Oct. 27, 1956, p. 2-A; *News and Courier*, Oct. 28, 1956, p. 14-A; *Independent*, Oct. 27, 1956, p. 1.
- [441] *Record*, Aug. 31, 1956, p. 3-A; *News and Courier*, Sept. 3, 1956, p. 6-A; Oct. 24, 1956, p. 10-A.
- [442] *Independent*, June 7, 1956, p. 4; Oct. 19, 1956, p. 4; Oct. 24, 1956, p. 4.
- [443] *Ibid.*, Oct. 19, 1956, p. 4.
- [444] *Ibid.*, Oct. 21, 1956, p. 28; *Morning News*, Oct. 9, 1956, p. 8; Nov. 2, 1956, p. 9-B.
- [445] *Independent*, Oct. 31, 1956, p. 10; Nov. 2, 1956, p. 5.
- [446] Open letter from South Carolina Republican Party, signed by Oscar W. Pitts, chairman, undated.
- [447] *Morning News*, Nov. 1, 1956, p. 1.
- [448] *Ibid.*, Oct. 31, 1956, p. 2.

[449] *News and Courier*, Oct. 22, 1956, p. 8-A.

[450] *Ibid.*, Nov. 14, 1956, p. 12-A.

[451] *Morning News*, Nov. 8, 1956, p. 9-A.

[452] *News and Courier*, Jan. 16, 1957, p. 1-B. At the state Democratic Party Convention on March 25, 1958, the “Independent” faction made a bid to capture the party chairmanship but was decisively defeated.

[453] *State*, Nov. 27, 1956, p. 6-B.

CHAPTER IX

[454] *News and Courier*, July 18, 1955, p. 6-A; Sept. 21, 1956, p. 15-A; Mar. 27, 1957, p. 10-A.

[455] *Morning News*, July 1, 1956, p. 4-A.

[456] *News and Courier*, June 30, 1956, p. 10-A.

[457] *Ibid.*, June 17, 1955, p. 12-A.

[458] *Ibid.*, Jan. 26, 1957, p. 1-B.

[459] *Ibid.*, Jan. 30, 1956, p. 12.

[460] *Ibid.*, Apr. 15, 1955, p. 12-A.

[461] *Ibid.*, May 12, 1956, p. 1; July 3, 1954.

[462] *Ibid.*, Nov. 20, 1954, p. 14.

[463] *State*, July 15, 1957, p. 4.

[464] *News and Courier*, Aug. 1, 1957, p. 8-A.

[465] *Ibid.*, Aug. 27, 1957, p. 8-A.

[466] *State*, Aug. 20, 1957, p. 4-A.

[467] *News and Courier*, Dec. 13, 1954, p. 8-A; July 3, 1955, p. 14-A; May 8, 1955, p. 14-A.

[468] *Ibid.*, Mar. 3, 1955, p. 14-A; Dec. 18, 1956, p. 10-A.

[469] *Ibid.*, Jan. 30, 1956, p. 12.

[470] *Ibid.*, Aug. 2, 1956, p. 12.

[471] *Ibid.*, Sept. 24, 1957, p. 8-A.

[472] *State*, Oct. 2, 1957, p. 1.

[473] *News and Courier*, May 8, 1955, p. 14-A; Oct. 29, 1954, p. 4-A.

[474] *Ibid.*, July 13, 1955, p. 10-A; Feb. 19, 1956, p. 4-A; *Independent*, Mar. 11, 1956, p. 4.

[475] *News and Courier*, July 6, 1955, p. 1.

[476] *Ibid.*, July 23, 1955, p. 4-A.

[477] *Ibid.*, Sept. 24, 1957, p. 10-A. Much to the disgust of many members of the faculty, the University of South Carolina awarded David Lawrence an honorary degree in June, 1957.

[478] *Ibid.*, Feb. 1, 1957, p. 1-B.

[479] *Record*, Apr. 9, 1956, p. 1.

[480] *Independent*, Apr. 10, 1956, p. 1; Apr. 13, 1956, p. 4; *News and Courier*, Apr. 11, 1956, p. 10-A.

[481] *News and Courier*, Feb. 6, 1957, pp. 1, 15-A; Feb. 27, 1957, p. 1.

[482] *Ibid.*, Feb. 27, 1957, p. 1; Feb. 15, 1957, p. 1.

[483] *Ibid.*, Feb. 28, 1957, p. 6-A.

[484] See Walter F. Murphy, "Some Strange New Converts to the Cause of Civil Rights," *Reporter*, (June 27, 1957), 13.

[485] Douglass Cater, "How the Senate Passed the Civil-Rights Bill," *ibid.* (Sept. 5, 1957), 9.

[486] *State*, Aug. 12, 1957, p. 1-B; Aug. 24, 1957, p. 1; *Independent*, Aug. 29, 1957, p. 1.

[487] *State*, Aug. 28, 1957, p. 1-B.

[488] *Ibid.*, p. 1; *Record*, Aug. 28, 1957, p. 1.

[489] *Record*, Aug. 30, 1957, p. 1.

[490] *New York Times*, Aug. 31, 1957, p. 1; *State*, Aug. 30, 1957, p. 1; *Record*, Aug. 30, 1957, p. 1. Thurmond maintained that only purpose of the filibuster "was to arouse the American people." He denied that he had broken any agreement with his fellow Southern senators. He contended that the caucus had agreed against an organized filibuster but permitted each individual Senator to "oppose the bill in his own way." According to Thurmond, "Senator Russell said it would be up to each Senator as to how long he would talk, so a Senator was free to make a long speech if he chose to do so. I chose to make a long one and told Senator Russell in his office the following Wednesday that I was going to make a long speech face.... I spoke 24 hours and 20 minutes and do not think it was too long to talk against such a dangerous bill." *State*, Sept. 5, 1957, p. 1-D. Senator Johnston, nettled by the filibuster of his colleague, sent out a circular letter to constituents which by indirection slapped hard at Thurmond. Without comment of his own, Johnston referred to the various criticisms of Thurmond's action made by his Senatorial colleagues from the South.

[491] *Record*, Aug. 31, 1957, p. 1; *News and Courier*, Aug. 31, 1957, p. 1.

[492] *News and Courier*, Aug. 31, 1957, p. 8-A; *Morning News*, Aug. 31, 1957, p. 4; *State*, Aug. 30, 1957, p. 4-A.

[493] *Independent*, Aug. 31, 1957, p. 4.

[494] *Record*, Aug. 30, 1957, p. 3; *News and Courier*, Aug. 31, 1957, p. 1.

[495] *State*, Sept. 26, 1957, p. 4-A. The *Record* entitled its editorial comment on President Eisenhower's sending of troops to Little Rock: "General Eisenhower Succumbs to Hysteria," Sept. 25, 1957, p. 4-A. "Governor Faubus

chose to follow the course of ultimate legal resistance. He made it clear that he would exhaust all avenues of appeal to overturn the injunction,” commented the *Morning News*, Sept. 22, 1957, p. 4. The *Independent* praised Governor Faubus for standing up to the pressure of Winthrop Rockefeller and other Arkansas businessmen who allegedly tried to get him to submit to integration without resistance and thus not discourage industrialists from investing in Arkansas. The *Independent* termed them the “Don’t Rock-the-Boat-Crowd.” Sept. 17, 1957, p. 4; *ibid.*, Sept. 25, 1957, p. 4. Of South Carolina newspapers only the weekly *Cheraw Chronicle*, which has been an editorial voice of moderation in the state, censured Faubus. “Whatever his motives, Governor Faubus must be curbed,” it asserted. Quoted in *News and Courier*, Sept. 23, 1957, p. 12.

[496] *Record*, Sept. 28, 1957, p. 1. State Senator James Hugh McFaddin of Clarendon County also resigned his commission in the U. S. Army Reserve. In a letter to President Eisenhower he wrote: “In good conscience I could not obey the orders now being issued by you to bayonet innocent people and to force school children to eat lunch with undesirables, when the lunch is paid for by their parents.” *Ibid.*, Sept. 30, 1957, p. 1.

[497] *State*, Sept. 27, 1957, p. 1.

[498] *Ibid.*, Sept. 25, 1957, p. 1-B. The *Washington Post and Times Herald* editorially blasted Johnston for his remarks which it considered as seditious in character. Cited in *Record*, Sept. 27, 1957, p. 3-A.

[499] *State*, Sept. 27, 1957, p. 1.

[500] *Ibid.*, Sept. 26, 1957, p. 1-B.

[501] *Ibid.*, p. 1.

[502] *Ibid.*, p. 1-B.

[503] *Ibid.*, Oct. 7, 1957, p. 1-B.

[504] *News and Courier*, May 17, 1956, p. 1-B.

[505] *Independent*, Mar. 29, 1956, p. 4.

[506] *Ibid.*, May 14, 1956, p. 4.

[507] *News and Courier*, Feb. 25, 1956, p. 8-A; *Independent*, Dec. 13, 1955, p. 8.

[508] *News and Courier*, Sept. 3, 1957, p. 10-A.

[509] *News and Courier*, Apr. 4, 1955, p. 12; July 1, 1956, p. 14-B; Mar. 8, 1955, p. 8-A.

[510] *Morning News*, Mar. 3, 1955, p. 8-A.

[511] *News and Courier*, Oct. 4, 1956, p. 1-B; Jan. 15, 1957, p. 1-B.

[512] *Ibid.*, Jan. 16, 1957, p. 1-B.

[513] *Ibid.*, Apr. 13, 1958, p. 10-B.

CHAPTER X

- [514] *Morning News*, Feb. 26, 1956, p. 4.
- [515] *Record*, Oct. 5, 1956, p. 1.
- [516] *News and Courier*, May 30, 1954, p. 4-A; July 18, 1955, p. 6-A; Aug. 24, 1955, p. 10-A; Oct. 6, 1955, p. 6-A; Feb. 2, 1956, p. 14-A.
- [517] *Ibid.*, Aug. 29, 1955, p. 6-A.
- [518] *Ibid.*, Mar. 16, 1956, p. 16-A; June 20, 1956, p. 12-A.
- [519] *Ibid.*, Aug. 10, 1955, p. 1-B.
- [520] *Independent*, July 10, 1954, p. 2.
- [521] *Record*, May 24, 1954, p. 12-A.
- [522] *News and Courier*, Feb. 5, 1956, p. 5-D.
- [523] *Record*, July 2, 1957, p. 1.
- [524] *Morning News*, July 16, 1957, p. 1.
- [525] *South Carolinians Speak: A Moderate Approach to Race Relations* (Dillon, S. C., 1958).
- [526] *Record*, Nov. 20, 1957, p. 1-A.
- [527] *News and Courier*, Oct. 23, 1957, p. 10-A.
- [528] *South Carolinians Speak*, p. 72.
- [529] *Ibid.*, p. 69.
- [530] *Record*, Nov. 20, 1957, p. 1.
- [531] *Ibid.*, Dec. 7, 1957, p. 1.
- [532] *State*, Nov. 28, 1957, p. 9-A.
- [533] *Ibid.*, Jan. 4, 1958, p. 1-B; *Record*, Jan. 13, 1958, p. 2.
- [534] *Ibid.*, May 19, 1954, p. 4; Feb. 5, 1956, p. 5-D; Mar. 26, 1957, p. 5.
- [535] *Ibid.*, Feb. 5, 1956, p. 5-D.
- [536] *Morning News*, Dec. 5, 1956, p. 6; *News and Courier*, Aug. 8, 1955, p. 7-A; Oct. 12, 1954, p. 4-A; Sept. 3, 1955, p. 6-A.
- [537] This summary of the Travelstead affair was taken largely from Chester C. Travelstead, "Turmoil in the Deep South," *School and Society*, LXXXIII (Apr. 28, 1956), 143-147; and Harry L. Golden, "No Dissent in Dixie," *Nation*, CLXXXI (Dec. 17, 1955), inside cover page.
- [538] This summary of student reaction was taken from the *Gamecock* (University of South Carolina), Dec. 2, 1955, p. 2; Dec. 9, 1955, pp. 2, 6.
- [539] *News and Courier*, Nov. 25, 1955, p. 12-A.
- [540] *Morning News*, Nov. 26, 1955, p. 4.
- [541] *Ibid.*, May 13, 1954, p. 4; June 2, 1955, p. 4-A; June 3, 1955, p. 4-A; June 17, 1955, p. 4-A; Jan. 29, 1956, p. 4-A; May 2, 1956, p. 10.
- [542] *Ibid.*, Feb. 26, 1956, p. 4.

- [543] "Retreat from Reason," *Time*, LXVII (Apr. 2, 1956), 85.
- [544] *Morning News*, Mar. 11, 1956, p. 4-A.
- [545] *Ibid.*, Apr. 1, 1956, p. 4-A.
- [546] *News and Courier*, Mar. 30, 1956, p. 12-A; Nov. 26, 1956, p. 6-A.

CHAPTER XI

- [547] Francis B. Simkins, "Tolerating the South's Past," *Journal of Southern History*, XXI (Feb. 1955), 5.
- [548] Herbert R. Sass, "Mixed Schools and Mixed Blood," *Atlantic Monthly*, CXCVIII (Nov. 1956), 45-49.
- [549] *News and Courier*, Sept. 3, 1955, p. 6-A.
- [550] *Ibid.*, Apr. 24, 1955, p. 10-A.
- [551] Franz Boaz, *Race, Language, Culture* (New York, Macmillan Co., 1940), pp. 19-21.
- [552] *News and Courier*, Apr. 14, 1955, p. 16-A; Sept. 6, 1955, p. 9-A.
- [553] *Morning News*, Feb. 28, 1956, p. 10.
- [554] *News and Courier*, May 8, 1955, p. 14-A; Feb. 19, 1955, p. 12-A; Feb. 25, 1956, p. 8-A.
- [555] *Ibid.*, July 3, 1955, p. 14-A; July 14, 1954, p. 4.
- [556] *Record*, Aug. 20, 1954, p. 4-A; May 20, 1954, p. 4-A.
- [557] *News and Courier*, Feb. 27, 1956, p. 12; *Record*, July 7, 1956, p. 4-A.
- [558] *Morning News*, Dec. 16, 1956, p. 11-A; *News and Courier*, Dec. 10, 1954, p. 12-A.
- [559] *News and Courier*, Dec. 13, 1954, p. 8-A.
- [560] *Ibid.*, July 7, 1955, p. 15-A; Sept. 5, 1954, p. 8-A.
- [561] *Morning News*, Dec. 16, 1956, p. 11-A.
- [562] *News and Courier*, June 26, 1954, p. 4.

APPENDIX

The following is the text of the decision, read by Chief Justice Earl Warren, in the case of *Briggs v. Elliott* (in conjunction with cases from Kansas, Virginia and Delaware) on May 17, 1954:

These cases come to us from the States of Kansas, South Carolina, Virginia, and Delaware. They are premised on different facts and different local conditions, but a common legal question justifies their consideration together in this consolidated opinion.

In each of the cases, minors of the Negro race, through their legal representatives, seek the aid of the courts in obtaining admission to the public schools of their community on a nonsegregated basis. In each instance, they had been denied admission to schools attended by white children under laws requiring or permitting segregation according to race. This segregation was alleged to deprive the plaintiffs of the equal protection of the laws under the Fourteenth Amendment. In each of the cases other than the Delaware case, a three-judge federal district court denied relief to the plaintiffs on the so-called “separate but equal” doctrine announced by this Court in *Plessy v. Ferguson*, 163 U.S. 537. Under that doctrine, equality of treatment is accorded when the races are provided substantially equal facilities, even though these facilities be separate. In the Delaware case, the Supreme Court of Delaware adhered to that doctrine, but ordered that the plaintiffs be admitted to the white schools because of their superiority to the Negro schools.

The plaintiffs contend that segregated public schools are not “equal” and cannot be made “equal,” and that hence they are deprived of the equal protection of the laws. Because of the obvious importance of the question presented the Court took jurisdiction. Argument was heard in the 1952 Term, and reargument was heard this Term on certain questions propounded by the Court.

Reargument was largely devoted to the circumstances surrounding the adoption of the Fourteenth Amendment in 1868. It covered exhaustively consideration of the Amendment in Congress, ratification by the states, then existing practices in racial segregation, and the views of proponents and opponents of the Amendment. This discussion and our own investigation convinced us that although these sources cast some light, it is not enough to resolve the problem with which we are faced. At best, they are inconclusive. The most avid proponents of the post-War Amendments undoubtedly intended them to remove all legal distinctions among “all persons born or naturalized in the United States.” Their opponents, just as certainly, were antagonistic to both the letter and the spirit of the Amendments and wished them to have the most limited effect. What others in Congress and the state legislatures had in mind cannot be determined with any degree of certainty.

An additional reason for the inconclusive nature of the Amendment’s history, with respect to segregated schools, is the status of public education at that time. In the South, the movement toward free common schools, supported by general taxation, had not yet taken hold. Education of white children was largely in the hands of private groups. Education of Negroes was almost nonexistent, and practically all of the race were illiterate. In fact, any education of Negroes was forbidden by law in some states. Today, in contrast, many Negroes have achieved outstanding success in the arts and sciences as well as in the business and professional world. It is true that public education had already advanced further in the North, but the effect of the Amendment on Northern States was generally ignored in the congressional debates. Even in the North, the conditions of public education did not approximate those existing today. The curriculum was usually rudimentary; ungraded schools were common in rural areas; the school term was but three months a year in many states; and compulsory school attendance was virtually unknown. As a consequence, it is not surprising that there should be so little in the history of the Fourteenth Amendment relating to its intended effect on public education.

In the first cases in this Court construing the Fourteenth Amendment, decided shortly after its adoption, the Court interpreted it as proscribing all state-imposed discriminations against the Negro race. The doctrine of “separate but equal” did not make its appearance in this Court until 1896 in the case of *Plessy v. Ferguson*, *supra*, involving not education but

transportation. American courts have since labored with the doctrine for over half a century. In this Court, there have been six cases involving the “separate but equal” doctrine in the field of public education. In *Cumming v. County Board of Education*, 175 U.S. 528, and *Gong Lum v. Rice*, 275 U.S. 78, the validity of the doctrine itself was not challenged. In more recent cases, all on the graduate school level, inequality was found in that specific benefits enjoyed by white students were denied to Negro students of the same educational qualifications. *Missouri ex rel. Gaines v. Canada*, 305 U.S. 337; *Sipuel v. Oklahoma*, 332 U.S. 631; *Sweatt v. Painter*, 339 U.S. 629; *McLaurin v. Oklahoma State Regents*, 339 U.S. 637. In none of these cases was it necessary to re-examine the doctrine to grant relief to the Negro plaintiff. And in *Sweatt v. Painter*, *supra*, the Court expressly reserved decision on the question whether *Plessy v. Ferguson* should be held inapplicable to public education.

In the instant cases, that question is directly presented. Here, unlike *Sweatt v. Painter*, there are findings below that the Negro and white schools involved have been equalized, or are being equalized, with respect to buildings, curricula, qualifications and salaries of teachers, and other “tangible” factors. Our decision, therefore, cannot turn on merely a comparison of these tangible factors in the Negro and white schools involved in each of the cases. We must look instead to the effect of segregation itself on public education.

In approaching this problem, we cannot turn the clock back to 1868 when the Amendment was adopted, or even to 1896 when *Plessy v. Ferguson* was written. We must consider public education in the light of its full development and its present place in American life throughout the Nation. Only in this way can it be determined if segregation in public schools deprives these plaintiffs of the equal protection of the laws.

Today, education is perhaps the most important function of state and local governments. Compulsory school attendance laws and the great expenditures for education both demonstrate our recognition of the importance of education to our democratic society. It is required in the performance of our most basic public responsibilities, even service in the armed forces. It is the very foundation of good citizenship. Today it is a principal instrument in awakening the child to cultural values, in preparing him for later professional training, and in helping him to adjust normally to

his environment. In these days, it is doubtful that any child may reasonably be expected to succeed in life if he is denied the opportunity of an education. Such an opportunity, where the state has undertaken to provide it, is a right which must be made available to all on equal terms.

We come then to the question presented: Does segregation of children in public schools solely on the basis of race, even though the physical facilities and other “tangible” factors may be equal, deprive the children of the minority group of equal educational opportunities? We believe that it does.

In *Sweatt v. Painter*, *supra*, in finding that a segregated law school for Negroes could not provide them equal educational opportunities, this Court relied in large part on “those qualities which are incapable of objective measurement but which make for greatness in a law school.” In *McLaurin v. Oklahoma State Regents*, *supra*, the Court, in requiring that a Negro admitted to a white graduate school be treated like all other students, again resorted to intangible considerations:

“... his ability to study, to engage in discussions and exchange views with other students, and, in general, to learn his profession.” Such considerations apply with added force to children in grade and high schools. To separate them from others of similar age and qualifications solely because of their race generates a feeling of inferiority as to their status in the community that may affect their hearts and minds in a way unlikely ever to be undone. The effect of this separation on their educational opportunities was well stated by a finding in the Kansas case by a court which nevertheless felt compelled to rule against the Negro plaintiffs:

“Segregation of white and colored children in public schools has a detrimental effect upon the colored children. The impact is greater when it has the sanction of the law; for the policy of separating the races is usually interpreted as denoting the inferiority of the Negro group. A sense of inferiority affects the motivation of a child to learn. Segregation with the sanction of law, therefore, has a tendency to retard the educational and mental development of Negro children and to deprive them of some of the benefits they would receive in a racially integrated school system.”

Whatever may have been the extent of psychological knowledge at the time of *Plessy v. Ferguson*, this finding is amply supported by modern

authority. Any language in *Plessy v. Ferguson* contrary to this finding is rejected.

We conclude that in the field of public education the doctrine of “separate but equal” has no place. Separate educational facilities are inherently unequal. Therefore, we hold that the plaintiffs and others similarly situated for whom the actions have been brought are, by reason of the segregation complained of, deprived of the equal protection of the laws guaranteed by the Fourteenth Amendment. This disposition makes unnecessary any discussion whether such segregation also violates the Due Process Clause of the Fourteenth Amendment.

Because these are class actions, because of the wide applicability of this decision and because of the great variety of local conditions, the formulation of decrees in these cases presents problems of considerable complexity. On reargument, the consideration of appropriate relief was necessarily subordinated to the primary question—the constitutionality of segregation in public education. We have now announced that such segregation is a denial of the equal protection of the laws. In order that we may have the full assistance of the parties in formulating decrees, the cases will be restored to the docket, and the parties are requested to present further argument on Questions 4 and 5 previously propounded by the Court for reargument this Term. The Attorney General of the United States is again invited to participate. The Attorneys General of the states requiring or permitting segregation in public education will also be permitted to appear as *amici curiae* upon request to do so by September 15, 1954, and submission of briefs by October 1, 1954.

INDEX

A

Adams, Sherman, [159](#)

AFL-CIO, [51](#), [185](#), [187](#), [189](#), [141](#), [168](#), [164](#), [166](#)

Agnew, E. H., [27](#), [84](#), [96](#)

Allen University, [116-124](#)

American Association of University Professors, [119-120](#)

American Civil Liberties Union, [165](#)

American Council of Education, [101](#)

American Dilemma, [22](#), [27](#)

American Educators, Incorporated, [88](#), [45](#)

Americans For Democratic Action, [136](#), [138](#), [141](#)

Anti-Defamation League, [89](#)

Anti-Semitism, [40](#), [43](#), [86](#)

Armstrong, Ben J., [74](#)

Ashmore, Robert J., [26-27](#), [49](#), [101](#)

Association for Preservation of Southern Traditions, [88](#)

Association of School Administrators, [99](#)

Atkins, Alford, [79](#)

Atlantic Monthly, [80](#), [181](#)

Atomic Energy Commission, [102](#)

B

Bacoats, J. A., [124](#), [125](#)
Ball, W. W., [2](#)
Ballard, L. B., [179](#)
Baptist Church, [60-61](#)
Baruch, Bernard, [39](#)
Bass, Jack, [177](#)
Bates, Lester, [129-130](#)
Bates, W. T. C., [53](#)
Batista, Fulgencio, [149](#)
Bellinger, G. Duncan, [37](#)
Benedict College, [122](#), [124-125](#)
Bethune, Mary McLeod, [110](#)
Bickley, J. H., [39](#), [40](#), [41](#), [192](#)
Blackman, Mrs. S. L., [182](#)
Blake, C. E., [160](#)
Blatt, Solomon, [95](#)
Blease, Cole, [9](#), [189](#)
Blease, Eugene S., [27](#)
Boas, Franz, [182](#)
Bob Jones University, [65](#)
Bonner, I. H., [118](#), [119](#), [120](#), [121](#), [123](#)
Booker, Harold, [139](#)
Bostwick, Margaret, [67](#)
Bowles, Bryant, [12](#), [42-43](#)
Bowling, H. L., [193](#)

Boyette, Luther E., [178](#)
Boyle, Gaston, [64](#)
Brabham, A. McKay, Jr., [57](#)
Brabham, P. Eugene, [100](#)
Bragg, W. W., [34](#)
Brailsford, James M., [41](#)
Brameld, Theodore, [27](#)
Breeland, Richard, [103](#)
Brown, Edgar, [128](#)
Brown, Gary, [196](#)
Brown, Giles G., [76](#)
Brown, Millie Lewis, [41](#)
Brown vs. Baskin, [4](#), [5-6](#)
Brownell, Herbert, [19](#), [22](#), [25](#), [129](#), [142](#), [158](#), [159](#), [161](#)
Bryant, Herbert, [177](#)
Buchanan, George, [28](#)
Bulganin, Nikolai A., [140](#)
Bunche, Ralph J., [110](#)
Byrd, E. L., [44](#), [56](#), [64](#)
Byrd, Harry F., [187](#), [189](#)
Byrnes, James F., [4](#), [8](#), [15-16](#), [17](#), [22](#), [27](#), [31](#), [33](#), [50](#), [83](#), [93](#), [96](#), [100](#), [101-102](#), [140](#), [141](#), [147](#), [161](#), [167](#), [170](#)

C

Calhoun, John C., [1](#), [21](#), [38](#), [63-64](#), [79](#), [105](#), [109](#), [137](#), [143](#), [150](#), [184](#)
Callison, T. C., [18](#), [19](#), [22](#), [25-26](#), [42](#), [86](#), [117](#), [126](#), [168](#)

Cardozo, Benjamin N., [12](#)

Carr, Robert K., [119-120](#)

Carroll, David D., [128-129](#)

Catholic Church, [52](#)

Central High School (Little Rock), [159](#), [160](#)

Chalmers, Allen Knight, [110](#)

Cheraw Chronicle, [172](#), [208](#)

Chicago Daily News, [148-149](#)

Chicago Sun-Times, [180](#)

Childs, Margaretta P., [48](#)

Christian Advocate, [169](#)

Christian Council on Human Relations, [169](#)

Citadel, The, [125](#), [178](#)

Citizens Council, [32](#), [37](#), [38](#), [41](#), [45-53](#), [54](#), [55](#), [57](#), [58](#), [63](#), [64](#), [65](#), [75](#), [83](#),
[84](#), [86](#), [89](#), [92](#), [98](#), [105](#), [132](#), [187](#), [188](#), [189](#), [164](#), [169](#), [170](#), [171](#), [192-193](#)

Citizens Council, The, [48](#)

Civil Rights Act (1957), [154-158](#), [163](#)

Civil Rights Bill (1956), [154](#)

Clarendon County Case (Briggs *et al* vs Elliott, *et al*), [10](#), [12-20](#), [21](#), [28](#),
[76-77](#), [81](#), [82](#), [90](#), [94](#), [95](#), [189](#)

Clarendon County Civic League, [74](#)

Clark, H. B., [29](#), [68](#)

Clark, Mark, [125-126](#), [137](#)

Clement, A. J., Jr., [71](#), [81](#), [90](#), [96](#)

Clemson College, [11](#), [102-103](#)

Cleveland, Grover, [137](#)

Coker, Robert R., [27](#)
Colvin, E. E., [38](#), [66](#), [79](#)
Committee of 52, [27-28](#)
Communism (including Communist Party), [24](#), [28](#), [39](#), [40](#), [43](#), [44](#), [45](#), [57](#),
[62](#), [65](#), [67](#), [102](#), [111](#), [121](#), [122](#), [123](#), [124](#), [131](#), [132](#), [138](#), [140](#), [147](#),
[168](#), [196](#), [200](#)
“Concerned South Carolinians”, [170-173](#)
Cook, Eugene, [112](#)
Cook, Pierce E., [57-58](#)
Corbit. Lynn. [62](#)
Cousins. Norman, [110](#)
Cousins, Ralph, [170](#)
Crawford, Leon, [143](#)
Criswell, W. A., [60-61](#)
Crosswell, W. M., [193](#)
Crow, E. Ryan, [93](#), [185](#)
Cruell, Claude and Fannie, [40-41](#)
Culbertson, John Bolt, [174](#)

D

Dabbs, James M., [173-174](#)
Dabbs, Mrs. James M., [170](#), [173](#)
Daniels, G. G., [76](#)
Davies, Ronald N., [109-110](#), [158](#), [161](#)
Davis, Henry E., [86](#), [98](#)
Davis, James B., [66](#)
Davis, John W., [18](#)

Debnam, W. E., [152](#)

DeLaine, J. A., [86](#)

Democratic National Convention (1936), [6](#), [7](#);
(1956) [113](#)

Democratic Party, [1](#), [3](#), [4](#), [5](#), [6](#), [7](#), [8](#), [9](#), [15](#), [22](#), [24](#), [80](#), [128](#), [130](#), [131](#), [132](#),
[133](#), [134](#), [135](#), [136](#), [137](#), [138](#), [139](#), [140](#), [141](#), [142](#), [143](#), [144](#), [161](#), [165](#)

Dewey, Thomas, [25](#), [142](#)

Dixiecrats, [131](#), [133](#), [134](#), [138](#)

Dobie, Armisted M., [17](#), [20](#)

Dorn, William Jennings Bryan, [6](#), [27](#), [49](#), [142](#), [146](#), [155](#), [156](#)

Douglas, W. Ernest, [174](#)

Dulles, John Foster, [25](#)

E

Eastland, James O., [27](#), [50](#)

Edisto Beach State Park, [88](#), [104](#), [127](#)

Education and Race Relations, [34](#)

Edwards, B. M., [124](#)

Edwards, E. L., [26](#), [39](#)

Eisenhower, Dwight D., [8](#), [23](#), [26](#), [39](#), [95](#), [105](#), [131](#), [138](#), [140](#), [142](#), [143](#),
[154](#), [157](#), [158](#), [161](#), [164](#), [208](#), [204](#)

Ellis, R. Archie, [124](#)

Elmore, George, [5](#), [82](#)

Episcopal Church, [61-62](#)

Evans, J. Claude, [169](#), [170](#)

Evans, J. Walker, [85](#)

F

Faubus, Orval, [109](#), [158](#), [160](#), [161](#), [203](#)
Federal aid to education, [99-100](#), [102-103](#), [198](#)
Federal Bureau of Investigation, [121](#)
Federation for Constitutional Government, [38](#), [45](#), [137](#)
F.E.P.C., [134](#), [135](#), [139](#)
Fielding-Reid, Francis, [185](#)
Figg, Robert McC., [13](#), [14](#), [20](#)
Fitzhugh, George, [79](#)
Flemming, Sarah Mae, [126](#)
For America, [45](#)
Ford Foundation, [13](#)
Ford, Henry, II, [40](#)
Fort Jackson, [102](#), [157](#)
Frazier, E. Franklin, [27](#)
Fugitive Slave Law, [105](#)
Fund for the Republic, [169](#)

G

Gallup Poll, [72-73](#)
Gamecock, The, [176-177](#)
Garrett, Charles G., [89](#)
Gaud, Henry, [143](#)
Gentry, John T., [114](#)
George, Walter, [136](#)
Goebbels, Joseph., [186](#)

Golden, Harry, [91](#)
Grant, Ulysses S., [25](#)
Grass Roots League, [24](#), [38](#), [44-45](#), [137](#)
Graydon, Clint T., [155](#)
Gressette, L. Marion, [17](#), [77](#), [79](#), [95](#), [107](#), [109](#), [122](#), [161-162](#)
Gressette School Segregation Committee, [17](#), [93](#), [96-97](#), [103](#), [105](#), [115](#),
[147](#), [161](#)
Grimball, William H., Jr., [114](#)
Grossman, Fred, [150](#)
Guerry, Edward B., [27](#), [65](#)
Guess, Dorothy Moore, [168](#), [180](#)

H

Haigh, Charles D., [81](#)
Hammerstein, Oscar, II, [110](#)
Hammond, James H., [26](#)
Hampton, Wade, [129](#), [143](#)
Handlin, Oscar, [30](#)
Harlan, John Marshall, [26](#)
Harman, H. Odelle, [63](#)
Harmon, Nolan B., [59](#)
Harper's, [29-30](#), [72](#)
Harrell, George S., [26](#), [108](#), [115](#)
Harrelson, D. M., [174](#)
Harrigan, Anthony, [172](#)
Harriman, Averill, [136](#), [149](#)

Hart, John Calhoun, [103](#), [112](#), [113](#), [115](#), [116](#), [164](#)
Hartford Convention, [92](#), [105](#)
Hastie, William, [110](#)
Hemphill, Robert, [157](#)
Herbert, R. Beverley, [27](#), [124](#), [172](#)
Hilton, Henrietta, [73](#)
Hilton, Leroy, [73](#)
Hilton, Morgan, [73](#)
Hilton, William, [73](#)
Hinton, James M., [6](#), [22](#), [74](#), [76](#), [77](#), [80](#), [81](#), [82](#), [87](#), [110](#), [129](#), [180](#)
Hitler, Adolf, [62](#), [150](#), [181](#), [183](#), [186](#)
Hoffman, Edwin, [117-128](#)
Holler, J. C., [59](#)
Hollings, Ernest F., [31](#), [77](#), [86](#), [95](#), [97-98](#), [163](#)
Holmes, J. Arthur, [76](#)
Horlbeck, John M., [108](#), [114](#)
Horn, Joseph, [170](#)
Hughes, Jerry M., [58](#)
Hutchins, Guy, [86-87](#)

I

Independent (Anderson), [23-24](#), [25](#), [26](#), [35](#), [42](#), [50](#), [66](#), [75](#), [77](#), [85](#), [101-102](#), [103](#), [107](#), [109](#), [111](#), [128](#), [133](#), [135](#), [136](#), [139](#), [140](#), [152](#), [154](#), [158](#), [160](#), [168](#), [203](#)
Interdenominational Ministerial Alliance (Columbia), [76](#), [124](#)
Interposition, [105-110](#)
Island in the Sun, [115](#)

Ivey, G. L., [43](#), [86](#), [88](#), [96](#)

J

Jackson, Larry, [170](#)

James, F. C., [121](#)

James, William, [77](#)

Jefferson, Thomas, [136](#), [137](#), [145](#)

Jenkins, Micah, [44](#), [45](#), [47](#), [48](#), [137](#), [138](#)

Jerome, Emmette, [169](#)

Johnson, Lyndon, [136](#), [155](#), [157](#)

Johnston, Olin D., [4](#), [6](#), [22](#), [50](#), [136](#), [143](#), [154](#), [156](#), [157](#), [160](#), [203](#), [204](#)

Jones, Bob, [65](#)

Jones, E. S., [58](#)

K

Keels, Thomas D., [193](#)

Kefauver, Estes, [40](#), [135](#), [136](#), [139](#), [140](#)

Kennard, J. Spencer, [124](#), [125](#)

Kilpatrick, James J., [105](#)

King, Arthur Locke, [172](#)

Knights of Columbus, [89](#)

Knowland, William, [157](#)

Ku Klux Klan, [7](#), [12](#), [26](#), [38-42](#), [46](#), [51](#), [87-88](#), [111](#), [112](#), [165](#), [178](#), [174](#),
[179](#), [192](#)

L

Lamb, J. Harold, [162](#)

Lane, J. M., [64](#)
Latimer, Samuel, [110](#), [149-150](#), [158](#)
Lawrence, David, [147](#), [153](#), [202](#)
Le Clerq, Fred, [177](#)
Lee, J. Bracken, [137](#)
Lee, Robert E., [92](#), [148](#)
Life, [147](#)
Lighthouse and Informer, [129](#), [180](#)
Lincoln, Abraham, [142](#)
Lines, Stiles B., [86-87](#)
Little Rock Affair, [109-110](#), [148](#), [158-162](#), [178](#), [208](#)
Living Church, The, [62](#)
Long, John D., [162](#)
Look, [147](#)
Lutheran Church, [68](#)
Lyles, John, [170](#)

M

Mance, R. A., [120](#)
Mann, Woodrow Wilson, [159](#), [160](#)
Manning, Wyndham, [27](#)
Mansfield, Mrs. E. R., [182-183](#)
Marshall, Thurgood, [13-14](#), [15](#), [18](#), [51](#), [83](#), [88](#), [90](#)
Martin, E. M., [174](#)
Martin, Robert P., [178](#)
Mason, E. R., [65](#), [86](#)

Maybank, Burnet R., Jr., [50](#)
Maybank, Burnet R., Sr., [4](#), [9](#), [22](#), [180](#)
Mays, Benjamin E., [71](#), [110](#)
Mdodana, P. B., [82](#)
Meany, George, [164](#)
Mein Kampf, [181](#)
Mellette, Billy, [177](#)
Mencken, H. L., [49](#)
Methodist Church, [50-51](#), [55](#), [56-59](#)
Methodist Church, Southeastern Jurisdiction, [55](#)
Miller, Thomas R., [181](#)
Mitchell, Clarence, [113](#), [183](#)
Moore, Charles, [179](#)
Moore, Fred, [54](#)
Morehouse College, [71](#)
Morning News (Florence), [24](#), [25](#), [30-31](#), [33](#), [41-42](#), [43](#), [50](#), [56](#), [58](#), [67](#),
[68](#), [71](#), [77](#), [84](#), [85](#), [88](#), [92](#), [96](#), [99](#), [101](#), [102](#), [106](#), [111](#), [113](#), [119](#), [133](#),
[134](#), [135](#), [136](#), [139](#), [141](#), [145](#), [155](#), [158](#), [160](#), [167](#), [177](#), [178](#), [179](#),
[180](#), [203](#)
Morris, John B., [170](#), [178](#)
Morris, W. A., [182](#)
Morse, Stanley F., [24](#), [41](#), [86](#), [137](#), [182](#)
Morse, Wayne, [157](#)
Murray J. B., [57](#)
Myrdal, Gunnar, [22](#), [26](#), [27](#), [89](#)

“McCarthyism”, [111](#), [121](#)
McClary, Webster, [75](#)
McClung, Carolyn, [176](#)
McCord, L. B., [24](#), [47](#), [57](#), [64](#)
McCray, John, [6](#), [80](#), [124](#)
McFaddin, James H., [54](#), [203-204](#)
McFaddin, T. H., [98](#)
McKinley, Carlyle, [2](#)
McLaughlin, Mr. and Mrs. Carl B., [172](#)
McMaster, J. G., [33](#)
McMillan, John L., [50](#)
McMillan, Lewis K., [11](#)
McNair, Robert E., [155](#)
McQueen, Cleveland M., [11](#)

N

Nation, The, [12](#)
National Association for the Advancement of Colored People, [3](#), [5](#), [9](#), [10](#),
[12](#), [13](#), [14](#), [17](#), [19](#), [22](#), [28](#), [30](#), [32](#), [36](#), [39](#), [40](#), [43](#), [45](#), [46](#), [50](#), [51](#), [52](#),
[53](#), [58](#), [64](#), [65](#), [67](#), [68](#), [71](#), [74](#), [75](#), [77](#), [79](#), [80](#), [81-91](#), [96](#), [104](#), [110-](#)
[111](#), [113](#), [116](#), [129](#), [130](#), [135](#), [137](#), [141](#), [142](#), [149](#), [150](#), [152](#), [159](#),
[160](#), [163](#), [170](#), [171](#), [174](#), [179](#), [182](#), [183](#), [196](#)
National Association for the Advancement of White People, [12](#), [38](#), [42-](#)
[43](#), [96](#)
National Council of Churches, [40](#), [52](#), [69](#)
National Education Association, [101](#)
Neff, Lawrence, [67](#)
Negro Baptist State Convention, [76](#)

Negro Citizens Committee of South Carolina, [187](#)

New York Herald Tribune, [147](#), [148](#)

New York Times, [32](#), [73](#), [147](#), [148](#), [149](#)

News and Courier (Charleston), [2](#), [7](#), [22-23](#), [24](#), [25](#), [26](#), [27-28](#), [29](#), [30](#), [31](#),
[32](#), [33-34](#), [35](#), [42](#), [43](#), [44](#), [45](#), [46](#), [49](#), [50](#), [54](#), [56](#), [57](#), [63](#), [64](#), [67](#), [68-](#)
[69](#), [72](#), [75](#), [77-78](#), [79](#), [84](#), [86](#), [87](#), [88](#), [92](#), [93](#), [96](#), [98](#), [99-100](#), [101](#),
[102-103](#), [107](#), [108](#), [109](#), [112](#), [114](#), [116](#), [126](#), [128](#), [130-131](#), [132](#), [134](#),
[135](#), [136-137](#), [139](#), [140](#), [141](#), [143](#), [145](#), [146](#), [147](#), [148](#), [149](#), [150](#),
[151](#), [152](#), [153](#), [154](#), [155](#), [158](#), [159](#), [163-164](#), [167](#), [168](#), [169](#), [172](#),
[177](#), [180](#), [182](#), [183](#), [184](#), [185](#), [186](#), [187](#)

Niebuhr, Reinhold, [65](#)

Nixon, Richard M., [112](#), [138](#), [142](#), [158](#), [159](#)

O

O'Dowd, Jack H., [24](#), [30-31](#), [56](#), [58](#), [77](#), [85](#), [96](#), [99](#), [111](#), [136](#), [155](#), [167](#),
[177](#), [178-180](#)

Orangeburg boycotts, [51-54](#)

Ott, E. Mitchell. [153-154](#)

Oxnam, G. Bromley, [40](#)

P

Palmetto Education Association, [73-74](#), [96](#), [199](#)

Palmetto State Voters Association, [80-81](#), [148](#)

Parker, Barrington, [142-143](#)

Parker, John J., [13](#), [14](#), [20](#), [126](#)

Patrick, J. J., [64-65](#)

Peale, Norman Vincent, [68](#)

Petit, Harold A., [186](#)

Pierce, Bob, [149](#)
Pitts, Oscar, [142](#)
Plessy vs. Ferguson, [3](#), [22](#), [26](#), [126](#)
Poag, Fred V., [64](#)
Pollock, William, [164](#)
Poole, Robert E., [102](#)
Pope, Thomas H., [27](#), [155](#)
Powell, Adam Clayton, [139](#), [142](#)
Powell, Joe B., [180](#)
Pridgen, Paul M., [68](#)
Pritchett, Carl, [64](#)
Progressive Democratic Party, [6-7](#), [73](#), [75](#), [80](#), [124](#)

R

Randolph, A. Philip, [110](#)
Rankin, Henry, [63](#)
Ravenel, Arthur, Jr., [153](#)
Rayburn, Sam, [136](#)
Rea, C. A., [42](#)
Record, (Columbia), [23](#), [25](#), [26](#), [28](#), [30](#), [31](#), [32](#), [34-35](#), [50](#), [54](#), [72](#), [76](#), [77](#),
[81](#), [85](#), [86](#), [87](#), [88](#), [89](#), [90](#), [101](#), [106](#), [109](#), [111-112](#), [114](#), [126](#), [131](#),
[134](#), [135](#), [141](#), [160](#), [184](#), [185](#)
Record, Wilson, [196](#)
Reid, Frank Madison, [75-76](#)
Reporter, The, [52](#)
Republican Party, [8](#), [24](#), [128](#), [130](#), [131](#), [134](#), [137](#), [138](#), [141](#), [142](#), [143](#), [163](#)
Reuther, Walter, [139](#), [165](#)

Rice vs. Elmore, [4](#)

Richards, James P., [106](#), [161](#), [171](#), [172](#)

Richmond News Leader, [105](#)

Rideout, John G., [117-123](#)

Riley, E. P., [142](#)

Riley, John J., [49](#), [50](#), [121](#)

Rivers, L. Mendel, [45](#), [49](#), [50](#), [106](#), [131](#), [154](#), [157](#)

Rochester, A. Marshall, [41](#)

Rockefeller, Winthrop, [203](#)

Rogers, James A., [31](#), [33](#), [77](#), [135](#), [136](#), [139](#), [140](#)

Rogers, S. Emory, [13](#), [20](#), [46](#), [48](#), [55](#), [89](#), [106](#), [138](#)

Roosevelt, Eleanor, [39](#), [139](#)

Roosevelt, Franklin D., [8](#), [39](#), [130](#), [131](#), [135](#), [188](#)

Rowell, Robert, [67](#)

Ruppert, C. H., [151](#)

Russell, Donald S., [100](#), [151-152](#), [175](#), [176](#)

Russell, Richard B., [142](#), [203](#)

Rutledge, Archibald, [69](#)

S

Sanders, Claudia Thomas, [172](#), [173](#)

Sanders, Dr. James H., [172](#)

Sass, Herbert Ravenel, [27](#), [30](#), [181](#)

Sass, M. H., [144](#)

Saturday Evening Post, [147](#)

School Boards Association, [99](#)

Secrest, Andrew McDowd, [172](#)

Shean, Maurice, [169](#)

Siceloff, Courtney, [169](#)

Simkins, Francis B., [9](#), [181](#)

Simkins, Mojeska, [129](#)

Sinkler, Huger, [25](#)

Smith, Edna M., [68](#)

Smith, Ellison D. (“Cotton Ed”), [6](#), [46](#), [138](#), [187](#)

Smith, Ellison D., Jr., [27](#)

Smith, Farley, [27](#), [46](#), [138](#), [144](#), [161](#)

Smith, Lewis, [124](#), [125](#)

Smith vs. Allwright, [4](#)

Somerset, W. A., [165-166](#)

South Carolina Citizens Committee, [74](#)

South Carolina Conference of Education, [100](#)

South Carolina Council on Human Relations, [169](#)

South Carolina Education Association, [99](#), [175](#)

South Carolina Electric and Gas Co., [126](#), [186](#)

South Carolina Farm Bureau Federation, [34](#), [96](#)

South Carolina Federation of Women’s Clubs, [99](#), [169](#)

South Carolinians for Independent Electors (South Carolina Independent Democrats), [80](#), [138-144](#), [161](#), [165](#)

Southern Association of Colleges and Secondary Schools, [10](#)

Southern Baptist Convention, [55](#), [60](#), [61](#)

Southern Historical Association, [181](#)

Southern Manifesto, [40](#), [169](#)

Southern Methodist Church, [62-63](#)
Southern Presbyterian Assembly, [55](#)
Southern Regional Council, [169](#), [173](#)
Spearman, Alice N., [169](#)
Spingarn, Arthur B., [110](#)
Spruill, James A., [155](#)
Stafford, G. Jackson, [60](#), [174](#)
Stalin, Joseph, [8](#)
Star (Marion), [130](#)
State (Columbia), [26](#), [102](#), [109-110](#), [127](#), [147-148](#), [149](#), [158](#), [160](#), [184](#)
State Agricultural and Mechanical College for Negroes, [11](#), [53](#), [82](#), [95](#),
[104](#), [111](#), [118](#), [128](#)
State Board of Education, [116](#), [117-118](#), [120](#), [121](#), [123](#)
State Law Enforcement Division, [53](#), [172-173](#)
State Library Board, [104](#), [113](#), [114](#)
States Rights League, [38](#), [43-44](#), [45](#)
Stevens, Thaddeus, [25](#)
Stevenson, Adlai, [131](#), [135](#), [139](#), [140](#), [143](#), [159](#)
Stoney, Thomas P., [139](#)
Strobel, Hydrick, [76](#)
Stuckey, J. Henry, [114](#)
Summers, S. J., Jr., [63](#)
Supreme Court (United States), [3](#), [17-20](#), [21](#), [23](#), [24](#), [25](#), [26](#), [27](#), [28](#), [29](#),
[31](#), [32](#), [33](#), [35](#), [37](#), [38](#), [43](#), [44](#), [58](#), [60](#), [61](#), [62](#), [65](#), [72](#), [74](#), [76](#), [85](#), [86](#),
[92](#), [93](#), [95](#), [96](#), [97](#), [98](#), [103](#), [104](#), [108](#), [111](#), [116](#), [123](#), [124](#), [125](#), [126](#),
[128](#), [129](#), [131](#), [132](#), [134](#), [139](#), [144](#), [167](#), [169](#), [170](#), [171](#), [173](#), [175](#),
[178](#), [183](#), [184](#), [185](#), [199](#)
Surles, Flora Bell, [186](#)

Swimming Hole, The, [113-114](#)

Swinton, Sylvia, [117](#)

Syracuse Post-Standard, [149](#)

T

Taft, Robert A., [137](#)

Taft-Hartley Act, [140](#), [188](#)

Talmadge, Herman, [142](#)

Textile Workers Union of America, [164](#)

Then My Old Kentucky Home Good Night, [152](#)

Thomas, Albert S., [27](#), [67](#)

Thompson, Eldridge. 88, [192](#)

Thurmond, J. Strom, [7](#), [8](#), [22](#), [26](#), [35](#), [50](#), [128](#), [134](#), [154](#), [155](#), [156](#), [157](#),
[158](#), [203](#)

Till, Emmett, [86](#)

Tillman, Ben, [137](#)

Time, [147](#), [148](#), [180](#)

Timmerman, George Bell, Jr., [4](#), [31](#), [36](#), [42](#), [53-54](#), [60](#), [77](#), [80](#), [89](#), [90](#), [93-95](#), [100](#), [102](#), [106](#), [107](#), [108](#), [116-125](#), [129-130](#), [132](#), [133](#), [134](#), [147](#),
[156-167](#), [158](#), [161](#), [171](#), [175](#)

Timmerman, George Bell, Sr., [13](#), [14](#), [20](#), [60](#), [93](#), [126](#)

Tobias, Channing, [83](#), [110](#)

Toth, André, [117](#), [119](#)

Travelstead, Chester C., [167](#), [175-177](#)

Truax, Carlton, [25](#)

Trujillo, Rafael Leonidas, [149](#)

Truman, Harry S., [7](#), [8](#), [15](#), [29](#), [131](#), [139](#), [188](#)

Turner, Benner C., [54](#), [95](#), [118](#)

Turner, Sherwood, [40-41](#)

Turnipseed, Barnwell Rhett, [59](#)

U

Un-American Activities Committee, [27](#), [40](#), [110](#), [117](#), [124](#)

United Church Women, [170](#)

United Southern Employees Association, [165-166](#)

University of Chicago, [180](#)

University of South Carolina, [2](#), [11](#), [100](#), [118](#), [122](#), [123](#), [167](#), [174](#), [175](#),
[176](#), [177](#), [202](#)

U. S. News and World Report, [147](#), [158](#)

V

Vanwright, James, [76](#)

Veal, Frank, [117-118](#), [120](#), [121](#), [123](#)

Victory Savings Bank, [52](#)

Virginia and Kentucky Resolutions, [105](#)

W

Wallace, David Duncan, [7](#)

Wallace, Lewis, [103](#)

Walterboro Press and Standard, [111](#)

Waring, George W., [45](#)

Waring, J. Waties, [5-6](#), [7](#), [13](#), [15](#), [17](#), [188](#)

Waring, Thomas R., [7](#), [23](#), [29-30](#), [46](#), [72](#), [126](#), [132](#), [148](#), [168](#), [183](#)

Warr, O. L., [98](#)

Warren, Earl, [19](#), [22](#), [23](#), [26](#), [142](#)
Washington, Booker T., [77](#), [79](#)
Washington Post and Times-Herald, [147](#), [204](#)
Watson, Albert W., [114](#)
Waugh, Alec, [115](#)
We The People, [43](#)
Wheeler, Paul, [124](#)
Weep No More My Lady, [152](#)
White, Walter, [14](#)
Wiggins, Forrest O., [117-123](#)
Williams, Norton, [28-29](#)
Wilkes, Gilbert, [31-32](#), [79](#), [186](#)
Wilkins, Roy, [84](#), [89](#)
Williams, Ashton H., [88](#)
Williams, G. Mennen, [136](#)
Williams, John Bell, [139](#)
Williams, Marshall, [79](#)
Williams, Ransome J., [27](#)
Wilson, Woodrow, [137](#)
Woodson, M. A., [65](#)
Workman, W. D., Jr., [24](#), [27](#), [28](#), [32](#), [35](#), [72](#), [77](#), [88](#), [93](#), [98](#), [108-109](#), [152-153](#)
Wrighten, John, [11](#)

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Footnotes were renumbered sequentially. Obvious printing errors, such as backwards, upside down, or partially printed letters and punctuation were corrected. Final stops missing at the end of sentences and abbreviations were added. Duplicate letters at line endings were removed.

The following was changed: “as” to “**is**”:
... is, in itself, unconstitutional,...

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